

SOLICITATION VERSION

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION**

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In re: : Chapter 11
:
OFFICE PROPERTIES INCOME TRUST, *et al.*, : Case No. 25-90530 (CML)
:
Debtors.¹ : (Jointly Administered)
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**DISCLOSURE STATEMENT FOR SECOND AMENDED
JOINT CHAPTER 11 PLAN OF REORGANIZATION OF OFFICE
PROPERTIES INCOME TRUST AND ITS DEBTOR AFFILIATES**

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Dated: March 16, 2026
Houston, Texas

¹ A complete list of the Debtors in the Chapter 11 Cases may be obtained on the website of the Debtors’ claims and noticing agent at <https://restructuring.ra.kroll.com/OPI>. The Debtors’ mailing address is Two Newton Place, 255 Washington Street, Suite 300, Newton, Massachusetts 02458-1634.

DISCLOSURE STATEMENT, DATED MARCH 16, 2026

OFFICE PROPERTIES INCOME TRUST, *ET AL.*

THE VOTING DEADLINE TO ACCEPT OR REJECT THE PLAN IS 4:00 P.M. (PREVAILING CENTRAL TIME) ON APRIL 15, 2026, UNLESS EXTENDED BY THE DEBTORS IN THEIR SOLE DISCRETION. THE RECORD DATE FOR DETERMINING WHICH HOLDERS OF CLAIMS MAY VOTE ON THE PLAN IS FEBRUARY 13, 2026 (THE “*VOTING RECORD DATE*”).

A (a) release opt-out form (the “***Release Opt-Out Form***”) or release opt-in form (the “***Release Opt-In Form***”) and a notice of non-voting status or (b) a Ballot (as defined herein) containing an opt-out election will be provided to you. The Release Opt-Out Form, Release Opt-In Form, or Ballot, as applicable, will provide you with the option to not grant the Releases contained in section 10.6(b) of the Plan. You must complete and timely return the Release Opt-Out Form, Release Opt-In Form, or Ballot, as applicable, to the Solicitation Agent by **April 15, 2026** (unless extended by the Debtors, the “***Voting Deadline***”) **at 4:00 p.m. (prevailing Central Time)** in accordance with the instructions set forth in the Release Opt-Out Form, Release Opt-In Form, or Ballot (and accompanying notices), as applicable, for your election with respect to the Releases to be valid; **OTHERWISE, YOU WILL BE DEEMED TO CONSENT TO AND BE BOUND BY THE RELEASES SET FORTH IN SECTION 10.6(b) OF THE PLAN.** Please review the additional information set forth in this disclosure statement (this “***Disclosure Statement***”), the Release Opt-Out Form, Release Opt-In Form, or Ballot, as applicable, the Plan, and any other documents related to the Chapter 11 Cases that you may receive from time to time. Please be advised that your decision to opt out of or opt in to the releases in section 10.6(b) of the Plan, as applicable, does not affect the amount of distribution you will receive under the Plan.

RECOMMENDATION BY THE DEBTORS

The Debtors believe the Plan is in the best interests of the Debtors' creditors and other stakeholders. All creditors entitled to vote on the Plan are urged to vote in favor of the Plan.

The board of trustees, directors, managers, or members, as applicable, of each of the Debtors have unanimously approved the transactions contemplated by the Plan and recommend that all creditors whose votes are being solicited submit Ballots to accept the Plan. Holders of approximately 90% of the September 2029 Senior Secured Notes (as defined herein and collectively, the "***Consenting Creditors***") have already agreed, subject to the terms and conditions of the Restructuring Support Agreement, to vote in favor of, or otherwise support, the Plan.

RECOMMENDATION BY THE COMMITTEE

As detailed below, the Official Committee of Unsecured Creditors (the "***Committee***") recommends that all holders of Priority Guaranteed Unsecured Notes Claims (Class 9), Unsecured Notes Claims (Class 10), Trade and Vendor Claims (Class 11), and Other General Unsecured Claims (Class 12) (i) vote to **accept** the Plan, and (ii) not opt out of the releases set forth in Section 10.6(b) of the Plan.

IMPORTANT INFORMATION REGARDING THIS DISCLOSURE STATEMENT FOR YOU TO READ

ALL HOLDERS OF CLAIMS ENTITLED TO VOTE ON THE PLAN ARE ENCOURAGED TO READ THIS DISCLOSURE STATEMENT AND THE PLAN IN THEIR ENTIRETY BEFORE VOTING TO ACCEPT OR REJECT THE PLAN. IN PARTICULAR, ALL HOLDERS OF CLAIMS SHOULD CAREFULLY READ AND CONSIDER THE RISK FACTORS SET FORTH IN ARTICLE IX OF THIS DISCLOSURE STATEMENT TITLED “CERTAIN RISK FACTORS TO BE CONSIDERED” BEFORE VOTING TO ACCEPT OR REJECT THE PLAN. THE PLAN SUMMARY AND STATEMENTS MADE IN THIS DISCLOSURE STATEMENT ARE QUALIFIED IN THEIR ENTIRETY BY REFERENCE TO THE PLAN ITSELF AND ANY EXHIBITS ATTACHED TO THE PLAN AND THIS DISCLOSURE STATEMENT. IN THE EVENT OF ANY CONFLICT BETWEEN ANY DESCRIPTIONS SET FORTH IN THIS DISCLOSURE STATEMENT AND THE TERMS OF THE PLAN, THE TERMS OF THE PLAN SHALL GOVERN.

HOLDERS OF CLAIMS SHOULD NOT CONSTRUE THE CONTENTS OF THIS DISCLOSURE STATEMENT AS PROVIDING ANY LEGAL, BUSINESS, FINANCIAL, OR TAX ADVICE AND SHOULD CONSULT WITH THEIR OWN ADVISORS BEFORE CASTING A VOTE WITH RESPECT TO THE PLAN.

UPON CONFIRMATION OF THE PLAN, THE SECURITIES DESCRIBED IN THIS DISCLOSURE STATEMENT WILL BE OFFERED AND SOLD WITHOUT REGISTRATION UNDER THE U.S. SECURITIES ACT OF 1933, AS AMENDED, TOGETHER WITH THE RULES AND REGULATIONS PROMULGATED THEREUNDER (THE “*SECURITIES ACT*”), OR SIMILAR U.S. FEDERAL, STATE, OR LOCAL LAWS IN RELIANCE ON THE EXEMPTION SET FORTH IN SECTION 1145(A) OF THE BANKRUPTCY CODE, SECTION 4(a)(2) OF THE SECURITIES ACT, REGULATION D OR REGULATION S PROMULGATED THEREUNDER, OR ANOTHER AVAILABLE EXEMPTION UNDER THE SECURITIES LAWS OF THE UNITED STATES. THE ABILITY TO OFFER AND SELL SECURITIES WITHOUT REGISTRATION IN RELIANCE ON SECTION 1145(A) OF THE BANKRUPTCY CODE OR APPLICABLE SECURITIES LAWS, WHETHER FEDERAL, STATE, OR TERRITORIAL, SHALL NOT BE A CONDITION TO THE OCCURRENCE OF THE EFFECTIVE DATE. WITH RESPECT TO SECURITIES ISSUED PURSUANT TO SECTION 4(a)(2) OF THE SECURITIES ACT OR REGULATION D OR REGULATION S PROMULGATED THEREUNDER, SUCH SECURITIES WILL BE “RESTRICTED SECURITIES” SUBJECT TO RESALE RESTRICTIONS AND MAY BE RESOLD, EXCHANGED, ASSIGNED, OR OTHERWISE TRANSFERRED ONLY PURSUANT TO REGISTRATION UNDER THE SECURITIES ACT (OR AN APPLICABLE EXEMPTION FROM SUCH REGISTRATION REQUIREMENTS) AND OTHER APPLICABLE LAW.

NO SECURITIES TO BE ISSUED PURSUANT TO THE PLAN HAVE BEEN APPROVED OR DISAPPROVED BY THE U.S. SECURITIES AND EXCHANGE COMMISSION (THE “SEC”) OR BY ANY STATE SECURITIES COMMISSION OR SIMILAR PUBLIC, GOVERNMENTAL, OR REGULATORY AUTHORITY. THIS DISCLOSURE STATEMENT HAS NOT BEEN FILED FOR APPROVAL WITH THE SEC OR ANY STATE AUTHORITY AND NEITHER THE SEC NOR ANY STATE AUTHORITY HAS PASSED UPON THE ACCURACY OR ADEQUACY OF THE INFORMATION CONTAINED IN THIS DISCLOSURE STATEMENT OR UPON THE MERITS OF THE PLAN. ANY REPRESENTATION TO THE CONTRARY IS A CRIMINAL OFFENSE IN THE UNITED STATES. NEITHER THE SOLICITATION OF VOTES ON THE PLAN NOR THIS DISCLOSURE STATEMENT CONSTITUTES AN OFFER TO SELL OR THE SOLICITATION OF AN OFFER TO BUY SECURITIES IN ANY STATE OR JURISDICTION IN WHICH SUCH OFFER OR SOLICITATION IS NOT AUTHORIZED.

THE DEBTORS BELIEVE THAT THE SOLICITATION OF VOTES ON THE PLAN MADE BY THIS DISCLOSURE STATEMENT ARE EXEMPT FROM REGISTRATION UNDER THE SECURITIES ACT AND RELATED STATE STATUTES PURSUANT TO SECTION 4(a)(2) OF THE SECURITIES ACT OR REGULATION D OR REGULATION S PROMULGATED THEREUNDER, AS APPLICABLE.

ALL SECURITIES DESCRIBED HEREIN ARE EXPECTED TO BE ISSUED WITHOUT REGISTRATION UNDER THE SECURITIES ACT OR ANY STATE SECURITIES LAWS (“BLUE SKY LAWS”).

CERTAIN STATEMENTS CONTAINED IN THE DISCLOSURE STATEMENT, INCLUDING STATEMENTS INCORPORATED BY REFERENCE, PROJECTED FINANCIAL INFORMATION, AND OTHER FORWARD-LOOKING STATEMENTS, ARE SUBJECT TO A NUMBER OF ASSUMPTIONS, RISKS AND UNCERTAINTIES, MANY OF WHICH ARE BEYOND THE CONTROL OF THE DEBTORS, INCLUDING THE IMPLEMENTATION OF THE PLAN. THERE CAN BE NO ASSURANCE THAT SUCH STATEMENTS WILL BE REFLECTIVE OF ACTUAL OUTCOMES. FORWARD-LOOKING STATEMENTS SHOULD BE EVALUATED IN THE CONTEXT OF THE ESTIMATES, ASSUMPTIONS, UNCERTAINTIES, AND RISKS DESCRIBED HEREIN.

FURTHERMORE, READERS ARE CAUTIONED THAT ANY FORWARD-LOOKING STATEMENTS HEREIN, INCLUDING ANY PROJECTIONS, ARE BASED ON ASSUMPTIONS THAT ARE BELIEVED TO BE REASONABLE, BUT ARE SUBJECT TO A WIDE RANGE OF RISKS IDENTIFIED IN THIS DISCLOSURE STATEMENT. IMPORTANT ASSUMPTIONS AND OTHER IMPORTANT FACTORS THAT COULD CAUSE ACTUAL RESULTS TO DIFFER MATERIALLY INCLUDE, BUT ARE NOT LIMITED TO, THOSE FACTORS, RISKS AND UNCERTAINTIES DESCRIBED IN MORE DETAIL UNDER THE HEADING “CERTAIN RISK FACTORS TO BE CONSIDERED,” AS WELL AS THE ABILITY OF MANAGEMENT TO EXECUTE ITS PLANS TO MEET ITS GOALS AND OTHER RISKS INHERENT IN THE DEBTORS’ BUSINESS. DUE TO THESE UNCERTAINTIES, READERS CANNOT BE ASSURED

THAT ANY FORWARD-LOOKING STATEMENTS WILL PROVE TO BE CORRECT. PARTIES ARE CAUTIONED THAT THE FORWARD-LOOKING STATEMENTS SPEAK AS OF THE DATE MADE, ARE BASED ON THE DEBTORS' CURRENT BELIEFS, INTENTIONS AND EXPECTATIONS, AND ARE NOT GUARANTEES OF FUTURE PERFORMANCE. ACTUAL RESULTS OR DEVELOPMENTS MAY DIFFER MATERIALLY FROM THE EXPECTATIONS EXPRESSED OR IMPLIED IN THE FORWARD-LOOKING STATEMENTS. THE DEBTORS ARE UNDER NO OBLIGATION TO (AND EXPRESSLY DISCLAIM ANY OBLIGATION TO) UPDATE OR ALTER ANY FORWARD-LOOKING STATEMENTS WHETHER AS A RESULT OF NEW INFORMATION, FUTURE EVENTS, OR OTHERWISE, UNLESS INSTRUCTED TO DO SO BY THE BANKRUPTCY COURT OR REQUIRED BY APPLICABLE LAW.

NO INDEPENDENT AUDITOR OR ACCOUNTANT HAS REVIEWED OR APPROVED THE FINANCIAL PROJECTIONS OR THE LIQUIDATION ANALYSIS PROVIDED HEREIN.

THE STATEMENTS CONTAINED IN THE DISCLOSURE STATEMENT ARE MADE AS OF THE DATE HEREOF UNLESS OTHERWISE SPECIFIED. THE TERMS OF THE PLAN GOVERN IN THE EVENT OF ANY INCONSISTENCY WITH THE SUMMARIES IN THE DISCLOSURE STATEMENT.

THE INFORMATION IN THE DISCLOSURE STATEMENT IS BEING PROVIDED SOLELY FOR PURPOSES OF VOTING TO ACCEPT OR REJECT THE PLAN OR OBJECTING TO CONFIRMATION. NOTHING IN THE DISCLOSURE STATEMENT MAY BE USED BY ANY PARTY FOR ANY OTHER PURPOSE.

ALL EXHIBITS TO THE DISCLOSURE STATEMENT ARE INCORPORATED INTO AND ARE A PART OF, THE DISCLOSURE STATEMENT AS IF SET FORTH IN FULL HEREIN.

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I. EXECUTIVE SUMMARY

Office Properties Income Trust (“**OPF**”), a Maryland real estate investment trust, and its affiliated debtors and debtors in possession in the above-captioned cases (collectively, the “**Debtors**,” and, together with their non-Debtor affiliates, the “**Company**”), jointly submit this Disclosure Statement pursuant to section 1125 of title 11 of the United States Code (as amended from time to time, the “**Bankruptcy Code**”) and other applicable law, in connection with the solicitation of votes on the *Second Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and Its Debtor Affiliates* (as may be amended from time to time, and including all exhibits and supplements thereto, the “**Plan**”),² filed contemporaneously herewith by the Debtors in the United States Bankruptcy Court for the Southern District of Texas (the “**Bankruptcy Court**”). A copy of the Plan is attached hereto as **Exhibit A**.

The Debtors are soliciting votes on the Plan to implement a comprehensive financial restructuring to significantly deleverage the Debtors’ balance sheet and ensure the long-term viability of the Debtors’ enterprise. As described in more detail below, the Company’s property portfolio has been adversely affected by the broader macroeconomic shifts in office space utilization in recent years, as well as ongoing market and economic conditions. Recognizing that a comprehensive balance sheet deleveraging and restructuring was necessary, beginning in June 2025, the Company, Latham & Watkins LLP (“**Latham**”), Moelis & Company (“**Moelis**”), and AlixPartners LLP (“**AlixPartners**,” and together with Latham and Moelis, the “**Advisors**”) engaged in extensive, arm’s-length, good faith negotiations with ad hoc groups of holders of the Company’s funded debt across its capital structure (collectively, the “**Ad Hoc Groups**”), including certain holders (the “**September 2029 Ad Hoc Group**”) of the September 2029 Senior Secured Notes, certain holders (the “**2027 Ad Hoc Group**”) of the 2027 Senior Secured Notes, an ad hoc group of the Company’s unsecured bonds (the “**Unsecured Noteholders Ad Hoc Group**”), an ad hoc group of holders of the March 2029 Senior Secured Notes (the “**March 2029 Ad Hoc Group**”), and certain lenders under the Secured Credit Facility (the “**Secured Credit Facility Ad Hoc Group**”).

After evaluating various competing restructuring and financing proposals, these negotiations culminated in the Debtors and the Consenting Creditors, together with RMR (as defined below), entering into a restructuring support agreement, dated as of October 30, 2025 (including any amendments, modifications and joinders thereto, the “**Restructuring Support Agreement**”), a copy of which is attached as Exhibit A to the *Declaration of John R. Castellano in Support of the Debtors’ Chapter 11 Petitions and First Day Relief* [Docket No. 26] (the “**First Day Declaration**”). Under the terms of the Restructuring Support Agreement, the Consenting Creditors have agreed, subject to the terms and conditions of the Restructuring Support Agreement, to

² The terms of the Plan are incorporated by reference herein. Capitalized terms used but not otherwise defined in this Disclosure Statement will have the meaning ascribed to such terms in the Plan. The summary of the Plan provided herein is qualified in its entirety by reference to the Plan. In the case of any inconsistency between this Disclosure Statement and the Plan, the Plan will govern.

support a restructuring of the Debtors' existing capital structure and operations in chapter 11 and to vote to accept the Plan.

Following the commencement of the Chapter 11 Cases, the Debtors and the Ad Hoc Groups re-engaged in negotiations pursuant to a Bankruptcy Court-ordered mediation (the “**First Mediation**”), presided over by the Honorable Marvin Isgur, as mediator, to reach a comprehensive global restructuring settlement. Despite good-faith negotiations over the course of several weeks, the parties to the First Mediation were unable to reach agreement and, accordingly, the First Mediation terminated on December 22, 2025. Despite the termination of the First Mediation, the Debtors, the September 2029 Ad Hoc Group, the Unsecured Notes Ad Hoc Group, and the Committee agreed that a further, separate mediation (the “**Second Mediation**”) would be beneficial to aid discussions on remaining issues among them and facilitate consensus with respect to the Debtors' proposed Restructuring.

The Second Mediation commenced on January 5, 2026, and the Honorable Marvin Isgur again agreed to serve as mediator. As a result of the Second Mediation, on February 23, 2026, the Debtors, the September 2029 Ad Hoc Group, the Unsecured Notes Ad Hoc Group, and the Committee entered into a settlement (the “**Committee Settlement**”) that resolves the Committee's issues with respect to the Disclosure Statement and the Plan.

As of February 18, 2026, the Debtors, the 2027 Ad Hoc Group, and the September 2029 Ad Hoc Group agreed to restart their mediation with Judge Isgur to resolve the disputes among the parties with respect to the Plan (the “**Third Mediation**”). On March 2, 2026, following extensive, arm's-length, good faith discussions, the parties agreed to the principal terms of a proposed settlement (the “**2027 Senior Secured Notes Claims Settlement**”) with respect to the Plan. The Committee Settlement and the 2027 Senior Secured Notes Claims Settlement are key components of the Plan, paving the way for the value-maximizing transactions contemplated thereby and a consensual confirmation hearing.

The Debtors are continuing to negotiate in good faith with their other key creditor constituencies, including the March 2029 Ad Hoc Group and the Secured Credit Facility Ad Hoc Group in the hopes of reaching further consensus with respect to the Plan. However, as further settlements may not materialize, the Debtors seek to implement, the transactions contemplated by the Plan, as they believe the Restructuring contemplated by the Plan, including the Committee Settlement and the 2027 Senior Secured Notes Claims Settlement, provide the Debtors with a viable path forward and framework to successfully exit chapter 11.

Prior to soliciting votes on a proposed plan of reorganization, section 1125 of the Bankruptcy Code requires debtors to prepare a disclosure statement containing information of a kind, and in sufficient detail, to enable a hypothetical reasonable investor to make an informed judgment regarding acceptance or rejection of the plan of reorganization. As such, this Disclosure Statement is being submitted in accordance with the requirements of section 1125 of the Bankruptcy Code.

This executive summary is being provided as an overview of the material items addressed in the Disclosure Statement and the Plan, which is qualified by reference to the entire Disclosure Statement and by the actual terms of the Plan, and should not be relied upon for a comprehensive discussion of the Disclosure Statement or the Plan.

This Disclosure Statement includes, without limitation, information about:

- the Debtors' prepetition operating and financial history;
- the events leading up to the commencement of the Chapter 11 Cases;
- the events that have occurred during the pendency of the Chapter 11 Cases;
- the solicitation procedures for voting on the Plan;
- the confirmation process and the voting procedures that holders of claims who are entitled to vote on the Plan must follow for their votes to be counted;
- the terms and provisions of the Plan, including the releases, exculpation, and injunctions set forth therein and certain effects of confirmation of the Plan, certain risk factors relating to the Debtors or the Reorganized Debtors,³ the Plan and the securities to be issued under the Plan, and the means for implementation of the Plan and the manner in which distributions will be made under the Plan; and
- the proposed organization, operations and financing of the Reorganized Debtors if the Plan is confirmed and becomes effective.

A. Purpose and Effect of the Plan

1. Plan of Reorganization Under Chapter 11 of the Bankruptcy Code

The Debtors are reorganizing pursuant to chapter 11 of the Bankruptcy Code, which is the principal business reorganization chapter of the Bankruptcy Code. As a result, the confirmation of the Plan means that the Reorganized Debtors will continue to operate their businesses going forward and does not mean that the Debtors will be liquidated or cease operating their business.

The proposed Restructuring will leave the Debtors' business intact and significantly deleverage the Debtors' capital structure, as its total funded indebtedness will be reduced from approximately \$2.4 billion to approximately \$1.7 billion. This deleveraging will enhance the Debtors' position in a challenging real estate financing market and allow the Debtors to emerge from chapter 11 with a healthier balance sheet and the ability to continue owning and leasing office properties to high-credit quality tenants in markets throughout the United States.

Additionally, a bankruptcy court's confirmation of a plan binds debtors, any entity acquiring property under the plan, any holder of a claim against or equity interest in a debtor, and all other entities as may be ordered by the bankruptcy court to the terms and conditions of the confirmed plan, whether or not such entity voted on the particular plan or affirmatively voted to reject the plan.

³ "**Reorganized Debtors**" means the Debtors, or any successor(s) or assign(s) thereto, by merger, consolidation, reorganization, or otherwise, in the form of a corporation, limited liability company, partnership, trust, or other form, as the case may be, on and after the Effective Date (as defined below).

2. Financial Restructurings Under the Plan

The Plan is the result of several months of mediation and negotiations amongst the Committee, the September 2029 Ad Hoc Group, and the 2027 Ad Hoc Group. Pursuant to these negotiations, the Debtors, the Committee, and the September 2029 Ad Hoc Group reached the Committee Settlement, which is favorable to, and represents a fair outcome for, unsecured creditors. Subsequently, the Debtors, the September 2029 Ad Hoc group, and the 2027 Ad Hoc Group reached the 2027 Senior Secured Notes Claims Settlement, resolving the disputes among those parties with respect to the Plan. The Plan incorporates both the Committee Settlement and the 2027 Senior Secured Notes Claims Settlement and contemplates certain transactions, including, without limitation, the following⁴:

- (a) The Chapter 11 Cases are being financed by a \$125 million non-priming, secured debtor-in-possession term loan facility funded by certain holders of the September 2029 Senior Secured Notes (the “**DIP Facility**”).
- (b) To fund certain recoveries under the Plan, OPI will issue (a) an issuance of secured notes—the “**Secured Exit Notes**”—and (b) new warrants (the “**New Warrants**”) on the effective date of the Plan (the “**Effective Date**”).
 - (i) The Secured Exit Notes will be issued in the aggregate principal amount of up to \$420 million. The Secured Exit Notes will generally be guaranteed by the same entities that guaranteed the September 2029 Senior Secured Notes and secured by (a) the same collateral that secures the September 2029 Senior Secured Notes, subject to a customary intercreditor agreement; and (b) a first lien security interest the same real property collateral owned by the Unencumbered DIP Guarantors that will secure the DIP Facility; and (c) all additional assets securing the DIP Facility which security or pledge does not conflict with or result in a default or event of default under the terms of any existing debt that is unimpaired or refinanced under the Plan; *provided* that the assets securing the March 2029 Senior Secured Notes shall not secure the Secured Exit Notes. The Secured Exit Notes will bear interest at 10% annually, with a maturity date of five years from the Effective Date.
 - (ii) The New Warrants will be exercisable for 5.0% of Reorganized Common Equity as of the Effective Date (subject to dilution by the Initial Equity Compensation (as defined below)) and exercisable with cash (x) at a strike price equal to \$25 per share and (y) within seven years from the Effective Date.
- (c) To fund certain other recoveries under the Plan, certain Debtors will issue an issuance of secured notes (the “**New 2027 Senior Secured Notes**”) on the Effective Date to the holders of the 2027 Senior Secured Notes.

⁴ This description is a summary of the Plan and definitive documents related thereto. It does not describe all terms of such documents. To the extent there is an inconsistency between this description and the terms of the Plan or the definitive documents, the terms of the Plan and definitive documents shall control.

- (i) The New 2027 Senior Secured Notes will be issued in the aggregate principal amount of \$385 million. The New 2027 Senior Secured Notes will (i) be secured by a first lien on (x) all of the first lien collateral currently securing the 2027 Senior Secured Notes, except for certain properties in Irving, Texas, and Parsippany, New Jersey, and (y) such additional property as required to meet a \$460 million minimum value requirement for the collateral package and (ii) require principal payments of at least \$50 million on the schedule set forth therein. The New 2027 Senior Secured Notes will generally bear interest at 8.125% annually, with a maturity date of 42 months from the Effective Date.
- (d) The Debtors will conduct an equity rights offering (the “**Equity Rights Offering**”), in which all Eligible Holders of Allowed Unsecured Notes Claims will be entitled to participate. The Equity Rights Offering will offer up to \$35 million of reorganized common equity (at a 15% discount to Plan value) with the proceeds used to fund exit costs and working capital. The Equity Rights Offering will be backstopped by members of the Unsecured Notes Ad Hoc Group, Valueworks LLC, and Diamond Family Investments LLC for a backstop fee of 10% of the total amount actually funded in the Equity Rights Offering, payable in reorganized common equity.
- (e) The RMR Management Agreements will each be assumed by the Reorganized Debtors and amended and restated pursuant to the Plan and the Restructuring Term Sheet, with such amended and restated agreements (the “**Amended RMR Management Agreements**”) to be entered into on the Effective Date. The Amended RMR Management Agreements will amend the existing business management fee to \$14 million per annum until the second anniversary of the Effective Date, with business management fees after such date to be agreed) while the existing property management fee and construction supervision fee will remain the same as under the RMR Management Agreements as currently in effect, at 3% of gross collected rents and 5% of certain construction costs, respectively. The Amended RMR Management Agreements also contemplate a management incentive plan (“**MIP**”) providing for 2% of reorganized common equity to be issued to RMR on the Effective Date (the “**Initial Equity Compensation**”) and an entitlement to receive up to an additional 8% of reorganized common equity based on satisfaction of certain financial tests to be agreed by the New Board (the “**Subsequent Equity Compensation**”). The Amended RMR Management Agreements also amend the initial term of the applicable agreements to five years from the Effective Date.
- (f) Holders of unsecured funded debt claims, including Allowed Priority Guaranteed Unsecured Notes Claims, Allowed September 2029 Unsecured Claims, and Allowed Unsecured Notes Claims will receive their pro rata distributions of remaining Reorganized Common Equity after accounting for Reorganized Common Equity issued pursuant to the Equity Rights Offering and in satisfaction of the DIP Claims and the Allowed September 2029 Senior Secured Notes Claims, subject to dilution on account of the Initial Equity Compensation and the exercise of the New Warrants (the “**Unsecured Equity Pool**”). The Unsecured Equity Pool shall be allocated and distributed to such holders in the following priority (the “**Unsecured Equity Pool Waterfall**”):

- (i) **First**, pro rata on account of Allowed Priority Guaranteed Unsecured Notes Claims in an aggregate amount up to any value distributable after satisfaction of all Allowed Claims against the relevant Debtor subsidiary guarantors that are senior in priority to Allowed Claims at the Parent (the “**Priority Guarantee Distributable Value**”);
- (ii) **Second**, on account of (x) Allowed September 2029 Unsecured Claims, (y) Unsecured Notes Claims and (z) Allowed Priority Guaranteed Unsecured Notes Claims (to the extent not paid in full from the distribution in (i)).

The treatment of certain Classes of Claims and Interests will be as follows:

- (a) Allowed Administrative Claims, Priority Tax Claims, Other Secured Claims, Other Priority Claims, Mortgage Debt Guarantee Claims, and Secured Credit Facility Claims will be paid in full in cash or receive such other treatment reinstating such claims or rendering such claims Unimpaired, as applicable.
- (b) Allowed March 2029 Senior Secured Notes Claims will receive, at the option of the Debtors or the Reorganized Debtors (as applicable)
 - (i) payment in full in Cash of such Allowed March 2029 Senior Secured Notes Claims from the proceeds of the New March 2029 Senior Secured Notes; or
 - (ii) such other treatment reinstating the Allowed March 2029 Senior Secured Notes Claims or providing the economic equivalent of such Allowed March 2029 Senior Secured Notes, subject to the terms and conditions to be agreed between the Debtors or the Reorganized Debtors, as applicable, and the requisite Holders of the Allowed March 2029 Senior Secured Notes Claims.
- (c) Allowed 2027 Senior Secured Notes Claims will receive, subject to any applicable charging lien, \$385 million in New 2027 Senior Secured Notes, which amount may be reduced by, among other things, a pay down of up to \$50 million.
- (d) Allowed September 2029 Senior Secured Notes Claims will receive
 - (i) \$300 million in Secured Exit Notes; and
 - (ii) pursuant to the September 2029 Recovery Election, each holder of an Allowed September 2029 Senior Secured Notes Claim will have the right to receive such holder’s pro rata share of (x) \$120 million in Secured Exit Notes and (y) \$98 million in Reorganized Common Equity.
 - (A) Holders of Allowed Original September 2029 Senior Secured Notes Claims shall be permitted to submit September 2029 Recovery Elections to elect their preferred amounts of such Secured Exit Notes and Reorganized Common Equity, or a combination thereof, with the balance of such holders’ Claims being satisfied in the form of consideration not so elected

in accordance with the procedures detailed in the Plan governing such September 2029 Recovery Election.

- (B) Holders of Allowed Subsequent September 2029 Senior Secured Notes Claims shall not have the right to make the September 2029 Recovery Election and shall receive its pro rata share of \$120 million in Secured Exit Notes and \$98 million of Reorganized Common Equity based on the Subsequent September 2029 Senior Secured Notes Adjusted Claim Amount of \$37,570,000.
- (e) Allowed September 2029 Unsecured Claims will receive their pro rata share of 5.3% of Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall (to the extent the Debtors elect to equitize the DIP Claims), subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants.
- (f) DIP Claims will receive
 - (i) Each DIP Claim (excluding any Allowed DIP Claims on account of fees under the DIP Facility (***“DIP Fee Claims”***)) shall receive, at the sole discretion of the Debtors or Reorganized Debtors, its pro rata share of Cash or Reorganized Common Equity equal to the aggregate amount of such DIP Claims (net of DIP Fee Claims) at a discount to Plan value of 37% (subject to approval by the Bankruptcy Court) (the ***“DIP Equity Distribution”***); and
 - (ii) each Allowed DIP Fee Claim shall receive, at the sole discretion of the Debtors, Cash or Reorganized Common Equity equal to the aggregate amount of such fees, with such Reorganized Common Equity to be issued (x) at a discount to Plan value of 37% (subject to approval by the Bankruptcy Court) in respect of the DIP Upfront Fee, and (y) at Plan value in respect of the DIP Anchor Capital Commitment Fee and DIP Exit Fee.⁵
 - (iii) As of the date that is no less than ten (10) calendar days before the deadline to object to the Plan, the Debtors shall file an Equitization/Prepayment Notice that discloses the Debtors’ intent to either (a) equitize or not equitize the DIP Obligations pursuant to the DIP Documents or (b) prepay the DIP Obligations in part or in whole.
- (g) Priority Guaranteed Unsecured Notes Claims will receive a 100% recovery in Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall and subject to (x) any distribution of Reorganized Common Equity on account of Class 12 Other General Unsecured claims and (y) dilution by the Initial Equity compensation and the exercise of the New Warrants.
- (h) Unsecured Notes Claims will receive

⁵ To the extent the Restructuring Support Agreement is terminated, all Allowed DIP Claims will be paid in full in Cash.

- (i) their pro rata share of 6.3% of Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall (to the extent the Debtors or Reorganized Debtors elect to equitize the DIP Claims), subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants;
 - (ii) New Warrants; and
 - (iii) Subscription Rights in the Equity Rights Offering.
- (i) Trade and Vendor Claims will be paid in full in cash.
 - (j) Other General Unsecured Claims that are Allowed for \$25,000 or less will be paid in full in cash and Other General Unsecured Claims that are Allowed for more than \$25,000 may receive \$25,000 in cash.
 - (k) Existing Common Equity will not receive any distribution and will be cancelled, released, and discharged on the Effective Date.

All Notes Claims recoveries will be subject to the applicable charging lien set forth the in the applicable Notes Indenture.

Reorganized Pro Forma Capital Structure. The Reorganized Debtors would emerge from chapter 11 with approximately \$1.7 billion of aggregate funded indebtedness (subject to reduction on account of any distributions of Excess Cash as defined and on the terms herein) consisting of the following:

- (a) \$177.3 million in refinanced or otherwise unimpaired Mortgage Debt (the “**New Mortgage Debt**”);
- (b) \$425 million in refinanced or otherwise unimpaired Secured Credit Facility obligations (the “**New Secured Credit Facility**”);
- (c) \$300 million in refinanced or otherwise unimpaired March 2029 Senior Secured Notes (the “**New March 2029 Senior Secured Notes**”);
- (d) \$420 million of Secured Exit Notes to be issued on the Plan Effective Date; and
- (e) \$385 million of New 2027 Senior Secured Notes to be issued on the Plan Effective Date.

All amounts in this reorganized pro forma capital structure are approximate and illustrative only and subject to final determination of Allowed Claims, including the Allowed Claims of the Secured Credit Facility Claims and March 2029 Senior Secured Notes Claims.

3. Plan Settlements

(a) Committee Settlement

Since the outset of these cases, the Committee and its advisors have worked with the parties diligently to increase unsecured creditor recoveries in these cases. The Committee has advanced

these efforts by, among other things, (i) conducting a comprehensive, months-long investigation into the Debtors' prepetition liability management transactions and capital structure (ii) investigating potential claims against various parties, (iii) testing the Debtors' assumptions with respect to financing and other operational needs, (iv) reviewing bases and amounts for alleged secured claims, and (v) analyzing the Debtors' \$1.7 billion enterprise valuation contemplated by the Restructuring Support Agreement.

Ultimately, after several months of mediation and arm's length negotiations, the Committee, the Debtors, and the September 2029 Ad Hoc Group reached the Committee Settlement, which is favorable to, and represents a fair outcome for, unsecured creditors and is also a material improvement over the Restructuring Support Agreement's treatment of unsecured creditors initially filed at the beginning of these chapter 11 cases. As described in greater detail below, pursuant to the Committee Settlement, the Committee has negotiated the following key improvements for unsecured creditors to the Plan:

- Plan Enterprise Value has been increased from \$1.70 billion to \$1.75 billion. As a result of the settlement, holders of Unsecured Notes Claims will be entitled to approximately 6.3% of the Reorganized Common Equity.
- The equity rights offering needed to cover the Debtors' chapter 11 exit costs has been upsized from \$25 million to \$35 million. Moreover, participation in the equity rights offering is now limited to holders of Unsecured Notes Claims, and each holder of an Unsecured Notes Claim has the right to participate in the equity rights offering and purchase Reorganized Common Equity at a 15% discount to Plan Equity Value.
- Holders of Unsecured Notes Claims will receive 7-year warrants for 5.0% of the Reorganized Common Equity, which are subject to a strike price at 125% of Plan Equity Value, among other terms.
- The Committee's professionals estimate that this settlement will provide holders of Unsecured Notes Claims with an approximate 9.3% recovery on account of their Unsecured Notes Claims, which reflects the value of the Reorganized Common Equity, the warrants, and the equity rights offering participation rights that holders of Unsecured Notes Claims will receive.
- Holders of Priority Guaranteed Unsecured Notes Claims will receive a full recovery paid in Reorganized Common Equity.
- Holders of trade and vendor claims will receive a full recovery paid in cash.
- The Committee will appoint one individual to the board of the reorganized Parent, who must be reasonably acceptable to the Debtors and the September 2029 Ad Hoc Group.

In evaluating the Committee Settlement, the Committee considered a number of factors, including valuation arguments and other objections that the Committee would present at a contested confirmation hearing, the costs associated with a contested confirmation hearing, and the results of the Committee's investigation and the extent to which unsecured creditors would benefit from

litigating any potential claims. With the assistance of its advisors, the Committee ultimately concluded that, considering the uncertainties and costs attendant to litigating any objections and/or claims, the Committee Settlement is in the best interests of unsecured creditors because it locks in a favorable outcome for unsecured creditors under the facts and circumstances of these cases. Notably, if holders of Unsecured Notes Claims fully subscribe to the equity rights offering and the warrants become exercisable, then holders of Unsecured Notes Claims will stand to own over 20% of the Reorganized Common Equity.

Taking all of the above into consideration, the Committee recommends that all holders of Priority Guaranteed Unsecured Notes Claim (Class 9), Unsecured Notes Claims (Class 10), Trade and Vendor Claims (Class 11), and Other General Unsecured Claims (Class 12) (i) vote to accept the Plan, and (ii) not opt out of the releases set forth in Section 10.6(b) of the Plan.

(b) 2027 Senior Secured Notes Claims Settlement

The Debtors, the 2027 Ad Hoc Group, and the September 2029 Ad Hoc Group have been engaged in extensive negotiations and litigation regarding the treatment of the 2027 Senior Secured Notes Claims and the trajectory of the Chapter 11 Cases for the last several months. After two mediations and hard-fought, arm's-length negotiations, the parties are pleased to have reached the 2027 Senior Secured Notes Claims Settlement, as reflected in the notice and term sheet filed at Docket No. 971 and described in further detail herein.

As a brief overview, 2027 Senior Secured Notes will receive \$385 million of New 2027 Senior Secured Notes to be issued on the Plan Effective Date. The Debtors have also agreed to make approximately \$60 million of payments to the 2027 Senior Secured Noteholders by February 1, 2027, with \$50 million of such payments to be applied as a principal payment on the New 2027 Senior Secured Notes and \$10 million to be paid as a support fee to the 2027 Ad Hoc Group.

The 2027 Senior Secured Notes Claim Settlement also provides for a payment priority waterfall in respect of any net sale proceeds received from the sale of properties held as collateral by the 2027 Senior Secured Noteholders.

B. Classification and Treatment of Claims and Equity Interests Under the Plan

The following table provides a summary of the classification and treatment of Claims and Interests and the potential distributions to Holders of Allowed Claims and Interests under the Plan.

The projected recoveries set forth in the table below are estimates only and, therefore, are subject to material change. For a complete description of the Debtors' classification and treatment of Claims and Interests, reference should be made to the entire Plan attached hereto and the risk factors described in Article IX below. The table is intended for illustrative purposes only and is not a substitute for a review of the Plan and the Disclosure Statement in their entirety. For certain classes of Claims, the actual amount of Allowed Claims could be materially different than the estimated amounts shown in the table below.

Class and Designation	Treatment under Plan	Approx. % Recovery ⁶ Under the Plan	Est. % Recovery Under Chapter 7
Class 1: Other Secured Claims	The legal, equitable, and contractual rights of Holders of Allowed Other Secured Claims are unaltered by the Plan. On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Other Secured Claim agrees to less favorable treatment of its Allowed Other Secured Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Other Secured Claim, on the Effective Date, each Holder of an Allowed Other Secured Claim shall receive, at the Debtors' or Reorganized Debtors' sole discretion (as applicable): (a) payment in full in Cash; (b) delivery of the Collateral securing its Allowed Other Secured Claim; (c) Reinstatement of its Allowed Other Secured Claim; or (d) such other treatment rendering its Allowed Other Secured Claim Unimpaired in accordance with section 1124 of the Bankruptcy Code.	100%	N/A
Class 2: Other Priority Claims	The legal, equitable, and contractual rights of the Holders of Allowed Other Priority Claims are unaltered by the Plan. On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Other Priority Claim agrees to less favorable treatment of its Allowed Other Priority Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Other Priority Claim, on the Effective Date, each Holder of an Allowed Other Priority Claim shall receive treatment in a manner consistent with section 1129(a)(9) of the Bankruptcy Code.	100%	N/A
Class 3: Mortgage Debt	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Mortgage Debt Guarantee Claim agrees to less favorable treatment of its Allowed Mortgage Debt Guarantee Claim,	100%	77.0–91.8%

⁶ The Debtors are currently in the process of reconciling Claims. As such, the ranges contained in this summary may not be exact and are subject to further change. Recovery estimates reflect an assumed low total enterprise value of \$2.05 billion and high total enterprise value of \$2.25 billion, with all equity allocations calculated based off an enterprise value of \$1.75 billion pursuant to the Committee Settlement. Approximate percentage recovery is illustrated prior to dilution from the Initial Equity Compensation.

Class and Designation	Treatment under Plan	Approx. % Recovery ⁶ Under the Plan	Est. % Recovery Under Chapter 7
Guarantee Claims	at the option of the Debtors or Reorganized Debtors (as applicable): (a) following payment in full in Cash of the Mortgage Debt Claims from the proceeds of the New Mortgage Debt, each Mortgage Debt Guarantee Claim shall be cancelled, released, discharged, and extinguished and shall be of no further force or effect, and each Holder of an Allowed Mortgage Debt Guarantee Claim shall not receive any distribution on account of such Allowed Mortgage Debt Guarantee Claim; or (b) in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Mortgage Debt Guarantee Claim, each Holder of such Allowed Mortgage Debt Guarantee Claim shall receive such other treatment reinstating its Allowed Mortgage Debt Guarantee Claim or rendering such Allowed Mortgage Debt Guarantee Claim Unimpaired in accordance with section 1124 of the Bankruptcy Code.		
Class 4: Secured Credit Facility Claims	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Secured Credit Facility Claim agrees to less favorable treatment of its Allowed Secured Credit Facility Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Secured Credit Facility Claim, each Holder of an Allowed Secured Credit Facility Claim shall receive, at the option of the Debtors' or Reorganized Debtors' (as applicable): (a) payment in full in Cash of such Allowed Secured Credit Facility Claim from the proceeds of the New Secured Credit Facility; or (b) such other treatment reinstating its Allowed Secured Credit Facility Claim or rendering such Allowed Secured Credit Facility Claim Unimpaired in accordance with section 1124 of the Bankruptcy Code.	100%	84.0–100%

Class and Designation	Treatment under Plan	Approx. % Recovery⁶ Under the Plan	Est. % Recovery Under Chapter 7
<i>Class 5: March 2029 Senior Secured Notes Claims</i>	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed March 2029 Senior Secured Notes Claim agrees to less favorable treatment of its March 2029 Senior Secured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed March 2029 Senior Secured Notes Claim, each Holder of an Allowed March 2029 Senior Secured Notes Claim shall receive, at the option of the Debtors' or Reorganized Debtors' (as applicable): (a) payment in full in Cash of such Allowed March 2029 Senior Secured Notes Claim from the proceeds of the New March 2029 Senior Secured Notes; or (b) such other treatment reinstating its Allowed March 2029 Senior Secured Notes Claim or providing the economic equivalent of such Allowed March 2029 Senior Secured Notes Claim, subject to terms and conditions to be agreed to between the Debtors or the Reorganized Debtors, as applicable, and the requisite Holders of the Allowed March 2029 Senior Secured Notes Claims.	100% ⁷	71.4–86.5%
<i>Class 6: 2027 Senior Secured Notes Claims</i>	<i>Allowed 2027 Senior Secured Notes Claims:</i> Allowed 2027 Senior Secured Notes Claims: On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed 2027 Senior Secured Notes Claim agrees to less favorable treatment of its Allowed 2027 Senior Secured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed 2027 Senior Secured Notes Claim, each Holder of an Allowed 2027 Senior Secured Notes Claim shall receive its Pro Rata Share of the New 2027 Senior Secured Notes.	100%	70.6–96.3%
<i>Class 7: September 2029</i>	<i>Allowed September 2029 Senior Secured Notes Claims:</i> On or as soon as reasonably practicable after the Effective	84.1–93.3% ⁸	25.2–32.2%

⁷ The estimated Claim amount does not include any amounts in respect of the Make-Whole Amount or reflect any disallowance of original issue discount. The Debtors reserve all rights as to whether any such make-whole premiums or original issue discount are payable and, if payable, how any such make-whole premium or original issue discount should be calculated.

⁸ Estimated Claim amount includes approximately \$9.3 million of accrued and unpaid prepetition interest that has not been paid as of the date of this Disclosure Statement. The Claim amount has been reduced by \$5 million since

Class and Designation	Treatment under Plan	Approx. % Recovery ⁶ Under the Plan	Est. % Recovery Under Chapter 7
<i>Senior Secured Notes Claims</i>	Date, except to the extent that a Holder of an Allowed September 2029 Senior Secured Notes Claim agrees to less favorable treatment of its Allowed September 2029 Senior Secured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed September 2029 Senior Secured Notes Claim, each Holder of an Allowed September 2029 Senior Secured Notes Claim shall receive: (a) its Pro Rata Share of \$300 million in Secured Exit Notes; and (b) its portion of Secured Exit Notes and Reorganized Common Equity (which Reorganized Common Equity shall not be diluted by the Initial Equity Compensation), or a combination thereof, in each case pursuant to Article 4.7(c)(ii) of the Plan. <i>September 2029 Recovery Election:</i> Pursuant to the Plan and the Solicitation Procedures Order, each Holder of an Allowed September 2029 Senior Secured Notes Claim shall have the right to receive, in the aggregate, its Pro Rata Share of \$120 million in Secured Exit Notes and \$98 million of Reorganized Common Equity (subject to dilution by the exercise of the New Warrants). Holders of Allowed Original September 2029 Senior Secured Notes Claims shall be permitted to submit September 2029 Recovery Elections to elect their preferred amounts of such Secured Exit Notes and Reorganized Common Equity, or a combination thereof. To the extent that properly and timely submitted September 2029 Recovery Elections result in an oversubscription of (1) Secured Exit Notes, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim that made an election selecting the oversubscribed Secured Exit Notes shall receive its Pro Rata Share of \$120 million in Secured Exit Notes, with the balance of such Holder's Allowed Original September 2029 Senior Secured Notes Claim being exchanged for Reorganized Common Equity at a conversion price of \$20.00 per share; or (2) Reorganized Common Equity, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim that made an		

the Petition Date to reflect the settlement agreed with holders of the Subsequent September 2029 Senior Secured Notes. Accordingly, prepetition amounts for stated interest are paid on the face principal amount of the September 2029 Senior Secured Notes and postpetition amounts for stated interest will be paid on the Claim amount.

Class and Designation	Treatment under Plan	Approx. % Recovery ⁶ Under the Plan	Est. % Recovery Under Chapter 7
	election selecting the oversubscribed Reorganized Common Equity shall receive its Pro Rata Share of \$98 million in Reorganized Common Equity (subject to dilution by the exercise of the New Warrants), with the balance of such Holder's Allowed Original September 2029 Senior Secured Notes Claim being exchanged for Secured Exit Notes on a dollar-for-dollar basis. Notwithstanding anything to the contrary in Article Error! Reference source not found. of the Plan, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim shall receive an equal distribution in terms of value provided under the Plan. For the avoidance of doubt, Holders of Allowed Subsequent September 2029 Senior Secured Notes Claims shall not have the right to make the September 2029 Recovery Election and shall receive its Pro Rata Share of \$120 million in Secured Exit Notes and \$98 million of Reorganized Common Equity (subject to dilution by the exercise of the New Warrants) based on the Subsequent September 2029 Senior Secured Notes Adjusted Claim Amount. In accordance with the Solicitation Procedures Order, as among a Holder of an Allowed September 2029 Senior Secured Notes Claim on account of, arising under, or relating to Original September 2029 Senior Secured Notes, to the extent such Holder is also a DIP Lender, such Holder shall have priority in making the September 2029 Recovery Election over all such Holders that are not DIP Lenders. Allowed September 2029 Unsecured Claims: On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed September 2029 Senior Secured Notes Claim agrees to less favorable treatment of its Allowed September 2029 Unsecured Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed September 2029 Unsecured Claim, each Holder of such Claim shall receive its Pro Rata Share of 5.3% of Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall (to the extent the Debtors or the Reorganized Debtors, as applicable, elect to satisfy all DIP Claims with the DIP Equity Distribution, the DIP Commitment and Exit Fee Equity Distribution, and the DIP Upfront Fee Equity Distribution, as applicable, pursuant to Article Error! Reference source not found. of the Plan), subject to dilution by the Initial Equity		

Class and Designation	Treatment under Plan	Approx. % Recovery ⁶ Under the Plan	Est. % Recovery Under Chapter 7
	Compensation and the exercise of the New Warrants; <i>provided</i> that such equity distribution may be adjusted based on the date on which the Effective Date occurs and/or the portion of DIP Claims (if any) the Debtors or the Reorganized Debtors, as applicable, elect to satisfy in Cash pursuant to <u>Article Error! Reference source not found.</u> of the Plan.		
Class 8: DIP Claims	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed DIP Claim agrees to less favorable treatment of its Allowed DIP Claim, in full and final satisfaction, settlement, release, and discharge of, and in exchange for its Allowed DIP Claim: (a) Each DIP Claim (excluding any Allowed DIP Fee Claim) shall receive, at the sole discretion of the Debtors or the Reorganized Debtors (as applicable), its Pro Rata Share of Cash in the Allowed amount of all DIP Claims or the DIP Equity Distribution; and (b) notwithstanding the foregoing, each Allowed DIP Fee Claim shall receive, at the sole discretion of the Debtors or the Reorganized Debtors (as applicable), (1) with respect to the DIP Anchor Capital Commitment Fee and DIP Exit Fee, the DIP Commitment and Exit Fee Equity Distribution or its Pro Rata Share of Cash equaling the DIP Anchor Capital Commitment Fee and the DIP Exit Fee and (2) with respect to the DIP Upfront Fee, the DIP Upfront Fee Equity Distribution or its Pro Rata Share of Cash equaling the DIP Upfront Fee; <i>provided</i> that to the extent the Restructuring Support Agreement is terminated, all Allowed DIP Claims shall be paid in full in Cash.	100%	100%
Class 9: Priority Guaranteed Unsecured Notes Claims	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of a Priority Guaranteed Unsecured Notes Claim agrees to less favorable treatment of its Allowed Priority Guaranteed Unsecured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each	80.1–100.0% ⁹	8.7–14.8%

⁹ Estimated Claim amount includes \$0.3 million of accrued and unpaid prepetition interest.

Class and Designation	Treatment under Plan	Approx. % Recovery ⁶ Under the Plan	Est. % Recovery Under Chapter 7
	Allowed Priority Guaranteed Unsecured Notes Claim, each Holder of an Allowed Priority Guaranteed Unsecured Notes Claim shall receive a 100% recovery in Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall and subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants; <i>provided</i> that such equity distribution may be adjusted based on the date on which the Effective Date occurs and/or the portion of DIP Claims (if any) the Debtors or the Reorganized Debtors, as applicable, elect to satisfy in Cash pursuant to Article 4.8(c) of the Plan.		
Class 10: Unsecured Notes Claims	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Unsecured Notes Claim agrees to less favorable treatment of its Allowed Unsecured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Unsecured Notes Claim, each Holder of an Allowed Unsecured Notes Claim shall receive, at the option of the Debtors' or Reorganized Debtors' (as applicable): (a) its Pro Rata Share of 6.3% of Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall (to the extent the Debtors or the Reorganized Debtors, as applicable, elect to satisfy all DIP Claims in the DIP Equity Distribution, the DIP Commitment and Exit Fee Equity Distribution, and the DIP Upfront Fee Equity Distribution, as applicable, pursuant to <u>Article Error! Reference source not found.</u> of the Plan), subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants; <i>provided</i> that such equity distribution may be adjusted based on the date on which the Effective Date occurs the portion of DIP Claims (if any) the Debtors or the Reorganized Debtors, as applicable, elect to satisfy in Cash pursuant to <u>Article Error! Reference source not found.</u> of the Plan; (b) New Warrants; and	4.4–7.0% ¹⁰	1.3–1.8%

¹⁰ Estimated Claim amount includes \$5.4 million of accrued and unpaid prepetition interest. The approximate recovery is based on the primary equity recovery and is not inclusive of the New Warrants and the Equity Rights Offering.

Class and Designation	Treatment under Plan	Approx. % Recovery⁶ Under the Plan	Est. % Recovery Under Chapter 7
	(c) Subscription Rights in accordance with the Equity Rights Offering Documents and the Plan and subject to the Equity Rights Offering Procedures.		
<i>Class 11: Trade and Vendor Claims</i>	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Trade and Vendor Claim agrees to less favorable treatment of its Allowed Trade and Vendor Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Trade and Vendor Claim, each Holder of such Allowed Trade and Vendor Claim shall be paid in full in cash.	100%	0.4–0.7% ¹¹
<i>Class 12: Other General Unsecured Claims</i>	On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Other General Unsecured Claim agrees to less favorable treatment of its Allowed Other General Unsecured Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Other General Unsecured Claim: (a) each Holder of an Allowed Other General Unsecured Claim that is Allowed in an amount less than or equal to \$25,000 shall receive Cash in an amount equal to 100% of the Allowed amount of such Claim; and (b) each Holder of an Allowed Other General Unsecured Claim that is Allowed in an amount greater than \$25,000 shall receive \$25,000 in Cash;; <i>provided</i> that an Other General Unsecured Claim may not be subdivided into multiple Other General Unsecured Claims less than or equal to \$25,000 for purposes of receiving treatment as set forth in <u>Article (a)</u> of the Plan; <i>provided further</i> that to the extent that a Holder of an Other General Unsecured Claim against a Debtor holds any joint and several liability claims, guaranty claims, or other similar claims against any other Debtors arising from or relating to the same obligations or liability as such Other General Unsecured Claim, such Holder shall only be entitled to a distribution on one Other General Unsecured	16.7%–100.0%	0.4–0.7%

¹¹ Estimated recovery under Chapter 7 for Classes 11 and 12 reflect the blended recovery rate observed from the Parent General Unsecured Claims and Subsidiary General Unsecured Claims in **Exhibit C**.

Class and Designation	Treatment under Plan	Approx. % Recovery⁶ Under the Plan	Est. % Recovery Under Chapter 7
	Claim against the Debtors in full and final satisfaction of all such Claims.		
Class 13: Intercompany Claims	On or as soon as reasonably practicable after the Effective Date, all Intercompany Claims shall, at the option of the Debtors or Reorganized Debtors (as applicable): (a) Reinstated; or (b) set off, settled, distributed, contributed, merged, canceled, or released.	N/A*	N/A
Class 14: Intercompany Interests	On or as soon as reasonably practicable after the Effective Date, all Intercompany Interests shall, at the option of the Debtors or Reorganized Debtors (as applicable): (a) Reinstated; or (b) set off, settled, distributed, contributed, merged, canceled, or released.	N/A*	N/A
Class 15: 510(b) Claims	On or as soon as reasonably practicable after the Effective Date, all 510(b) Claims shall be cancelled, released, discharged, and extinguished and shall be of no further force or effect, and Holders of 510(b) Claims shall not receive any distribution on account of such 510(b) Claims.	0%	0%
Class 16: Existing Common Equity	On or as soon as reasonably practicable after the Effective Date, all Existing Common Equity shall be cancelled, released, discharged, and extinguished and shall be of no further force or effect, and Holders of Existing Common Equity shall not receive any distribution on account of such Existing Common Equity.	0%	0%

* No property will be distributed to holders of Class 13 Intercompany Claims or Class 14 Intercompany Interests.

PLEASE TAKE NOTE OF THE FOLLOWING KEY DATES AND DEADLINES FOR THE CHAPTER 11 CASES AS SET FORTH IN THE RESTRUCTURING SUPPORT AGREEMENT:

Event	Deadline
Filing of the 2027 Senior Secured Notes Claims Challenge	November 4, 2025 (four business days following the Petition Date)
Entry of the Interim DIP Order	November 5, 2025 (as extended)
Filing of the Disclosure Statement and Plan	January 9, 2026 (as extended)
Entry of the Final DIP Order	January 30, 2026 (as extended)
Entry of Order approving Disclosure Statement and Solicitation Procedures	February 27, 2026 (as extended)
Entry of Order with Respect to 2027 Senior Secured Notes Claims Challenge	May 25, 2026 (as extended) ¹²
Entry of the Confirmation Order	May 25, 2026 (as extended)
Effective Date of the Plan	June 3, 2026 (as extended)

WHERE TO FIND ADDITIONAL INFORMATION: OPI has filed annual reports and quarterly reports with, and furnished other information to, the SEC. Copies of any document filed with the SEC may be obtained by visiting the SEC website at <http://www.sec.gov> and performing a search under the “Company Filings” link. This Disclosure Statement incorporates SEC filings as if fully set forth herein including, but not limited to:

- (a) Annual report on Form 10-K for the fiscal year ended December 31, 2024, filed with the SEC on February 13, 2025 (the “*Annual Report*”); and
- (b) Quarterly report on Form 10-Q for the quarter ending June 30, 2025, filed with the SEC on July 30, 2025.

¹² Under the *Debtors’ Resolutions Pursuant to January 28, 2026 Final DIP Hearing* [Docket No. 686], the remaining milestones in the Restructuring Support Agreement were each extended by 30 calendar days; *provided* that if the Bankruptcy Court has not issued a ruling on either the 2027 Senior Secured Notes Claims Challenge or confirmation of the Plan, then such milestones shall be automatically extended by an additional 30 calendar days.

C. Solicitation Procedures

1. The Solicitation Procedures Order

On February 24, 2026, the Bankruptcy Court entered an order [Docket No. 867] (the “**Original Solicitation Procedures Order**”), and, on March 16, 2026, the Bankruptcy Court entered a subsequent order [Docket No. 1015] (the “**Supplemental Solicitation Procedures Order**” and collectively with the Original Solicitation Procedures Order, the “**Solicitation Procedures Order**”) approving the motion in support of the Solicitation Procedures Order. **The exhibits of the Supplemental Solicitation Procedures Order supersede the exhibits of the Original Solicitation Procedures Order.** The Solicitation Order, among other things:

- (a) approved this Disclosure Statement;
- (b) scheduled the hearing to consider confirmation of the Plan (the “**Confirmation Hearing**”);
- (c) established the deadline for filing objections to the Plan (the “**Objection Deadline**”) and voting on the Plan (the “**Voting Deadline**”);
- (d) approved the form and manner of the notice of the Confirmation Hearing (the “**Confirmation Hearing Notice**”);
- (e) established the Voting Record Date; and
- (f) approved the dates, procedures and forms applicable to the process of soliciting votes on and providing notice of the Plan, as well as certain vote tabulation procedures.

The discussion of the procedures below is a summary of the solicitation and voting process. Detailed voting instructions will be provided with each Ballot (defined below) and are also set forth in greater detail in the Solicitation Procedures Order.

PLEASE REFER TO THE INSTRUCTIONS ACCOMPANYING THE BALLOTS AND THE SOLICITATION PROCEDURES ORDER FOR MORE INFORMATION REGARDING VOTING REQUIREMENTS TO ENSURE THAT YOUR BALLOT IS PROPERLY AND TIMELY SUBMITTED SUCH THAT YOUR VOTE MAY BE COUNTED.

2. The Solicitation Agent

The Debtors have retained Kroll Restructuring Administration LLC to, among other things, act as their claims, noticing and solicitation agent in the Chapter 11 Cases (“**Kroll**” or the “**Solicitation Agent**”).

Specifically, the Solicitation Agent will assist the Debtors with: (a) mailing the Confirmation Notice; (c) mailing Solicitation Packages, as described below; (d) soliciting votes on the Plan; (e) receiving, tabulating, and reporting on ballots cast for or against the Plan by Holders of Claims against the Debtors; (f) collecting Release Opt-Out Forms and Release Opt-In Forms; (g) responding to inquiries from creditors and other stakeholders relating to the Plan, the

Disclosure Statement, the Ballots and matters related thereto, including, without limitation, the procedures and requirements for voting to accept or reject the Plan and objecting to the Plan; and (h) if necessary, contacting creditors regarding the Plan and their Ballots.

3. Holders of Claims Entitled to Vote on the Plan

Under the provisions of the Bankruptcy Code, not all holders of claims against and equity interests in a debtor are entitled to vote on a chapter 11 plan. The following table provides a summary of the status and voting rights of each Class (and, therefore, of each Holder of a Claim within such Class) under the Plan:

Class	Designation	Treatment	Entitled to Vote
1	Other Secured Claims	Unimpaired	No (Presumed to Accept)
2	Other Priority Claims	Unimpaired	No (Presumed to Accept)
3	Mortgage Debt Guarantee Claims	Unimpaired	No (Presumed to Accept)
4	Secured Credit Facility Claims	Unimpaired	No (Presumed to Accept)
5	<i>March 2029 Senior Secured Notes Claims</i>	<i>Impaired¹³</i>	<i>Yes</i>
6	<i>2027 Senior Secured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
7	<i>September 2029 Senior Secured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
8	<i>DIP Claims</i>	<i>Impaired</i>	<i>Yes</i>
9	<i>Priority Guaranteed Unsecured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
10	<i>Unsecured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
11	<i>Trade and Vendor Claims</i>	<i>Impaired</i>	<i>Yes</i>
12	<i>Other General Unsecured Claims</i>	<i>Impaired</i>	<i>Yes</i>
13	Intercompany Claims	Unimpaired / Impaired	No (Presumed to Accept / Deemed to Reject)
14	Intercompany Interests	Unimpaired / Impaired	No (Presumed to Accept / Deemed to Reject)
15	510(b) Claims	Impaired	No (Deemed to Reject)
16	Existing Common Equity	Impaired	No (Deemed to Reject)

¹³ In the event that the March 2029 Senior Secured Notes Claims are Reinstated pursuant to Article 4.5(c)(ii) of the Plan, Class 5 March 2029 Senior Secured Notes Claims will be Unimpaired.

Based on the foregoing, the Debtors are soliciting votes to accept the Plan **only** from Holders of Claims in Class 5, Class 6, Class 7, Class 8, Class 9, Class 10, Class 11, and Class 12 (the “**Voting Classes**”) because Holders of Claims in such Voting Classes are Impaired under the Plan and, therefore, have the right to vote to accept or reject the Plan.

4. **Non-Voting Holders, Non-Voting Status Notices, and Release Opt-Out Form and Release Opt-In Form**

The Debtors are *not* soliciting votes from:

- (a) Holders of Other Secured Claims in Class 1, Holders of Other Priority Claims in Class 2, Holders of Mortgage Debt Guarantee Claims in Class 3, or Holders of Senior Credit Facility Claims in Class 4 because the Plan treats such parties as conclusively presumed to have accepted the Plan;
- (b) Holders of 510(b) Claims in Class 15, or Holders of Existing Common Equity in Class 16, because such parties are conclusively deemed to have rejected the Plan; and
- (c) Holders of Intercompany Claims or Intercompany Interests in Classes 13 and 14, because such parties are Affiliates and will either be (a) Unimpaired and Reinstated or (b) Impaired and cancelled or extinguished and thus, either conclusively presumed to have accepted or rejected the Plan (items, (a), (b), and (c), collectively, the “**Non-Voting Classes**”).

Non-Voting Status Notices and Release Opt-Out Forms and Release Opt-In Forms. In lieu of Solicitation Materials, Holders of Claims in Classes 1, 2, 3, and 4 will receive, in addition to the Confirmation Hearing Notice, a notice of non-voting status (the “**Opt-Out Non-Voting Status Notice**”) and form to complete and return if the party elects to opt out of the Third-Party Release contained in Section 10.6(b) of the Plan (“**Release Opt-Out Form**”).

Holders of Claims in Classes 15 and 16 will receive, in addition to the Confirmation Hearing Notice, a notice of non-voting status (the “**Opt-In Non-Voting Status Notice**” and together with the Opt-Out Non-Voting Status Notice, the “**Non-Voting Status Notices**”) and a form to complete and return if the party elects to opt in to the Third-Party Release contained in Section 10.6(b) of the Plan (“**Release Opt-In Form**”). Each of the Release Opt-Out Form and the Release Opt-In Form will include an option for such Holders to affirmatively opt out of or opt in to the Third-Party Release contained in Section 10.6(b) of the Plan, as applicable. The Debtors are requesting a waiver of any requirement to provide Holders of Intercompany Claims and Intercompany Interests in Class 13 and Class 14, respectively, a Non-Voting Status Notice or any other solicitation materials.

To the extent a Holder of Claims and Interests in Classes 1, 2, 3, 4, 15, or 16 wishes to elect to opt out of or opt in to the Releases, as applicable, such Holder must return the Release Opt-Out Form or Release Opt-In Form, with the box checked indicating such Holder is electing to opt out of or opt in to the Releases, as applicable, to the Solicitation Agent **before the Voting Deadline of 4:00 p.m. (prevailing Central Time) on April 15, 2026.**

5. The Voting Record Date

The Bankruptcy Court has approved February 13, 2026 as the voting record date (the “***Voting Record Date***”) with respect to all Claims in the Voting Classes. The Voting Record Date is the date on which the Debtors will determine which Holders of Claims in the Voting Classes are entitled to vote to accept or reject the Plan.

6. Contents of Solicitation Packages

The following documents and materials will collectively constitute the “***Solicitation Packages***”:

- (a) the Confirmation Hearing Notice, attached to the Solicitation Procedures Order;
- (b) this Disclosure Statement (and exhibits annexed thereto, including the Plan);
- (c) the Solicitation Procedures Order;
- (d) to the extent applicable, a (i) Ballot or (ii) applicable Non-Voting Status Notice and Release Opt-Out Form or Release Opt-In Form appropriate for the specific creditor, in substantially the forms attached to the Solicitation Procedures Order (as may be modified for particular classes and with instruction attached thereto); and
- (e) such other materials as the Bankruptcy Court may direct.

7. Distribution of the Solicitation Materials to Holders of Claims Entitled to Vote on the Plan

With the assistance of the Solicitation Agent, the Debtors intend to distribute the Solicitation Packages on or before March 18, 2026 (the “***Solicitation Mailing Date***”) or as soon as reasonably practicable thereafter. The Debtors submit that the timing of such distribution will provide such Holders of Claims with adequate time to review the materials required to allow such parties to make informed decisions with respect to voting on the Plan in accordance with Bankruptcy Rules 3017(d) and 2002(b). The Debtors will make every reasonable effort to ensure that Holders who have more than one Allowed Claim in the Voting Classes receive no more than one set of Solicitation Materials.

8. Distribution of Notices to Holders of Claims in Non-Voting Classes

As set forth above, certain third-party Holders of Claims and Existing Common Equity are **not** entitled to vote on the Plan. As a result, such parties will not receive Solicitation Packages and, instead, will receive, in addition to the Confirmation Hearing Notice, a Non-Voting Status Notice and a Release Opt-Out Form or Release Opt-In Form, as applicable.

The Holders of Intercompany Claims in Class 13 and Intercompany Interests in Class 14 are Affiliates of the Debtors. As such, the Debtors will seek to waive any requirement to serve Holders of Intercompany Claims in Class 13 and Intercompany Interests in Class 14 with Solicitation Packages or any other notices.

9. Additional Distribution of Solicitation Documents

In addition to the distribution of Solicitation Packages to Holders of Claims in the Voting Classes, the Debtors will also provide parties who have filed requests for notice under Bankruptcy Rule 2002 as of the Voting Record Date with the Disclosure Statement, the Solicitation Procedures Order, and the Plan. Additionally, parties may request (and obtain at the Debtors' expense) a copy of the Disclosure Statement (and any exhibits thereto, including the Plan) by: (a) calling the Solicitation Agent at the number shown on the Ballot received; (b) emailing Office Properties Income Trust, c/o Kroll Restructuring Administration LLC at OPIinfo@ra.kroll.com (with "OPI Solicitation Inquiry" in the subject line); (c) writing to OPI Ballot Processing Center, c/o Kroll Restructuring Administration LLC, at 850 Third Avenue, Suite 412, Brooklyn, New York 11232; or (d) visiting the Debtors' restructuring website at: <https://restructuring.ra.kroll.com/OPI> (the "**Restructuring Website**"). Parties may also obtain any documents filed in the Chapter 11 Cases for a fee via PACER at <https://www.pacer.gov>.

10. Filing of Plan Supplement

The Debtors will file the Plan Supplement by no later than seven days prior to the Voting Deadline. The Debtors will transmit a copy of the Plan Supplement to the Distribution List, as defined in this Section I.C.10. Additionally, (and obtain at the Debtors' expense) a copy of the Plan Supplement by: (a) calling the Solicitation Agent at the number shown on the Ballot received; (b) emailing Office Properties Income Trust, c/o Kroll Restructuring Administration LLC at OPIinfo@ra.kroll.com; (c) writing to OPI Ballot Processing Center, c/o Kroll Restructuring Administration LLC, at 850 Third Avenue, Suite 412, Brooklyn, New York 11232; and/or (d) visiting the Restructuring Website. Parties may also obtain any documents filed in the Chapter 11 Cases for a fee via PACER at <https://www.pacer.gov>.

The Plan Supplement will include, among other things, the documents, schedules, and exhibits to the Plan (as more fully set forth in the definition for Plan Supplement in the Plan), all of which are incorporated by reference into, and are an integral part of, the Plan, and as all of the same may be amended, supplemented, or modified from time to time.

As used herein, the term "**Distribution List**" means: (a) the Office of the United States Trustee for the Southern District of Texas; (b) White & Case LLP, as counsel to the September 2029 Ad Hoc Group; (c) Milbank LLP, as counsel to the 2027 Ad Hoc Group; (d) Paul, Weiss, Rifkind, Wharton & Garrison LLP, as counsel to the March 2029 Ad Hoc Group; (e) Wachtell, Lipton, Rosen & Katz, as counsel to RMR; (f) Wilmington Savings Fund Society, FSB, as Successor Agent; (g) the parties included on the Debtors' consolidated list of the holders of the 30 largest unsecured claims against the Debtors; (h) the United States Attorney for the Southern District of Texas; (i) the Internal Revenue Service; (j) the SEC; (k) the state attorneys general for the states in which the Debtors conduct business; (l) all parties that have requested or that are required to receive notice pursuant to Bankruptcy Rule 2002; and (m) any other party entitled to notice pursuant to Bankruptcy Local Rule 9013-1(d).

D. Confirmation of the Plan

1. The Confirmation Hearing

The Confirmation Hearing will commence at **9:00 a.m. (prevailing Central Time)** on **April 22, 2026** (subject to Bankruptcy Court availability), before the Honorable Christopher M. Lopez, United States Bankruptcy Judge, in the United States Bankruptcy Court for Southern District of Texas, Houston Division, located at 515 Rusk Street, Houston, Texas 77002. The Confirmation Hearing may be continued from time to time by the Bankruptcy Court or the Debtors without further notice other than by such adjournment being announced in open court or by a notice of adjournment filed with the Bankruptcy Court and served on such parties as the Bankruptcy Court may order. Moreover, the Plan may be modified or amended, if necessary, pursuant to section 1127 of the Bankruptcy Code and in accordance with the terms of the Restructuring Support Agreement, prior to, during, or as a result of the Confirmation Hearing, without further notice to parties in interest.

2. Objections to Confirmation

Section 1128(b) of the Bankruptcy Code provides that any party in interest may object to the confirmation of a plan of reorganization. **The deadline to object to the Plan is 4:00 p.m. (prevailing Central Time) on April 15, 2026.** Any objection to confirmation of the Plan must be in writing, must conform to the Bankruptcy Rules and the Bankruptcy Local Rules, must set forth the name of the objector, the nature and amount of Claims or Interests held or asserted by the objector against the Debtors' estates or properties, the basis for the objection and the specific grounds therefore, and must be filed with the Bankruptcy Court.

UNLESS AN OBJECTION TO CONFIRMATION IS TIMELY FILED, IT MAY NOT BE CONSIDERED BY THE BANKRUPTCY COURT.

3. Effect of Confirmation of the Plan

Article X of the Plan contains certain provisions relating to: (a) the compromise and settlement of Claims, Interests, and Causes of Action; (b) the release of the Released Parties by the Debtors and certain Holders of Claims and Interests, and each of their respective Related Parties; (c) exculpation of certain parties; and (d) an injunction from taking actions in connection with the foregoing, each as more fully set forth in Article X of the Plan. **The scope of such releases is subject to the completion of the Special Committee Investigation described in Section IV.D of this Disclosure Statement. It is important to read such provisions carefully so that you understand the implications of these provisions with respect to your Claim such that you may cast your vote accordingly.**

THE PLAN WILL BIND ALL HOLDERS OF CLAIMS AND INTERESTS IN THE DEBTORS TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, NOTWITHSTANDING WHETHER OR NOT SUCH HOLDER (A) WILL RECEIVE OR RETAIN ANY PROPERTY, INTEREST IN PROPERTY, OR OTHER VALUE UNDER THE PLAN, (B) HAS FILED A PROOF OF CLAIM OR EQUITY IN THE CHAPTER 11 CASES, OR (C) FAILED TO VOTE TO ACCEPT OR REJECT THE PLAN OR VOTE TO REJECT THE PLAN.

E. Effectuation of the Plan

It will be a condition to effectuation of the Plan that all provisions, terms and conditions of the Plan are approved in the Confirmation Order unless otherwise satisfied or waived pursuant to the provisions of Article IX of the Plan. Following Confirmation, the Plan will become effective on the Effective Date.

F. Risk Factors

PRIOR TO DECIDING WHETHER AND HOW TO VOTE ON THE PLAN, EACH HOLDER OF A CLAIM IN A VOTING CLASS SHOULD CONSIDER CAREFULLY ALL OF THE INFORMATION IN THIS DISCLOSURE STATEMENT, INCLUDING THE RISK FACTORS DESCRIBED IN ARTICLE IX HEREIN TITLED “CERTAIN RISK FACTORS TO BE CONSIDERED.”

II. BACKGROUND TO THE CHAPTER 11 CASES

A. Overview

OPI is a real estate investment trust, or REIT, formed in 2009 under Maryland law. The Company owns and leases high-quality office and mixed-use properties in select, growth-oriented U.S. markets. The Company has a diversified revenue base across geographies with ownership in central business district, urban infill, and suburban locations.

The Company's property portfolio consists of 122 wholly owned properties located in 29 states and the District of Columbia, containing approximately 17.1 million rentable square feet. The Debtors wholly own 115 properties containing approximately 15.8 million rentable square feet. The U.S. government is the Company's largest tenant, representing approximately 17.1% of the Company's annualized rental income as of June 30, 2025. The Company is managed by The RMR Group LLC ("**RMR**" or the "**Manager**") pursuant to the Company's management agreements with RMR. The Company has no employees and the personnel and various services the Company requires to operate its properties are provided by RMR pursuant to those management agreements. RMR is an alternative asset management company focused on commercial real estate and related businesses.

The Company maintains its principal executive offices in Newton, Massachusetts.

B. History and Formation

OPI was formed in 2009 under Maryland law under the name Government Properties Income Trust. OPI was initially a wholly owned subsidiary of HRPT Properties Trust (subsequently known as Commonwealth REIT) ("**HRPT**").¹⁴ With 29 majority-government-leased properties at its inception, OPI, initially a subsidiary of HRPT, completed its initial public offering in June 2009, becoming a separate, publicly owned company. HRPT (then known as Commonwealth REIT) was the Company's largest shareholder until March 2013, when Commonwealth REIT sold all of the OPI common shares it held in a public offering.

Historically, the Company has grown its property portfolio through strategic acquisitions. Significantly, in July 2014, the Company acquired approximately 35.9% of the then-outstanding common shares of Select Income REIT ("**SIR**")¹⁵ from HRPT. In October 2017, OPI acquired First Potomac Realty Trust ("**FPO**") by merger in an approximately \$1.4 billion transaction, which included the repayment of approximately \$483 million of FPO corporate debt and assumption of \$167.5 million of mortgage debt in connection. In connection with the FPO transaction, the Company acquired 72 properties with approximately 6.5 million square feet, and FPO's 50% and 51% interests in two joint ventures that owned three properties. Subsequently, in December 2018, OPI acquired SIR by merger in an approximately \$2.4 billion transaction. As a result of the SIR

¹⁴ HRPT was an RMR-managed REIT.

¹⁵ SIR was also an RMR-managed REIT.

acquisition, the Company acquired SIR's property portfolio of 99 properties with approximately 16.5 million square feet of office properties.

Since the SIR acquisition, the Company focused on a "capital recycling" program to rebalance and reposition its investment portfolio through the selective sale of certain properties and use of the sales proceeds to acquire new properties that produce greater yields, or maintain or reduce the Company's leverage.

C. Current Operations

1. Business Strategy

The Company operates in one business segment: ownership of real estate properties. The Company's business strategy has centered on increasing rents and cash flows from its existing portfolio by (a) entering into new or renewal leases, (b) repositioning and redevelopment activities, and (c) growing through its acquisition, disposition, and financing policies comprising its investment strategy. The Company's primary investment objectives include increasing operational cash flows from stable and diverse sources and acquiring properties that enhance the Company's overall portfolio composition and produce greater returns than the properties or portfolios it sells as part of its disposition strategy.

Although the Company's business plan does not currently contemplate the acquisition of additional properties, the Company's investment focus is on office properties primarily in markets that have strong economic fundamentals to support growth, including (a) properties primarily leased to single tenants, particularly those that are strategic to the tenant (e.g., built-to suit properties, corporate headquarters, and buildings where tenants have invested meaningful capital) and with a minimum remaining lease term of seven years; (b) properties leased to government tenants; and (c) first-generation buildings where there is a reasonably high probability of renewing the tenant in place and where ongoing capital needs are expected to be modest. The Company also expects to continue to maintain its capital recycling program and selectively sell properties to improve the composition of the portfolio, manage ongoing capital requirements, and shape geographic and tenant diversification.

Commencing with its 2009 taxable year, OPI has elected to be taxed as a REIT under the Internal Revenue Code. To qualify for taxation as a REIT, OPI must, among other things, distribute at least 90% of its annual REIT taxable income (excluding net capital gains).¹⁶ Accordingly, the Company generally is not able to retain sufficient cash to fund its operations, repay its debts, invest in its properties, and fund acquisitions and development, redevelopment, and repositioning efforts. The Company has historically funded these activities with borrowings under its revolving credit facility, proceeds from debt or equity issuances, proceeds from asset sales, or retained cash from operations that may exceed distributions paid.

¹⁶ As a REIT, OPI is generally not subject to federal income tax on its net income distributed as dividends to its shareholders. The dividend is currently suspended.

2. Property Portfolio

The Company's property portfolio consists of 122 wholly owned properties located in 29 states and the District of Columbia, containing approximately 17.1 million rentable square feet. The Debtors wholly own 115 properties containing approximately 15.8 million rentable square feet. Approximately 77.5% of the Company's properties and 75.7% of Debtor-owned properties were leased as of the Petition Date.

As of June 30, 2025, the Company derived approximately 24.2% of its annualized rental income from its properties located in the metropolitan Washington, D.C. market, which includes Washington, D.C., Northern Virginia and suburban Maryland. Properties located in Virginia, California, Illinois, Georgia, and Texas were responsible for approximately 14.1%, 12.1%, 10.9%, 10.5% and 9.4% of the Company's annualized rental income, respectively, as of June 30, 2025.

The Company generally leases space at its properties on a gross lease,¹⁷ net lease,¹⁸ or modified gross lease¹⁹ basis pursuant to fixed-term lease contracts. In certain circumstances, some leases provide government tenants with the right to terminate their leases if the legislature or other funding authority does not appropriate the funding necessary for the tenant to meet its lease obligations during any year of the applicable lease term. The Company will generally seek to renew or extend leases at properties with tenants when they expire on then market terms. However, market and economic factors, along with increases in remote work, changes in space utilization, and government policies, have negatively impacted lease renewals.

As of June 30, 2025, the Company had leases totaling approximately 427,000 rentable square feet that are scheduled to expire during 2026. The Company expects tenants with leases totaling approximately 60,000 rentable square feet that are scheduled to expire during 2026 not to renew or to downsize their leased space upon expiration, and the Company cannot be sure as to whether other tenants will renew their leases upon expiration.

3. Tenant Composition and Diversification

As of June 30, 2025, the Company's properties were leased to 220 different tenants, with an average weighted remaining lease term of approximately 6.8 years. With respect to tenant mix, the U.S. government is the Company's largest tenant, representing approximately 17.1% of the Company's annualized rental income as of June 30, 2025. Government tenants (i.e., federal, state, and other government tenants) represent approximately 25.4% of the Company's annualized rental income. Tenants contributing a majority of the Company's rental income are investment-grade rated (or their payment obligations are guaranteed by an investment-grade rated parent). The

¹⁷ A gross lease requires the tenant to pay the property owner a fixed rental amount in exchange for the exclusive use of the demised premises. The rental amount includes all of the costs associated with property ownership, including taxes, insurance, and utilities.

¹⁸ Net lease rental rates require the tenant to pay a base rate amount plus the tenant's *pro rata* share of annual reconciliation to cover insurance, taxes and maintenance costs.

¹⁹ A modified gross lease requires the tenant to pay a base rental rate plus reimbursements for a *pro rata* share of expenses in excess of a base amount taken into account in setting the base rent amount.

Company's top tenants, representing 2% or more of OPI's total annualized rental income as of June 30, 2025, are as follows:

Tenant	Annualized Rental Income	Percentage of Total Annualized Rental Income
U.S. Government	\$68.2 million	17.1%
Alphabet Inc. (Google)	\$23.0 million	5.8%
IG Investments Holdings LLC	\$18.7 million	4.7%
Bank of America Corporation	\$17.4 million	4.4%
Shook, Hardy & Bacon L.L.P.	\$13.6 million	3.4%
Northrop Grumman Corp.	\$10.7 million	2.7%
State of California	\$10.5 million	2.6%
State of Georgia	\$7.9 million	2.0%

4. Management and Operations

The Company has no employees and is managed by RMR, a majority-owned subsidiary of The RMR Group Inc. ("**RMR Inc.**"). RMR is an alternative asset management company focused on commercial real estate and related businesses. RMR and its subsidiaries also act as a manager to other publicly traded real estate companies, privately held real estate funds, and real estate related operating businesses.

Personnel and services that the Company requires are provided to the Company by RMR pursuant to the Company's management agreements with RMR: (a) a Business Management Agreement (the "**RMR Business Management Agreement**"), which relates to the Company's business generally, and (b) a Property Management Agreement (the "**RMR Property Management Agreement**" and, together with the RMR Business Management Agreement, the "**RMR Management Agreements**"), which relates to the Company's property level operations.

(c) RMR Business Management Agreement

Under the RMR Business Management Agreement, RMR provides management and real estate investment services with respect to the Company's operations and real estate investments. Specifically, RMR, as manager, performs all corporate office functions for the Company, including providing research and data related to real estate investments; investigating, evaluating, and negotiating real estate investments, acquisitions, and dispositions; conducting administrative functions to ensure compliance with legal and regulatory requirements; retaining counsel, consultants, and other professionals on behalf of the Company; assisting with the Company's risk management functions; assisting in reviewing and negotiating contracts and coordinating third-party legal services; accounting and internal audit functions; and providing qualified personnel necessary for service delivery.

As compensation for its business management services, RMR receives management fees, including

- (a) a base management fee calculated based upon the lower of a specified percentage of the historical costs of OPI's real estate investments and a specified percentage of its market capitalization ("**Base Management Fee**"); and
- (b) if applicable, an incentive management fee equal to a percentage of the product of OPI's equity market capitalization as of a given date and the amount by which shareholders' total return per share exceeds a REIT related benchmark index (the "**Incentive Management Fee**").²⁰

The Base Management Fee is generally paid monthly in arrears. The Incentive Management Fee, if any, is payable in arrears within 30 days after the end of the applicable calendar year. The aggregate Base Management Fee paid in 2024 was approximately \$13.1 million. For the trailing-twelve-month period through the Petition Date, the Base Management Fee averaged approximately \$1.1 million per month. OPI pays the Base Management Fee to RMR on behalf of itself and its subsidiaries.

Additionally, under the RMR Business Management Agreement, the Company reimburses RMR for certain allocable expenses incurred by RMR in connection with RMR's performance of its duties under such agreement.

(d) RMR Property Management Agreement

Under the RMR Property Management Agreement, RMR provides property management and administrative services for the Company's properties, including seeking tenants, collecting rents (which are deposited into Company-owned bank accounts or lockbox accounts), supervising repairs, hiring employees, obtaining insurance, notifying insurance carriers of incidents, procuring supplies, paying expenses, establishing tenant rules, handling legal actions, maintaining records, preparing tenant statements, assisting with matters relating to taxes and insurance, providing emergency services, entering in to contracts for utilities and building services, and reporting performance to the Board. RMR, as Manager, is authorized to incur certain reasonable expenses necessary for performing its duties (which include coordinating the payment of operating expenses). Pursuant to the RMR Property Management Agreement, RMR's duties also include, when required for proper management of the applicable premises, terminating tenancies in the name of the property-owning entities, prosecuting eviction actions, and recovering rents (at the property-owning entities' expense).

As compensation for its property management services under the agreement, RMR receives a management fee of 3% of gross collected rents collected (the "**Property Management Fee**") and a construction supervision fee of 5% of certain construction costs (the "**Construction Supervision Fee**," and together with the Property Management Fee, the "**PMA Fees**"). The PMA Fees are payable monthly in arrears.

²⁰ No RMR Incentive Fee has been paid to RMR in the past five years, nor will one be due for the current year.

The aggregate Property Management Fee paid in 2025 was approximately \$11.7 million and the aggregate Construction Fee was approximately \$1.6 million. For the trailing-twelve-month period through the Petition Date, the Property Management Fee averaged approximately \$1.1 million per month and the Construction Supervision Fee averaged approximately \$195,000 per month. The Property Management Fee and Construction Supervision Fee are paid by Debtor Government Properties Income Trust (“**GPIT**”) on behalf of OPI and its subsidiaries, except for Debtors OPI WF Owner LLC, 440 First Street LLC, and a non-Debtor joint venture entity, which entities pay their pro rata portion of these fees directly to RMR.

Additionally, under the RMR Property Management Agreement, certain property-related expenses are reimbursed by the Debtors to RMR. These include, but are not limited to, wages for RMR employees assigned to work at Company properties, supplies necessary for the operation of the Company’s properties, and other property-related expenses provided for in the RMR Property Management Agreement.

(e) Sonesta Management Agreement

Debtor GPIT owns a mixed-use property located at 20 Massachusetts Ave NW, Washington, DC 20001, which includes a 240,000 square foot, 247-room hotel, operated under the name the Royal Sonesta Capitol Hill (the “**Hotel**”). Under the Tax Code, a REIT cannot engage in an active trade or business, including overseeing hotel operations, unless those operations are conducted through what is called a taxable REIT subsidiary, or TRS. Accordingly, effective as of January 1, 2025, GPIT entered into a lease with OPI’s taxable REIT subsidiary, Debtor 20 Mass Ave TRS Inc. (“**TRS**”) to lease the Hotel to TRS and TRS entered into a management agreement (the “**Sonesta Management Agreement**”) with Sonesta DC Hotel LLC (“**Sonesta**”),²¹ a wholly owned subsidiary of Sonesta International Hotels Corporation, which provides for Sonesta to manage and operate the Hotel for the account of TRS. Under the Sonesta Management Agreement, Sonesta manages the Hotel on behalf of TRS, provides all employees, negotiates all service contracts and leases (e.g., stores, restaurants, etc.), and pays most expenses, subject to reimbursement from TRS. Sonesta is granted control and discretion in the operation, direction, management, and supervision of the hotel, subject to the limitations in the Sonesta Management Agreement. The operating costs of the hotel are determined pursuant to an annual proposed business plan and budget submitted by Sonesta and approved by TRS.

For Sonesta’s management services, TRS pays Sonesta, after payment of hotel operating expenses, a base management fee equal to 1.5% of gross revenues for 2025 and 3.0% of gross revenues each calendar year thereafter, as well as the following fees: (a) an incentive fee equal to 20% of net operating profit in excess of the annual owner’s priority return; (b) a brand promotion fee of 1.75% of gross revenues for 2025 and 3.5% of gross revenues for each calendar year thereafter; and (c) a loyalty fee of the greater of 1.0% of room revenues or 4.5% of qualified room revenues from guests participating in certain loyalty programs. Sonesta’s incentive management fee, but not its other fees, is earned only after TRS’s annual owner’s priority return is paid.

²¹ Mr. Adam Portnoy, a Managing Trustee and the Chairman of the Board, is a director and controlling shareholder of Sonesta. Another officer and employee of RMR is a director and president and chief executive officer of Sonesta.

(f) Historical RMR Expense Reimbursement Transactions

Vendor expenses for the Company's properties were historically paid by RMR and RMR was reimbursed by the Company pursuant to the RMR Management Agreements. RMR was primarily reimbursed by Debtors GPIT, OPI WF Owner LLC, 440 First Street LLC, or OPI (collectively, the "***Reimbursing Entities***"), as the relevant cash accounts sit at these entities. As a result, OPI's individual property-owning entities recorded a payable balance due to RMR, and the Reimbursing Entities recorded a receivable balance due from RMR. The actual amounts paid and reimbursed net to zero on a consolidated basis, but, historically, these balances were not "zeroed out," and grew over time on a consolidating basis, despite the fact that all of these amounts had been repaid and no amounts were owed on a consolidated basis.

Prior to the Petition Date, and after consultation with the Company's advisors, the Company's Chief Restructuring Officer John R. Castellano, Independent Trustee Timothy Pohl, the Board, and the Company's auditor, the Company updated the manner in which it accounts for these intercompany claims resulting from transactions with RMR so that the Company's consolidating books and records accurately reflected the true state of affairs, that these amounts had already been repaid. The Debtors' revised system reflects that RMR's receivable from the property-owning entities is settled in the ordinary course of business by the payments made by GPIT and OPI to RMR on the property-owning entities' behalf. Therefore, the consolidated and consolidating balances both now reflect the economic reality of these transactions where RMR made payments on behalf of the Company and the Company reimbursed RMR for such payments in the ordinary course.

Further, as of July 2025, the historical reimbursement process was changed and a new vendor expense process was implemented, under which OPI entities pay vendors directly. Specifically, accounts payable vendor invoices are now paid through an OPI bank account rather than being paid by RMR. With this new process, there is an intercompany claim created between OPI and the relevant property-level entities for payment of the vendor invoices and the Reimbursing Entities consequently no longer need to reimburse RMR for such vendor invoices.

(g) Post-Petition Cash Consolidation

Prior to the Petition Date, AlixPartners evaluated the Company's cash management systems and processes of tracking and accounting cash movements among each of the Company's property "silos." Given the complexity and sophistication of the Company's operations, its cash management system is centralized and efficiently manages liquidity and complies with the requirements of the Company's various financing agreements. Specifically, in the ordinary course of business, GPIT, through its concentration account (the "***GPIT Concentration Account***"), generally receives rental collections (the "***Tenant Receipts***") from tenants and third parties on behalf of the Company's property-owning entities and, in turn, transfers funds to OPI to pay various fees, invoices, and expenses owed to third parties and RMR, in each case, on behalf of such property-owning entities. These transactions generate intercompany claims (a) owing from GPIT to the property-owning entities on account of Tenant Receipts received by GPIT in connection with such properties, (b) owing from the property-owning entities to GPIT and OPI on account of third party and RMR fees and expenses paid by GPIT and OPI on behalf of the property-

owning entities, and (c) owing from OPI to GPIT on account of amounts transferred to fund accounts payable.

Prior to the Petition Date, the Debtors opened four new bank accounts to consolidate post-petition Tenant Receipts for (a) each silo of prepetition encumbered properties and (b) for the prepetition unencumbered properties (collectively, the “***Post-Petition Operating Accounts***” and, such cash consolidation, the “***Post-Petition Cash Consolidation***”). Accordingly, on a post-petition basis, in connection with the Post-Petition Cash Consolidation, there will also be Intercompany Claims generated by and among GPIT, OPI, OPI Notex Properties LLC, OPI BND Properties LLC, OPI 25 Exchange LLC and SIR Colorado Springs LLC—the account holders of each Post-Petition Operating Account. The Post-Petition Cash Consolidation is intended to pool Tenant Receipts in the respective property silos and more accurately reflect the various Intercompany Transactions that are necessary for the smooth operation of the Debtors’ cash management system and property operations for the benefit of the creditors of each of the Debtors’ property silos.

III. CORPORATE AND CAPITAL STRUCTURE

A. Corporate Structure

The Debtors consist of OPI and certain of its wholly owned subsidiaries, totaling 73 entities. OPI is the ultimate parent of, and owns directly or indirectly, all of the Debtor entities.²² A chart illustrating the Company's organizational structure as of the Petition Date is attached hereto as **Exhibit B**.

B. Corporate Governance

1. Board of Trustees

OPI is governed by its board of trustees (the “**Board**”). The current Board consists of nine trustees, including two Managing Trustees and seven Independent Trustees (as defined in OPI's bylaws), as shown below²³:

Name	Position	Notable Experience
Adam D. Portnoy	Managing Trustee (Chair)	Mr. Portnoy is Chair of the Board and Managing Trustee of OPI, and serves as President and Chief Executive Officer of RMR, holding leadership roles on several boards of RMR client companies. Prior to joining RMR, Mr. Portnoy held various positions in finance and the public sector, and currently serves on multiple civic and business boards.
Yael Duffy	Managing Trustee	Ms. Duffy has been President of OPI since 2024 and a Managing Trustee and Chief Executive Officer since 2026. She is also an Executive Vice President of RMR and a member of the RMR Management Committee. Ms. Duffy is also a Managing Trustee and President and Chief Executive Officer of Industrial Logistics Properties Trust, an RMR-managed REIT. Prior to joining RMR in 2006, Ms. Duffy worked at Spaulding & Slye. She is a member of Nareit's Advisory Board of Governors.

²² OPI also is the ultimate parent of certain non-Debtor subsidiaries, including certain property-owning, special purpose entities, the majority of whose mortgage debt has been securitized and sold into the commercial mortgage-backed securities (“**CMBS**”) markets and is currently being administered by a special servicer. The Company also has a noncontrolling ownership interest of 51% in an unconsolidated joint venture that owns two properties.

²³ Ms. Jennifer B. Clark served as Managing Director and Secretary of Office Properties Income Trust from the Petition Date to December 31, 2025, when she retired from her positions and her service on the Board concluded.

Name	Position	Notable Experience
Elena Poptodorova	Lead Independent Trustee	Ms. Poptodorova has served as an Independent Trustee of OPI since 2017 and as Lead Independent Trustee since 2019. Previously, she spent her career in Bulgaria's Ministry of Foreign Affairs, including two terms as ambassador to the United States. She currently sits on several boards related to diplomacy, education, and cultural affairs.
Donna D. Fraiche	Independent Trustee	Ms. Fraiche is an Independent Trustee of OPI and chairs its Compensation Committee. She also serves on the Board of Service Properties Trust, an RMR-managed REIT (" <i>SVC</i> "), and holds leadership roles in several civic and healthcare organizations.
Barbara D. Gilmore	Independent Trustee	Ms. Gilmore is an Independent Trustee of OPI. She also serves on the Board of Seven Hills Realty Trust, an RMR-managed REIT (" <i>SEVN</i> "). Previously, she was a law clerk for two U.S. Bankruptcy Courts and a partner at the law firm Sullivan & Worcester LLP.
William A. Lamkin	Independent Trustee	Mr. Lamkin is an Independent Trustee of Office Properties Income Trust and chairs its Audit Committee. He also serves on the Boards of SVC and SEVN, and previously worked in investment banking and law.
Jeffrey P. Somers	Independent Trustee	Mr. Somers is an Independent Trustee of Office Properties Income Trust and chairs its Nominating and Governance Committee. He also serves on the Boards of Diversified Healthcare Trust, an RMR-managed REIT, and SEVN, and is Counsel at Morse, Barnes-Brown & Pendleton, PC.
Mark A. Talley	Independent Trustee	Mr. Talley is an Independent Trustee of Office Properties Income Trust. He is also an Associate Broker at Griswold Realty Advisors, which he founded. He has over 25 years of experience in commercial real estate in Detroit and is active in local civic organizations.

Name	Position	Notable Experience
Timothy Pohl	Independent Trustee	Mr. Pohl is an Independent Trustee of Office Properties Income Trust and is the founder of TRP Advisors, advising on distressed situations and acquisitions. Previously, he held senior roles in restructuring at Lazard, Freres & Co. LLC and Skadden, Arps, Slate, Meagher & Flom LLP.

Election of New Independent Trustees and Establishment of Special Committees. In connection with the Company’s review and evaluation of strategic alternatives prior to the Petition Date, the Board elected Timothy Pohl as an Independent Trustee on June 11, 2025, and, on June 12, 2025, established and named Mr. Pohl as the sole member of a special committee of the Board (the “***OPI Special Committee***”).

The Board delegated to the OPI Special Committee the power and authority to (a) review, consider, evaluate, negotiate, and recommend to the Board the approval or rejection of a potential restructuring or recapitalization transaction, including any such transaction with certain holders of the Debtors’ outstanding debt obligations, and (b) conduct and control any investigation or review (the “***Investigation***”) of any potential claims or causes of action or historical transactions (“***Potential Claims***”) entered into by OPI that may be implicated in any such potential restructuring transaction.

Additionally, on July 24, 2025, the board of directors or trustees (as applicable) (each, a “***Subsidiary Board***”) of each pledged subsidiary under the September 2029 Senior Secured Notes appointed Patrick Bartels as an independent board member, and of each pledged subsidiary under the 2027 Senior Secured Notes appointed Jill Frizzley as an independent board member. Each of these Subsidiary Boards also created similarly empowered special committees, appointing Jill Frizzley or Patrick Bartels, as applicable, as the sole member of such committee (the “***Subsidiary Committees***”).

Each of Mr. Pohl, Ms. Frizzley, and Mr. Bartels have extensive restructuring experience and the Board and the applicable Subsidiary Boards believed that their experience and independence would be beneficial to OPI and the applicable subsidiaries as they navigated the restructuring process and negotiations with the Company’s various creditor groups.

The Board also has three other committees: (a) a committee to assist the Board in overseeing the Company’s accounting and financial reporting processes, the audits of the Company’s financial statements and internal control over financial reporting; (b) a committee to discharge or assist the Board in discharging its responsibilities relating to (i) the evaluation of the performance and compensation of the business and property manager and the Company’s executive officers, (ii) the compensation of Trustees, and (iii) the Company’s equity compensation plans; and (c) a committee to (i) identify individuals qualified to become trustees, consistent with criteria approved by the Board, and to recommend candidates to the entire Board for nomination or selection as trustees for each annual meeting of shareholders or when vacancies occur, (ii) perform assessments of the Board and Company management, and (iii) recommend to the Board governance principles for the

Company. All trustees, regardless of whether such trustee is a member of a committee of the Board, are invited to attend meetings of the various committees of the Board.

2. Management

The Company has no employees and is managed by RMR, a majority-owned subsidiary of RMR Inc. Personnel and services that the Company requires, including its officers and other senior management, are provided to the Company by RMR pursuant to the RMR Management Agreements.

Specifically, pursuant to the RMR Business Management Agreement, all of the Debtors' officers (other than the Chief Restructuring Officer) are employees of RMR. Adam Portnoy, the chair of the Board and a Managing Trustee; Yael Duffy, the Company's other Managing Trustee and President and Chief Executive Officer; Brian Donley, the Company's Chief Financial Officer and Treasurer; and Lindsey Getz, the Company's Secretary, are also officers and employees of RMR.

RMR is subject to the oversight of the Board, and, among other things, neither RMR nor any of its affiliates can sell to or purchase any assets from OPI except as approved by a majority vote of the Independent Trustees, and RMR cannot receive any compensation or remuneration other than as set forth in the RMR Management Agreements or otherwise approved by the Compensation Committee of the Board.

C. Prepetition Capital Structure

The Company's principal debt obligations as of the Petition Date were approximately²⁴

- (a) (i) \$325 million of outstanding borrowings under the Company's \$325 million secured revolving credit facility and (ii) \$100 million outstanding principal amount under the Company's secured term loan (collectively, the "***Secured Credit Facility***");
- (b) (i) \$1.3 billion aggregate outstanding principal amount of senior secured notes, and (ii) \$491.1 million aggregate outstanding principal amount of senior unsecured notes; and
- (c) \$177.3 million aggregate outstanding principal amount of mortgage notes. The entities subject to such mortgage notes are non-Debtor subsidiaries and the Debtors are not obligated on the mortgage notes; provided, however, OPI provides a limited guaranty with respect to the mortgage notes.

A summary of the approximate outstanding principal amounts of the Debtors' funded debt obligations as of the Petition Date is set forth below:

²⁴ The following description of the Debtors' capital structure is for informational purposes only and is qualified in its entirety by reference to the documents setting forth the specific terms of such obligations and their respective related agreements. Any amounts set forth herein do not reflect any agreed or allowed Claim amounts and the Debtors reserve all rights.

Debt Instrument	Outstanding Principal Amount (\$ millions)	Interest Rate	Maturity
Non-Debtor Mortgage Debt	177.3	7.79% ²⁵	2028-2033
Secured Credit Facility	425.0	S+3.50%	January 2027 ²⁶
March 2029 Senior Secured Notes	300.0	9.000%	March 2029
September 2029 Senior Secured Notes	610.0	9.000%	September 2029
2027 Senior Secured Notes	418.0	3.250%	March 2027
Total Company Secured Debt	1,930.3		
Total Debtor Secured Debt	1,753.0		
Priority Guaranteed Unsecured Notes	14.4	8.000%	January 2030
Senior Notes due 2026	133.9	2.650%	June 2026
Senior Notes due 2027	78.3	2.400%	February 2027
Senior Notes due 2031	102.4	3.450%	October 2031
Senior Notes due 2050	162.0	6.375%	June 2050
Total Unsecured Debt	491.1		
Total Company Funded Debt	2,421.3		
Total Debtor Funded Debt	2,244.0		

With respect to the Company's secured debt obligations, 97 of the Company's properties secure an aggregate \$1.9 billion of debt as detailed in the following table:

Secured Properties	Number of First-Lien Properties	Principal Balance
Non-Debtor Mortgage Debt	7	\$177.3 million

²⁵ This rate reflects an average across six mortgages.

²⁶ The revolving credit facility under the Credit Facility has a one-year extension option.

Secured Credit Facility	19	\$425.0 million
March 2029 Senior Secured Notes	17	\$300.0 million
September 2029 Senior Secured Notes	19	\$610.0 million
2027 Senior Secured Notes	35	\$418.0 million
Total	97	\$1.930 billion

The below chart details the specific collateral and unsecured guarantees at each secured debt “silo” in the Company’s capital structure:

(\$ and sq. ft. in millions)

(\$ and sq. ft. in millions)						
	A	B	C	D	E	F
First Lien Security	Mortgages	Credit Agreement	Senior Notes due March 2029	Senior Notes due September 2029	Senior Notes due March 2027	Unencumbered Properties
Building Count	7	19	17	19	35	25
1L Amount	\$177	\$425	\$300	\$610	\$418	–
Collateral Summary						
Relevant Debt Tranches	Mortgages ~\$177mm 1L	Credit Agreement \$425mm 1L	Senior Notes due March 2029 \$300mm 1L	Senior Notes due September 2029 ~\$610mm 1L	Senior Notes due March 2027 ~\$418mm 1L	PGNs due 2030 ~\$14mm GP
	Senior Notes due March 2027 ~\$418mm GH	Senior Notes due September 2029 ~\$610mm 2L	Senior Notes due March 2027 ~\$418mm GP	Senior Notes due March 2027 ~\$418mm 2L		
	Unsecured Debt and all deficiency claims					
1L First Lien 2L Second Lien GH Guarantee from Holding Companies of 5 of 7 Mortgage Properties GP Guarantee from Property Owning Subsidiaries						

1. Mortgage Debt

On September 13, 2023, non-Debtor subsidiaries Clay Ave Waco LLC and Primerica Pkwy GA LLC, as borrowers (collectively, the “**UBS Borrowers**”), entered into that certain Loan Agreement, dated as of September 13, 2023 (the “**UBS Loan Agreement**”), with UBS AG, as lender. The UBS Loan Agreement provides for a \$54.3 million term loan (the “**UBS Loan**”), secured by mortgages (the “**UBS Mortgages**”) on two properties owned by the UBS Borrowers (collectively, the “**UBS Facility**”). As of the Petition Date, the principal amount outstanding under the UBS Facility was approximately \$54.3 million.

Between May 2023 and August 2023, non-Debtor subsidiaries Echelon Pkwy MS LLC, Rio Robles CA LLC, Sterling Park LLC, 3300 75th Avenue LLC, and Ewing Boulevard LLC (the

“**JPM Borrowers**”)²⁷ each entered into separate loan agreements, as individual borrowers (each, a “**JPM Loan Agreement**”), with JPMorgan Chase Bank, National Association, as lender. Each JPM Loan Agreement provides for a term loan (each, a “**JPM Loan**”).

Borrower	Loan Amount
Echelon Pkwy MS LLC	\$14.9 million
Rio Robles CA LLC	\$8.4 million
Sterling Park LLC	\$26.3 million
3300 75th Avenue LLC	\$30.7 million
Ewing Boulevard LLC	\$42.7 million

Each of the JPM Loans is secured by a mortgage (the “**JPM Mortgages**” and, together with the UBS Mortgages, the “**Mortgage Debt**”) on the property owned by each JPM Borrower. As of the Petition Date, the principal amount outstanding under the JPM Loans collectively was approximately \$123 million. Certain of the Mortgage Debt has been securitized and sold into the CMBS markets and is currently being administered by a special servicer.

The Mortgage Debt is non-recourse, subject to certain limited exceptions, and does not contain any material financial covenants. OPI has provided a limited guaranty of certain obligors under the related loan documents and, thus, the bankruptcy filing of OPI has resulted in a default under certain of the Mortgage Debt. The Debtors are currently negotiating with the respective servicers under the Mortgage Debt for limited waivers or forbearances with respect to all existing and future bankruptcy-related defaults.

2. Secured Credit Facility

On January 29, 2024, OPI entered into that certain Second Amended and Restated Credit Agreement, dated as of January 29, 2024 (the “**Credit Agreement**”), among Debtor OPI WF Borrower LLC (“**WF Borrower**”), Debtor OPI WF Holdings LLC (“**WF Holdings**”), OPI, Wells Fargo Bank, National Association, as administrative agent (“**Wells Fargo**”), and the lenders party thereto. The Credit Agreement provides for the Secured Credit Facility, consisting of a \$325 million revolver and \$100 million term loan. On September 10, 2025, Wells Fargo resigned as administrative agent, and was replaced by Wilmington Savings Fund Society, FSB, on October 15, 2025 (the “**Successor Agent**”).

The Company’s obligations under the Secured Credit Facility are secured by a senior secured pledge by WF Holdings, WF Borrower, and Debtor OPI WF Owner LLC (“**WF Owner**”) of all of their respective equity interests in WF Borrower, WF Owner, and Debtor 440 First Street LLC, respectively (together, the “**Credit Agreement Pledged Subsidiaries**” and, collectively with WF

²⁷ An organizational chart of the JPM Borrowers and UBS Borrowers is attached hereto as **Exhibit B-1**.

Holdings and OPI, the “**Credit Agreement Obligors**”)²⁸ and first mortgage liens on 19 properties owned by the Credit Agreement Pledged Subsidiaries. WF Borrower’s obligations under the Credit Agreement are guaranteed by OPI, WF Holdings, and the Credit Agreement Pledged Subsidiaries.

The Secured Credit Facility matures on January 29, 2027, subject to a one-year extension option on the revolver. The interest rate under the facility is SOFR plus a margin of 350 basis points plus a credit spread adjustment of 10 basis points. As of the Petition Date, the face amounts outstanding under the Secured Credit Facility were approximately \$325 million under the revolver and \$100 million under the term loan.

3. March 2029 Senior Secured Notes

In February 2024, OPI issued approximately \$300 million in aggregate principal amount of 9.000% senior secured notes due March 2029 (the “**March 2029 Senior Secured Notes**”) pursuant to that certain Indenture, dated February 12, 2024 (the “**March 2029 Senior Secured Notes Indenture**”), among OPI, U.S. Bank Trust Company, National Association (“**U.S. Bank**”), as trustee and collateral agent, and the Debtor subsidiary guarantors party thereto (the “**March 2029 Senior Secured Notes Subsidiary Guarantors**”).²⁹ On November 6, 2025, Wilmington Trust, National Association replaced U.S. Bank as the indenture trustee and collateral agent under the March 2029 Senior Secured Notes Indenture.

The March 2029 Senior Secured Notes were issued with original issue discount (“**OID**”). The March 2029 Senior Secured Notes Indenture also includes a make-whole provision that generally provides for a lump-sum payment reflecting the net present value at the redemption date of a certain amount of expected future interest payments on the notes based on the formula set forth in the March 2029 Senior Secured Notes Indenture (the “**Make-Whole Amount**”), if, among other things, the maturity of the March 2029 Senior Secured Notes is accelerated pursuant to certain events of default, including the obligors’ commencement of voluntary cases under the Bankruptcy Code.

The March 2029 Senior Secured Notes are fully and unconditionally guaranteed on a joint, several, and senior secured basis by the five March 2029 Senior Secured Notes Subsidiary Guarantors and are secured by a pledge of all the respective equity interests of the March 2029 Senior Secured Notes Subsidiary Guarantors and first mortgage liens on 17 properties owned by the March 2029 Senior Secured Notes Subsidiary Guarantors. The March 2029 Senior Secured Notes require semi-annual payments of interest only. As of the Petition Date, the face amount outstanding under the March 2029 Senior Secured Notes was approximately \$300 million.

4. September 2029 Senior Secured Notes

During June and October 2024, through two exchange transactions (the “**June 2024 Exchange**” and the “**October 2024 Exchange**,” respectively), OPI exchanged approximately \$610 million in aggregate principal amount of the September 2029 Senior Secured Notes and 1.4 million of OPI’s

²⁸ An organizational chart of the Credit Agreement Obligors is attached hereto as **Exhibit B-2**.

²⁹ An organizational chart of the March 2029 Senior Secured Notes Subsidiary Guarantors is attached hereto as **Exhibit B-3**.

common shares for an aggregate \$895.3 million of certain of OPI's outstanding senior unsecured notes. The September 2029 Senior Secured Notes were issued pursuant to two indentures: (a) that certain Indenture, dated as of June 20, 2024, among OPI, U.S. Bank, as trustee and collateral agent, and the Debtor subsidiary guarantors party thereto (the "**June 2024 Exchange Indenture**"); and (b) that certain Indenture, dated as of October 8, 2024, among OPI, U.S. Bank, as trustee and collateral agent, and the Debtor subsidiary guarantors party thereto (the "**October 2024 Exchange Indenture**" and together with the June 2024 Exchange Indenture, the "**September 2029 Senior Secured Notes Indentures**"). On December 17, 2025, BOKF, NA replaced U.S. Bank as the indenture trustee and collateral agent under the October 2024 Exchange Indenture.

The terms and conditions of the September 2029 Senior Secured Notes Indentures are substantially similar, the September 2029 Senior Secured Notes issued pursuant to each indenture are secured by the same collateral, and the same Debtor entities are parties to each indenture. Each series of the September 2029 Senior Secured Notes were issued with separate, different amounts of OID. The September 2029 Senior Secured Notes Indentures also include make-whole provisions on substantially similar terms to the Make-Whole Amount under the March 2029 Senior Secured Notes.

The September 2029 Senior Secured Notes are fully and unconditionally guaranteed on a joint, several, and senior secured basis by nine Debtor subsidiary guarantors (the "**September 2029 Senior Secured Notes Subsidiary Guarantors**")³⁰ and are secured by a senior secured pledge of all the respective equity interests of the September 2029 Senior Secured Notes Subsidiary Guarantors and by first mortgage liens on 19 properties owned by the September 2029 Senior Secured Notes Subsidiary Guarantors.

In addition, the September 2029 Senior Secured Notes are fully and unconditionally guaranteed on a joint, several, and second lien basis by WF Holdings and each of the Credit Agreement Pledged Subsidiaries, and are secured by a junior secured pledge by WF Holdings, WF Borrower and WF Owner of all their respective equity interests in the Credit Agreement Pledged Subsidiaries and second mortgage liens on the 19 properties securing the Secured Credit Facility. The September 2029 Senior Secured Notes require semi-annual payments of interest only. As of the Petition Date, the face amount outstanding under the September 2029 Senior Secured Notes was approximately \$610 million.

5. 2027 Senior Secured Notes

In December 2024, through an exchange transaction (the "**December 2024 Exchange**"), OPI traded approximately \$445 million aggregate principal amount of the 2027 Senior Secured Notes, 11.5 million of OPI common shares, and cash premiums totaling \$25 million in exchange for approximately \$281.5 million of OPI's senior unsecured notes due 2025 (the "**Old 2025 Notes**") and \$58.5 million in cash from certain holders of the Old 2025 Notes. OPI issued the 2027 Senior Secured Notes pursuant to that certain Indenture, dated as of December 11, 2024 (as amended, including pursuant to that certain Supplemental Indenture, dated as of December 17, 2024, and that certain Supplemental Indenture, dated as of January 29, 2025, the "**2027 Senior Secured Notes**").

³⁰ An organizational chart of the September 2029 Senior Secured Notes Subsidiary Guarantors is attached hereto as **Exhibit B-4**.

Indenture”), among OPI, U.S. Bank, as trustee and collateral agent, and the Debtor subsidiary guarantors party thereto. On October 30, 2025, UMB Bank, National Association replaced U.S. Bank as the indenture trustee and collateral agent under the 2027 Senior Secured Notes Indenture.

The 2027 Senior Secured Notes were issued with OID. The 2027 Senior Secured Notes require quarterly payments of interest and quarterly principal amortization payments of \$6.5 million and, on March 1, 2026, require a mandatory principal payment of \$125 million, which is subject to reduction for certain prior redemptions of the 2027 Senior Secured Notes. The Debtors estimate this payment to be approximately \$117.5 million as of the Petition Date.

The 2027 Senior Secured Notes are fully and unconditionally guaranteed on a joint, several, and senior secured basis by the 19 of the Debtor subsidiary guarantors party thereto (the “**2027 Senior Secured Notes Subsidiary Guarantors**”) and are secured by (a) a pledge of all of the respective equity interests of the 2027 Senior Secured Notes Subsidiary Guarantors and (b) first mortgage liens on 35 properties owned by 2027 Senior Secured Notes Subsidiary Guarantors. Additionally, the 2027 Senior Secured Notes are secured on a joint, several, and junior lien basis by (i) all of the respective equity interests of the September 2029 Senior Secured Notes Subsidiary Guarantors and (ii) second mortgage liens on the 19 properties securing OPI’s September 2029 Senior Secured Notes.

The 2027 Senior Secured Notes are also fully and unconditionally guaranteed, on a joint, several, and unsecured basis by (x) each of the March 2029 Senior Secured Notes Subsidiary Guarantors and (y) 31 other Debtor subsidiaries (including the holding companies of five of the seven Non-Debtor Mortgage properties) that also guarantee, on a joint several, and unsecured basis, the Priority Guaranteed Notes (as defined below) (together, the “**2027 Senior Secured Notes Obligors**”).³¹ As of the Petition Date, the face amount outstanding under the 2027 Senior Secured Notes was approximately \$418.0 million.

6. Priority Guaranteed Notes

In March 2025, OPI exchanged approximately \$14.4 million of new 8.00% senior priority guaranteed unsecured notes due 2030 (the “**Priority Guaranteed Unsecured Notes**”) for an aggregate principal amount of approximately \$21 million outstanding senior unsecured notes due 2026, 2027, and 2031. The Priority Guaranteed Notes were issued pursuant to that certain Indenture dated as of March 12, 2025 (the “**Priority Guaranteed Unsecured Notes Indenture**”), by and among OPI, U.S. Bank, as trustee, and the Debtor subsidiary guarantors party thereto (the “**Priority Guaranteed Unsecured Notes Subsidiary Guarantors**”). On October 29, 2025, Computershare Trust Company, National Association replaced U.S. Bank as the trustee under Priority Guaranteed Unsecured Notes Indenture.

The Priority Guaranteed Unsecured Notes are fully and unconditionally guaranteed on a joint, several, and unsecured basis by the 31 Priority Guaranteed Unsecured Notes Subsidiary Guarantors, which also guarantee the 2027 Senior Secured Notes. The Priority Guaranteed Unsecured Notes require semi-annual payments of interest only. As of the Petition Date, the face

³¹ An organizational chart of the 2027 Senior Secured Notes Obligors is attached hereto as **Exhibit B-5**.

amount outstanding under the Priority Guaranteed Unsecured Notes was approximately \$14.4 million.

The Priority Guaranteed Unsecured Notes were issued with OID. The Priority Guaranteed Unsecured Notes Indenture also includes a make-whole provision on substantially similar terms to the make-whole provision under the March 2029 Senior Secured Notes.

7. Other Unsecured Notes

OPI, as issuer, and U.S. Bank, as trustee, are parties to that certain indenture, dated as of July 20, 2017, as supplemented by the following supplemental indentures governing four additional tranches of senior unsecured notes (collectively, the “*Unsecured Notes Indentures*”):

- (a) that certain Third Supplemental Indenture, dated as of May 18, 2021, (the “*2026 Senior Notes Indenture*”), under which OPI issued its 2.650% Senior Notes due 2026 (the “*2026 Senior Notes*”);
- (b) that certain Fourth Supplemental Indenture, dated as of August 13, 2021, (the “*2027 Senior Notes Indenture*”), under which OPI issued its 2.400% Senior Notes due 2027 (the “*2027 Senior Notes*”);
- (c) that certain Fifth Supplemental Indenture, dated as of September 28, 2021, (the “*2031 Senior Notes Indenture*”), under which OPI issued its 3.450% Senior Notes due 2031 (the “*2031 Senior Notes*”); and
- (d) that certain Second Supplemental Indenture, dated as of June 23, 2020, (the “*2050 Senior Notes Indenture*”), under which OPI issued its 6.375% Senior Notes due 2050 (the “*2050 Senior Notes*” and, collectively with the Priority Guaranteed Notes, the 2026 Senior Notes, the 2027 Senior Notes and the 2031 Senior Notes, the “*Unsecured Notes*”).

8. Other Non-Funded Debtor Obligations

(a) Trade Obligations

In the ordinary course of business, the Debtors utilize certain vendors and service providers who supply goods and services to the Debtors (the “*Trade Creditors*”). Most of the Trade Creditors are parties to contracts with the Debtors with respect to the services provided by the Trade Creditors. The Trade Creditors are a vital part of the Company’s ongoing operation of its properties. Any interruption in the flow of goods and services from such creditors would risk an immediate and adverse impact on the Debtors’ performance of their obligations under the leases and their ability to maintain and operate their properties. As discussed in greater detail in the Essential Creditors Motion (as defined below), certain trade claims are entitled to statutory priority under section 503(b)(9) of the Bankruptcy Code and others have the right to assert liens for non-payment. As of the Petition Date, the Debtors estimate that the aggregate amount of trade claims outstanding was approximately \$1.2 million. The Plan proposes to assume all executory contracts with Trade Creditors that are not otherwise rejected.

(b) Common Shares

OPI's common shares were traded on the Nasdaq (symbol: OPI). OPI's common shares were delisted from the Nasdaq on October 6, 2025, and continue to trade over-the-counter on the "Pink Sheets." As of October 29, 2025, OPI had 73,943,439 common shares outstanding.

IV. KEY EVENTS LEADING TO COMMENCEMENT OF CHAPTER 11 CASES

A. External and Internal Challenges

The Company has faced a number of recent challenges that have put downward pressure on the Company's cash flows, liquidity, and ability to meet its debt service obligations under its current capital structure. These include macroeconomic headwinds in the office real estate sector and operational and capital structure considerations, with few options to address these concerns through out-of-court alternatives.

1. Office Real Estate Sector

The Company's principal sources of funds for meeting operating and capital expenses, paying debt service obligations, and making required distributions to its shareholders are the operating cash flows the Company generates from its properties, net proceeds from property sales, and availability and proceeds from the Company's funded debt obligations. In recent years, the office industry has been adversely affected by shifts in office space utilization, including increased remote work arrangements and tenants consolidating their real estate footprint, as well as ongoing market and economic conditions, including a challenging real estate financing market, and reduced government spending and changing budget priorities. As a result, the demand for office space continues to face headwinds. Declining rents, limited absorption of office inventory, and increasing costs to re-lease space continue to impact the commercial real estate market, including for both private sector and government tenants and in markets where the Company has a high concentration of properties, such as Washington D.C. Moreover, the Company's current portfolio has not been well positioned to address these market factors. Older, single-tenant suburban office properties with few amenities are challenging to lease, capital intensive, and cost prohibitive in today's market environment.

2. Inflation, Interest Rates, and Governmental Pressures

Higher interest rates, limited availability of capital and financing for office properties, inflationary pressures, government policies (including the potential reduction of U.S. federal office leases), geopolitical hostilities and tensions, and concerns that the U.S. economy may enter an economic recession have caused disruptions in the financial markets. These factors have affected the Company's and its tenants' financial condition and, in turn, the ability or willingness of the Company's tenants to renew their leases. Higher interest rates have also led to high interest rates under the Company's recently issued debt instruments, which have significantly increased the Company's borrowing costs.

In sum, deteriorating office fundamentals, tenant vacancies in the Company's portfolio, high interest rates and market sentiment towards the office sector have restricted the Company's access to, and increased its cost of, capital. These factors have caused the values of the Company's properties and its securities to decline, and have had a significant negative impact on the Company's results of operations, financial position and cash flows. Rental incomes have declined at least 3.5% year over year since 2021, and the effect on revenues has been accelerating. The

Company posted an \$87 million net loss in the first six months of 2025, compared with net income of \$70 million in the first six months of 2024.

B. Operational and Capital Structure Considerations

The Company is facing approximately \$1.1 billion in debt maturities over the next 24 months under its prepetition capital structure, including required principal payments of \$130.5 million due by March 31, 2026, under the 2027 Senior Secured Notes and the outstanding \$133.9 million in principal amount of the 2026 Senior Notes. The Company also has significant ongoing debt service costs under various debt instruments in its capital structure, including monthly interest payments under the Mortgage Debt and the Secured Credit Facility, and semi-annual or quarterly interest payments under all series of the Company's senior secured notes and unsecured notes, respectively. Interest expenses for the first six months of 2025 were approximately \$105.9 million.

The Company funds many of its operational activities with availability under, and proceeds from, its funded debt and proceeds from asset sales. However, the Company is severely limited in its access to additional capital at reasonable costs or at all. In addition to the limited availability of debt capital to office REITs generally, OPI has no or very limited availability under many of the key covenants under its current debt instruments, limiting the out-of-court alternatives available to solve its capital structure-related concerns. These key covenants include a 60% or less total debt to adjusted total assets ratio, 40% or less secured debt to adjusted total assets ratio, greater than 1.50x debt service coverage ratio, and greater than 150% unencumbered assets to unsecured debt ratio. These covenants limited the Company's operational flexibility and acquisition and disposition activity in the months leading up to the Petition Date.

The Company is currently fully drawn under the revolver under the Secured Credit Facility, further limiting the Company's liquidity. As of the Petition Date, OPI's total available liquidity was approximately \$29.0 million in cash and cash equivalents.

C. Prepetition Restructuring Efforts

Given the substantial structural headwinds in the office real estate market, since 2023, OPI has been working to right-size its capital structure, manage its maturity profile, and improve its property portfolio.

1. Prepetition Capital Structure Transactions

In furtherance of those efforts, starting in 2023, OPI engaged in a series of transactions, most notably certain debt exchanges and issuances (collectively, the "***Prepetition Capital Structure Transactions***"), to extend maturities, capture discount, and manage liquidity. Prior to the Prepetition Capital Structure Transactions, the Company's property portfolio was entirely unencumbered except for the properties securing the Mortgage Debt. With each Prepetition Capital Structure Transaction, the new debt issued was secured against the highest quality remaining unencumbered properties.

The Prepetition Capital Structure Transactions began in January 2024, when OPI entered into the Credit Agreement that replaced its prior \$750 million unsecured revolving credit facility maturing on January 31, 2024, with the current, secured \$425 million Secured Credit Facility (the "***January***

2024 Bank Refinancing”). The January 2024 Bank Refinancing allowed OPI to capture a three-year maturity extension on its bank debt, but required equity pledges from the Credit Agreement Obligor and first lien mortgages on the 19 properties owned by the Credit Agreement Pledged Subsidiaries. The mortgages have a low loan-to-value (“**LTV**”) ratio, and the collateral properties are among the Company’s highest quality assets. As of the Petition Date, the revolver under the Secured Credit Facility was fully drawn. Although OPI has an option to extend the revolver maturity date one year upon payment of a fee and meeting other conditions, the applicable conditions may not be met, and OPI may be required to repay or refinance its existing debt with new debt at less favorable terms.

Next, in February 2024, OPI issued the \$300 million March 2029 Senior Secured Notes (the “**March 2029 Senior Secured Notes Issuance**”) to pay down, along with borrowings under the revolver under the Secured Credit Facility, the Company’s \$350 million 4.25% senior unsecured notes coming due that year (the “**Old 2024 Notes**”). Again, here, the March 2029 Senior Secured Note Issuance provided OPI with sufficient liquidity to pay down the Old 2024 Notes and avoid a maturity default but required equity pledges from the March 2029 Senior Secured Notes Subsidiary Guarantors and first lien mortgages on 17 of the Company’s next highest quality properties, at a low LTV ratio. OPI also issued the March 2029 Senior Secured Notes at a discount to lower the cash coupon rate (93.5% of face, but 92% for initial purchasers), ultimately realizing proceeds of \$270.7 million inclusive of the discount and other offering expenses.

Following the March 2029 Senior Secured Notes Issuance, in June 2024, OPI consummated the June 2024 Exchange, in which the substantial majority—\$567.4 million—of the September 2029 Senior Secured Notes were exchanged for approximately \$865.2 million in the aggregate of Old 2025 Notes, 2026 Senior Notes, 2027 Senior Notes, and 2031 Senior Notes. As part of the exchange, OPI also provided an ad hoc group of longer-dated noteholders with an aggregate 1.4 million of its common shares (approximately \$3.2 million or 2.9% of OPI shares then outstanding) pursuant to a support agreement.

In October 2024, OPI reached an agreement with certain remaining holders of the Old 2025 Notes to consummate a follow-on private exchange for the remaining \$42.6 million of available debt incurrence capacity under the \$610 million September 2029 Senior Secured Notes Indentures for the September 2029 Senior Secured Notes. In the October 2024 Exchange, OPI exchanged that remaining \$42.6 million of September 2029 Senior Secured Notes for \$30.2 million of Old 2025 Notes. The June 2024 Exchange deleveraged the Company’s capital structure by capturing approximately \$298 million of discount. However, both series of September 2029 Senior Secured Notes required enhanced credit support and collateral packages, including equity pledges from the September 2029 Senior Secured Notes Subsidiary Guarantors, first lien mortgages on 19 of the Company’s next most valuable properties, and second lien mortgages on the 19 properties securing the Secured Credit Facility. Like the March 2029 Senior Secured Notes, both series of September 2029 Senior Secured Notes were issued with OID.

Subsequently, in December 2024, OPI consummated the December 2024 Exchange for the 2027 Senior Secured Notes. The December 2024 Exchange addressed OPI’s outstanding Old 2025 Notes, which were coming due February 1, 2025. In the exchange, OPI exchanged approximately \$445 million principal amount of new 2027 Senior Secured Notes, as well as OPI common shares,

and cash support and backstop premiums for approximately \$340 million in Old 2025 Notes and cash from exchanging noteholders.³²

The 2027 Senior Secured Notes were issued with substantial OID, resulting in a higher principal amount of senior secured notes when compared with the principal amount of exchanged unsecured notes, which increased OPI's total debt, but did allow OPI to retire the Old 2025 Notes and avoid a potential maturity default. The new 2027 Senior Secured Notes also required a substantial collateral package, including senior secured equity pledges and guarantees from certain of the subsidiary guarantors, first lien mortgages on 35 of the Company's properties, junior secured equity pledges and guarantees from the subsidiary guarantors securing the September 2029 Senior Secured Notes on a senior secured basis, second lien mortgages on the 19 properties securing the September 2029 Senior Secured Notes on a first lien basis, and unsecured guarantees from the entities obligated on the March 2029 Senior Secured Notes and the Priority Guaranteed Unsecured Notes. The 2027 Senior Secured Notes also require quarterly principal amortization payments of \$6.5 million, in addition to quarterly interest payments, and a balloon principal payment (currently \$117.5 million) on March 1, 2026.

In addition, between August and November 2024, OPI exchanged an aggregate amount of approximately 7.6 million of its common shares for approximately \$15.9 million in aggregate principal amount of the Old 2025 Notes, in a series of private exchange transactions.

Finally, OPI consummated the March 2025 Exchange for the Priority Guaranteed Notes. The public exchange offer was announced for an aggregate principal amount of up to \$175 million of Priority Guaranteed Notes. Ultimately only approximately \$21 million of outstanding Unsecured Notes participated in the exchange, for \$14.4 million of Priority Guaranteed Notes.

While the Prepetition Capital Structure Transactions have helped OPI achieve its goals of extending maturities, capturing discount, and managing liquidity, the continued lack of recovery in the suburban office sector left OPI with limited options remaining to address its funded debt outside of a chapter 11 filing. Further, OPI has no (or severely limited) availability to incur additional debt or grant additional liens under many of its covenants, which also limited the alternatives available to solve its capital structure-related concerns.

Given the limited alternatives available to OPI to address its upcoming maturities and debt payment obligations, OPI worked with Moelis in early 2025 to evaluate the Company's strategic options. It became clear that an in-court restructuring process was likely the most viable path forward, and OPI engaged Latham and AlixPartners in April and June 2025, respectively, to assist in the evaluation and implementation of an in-court strategy.

2. Creditor Negotiations

In the months leading up to the Petition Date, the Debtors and the Advisors engaged in a thorough and good-faith process to evaluate and pursue a range of strategic alternatives. The Debtors and

³² The \$58.5 million cash consideration provided by exchanging noteholders was used to retire an equivalent amount of Old 2025 Notes in January 2025. OPI addressed its remaining 2025 maturities through a combination of debt-for-equity exchanges, asset sales, and balance sheet cash.

the Advisors began outreach to certain of their key stakeholders in June 2025, commencing parallel discussions with (a) the September 2029 Ad Hoc Group, represented by White & Case LLP, as legal counsel, and Houlihan Lokey, Inc., as investment banker (the “***September 2029 Ad Hoc Group Advisors***”) and (b) the 2027 Ad Hoc Group, represented by Milbank LLP, as legal counsel, and Evercore Inc., as investment banker (the “***2027 Ad Hoc Group Advisors***”). In early July, the Debtors delivered a draft term sheet to each of the September 2029 Ad Hoc Group Advisors and 2027 Ad Hoc Group Advisors to provide a framework for a potential restructuring transaction and focus further discussions.

On July 21, 2025, the Debtors received an initial transaction proposal from the September 2029 Ad Hoc Group that provided the high-level terms of an in-court deleveraging transaction. Following initial meetings in early August, the Debtors worked with the September 2029 Ad Hoc Group to identify areas for improvement in the proposal, including refinement of potential financing terms. At the same time, the Debtors continued discussions with the 2027 Ad Hoc Group, which delivered an initial counterproposal to the Debtors July 11 term sheet on August 21, 2025, following initial meetings earlier in the month. The September 2029 Ad Hoc Group followed separately with a revised restructuring term sheet and debtor-in-possession financing term sheet on August 25, 2025, that provided a path to an in-court transaction.

The pace of creditor negotiations accelerated in late August into September 2025. The Debtors and the Advisors held in-person meetings with the September 2029 Ad Hoc Group and its advisors in early September 2025 to further discuss the outstanding issues in the then-proposed transaction following the Debtors’ delivery of a counterproposal. Similarly, the Debtors shared a counterproposal and discussed the same with the 2027 Ad Hoc Group in late August, followed by a further counterproposal from the 2027 Ad Hoc Group in early September. After further discussions, the Debtors also delivered an oral proposal regarding necessary terms for a restructuring to the 2027 Ad Hoc Group on September 15, 2025. Also, in early-to-mid September, the Debtors began to engage with (a) the March 2029 Ad Hoc Group, represented by Paul, Weiss, Rifkind, Wharton & Garrison LLP, and Ducera Partners LLC, (b) the Unsecured Noteholders Ad Hoc Group, represented by Glenn Agre Bergman & Fuentes LLP, and Province, LLC, (c) the Secured Credit Facility Ad Hoc Group, represented by Jones Day LLP, and FTI Consulting, Inc., following separate outreach from each group of creditors.

After weeks of negotiations with their creditors and other stakeholders, the Debtors, with the assistance of the Advisors, determined that the negotiations with the September 2029 Ad Hoc Group presented a value maximizing transaction with sufficient funding and better certainty of exit than the other proposals received. The parties continued to trade counterproposals and negotiate the transaction documents, reaching agreement on outstanding issues over the course of the next several weeks. These efforts ultimately culminated in the Restructuring Support Agreement, with the parties proceeding to definitive documentation by late October. While the Debtors remained focused on a holistic transaction that included the 2027 Ad Hoc Group, including the exchange of several term sheets in the last week prior to filing, that did not come to fruition prior to the Petition Date.

The Debtors have continued to negotiate with the lenders under the Mortgage Debt to obtain feedback, comments with respect to the proposed restructuring, and necessary consents and approvals for implementation. These included certain waivers of any bankruptcy-related events of

default under these mortgages, permitting these entities to consummate the proposed transactions contemplated by the Restructuring Support Agreement. While the Company made the determination not to file the obligors under the Mortgage Debt in these Chapter 11 Cases, the Debtors continue to work with the special servicers to reach agreement on the proposed waivers.

D. Special Committee Investigation

Prior to the commencement of the Chapter 11 Cases, on June 11, 2025, the Board of Trustees elected Timothy R. Pohl as an Independent Trustee of Office Properties Income Trust. On June 12, 2025, the Board established a special committee (the “*Special Committee*”) and appointed Mr. Pohl as its sole member and chair. Mr. Pohl was selected for the Special Committee due to his extensive restructuring experience and independence.

The Board delegated to the Special Committee the power and authority to (a) investigate any potential claims or causes of action that OPI may hold against any parties, including, without limitation, directors, officers, shareholders, lenders, advisors, or other third parties; (b) review any proposed releases of such potential claims, including releases proposed under any chapter 11 plan; and (c) make recommendations to the Board in connection therewith (the “*Investigation*”).

The Special Committee selected Quinn Emanuel Urquhart & Sullivan, LLP (“*Quinn Emanuel*”) as its counsel to assist with carrying out the Special Committee’s mandate. The Bankruptcy Court approved Quinn Emanuel’s retention as counsel to the Special Committee on December 15, 2025 [Docket No. 288]. The Special Committee has also worked closely with the Debtors’ financial advisor, AlixPartners, in connection with obtaining and analyzing information from and about the Debtors necessary to accomplish the purposes of the Special Committee.

The Investigation is focused on potential claims that OPI may have arising from the Prepetition Capital Structure Transactions described in Section IV.C.1 of this Disclosure Statement, transactions involving any material payments made to RMR, and related matters, including, without limitation, potential claims for fraudulent transfer, breach of fiduciary duty, corporate waste, lender liability, and preferences. In connection with the Investigation, and at the direction of the Special Committee, Quinn Emanuel is reviewing thousands of documents from the period preceding the Petition Date and conducting interviews with current and former officers, directors, and advisors.

Quinn Emanuel’s investigation includes analyzing the viability of any claims that OPI may have arising out of or relating to, among other things, the January 2024 Bank Refinancing, the March 2029 Senior Secured Notes Issuance, the June 2024 Exchange, the October 2024 Exchange, the December 2024 Exchange, the March 2025 Exchange, and agreements with RMR, including the management agreements.

The Investigation remains ongoing. Upon completion of the Investigation, the Special Committee will provide its findings and recommendations to the Board regarding whether any colorable claims exist and whether such claims should be pursued, settled, or released in connection with the Plan.

E. Restructuring Support Agreement and Plan

On October 30, 2025, following months of extensive, good faith, arm's-length negotiations, the Debtors entered into the Restructuring Support Agreement with the Consenting Creditors and RMR. Pursuant to the Restructuring Support Agreement, the Consenting Creditors agreed to support the restructuring transaction by, among other things:

- (a) voting to accept the Plan;
- (b) agreeing to not opt-out of the releases contemplated by the Plan; and
- (c) supporting and effectuating the transactions contemplated in the Restructuring Support Agreement.

The terms of the Restructuring, as modified by the Committee Settlement and the 2027 Senior Secured Notes Claims Settlement, have been memorialized in the Plan. The Plan will effect a significant deleveraging of the Debtors' capital structure by reducing the Company's total funded debt by approximately \$700 million.

1. DIP Financing

A critical component of the Restructuring Support Agreement and these Chapter 11 Cases is the Debtors' debtor-in-possession financing (the "**DIP Financing**"). The September 2029 Ad Hoc Group has agreed to provide DIP Financing to the Debtors (the "**DIP Facility**" and the lenders thereunder, the "**DIP Lenders**") in the amount of \$125 million of new money loans to fund the Debtors' operations during these Chapter 11 Cases.

Under the DIP Facility, \$10 million was made available to the Debtors upon entry of the order approving the DIP Facility on an interim basis [Docket No. 150] (the "**Interim DIP Order**"). The remaining \$115 million was made available following entry of the order approving the DIP Facility on a final basis [Docket No. 785] (the "**Final DIP Order**"). The September 2029 Ad Hoc Group offered participation in the DIP Facility to non-ad hoc group holders of the September 2029 Senior Secured Notes (including the Subsequent September 2029 Senior Secured Notes), with certain members of the September 2029 Ad Hoc Group (the "**September 2029 Ad Hoc Group SteerCo**") backstopping the full amount of the DIP Facility. The DIP Facility and the Interim DIP Order also provide for the use of Cash Collateral and an adequate-protection package that are intended to protect secured creditors to the extent of any diminution in value.

Notably, the entire DIP Facility, including fees, may be repaid in reorganized equity at the Debtors' election (subject to dilution from the Initial Equity Compensation). The DIP Facility will be secured by first-priority liens on all of the Debtors' unencumbered assets and by junior liens on all encumbered assets of the Debtors, except for the obligors under the Debtors' prepetition credit facility, who will not be obligors under the DIP Facility.

On March 5, 2026, an order was entered amending the Final DIP Order to authorize and direct the Debtors to pay certain reasonable and documented out-of-pocket fees, costs and expenses of the 2027 Ad Hoc Group and the 2027 Senior Secured Notes Parties [Docket No. 976] (the "**Adequate**

Protection Stipulation” and together with the Interim DIP Order and the Final DIP Order the ***“DIP Orders”***).

2. Secured Exit Notes

To fund recoveries to the September 2029 Senior Secured Notes, OPI will issue the Secured Exit Notes on the Effective Date, in the aggregate principal amount of up to \$420 million. The Secured Exit Notes will generally be guaranteed by the same entities that guaranteed the September 2029 Senior Secured Notes and secured by the same collateral that secures the September 2029 Senior Secured Notes, subject to a customary intercreditor agreement, and the DIP Facility, subject to certain limitations (including the exclusion of the assets securing the March 2029 Senior Secured Notes). The Secured Exit Notes will bear interest at 10% annually, payable in cash, with a maturity date of five years from the Effective Date.

3. Equity Rights Offering

The Restructuring Support Agreement previously contemplated two equity rights offerings, one open to holders of unsecured funded debt claims (including deficiency claims), with proceeds being used to pay exit costs, and another open to just Unsecured Notes Claims, with proceeds used to pay down DIP Claims in cash.

Under the Committee Settlement, the two equity rights offerings previously contemplated by the Restructuring Support Agreement have been consolidated into the single Equity Rights Offering as described further below.

4. RMR Management Agreements

The Restructuring Support Agreement also contemplates that the existing RMR Business Management Agreement and the RMR Property Management Agreement will each be assumed by the Reorganized Debtors and amended and restated, with the Amended RMR Management Agreements to be entered into on the Effective Date. The Amended RMR Management Agreements will amend the existing business management fee to \$14 million per annum until the second anniversary of the Effective Date, with business management fees after such date to be agreed) while the existing property management fee and construction supervision fee will remain the same as under the RMR Management Agreements as currently in effect, at 3% of gross collected rents and 5% of certain construction costs, respectively. The Amended RMR Management Agreements also contemplate a MIP providing for the Initial Equity Compensation and Subsequent Equity Compensation. The Amended RMR Management Agreements also amend the initial term of the applicable agreements to five years from the Effective Date.

The Debtors and their advisors engaged in an appropriate review and benchmarking of the terms of the Amended RMR Management Agreements set forth in the term sheet prior to the Petition Date. Moreover, the term sheet will be further negotiated, subject to the terms of the Restructuring Term Sheet, in connection with the definitive documentation to be filed with the Plan Supplement. OPI’s independent Chief Restructuring Officer and independent board trustee approved the term sheet in a reasonable exercise of their business judgment following such review, which included review of market comparable information.

5. Settlement Payments

As consideration for the efforts of the September 2029 Ad Hoc Group, the Debtors agreed to pay certain settlement payments to the September 2029 Ad Hoc Group SteerCo in the amount of \$10 million cash, paid prior to the Petition Date, and (b) a “***Consenting September 2029 Senior Secured RSA Fee***” to the holders of September 2029 Senior Secured Notes party to the Restructuring Support Agreement in the amount of 2% of the aggregate principal amount of September 2029 Senior Secured Notes held by such parties, capped at \$10 million and payable upon the occurrence of the Effective Date.

V.

PENDING AND FUTURE LITIGATION AGAINST THE DEBTORS

In the ordinary course of business, from time to time, the Company is the subject of complaints or litigation from shareholders, tort claimants, or other parties and or inquiries or investigations by government officials. Although the Company cannot predict with certainty the eventual outcome of any litigation, The Company is currently not a party to any ongoing litigation which it would expect to have a material adverse effect on its business or the Restructuring.

Additionally, there is a risk of future litigation. Pending litigation or future litigation could result in a material judgment against the Reorganized Debtors. Such litigation, and any judgment in connection therewith, could have a material negative effect on the Reorganized Debtors.

With certain exceptions, the filing of the Chapter 11 Cases operates as a stay with respect to the commencement or continuation of litigation against the Debtors that was or could have been commenced before the commencement of the Chapter 11 Cases. The Debtors' liability with respect to litigation stayed by the commencement of the Chapter 11 Cases is subject to discharge, settlement, and release upon confirmation of a plan under chapter 11, with certain exceptions. Therefore, certain litigation claims against the Debtors may be subject to discharge in connection with the Chapter 11 Cases. This may reduce the Debtors' exposure to losses in connection with the adverse determination of such litigation.

VI. EVENTS DURING CHAPTER 11 CASES

A. First Day Motions and Certain Related Relief

The Debtors have continued their operations in the ordinary course during the pendency of the Chapter 11 Cases. To facilitate the efficient and expeditious implementation of the Plan through the Chapter 11 Cases, the Debtors have devoted substantial efforts to stabilizing their operations and preserving and restoring their relationships with, among others, tenants, vendors, utility providers, suppliers, and other stakeholders. As a result of these efforts, the Debtors were able to minimize, to the extent practicable, any negative impacts of the commencement of the Chapter 11 Cases on the Debtors' operations.

On the Petition Date, the Debtors filed multiple motions seeking various relief from the Bankruptcy Court and authorizing the Debtors to maintain their operations in the ordinary course and ensure a seamless transition into chapter 11 (the "***First Day Motions***"). At a hearing conducted on November 3, 2025, the Bankruptcy Court entered several orders (the "***First Day Orders***") granting the relief requested in the First Day Motions, including, among other things, authorizing the Debtors to:

- (a) jointly administer the Chapter 11 Cases [Docket No. 19];
- (b) retain Kroll as Solicitation Agent [Docket No. 25];
- (c) file a consolidated list of creditors and modify certain notice and identification requirements [Docket No. 90];
- (d) extending the time for the Debtors to file their schedules of assets and liabilities and statements of financial affairs [Docket No. 89];
- (e) pay prepetition tenant obligations, including tenant improvement allowances, brokerage fees, and making payments, including general refunds and security deposit refunds, owed to or on behalf of tenants in the ordinary course of operation of the Debtors' properties and/or administration of the Debtors' leases [Docket No. 92];
- (f) pay prepetition obligations on account of amounts owing to essential creditors, including suppliers of goods and services that are critical to ensure the health and safety and the environmental and regulatory compliance of the Debtors' properties, and other potential lienholders [Docket Nos. 91 and 440];
- (g) determine adequate assurance for future utility service and establish procedures for utility to object to such assurance [Docket No. 97];
- (h) continue insurance coverage and a bonding program, and enter into new insurance policies and purchase new surety bonds or letters of credit, if necessary [Docket No. 95];

- (i) maintain the existing cash management system [Docket Nos. 149 and 438];
- (j) remit and pay certain taxes and fees [Docket No. 96];
- (k) establish notification procedures and place restrictions on certain transfers of interests in the Debtors, and claims of certain worthlessness deductions to preserve the Debtors' tax attributes [Docket No. 93]; and
- (l) establishing a record date for notice and sell-down procedures for transferring claims against the Debtors with respect to the September 2029 Senior Secured Notes, in anticipation of potential further relief with respect to such claims to preserve the Debtors' ability to use tax-attribute preserving limitations under the Bankruptcy Code [Docket No. 94].

B. Procedural Motions

Since the commencement of these Chapter 11 Cases, the Debtors have also filed various motions regarding procedural issues common to chapter 11 cases of similar size and complexity including, without limitation, a motion for entry of an order establishing procedures for the interim compensation and reimbursement of expenses of professionals [Docket No. 210] (the “***Interim Compensation Motion***”), a motion for entry of an order authorizing the Debtors to employ professionals used in the ordinary course of business [Docket No. 209], and a motion for entry of an order establishing bar dates for the filing of Proofs of Claim related to certain prepetition Claims [Docket No. 230] (the “***Bar Date Motion***”).

C. Adversary Proceedings

1. The 2027 Senior Secured Notes Claims Challenge

On November 2, 2025, the Debtors filed an adversary complaint, Adv. Proc. No. 25-90530 (CML), seeking declaratory judgment relief against UMB Bank, National Association, as indenture trustee and collateral agent for the 2027 Senior Secured Notes (“***UMB Bank***” or “***2027 Senior Secured Notes Trustee***”) with respect to the appropriate treatment under the Bankruptcy Code of the OID on the 2027 Senior Secured Notes, and seeking disallowance of the unamortized portion of the OID associated with the 2027 Senior Secured Notes under section 502(b)(2) of the Bankruptcy Code (the “***2027 Senior Secured Notes Claims Challenge***”). The September 2029 Ad Hoc Group, the 2027 Ad Hoc Group, and the Committee have intervened in the proceedings.

The Debtors position is that (i) the OID generated from the exchange offer for the 2027 Senior Secured Notes, which resulted in an increased amount of senior secured notes in exchange for unsecured notes, does not fall in one of the few and limited exceptions to disallowance of OID under the Bankruptcy Code as interpreted by the relevant case law and (ii) the appropriate calculation for the issue price is the methodology used for tax purposes, which was agreed in the relevant exchange agreement and publicly disclosed in the associated tax documentation at the time of the exchange. The Debtors assert that the unamortized OID on the 2027 Senior Secured Notes was approximately \$76.4 million as of the Petition Date and such amount should be disallowed.

UMB Bank's and the 2027 Ad Hoc Group's position is, among other things, that (1) the 2027 Senior Secured Notes were accelerated prior to the Petition Date, meaning that any unamortized OID has matured and is not disallowed under section 502(b)(2) of the Bankruptcy Code; (2) the 2027 Senior Secured Notes were not issued with OID that can be disallowed under section 502(b)(2) of the Bankruptcy Code because they were issued as part of a debt-for-debt exchange, and (3) any unamortized OID must be paid notwithstanding section 502(b)(2) of the Bankruptcy Code because the entities that are obligated on the 2027 Secured Notes are solvent. UMB Bank and the 2027 Ad Hoc Group also contend that the Debtors inappropriately calculate the amount of OID, including by the inclusion in the OID calculation of various non-debt components of the exchange and by relying on tax methodologies.

In connection with the Bankruptcy Court ordering the 2027 Ad Hoc Group and the Debtors to the First Mediation, the Bankruptcy Court stayed and abated all deadlines in the 2027 Senior Secured Notes Claims Challenge pending a resolution among the parties or termination of the First Mediation [Adv. Docket No. 5]. Following termination of the First Mediation, the Debtors resumed the 2027 Senior Secured Notes Claim Challenge and filed an emergency scheduling motion on December 31, 2025 seeking termination of the order abating all deadlines and establishing new dates and deadlines and certain protocols for the 2027 Senior Secured Notes Claim Challenge [Adv. Docket No. 7] (the "***Scheduling Motion***").

The Bankruptcy Court considered the Scheduling Motion at a hearing held on January 7, 2026. On January 20, 2026, the Debtors filed an agreed stipulation and order authorizing the intervention of the Committee, the September 2029 Ad Hoc Group, and the 2027 Ad Hoc Group in the 2027 Senior Secured Notes Claims Challenge [Adv. Proc. Docket No. 32].

At the Final DIP Hearing (as defined below) the Bankruptcy Court also ruled that it would hold a trial to determine the value of the 2027 Senior Secured Notes' first-lien collateral in advance of the Confirmation Hearing to address certain threshold issues in the 2027 Senior Secured Notes Claims Challenge and in connection with projected objections to confirmation regarding valuation. That trial was previously scheduled for March 30 and 31, 2026.

However, on March 2, 2026, the Debtors and the 2027 Ad Hoc Group reached a settlement in principle with respect to the 2027 Senior Secured Notes Claims Settlement.

2. The Intercreditor Adversary Proceeding

On January 24, 2026, UMB Bank filed an adversary complaint, Adv. Proc. No. 25-90530 (CML), against Helix Partners Management, LP and Redwood Capital Management LLC (together, the "***2029 Ad Hoc Steering Committee***") and certain of the Debtors that are obligors under both the September 2029 Senior Secured Notes and the 2027 Senior Secured Notes, seeking declaratory relief and damages arising from alleged violations of the intercreditor agreement (the "***Intercreditor Agreement***") between the 2027 Senior Secured Notes and the September 2029 Senior Secured Notes (the "***Intercreditor Adversary Proceeding***").

As a result of the negotiations regarding the 2027 Senior Secured Notes Claims Settlement, the Debtors and the 2027 Ad Hoc Group agreed to a standstill in the Intercreditor Adversary

Proceeding on March 3, 2026 and the litigation was abated for a period of seven days [Adv. No. 26-03016 Docket No. 6].

D. Tempe Sale Motion

On November 10, 2025, the Debtors filed a motion seeking an order authorizing and approving the sale of the Debtors' land and certain commercial real estate located at 1920 and 1930 W University Drive in Tempe, Arizona (the "***Tempe Property***") to a third-party purchaser, who agreed to such sale prior to the Petition Date [Docket No. 177] (the "***Tempe Sale Motion***"). The purchase price for the Tempe Property under the purchase agreement was approximately \$11 million. On December 3, 2025, the Bankruptcy Court entered an order [Docket No. 241] approving such sale to the purchaser. On December 19, 2025, the sale of the Tempe Property to the purchaser closed.

E. Bar Date Order

Following the filing of the Bar Date Motion, on December 1, 2025, the Bankruptcy Court entered an order [Docket No. 443] (the "***Bar Date Order***") on December 16, 2025, setting the deadline for filing a Proof of Claim in the Chapter 11 Cases as (a) January 22, 2026 at 5:00 p.m. (prevailing Central Time) for all parties other than governmental units, and (b) April 28, 2026 at 5:00 p.m. (prevailing Central Time) for governmental units.

Because the resolution process for the Claims is ongoing, the Claims figures identified in this Disclosure Statement represent estimates only and are subject to material change.

F. DIP Financing and Use of Cash Collateral

On November 1, 2025, the Debtors filed a motion to approve, on an interim and final basis, the DIP Facility and the use of cash collateral [Docket No. 32] (the "***DIP Motion***"). Through the DIP Motion, the Debtors sought permission from the Bankruptcy Court to, among other things, (i) obtain secured postpetition financing in the form of a multi-draw secured term loan DIP Facility, (ii) grant liens and superpriority administrative expense status on account thereof, (iii) utilize the cash collateral of prepetition secured parties, and (iv) modify the automatic stay imposed by section 362 of the Bankruptcy Code to the extent necessary.

On November 3, 2025, the 2027 Ad Hoc Group filed an objection [Docket No. 43] (the "***2027 Ad Hoc Group Objection***") to, among other things, the DIP Motion. That objection argued, among other things, that the DIP Motion should be denied as to the Debtors' unencumbered entities at which the 2027 Senior Secured Notes have guarantees and that would provide liens in favor of the DIP Lenders under the DIP Facility (the "***2027 Non-ICA Obligors***"). Specifically, the 2027 Ad Hoc Group argued that terms of the DIP were not fair and reasonable as to the 2027 Non-ICA Obligors because: (a) the Non-ICA Obligors would not benefit from the DIP Facility because their funding needs were below the amount of the DIP Facility; (b) the DIP Facility is the product of a flawed governance process; (c) the DIP Facility violates the intercreditor agreement between the 2027 Senior Secured Notes and the September 2029 Senior Secured Notes; (d) the DIP Facility improperly predetermines critical case issues not yet before the Bankruptcy Court; and (e) any relief under section 364 must be narrowly tailored to the needs of the 2027 Non-ICA Obligors. The trustee under the 2027 Senior Secured Notes filed a joinder objection asserting similar issues.

Following the hearing held on November 3, 2025, the Bankruptcy Court entered the Interim DIP Order on November 5, 2025, approving the Debtors' DIP Motion on an interim basis and giving the Debtors access to a \$10 million draw under the DIP Facility. In connection with the 2027 Ad Hoc Group Objection, the Bankruptcy Court ordered the 2027 Ad Hoc Group, the September 2029 Ad Hoc Group, and the Debtors to mediate a potential consensual resolution to their issues in the Chapter 11 Cases. The Mediation is described in further detail below.

Access to postpetition financing, coupled with the use of cash collateral, has allowed and will continue to allow the Debtors to, among other things: (i) continue their businesses in an orderly manner; (ii) maintain their valuable relationships with vendors, suppliers, and tenants; and (iii) support their working capital and general corporate and overall operational needs.

The hearing to consider entry of the Final DIP Order was held on January 28 and 29, 2026 (the "**Final DIP Hearing**"). At the Final DIP Hearing, the Debtors announced two settlements resolving certain objections of (1) the Committee and (2) holders of a tranche of September 2029 Senior Secured Notes issued in the October 2024 Exchange (the "**Subsequent September 2029 Senior Secured Notes**"). The settlement with the Committee, among other things, preserves valuation issues for confirmation, extends the Committee's challenge deadline and increases their investigation budget. The settlement with certain September 2029 Senior Secured noteholders entitles the noteholders to participate in \$6 million of the \$125 million DIP Facility and reduced the principal amount of the Claim by \$5 million in resolution of OID issues, amongst other things.

The Bankruptcy Court heard testimony at the Final DIP Hearing and entered the Final DIP Order on February 4, 2026 [Docket No. 785]. That same day, the 2027 Ad Hoc Group and UMB Bank (collectively, the "**Appellants**") noticed an appeal of the Final DIP Order (the "**DIP Appeal**") and on February 6, 2026, the Appellants filed a motion to expedite the DIP Appeal. The DIP Appeal is pending before the U.S. District Court for the Southern District of Texas before Judge Charles Eskridge, under Civil Action No. 4:26-cv-00958. The District Court granted the Appellants' motion to expedite and set an accelerated appeal schedule, with Appellants' opening brief and statement of issues to be due on February 24, 2026, the Debtors' answering brief to be due on March 3, 2026, and Appellants' reply brief (if any) to be due by March 9, 2026. However, as a result of the negotiations regarding the 2027 Senior Secured Notes Claims Settlement, the Debtors and the 2027 Ad Hoc Group agreed to a standstill in the DIP Appeal and the litigation was abated [No. 4:26-cv-00958, Docket No. 18].

On February 11, 2026, eligible participants of the DIP Facility were permitted to exercise their right to participate in syndication of the DIP Facility. The syndication period expired on February 26, 2026 at 5:00 p.m. (prevailing Central Time).

G. Mediation

As noted above, at the November 3, 2025 hearing to consider the First Day Motions and DIP Motion, the Bankruptcy Court directed the Debtors and certain key parties in interest in the Chapter 11 Cases to participate in the First Mediation. On November 5, 2025, the Debtors, the September 2029 Ad Hoc Group, and the 2027 Ad Hoc Group began the First Mediation, with the Honorable Marvin Isgur acting as mediator. Shortly thereafter, the First Mediation expanded to include all other major constituents in the Debtors' capital structure, including the Unsecured Notes Ad Hoc

Group, the March 2029 Ad Hoc Group, the Secured Credit Facility Agent, and the trustee under the Priority Guaranteed Unsecured Notes (collectively, the “**First Mediation Parties**”), with the goal of reaching a global resolution for all key case constituents to advance a fully consensual plan of reorganization. On November 14, 2025, the Bankruptcy Court entered an agreed mediation order [Docket No. 190] memorializing the framework for the First Mediation. On November 17, 2025, the U.S. Trustee appointed the Committee, and the Committee was subsequently added as a First Mediation Party.

The Mediation was originally scheduled to terminate on the earlier of (i) the date on which Judge Isgur determines that the Mediation has terminated and (ii) December 3, 2025 (unless extended by the core Mediation Parties), but the parties mutually agreed to continue the Mediation in the hopes of resolving outstanding issues. Following a status conference held on December 9, 2025, the Bankruptcy Court imposed a deadline of December 23, 2025, for the presentation of any settlement or other resolution of the issues subject to the Mediation or, in the absence thereof, termination of the Mediation and resumption of the litigation schedule.

Despite engaging in negotiations over the course of several weeks, the parties to the First Mediation were unable to reach agreement and, accordingly, the First Mediation terminated on December 22, 2025. Following the termination of the First Mediation, the Debtors, the September 2029 Ad Hoc Group, the Unsecured Notes Ad Hoc Group, and the Committee agreed that the Second Mediation, again conducted by Judge Isgur, would be beneficial to aid discussions on remaining issues among them and facilitate consensus with respect to the Debtors’ proposed Restructuring. On December 30, 2025, the parties to the Second Mediation (the “**Second Mediation Parties**”) filed a stipulation and proposed agreed order regarding the Second Mediation, which was entered by the Bankruptcy Court on January 8, 2026.

The Second Mediation commenced on January 8, 2026. As a result of the Second Mediation, the Debtors, the Committee, and the September 2029 Ad Hoc Group reached the Committee Settlement on February 23, 2026, the terms of which are detailed below.

As of February 18, 2026, the Debtors, the 2027 Ad Hoc Group, and the September 2029 Ad Hoc Group agreed to the Third Mediation with Judge Isgur to resolve the disputes among the parties with respect to the Plan. On March 2, 2026, following extensive, arm’s-length, good faith discussions, the parties agreed to the 2027 Senior Secured Notes Claims Settlement, the terms of which are detailed below.

H. Filing of the Schedules

On November 3, 2025, the Bankruptcy Court entered an order [Docket No. 89] extending the time for the Debtors to file their schedules of assets and liabilities and statements of financial affairs (collectively, the “**Schedules**”), and setting December 15, 2025 as the deadline by which the Debtors must file their Schedules. On December 15, 2025, the Debtors filed their Schedules [Docket Nos. 292 through 437].

I. Retention Applications and Compensation of Professionals

The Debtors have filed various applications to retain professionals during these Chapter 11 Cases, as is common in chapter 11 cases of similar size and complexity, including applications for the entry of orders authorizing the retention of:

- (a) Latham & Watkins LLP, as bankruptcy counsel to the Debtors [Docket No. 204], which the Bankruptcy Court approved on December 15, 2025 [Docket No. 283];
- (g) Hunton Andrews Kurth LLP, as bankruptcy co-counsel to the Debtors [Docket No. 206], which the Bankruptcy Court approved on December 15, 2025 [Docket No. 284];
- (h) Moelis & Company LLC, as investment banker to the Debtors [Docket No. 211], which the Bankruptcy Court approved on December 15, 2025 [Docket No. 282];
- (i) AP Services, LLC, as financial advisor [Docket No. 208], which the Bankruptcy Court approved on December 15, 2025 [Docket No. 281];
- (j) Sullivan & Worcester LLP, as special corporate, real estate, and tax counsel to the Debtors [Docket No. 207], which the Bankruptcy Court approved on December 15, 2025 [Docket No. 287];
- (k) PwC US Tax LLP, as tax services provider [Docket No. 223], which the Bankruptcy Court approved on December 17, 2025 [Docket No. 450];
- (l) Quinn Emanuel Urquhart & Sullivan LLP as special counsel to the OPI Special Committee [Docket No. 205], which the Bankruptcy Court approved on December 15, 2025 [Docket No. 288];
- (m) Kroll Restructuring Administration LLC, as Solicitation Agent [Docket No. 5], which the Bankruptcy Court approved on November 3, 2025 [Docket No. 25]; and
- (n) JLL Valuation & Advisory Services, LLC as valuation expert [Docket No. 843]
- (o) PwC US Business Advisory LLP, as accounting advisor [Docket No. 974]

The Debtors also filed the Interim Compensation Motion to establish the procedures by which these professionals, and the professionals retained by the Consenting Creditors and the Committee, can be paid or have their fees objected to [Docket No. 210]. On December 17, 2025, the Bankruptcy Court entered the Interim Compensation Order [Docket No. 451].

The Debtors also filed a motion [Docket No. 209] seeking an order approving procedures for the retention of certain professionals used in the ordinary course of business (the “**Ordinary Course Professionals Order**”). On December 17, 2025, the Bankruptcy Court entered the Ordinary Course Professionals Order [Docket No. 449].

J. Appointment of the Committee

On November 17, 2025 the U.S. Trustee appointed the Committee pursuant to section 1102(a) of the Bankruptcy Code to represent the interest of unsecured creditors in the Chapter 11 Cases [Docket No. 192]. On February 3, 2026, the U.S. Trustee amended the appointment of the Committee to remove one member, SavATree, LLC, from the Committee [Docket No. 777].

The members of the Creditors' Committee are (i) CSC Delaware Trustee Company as trustee for the Unsecured Notes; (ii) Value Works LLC; (iii) Diamond Family Investments LLC; and (iv) Computershare Trust Company, N.A., as trustee for the Priority Guaranteed Unsecured Notes.

The Committee retained and filed retention applications for Willkie Farr & Gallagher LLP as counsel [Docket No. 463] and Alvarez & Marsal North America, LLC as financial advisor [Docket No. 464]. The Bankruptcy Court approved their retention on January 13, 2026 [Docket Nos. 585, 586].

K. Plan Exclusivity

The Debtors have the exclusive right to file a chapter 11 plan until February 27, 2026. On February 2, 2026, the Debtors filed an application seeking such an extension of their exclusive right to file a chapter 11 plan through and including July 2, 2026 under section 1121 of the Bankruptcy Code. [Docket No. 776]. After conferring with the 2027 Ad Hoc Group and the Committee, the Debtors agreed to seek extension of their plan exclusivity period through May 15, 2026, and the solicitation exclusivity period from April 28, 2026, to July 14, 2026 [Docket No. 844]. The Bankruptcy Court approved the application on February 25, 2026, extending the exclusive periods accordingly [Docket No. 877] .

L. Global Sale Procedures

On February 3, 2026, the Debtors filed a motion [Docket No. 784] (the “**Global Sale Procedures Motion**”) requesting approval of certain sale procedures (the “**Global Sale Procedures**”) to sell real property assets designated for disposition or otherwise in the ordinary course of business through either (i) a broker marketing process consistent with the Debtors' prepetition practices or (ii) an expedited bankruptcy auction process. The Global Sale Procedures provide for a process to retain brokers on an expedited basis to market and sell the Debtors' assets and also the Debtors to designate one or more stalking horse bidders for any properties marked for auction and provide such stalking horse bidders with bid protections. The Bankruptcy Court approved the Global Sale Procedures on February 25, 2026 [Docket No. 878].

M. Equity Rights Offering

The Plan contemplates the Equity Rights Offering to be consummated by the Reorganized Parent on the Effective Date in accordance with certain rights offering procedures. The Equity Rights Offering will offer up to \$35 million of Reorganized Common Equity. All Unsecured Noteholders will receive subscription rights under the Plan to participate in the Equity Rights Offering. Participants may subscribe for Reorganized Common Equity at a 15% discount to Plan Value.

The Equity Rights Offering will be backstopped by the Unsecured Notes Ad Hoc Group and Committee members Valueworks LLC and Diamond Family Investments LLC, to be memorialized in a backstop commitment letter. The backstop parties will be paid a backstop fee of 10% payable in reorganized common equity. The Debtors will use the proceeds of the Equity Rights Offering to fund exit costs.

On March 6, 2026, the Debtors filed a motion seeking approval of the Equity Rights Offering procedures, authority to conduct the Equity Rights Offering, and authorization for the Debtors to enter into the Equity Rights Offering backstop commitment letter [Docket No. 982] (the “**Equity Rights Offering Motion**”). The hearing to consider the Equity Rights Offering Motion is scheduled for April 2, 2026 [Docket No. 986].

N. Pro Se Litigation Matters

Several pro se litigants have filed various pleadings opposing the Debtors’ prosecution of the Chapter 11 Cases, including (i) three motions and related pleadings requesting the Bankruptcy Court to strike the Debtors’ chapter 11 petitions [Docket Nos. 593, 594, 672, 775 & 807] (collectively, the “**Motion to Strike**”), and (ii) a motion to convert the Chapter 11 Cases to cases under chapter 7 of the Bankruptcy Code [Docket No. 619] and supporting declarations and notices [Docket Nos. 596, 631 & 629] (collectively, the “**Motion to Convert**” and together with the Motion to Strike, the “**Pro Se Motions**”). These pro se litigants have alleged a variety of theories in support of their claims, including that the cases were filed in bad faith, the Debtors’ financial reporting is erroneous and justifies distributions to equity, and administrative expenses constitute a continuing loss to or diminution of the estate.

The Debtors filed objections [Docket Nos. 815 & 817] to the Pro Se Motions on February 13, 2026, contending in response that, among other things, the Chapter 11 Cases have been properly filed in good faith, have been prosecuted appropriately, and that the pro se litigants will be able to raise any issues with their proposed treatment under the Plan at the Confirmation Hearing. On February 24, 2026, the Bankruptcy Court denied the Pro Se Motions [Docket Nos. 862 & 863].

O. The Committee Settlement

On February 24, 2026, the Debtors announced the Committee Settlement by filing the settlement term sheet at Docket No. 855 (the “**Committee Settlement Term Sheet**”). Under the Committee Settlement, the parties have agreed, among other things, to the following key terms³³:

Term	Description
Plan Enterprise Value and Implied Plan Equity Value	The parties have agreed to a Plan enterprise value of \$1.75 billion (excluding the value of the 2027 Senior Secured Notes First Lien Collateral), resulting in an implied Plan equity value of \$428 million.

³³ The summary of the terms of the Committee Settlement set forth below are qualified in all respects by the Committee Settlement Term Sheet.

Unsecured Noteholder Recovery	Under the Plan, the Unsecured Noteholders will receive (a) (1) 6.3% of Reorganized Common Equity (in the event the Debtors elect to equitize the DIP Claims) and (2) seven-year warrants for 5% of Reorganized Common Equity as of emergence at a strike price of 125% of the Plan equity value; and (b) Subscription rights to participate in the Equity Rights Offering.
Equity Rights Offering	The two equity rights offerings previously contemplated by the Plan and Restructuring Support Agreement have been consolidated into the single Equity Rights Offering sized at \$35 million and open to all Unsecured Noteholders, on the terms described in Section VI.M above.
Priority Guaranteed Notes Recovery	Priority Guaranteed Notes will receive a 100% recovery, payable in Reorganized Common Equity.
Trade and Vendor Claims	Trade and vendor claims will be paid in full in cash on or as soon as reasonably practicable after the Effective Date.
September 2029 Unsecured Claims	Any unsecured deficiency claims on account of the September 2029 Senior Secured Notes will receive 5.3% of Reorganized Equity (in the event the Debtors elect to equitize the DIP Claims).
Governance	The governing body of Reorganized Parent shall be composed of (a) five individuals appointed by the September 2029 Ad Hoc Group, (b) one individual appointed by the Committee (with such individual being reasonably acceptable to the Company and the September 2029 Ad Hoc Group), and (c) one individual appointed by RMR.
Committee Challenge Rights	The Committee agrees to cease any investigations following entry of the

	Solicitation Procedures Order and agrees that all challenges to the stipulations and releases to the DIP Order will be barred upon confirmation of the Plan. The challenge period shall be extended to the Effective Date.
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P. The 2027 Senior Secured Notes Claims Settlement

On March 3, 2026, the Debtors announced the 2027 Senior Secured Notes Claims Settlement by filing the settlement term sheet at Docket No. 971 (the “**2027 Settlement Term Sheet**”). Under the 2027 Senior Secured Notes Claims Settlement, the parties have agreed, among other things, to the following key terms³⁴:

Term	Description
New 2027 Senior Secured Notes	On the Effective Date, the 2027 Senior Secured Noteholders will receive the New 2027 Senior Secured Notes, which consist of a \$385 million secured promissory note that will bear interest at 8.125% and be subject to the prepayment and distribution schedule and terms set forth below. The final maturity of the New 2027 Senior Secured Notes will be the date that is 42 months following the Effective Date and may be prepaid on the schedule outlined in the 2027 Settlement Term Sheet. The collateral for the New 2027 Senior Secured Notes includes (i) all of the current first lien collateral under the 2027 Senior Secured Notes, except for the properties located in Irving, Texas and Parsippany, New Jersey (the “Excluded Properties”) and (ii) additional property as required to meet a \$460 million Minimum Value Requirement described below.
Prepayment and Distribution Schedule	The Debtors will make the following payments and distributions to the 2027 Senior Secured Noteholders: (a) On or before August 1, 2026, \$15 million

³⁴ The summary of the terms of the 2027 Senior Secured Notes Claims Settlement set forth below are qualified in all respects by the 2027 Settlement Term Sheet.

	(b) On or before November 1, 2026, \$15 million (c) On or before February 1, 2027, \$30 million The second and third deferred payments of \$45 million in the aggregate will bear interest at 8.125% and be secured by a mortgage and treated as mandatory amortization. The \$60 million of total payments will be applied as a \$10 million support fee to the 2027 Ad Hoc Group and as a \$50 million principal payment on the New 2027 Senior Secured Notes. Following receipt of the \$50 million principal payment, the 2027 Senior Secured Noteholders will have a remaining claim of \$335 million payable pursuant to the New 2027 Senior Secured Notes.
Collateral Valuation	The Debtors will provide appraisals to the 2027 Ad Hoc Group, prepared by a nationally recognized appraisal firm, reflecting the fair market values of the properties securing the 2027 Senior Secured Notes on a first lien basis, excluding the Excluded Properties. The appraisals shall be subject to the acceptance of the 2027 Ad Hoc Group and the fair market value of the appraisal shall not be less than \$460 million (the “<i>Minimum Value Requirement</i>”).
Collateral Sales	The Debtors may sell one or more of the properties that are held as collateral by the 2027 Holders, with the lien on the sold properties being released at the closing of the sale and a portion of the proceeds being used to pay down the Promissory Note at par. The sale and proceeds of the properties are subject to certain terms and conditions outlined in the 2027 Settlement Term Sheet, as summarized below: (a) The minimum sales price must produce net proceeds of at least 73% of the appraised value of the property to be sold, or the sale is subject to the

	consent of the 2027 Senior Secured Noteholders. (b) Net sales proceeds equal to 73% of the appraised value must first be provided to the 2027 Senior Secured Noteholders, and (i) with respect to the first \$150 million of sales, the full balance of proceeds is to be paid to the Debtors, and (ii) with respect to the balance of properties sold, the balance of net sale proceeds will be paid 50% to the 2027 Senior Secured Noteholders and 50% to the Debtors.
Professional Fees	Reasonable and documented professional fees of the 2027 Ad Hoc Group will be reimbursed by the Debtors.

VII. TRANSFER RESTRICTIONS AND CONSEQUENCES UNDER FEDERAL SECURITIES LAWS

The Reorganized Debtors believe that the distribution, offer, and sale of Plan Securities under the Plan (other than the Secured Exit Notes, the New 2027 Senior Secured Notes and the Reorganized Common Equity issued pursuant to the Equity Rights Offering) (collectively, the “**1145 Securities**”) to each Person who is not deemed to be an “underwriter” as defined in section 1145(b) of the Bankruptcy Code will be exempt pursuant to section 1145(a) of the Bankruptcy Code, without further act or action by any Entity, from registration under (i) section 5 of the Securities Act, and all rules and regulations promulgated thereunder, and (ii) any state or local law requiring registration for the offer or sale of securities. To the extent section 1145(a) of the Bankruptcy Code is not applicable or will not be used for the distribution, offer, and sale of any Plan Securities (including the Secured Exit Notes and the Reorganized Common Equity issued pursuant to the Equity Rights Offering), the Reorganized Debtors will rely upon other applicable exemptions from registration, including the exemptions provided by section 4(a)(2) of the Securities Act and Regulation D or Regulation S promulgated thereunder.

The 1145 Securities offered or sold by the Reorganized Debtors under the Plan pursuant to section 1145(a) of the Bankruptcy Code will be unrestricted securities as set forth in section 1145(c) of the Bankruptcy Code and, generally, may be sold without registration under the Securities Act by the recipients thereof. Plan Securities that are not issued pursuant to section 1145 of the Bankruptcy Code (including the Secured Exit Notes and the Reorganized Common Equity issued pursuant to the Equity Rights Offering) will be considered “restricted securities” (within the meaning of Rule 144 under the Securities Act) and may not be transferred except pursuant to an effective registration statement or under an available exemption from the registration requirements of the Securities Act. Any transfers of Plan Securities will also be subject to (i) compliance with any applicable state or foreign securities laws, if any, and the rules and regulations of the SEC, if any, applicable at the time of any future transfer of such securities or instruments; (ii) the restrictions, if any, on the transferability of such securities under the terms of the Reorganized Debtors’ organizational documents; and (iii) any other applicable regulatory approvals and requirements.

A. Section 1145 of the Bankruptcy Code Exemption and Subsequent Transfers

Section 1145(a) of the Bankruptcy Code generally exempts from registration under the Securities Act and state and local laws the offer or sale under a chapter 11 plan of a security of the debtor, of an affiliate participating in a joint plan with the debtor, or of a successor to the debtor under a plan, if such securities are offered or sold in exchange for a claim (including a claim for an administrative expense) against, or an interest in, the debtor or such affiliate, or principally in such exchange and partly for cash. Section 1145(a) of the Bankruptcy Code also exempts from registration (i) the offer of a security through any warrant, option, right to subscribe or conversion privilege that is sold in the manner provided in the prior sentence, and (ii) the sale of a security upon the exercise of such warrant, option, right or privilege. The Reorganized Debtors believe that, pursuant to section 1145(a) of the Bankruptcy Code, without further act or action by any Entity, the offer and sale of the 1145 Securities will be exempt from the registration requirements under (i) section 5 of the Securities Act, and all rules and regulations promulgated thereunder, and

(ii) any state or local law requiring registration for the offer or sale of securities, in each case except for offers and sales to any Person who is deemed to be an “underwriter” as defined in section 1145(b) of the Bankruptcy Code.

Securities issued pursuant to section 1145(a) of the Bankruptcy Code generally may be resold without registration under the Securities Act unless the holder is an “underwriter” with respect to such securities, as that term is defined in section 1145(b) of the Bankruptcy Code. In addition, these securities generally may be resold without registration under state securities laws pursuant to various exemptions provided by the respective laws of the several states. To the extent that Persons who receive securities issued under the Plan are deemed to be “underwriters,” resales by those Persons would not be exempted from registration under the Securities Act or other applicable law by section 1145 of the Bankruptcy Code. Persons deemed to be “underwriters” may, however, be permitted to sell such securities without registration pursuant to the provisions of Rule 144 under the Securities Act as described below.

Section 1145(b) of the Bankruptcy Code defines “underwriter” for purposes of the Securities Act as one who, except with respect to ordinary trading transactions, (i) purchases a claim against, interest in, or claim for an administrative expense in the case concerning, the debtor, if such purchase is with a view to distribution of any security received or to be received in exchange for such a claim or interest, (ii) offers to sell securities offered or sold under the plan of reorganization for the holder of such securities, (iii) offers to buy securities offered or sold under the plan of reorganization from the holder of such securities, if the offer to buy is with a view to distribution of such securities and under an agreement made in connection with the plan of reorganization, with the consummation of the plan of reorganization, or with the offer or sale of securities under the plan of reorganization, or (iv) is an issuer, as used in section 2(a)(11) of the Securities Act, with respect to such securities. The definition of an “issuer” for purposes of whether a person is an underwriter under section 1145(b)(1)(D) of the Bankruptcy Code, includes Persons directly or indirectly controlling, controlled by or under direct or indirect common control with the issuer. “Control,” as defined in Rule 405 of the Securities Act, means the possession, directly or indirectly, of the power to direct or cause the direction of the management and policies of a Person, whether through the ownership of voting securities, by contract, or otherwise. The legislative history of section 1145 of the Bankruptcy Code suggests that a creditor who owns ten percent (10%) or more of a class of voting securities of a reorganized debtor may be presumed to be a “controlling person” and, therefore, an underwriter. However, the staff of the SEC has not endorsed this view.

Whether or not any particular Person would be deemed to be an “underwriter” with respect to the 1145 Securities or any other security to be issued pursuant to the Plan depends upon various facts and circumstances applicable to that Person. Accordingly, the Debtors express no view as to whether any particular Person receiving 1145 Securities or any other securities under the Plan would be considered an “underwriter” under section 1145(b) of the Bankruptcy Code with respect to such securities.

B. Section 4(a)(2) of the Securities Act, Regulation D and Regulation S Thereunder, and Subsequent Transfers

Section 4(a)(2) of the Securities Act provides that the offer and sale of securities by an issuer in transactions not involving a public offering is exempt from the registration requirements under the

Securities Act. Regulation D is a non-exclusive safe harbor from the registration requirements under the Securities Act promulgated by the SEC under section 4(a)(2) of the Securities Act. In reliance upon this exemption, Plan Securities other than the 1145 Securities will be offered and sold pursuant to section 4(a)(2) of the Securities Act or Regulation D thereunder and will be exempt from registration under the Securities Act. Regulation S is a non-exclusive safe harbor from the registration requirements under the Securities Act for securities offered and sold outside the United States. In reliance on this exemption, Plan Securities other than 1145 Securities may be offered and sold outside the United States. Any Plan Securities sold pursuant to section 4(a)(2) of the Securities Act or Regulation D or Regulation S thereunder will be considered “restricted securities” (within the meaning of Rule 144 under the Securities Act), will bear customary legends, and may not be transferred except pursuant to an effective registration statement or under an available exemption from the registration requirements of the Securities Act, such as, under certain circumstances, the resale provisions of Rule 144 under the Securities Act (or, for resales outside of the United States, the resale provisions of Regulation S).

Generally, Rule 144 under the Securities Act permits the public sale of securities if certain conditions are met, including a required holding period, certain current public information regarding the issuer being available, and compliance with applicable volume, manner of sale and notice requirements. If the issuer is not subject to the reporting requirements of section 13 or 15(d) of the Exchange Act, adequate current public information as specified under Rule 144 is available if certain company information is made publicly available, as specified in Rule 144(c)(2). As promptly as reasonably practicable following the Effective Date, Reorganized Parent expects to terminate the registration of all Securities under sections 13 and 15(d) of the Exchange Act and continue as a private company, and therefore there can be no assurance that current public information as specified in Rule 144 will be available.

To the extent certificated or issued by way of direct registration on the records of Reorganized Parent’s transfer agent, each book entry position or certificate representing, or issued in exchange for or upon the transfer, sale or assignment of, any Plan Security that is not an 1145 Security shall, upon issuance, be deemed to contain or be stamped or otherwise imprinted, as applicable, with a restrictive legend in substantially the following form:

“THE SECURITIES REPRESENTED BY THIS CERTIFICATE MAY NOT BE SOLD, OFFERED FOR SALE, OR OTHERWISE TRANSFERRED IN THE ABSENCE OF AN EFFECTIVE REGISTRATION STATEMENT UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “ACT”), AND QUALIFICATION UNDER APPLICABLE STATE SECURITIES LAWS OR AN AVAILABLE EXEMPTION FROM REGISTRATION AND QUALIFICATION THEREUNDER.”

In any case, recipients of securities issued under the Plan are advised to consult with their own legal advisors as to the availability of any such exemption from registration requirements under state law in any given instance and as to any applicable requirements or conditions to such availability.

VIII.

CERTAIN U.S. FEDERAL INCOME TAX CONSEQUENCES OF THE PLAN

The following discussion is a summary of certain material U.S. federal income tax consequences of the implementation of the Plan to the Debtors and to certain holders of Claims entitled to vote on the Plan. The following summary does not address the U.S. federal income tax consequences to holders of Claims who are unimpaired, deemed to accept or reject the Plan, or otherwise entitled to payment in full under the Plan. In addition, this discussion does not address any consideration that is received on account of a person's capacity other than as a holder of such Claims.

The discussion of U.S. federal income tax consequences below is based on the Internal Revenue Code of 1986, as amended (the “*IRC*” or “*Tax Code*”), regulations promulgated by the United States Department of the Treasury under the Tax Code (the “*Treasury Regulations*”), judicial authorities, published positions of the Internal Revenue Service (“*IRS*”), and other applicable authorities, all as in effect on the date of this Disclosure Statement, and all of which are subject to change or differing interpretations (possibly with retroactive effect). The U.S. federal income tax consequences of the contemplated transactions are complex and subject to significant uncertainties. The Debtors have not requested an opinion of counsel or a ruling from the IRS or any other taxing authority with respect to any of the tax aspects of the contemplated transactions, and the discussion below is not binding upon the IRS or any court. Accordingly, there can be no assurance that the IRS would not assert, or that a court would not sustain, a contrary position as to the U.S. federal income tax consequences described herein.

This summary does not address non-U.S., state, local, gift, or estate tax consequences of the Plan, nor does it purport to address all aspects of U.S. federal income taxation that may be relevant to a holder in light of its individual circumstances, including any alternative minimum tax, or to a holder that may be subject to special tax rules (such as persons who are related to any Debtor within the meaning of one of various provisions of the Tax Code; broker-dealers; banks; mutual funds; insurance companies; financial institutions; small business investment companies; regulated investment companies; controlled foreign corporations; passive foreign investment companies; tax-exempt organizations; governmental authorities or agencies; dealers and traders in securities; retirement plans; individual retirement and other tax-deferred accounts; holders that are, or hold Claims through, S corporations, partnerships or other pass-through entities for U.S. federal income tax purposes; persons whose functional currency is not the U.S. dollar; dealers in foreign currency; holders who hold Claims as part of a straddle, hedge, conversion transaction or other integrated investment; holders using a mark-to-market method of accounting; holders of Claims who are themselves in bankruptcy; and holders who are accrual method taxpayers that report income on an “applicable financial statement”). This summary assumes that the various debt and other arrangements to which the Debtors and the Reorganized Debtors, as applicable, are or will be a party will be respected for U.S. federal income tax purposes in accordance with their form. This summary also assumes that the Claims constitute interests in the Debtors “solely as a creditor” for purposes of IRC Section 897 and, except where otherwise indicated, the Claims are held as “capital assets” (generally, property held for investment) within the meaning of IRC Section 1221. In addition, this discussion does not address U.S. federal taxes other than income taxes, except as specifically addressed below.

THE FOLLOWING SUMMARY OF CERTAIN MATERIAL U.S. FEDERAL INCOME TAX CONSEQUENCES IS FOR INFORMATIONAL PURPOSES ONLY AND IS NOT A SUBSTITUTE FOR CAREFUL TAX PLANNING AND ADVICE BASED UPON A HOLDER'S INDIVIDUAL CIRCUMSTANCES. EACH HOLDER OF A CLAIM IS URGED TO CONSULT ITS TAX ADVISOR FOR THE U.S. FEDERAL, STATE, LOCAL, NON-U.S., AND OTHER TAX CONSEQUENCES APPLICABLE UNDER THE PLAN.

A. Certain REIT Considerations

1. Failure to Qualify as a REIT Could Have Material Adverse Consequences

OPI has elected tax treatment as a real estate investment trust (“**REIT**”) on its annual federal income tax returns and other applicable tax filings up to the date hereof. OPI believes it has been organized and operated in a manner that has allowed it to qualify for taxation as a REIT for U.S. federal income tax purposes under the Tax Code and intends to continue to be organized and operate in this manner through the time of consummation of the Plan. However, qualification and taxation as a REIT involves the application of highly technical and complex Tax Code provisions for which there are only limited judicial and administrative interpretations. For example, in order to qualify as a REIT, OPI must derive at least 75% and 95% of its gross income in any year from certain qualifying sources. In addition, as described in further detail below, OPI must make distributions to its shareholders aggregating annually to at least 90% of OPI’s REIT taxable income (determined without regard to the dividends paid deduction and by excluding capital gains) and must satisfy specified asset tests on a quarterly basis. The determination of various factual matters and circumstances not entirely within OPI’s control may affect its ability to qualify as a REIT.

If OPI loses its REIT status, it will face several adverse tax consequences that would substantially reduce its cash available for distribution, including cash available to pay holders, because:

- it would be subject to U.S. federal income tax on its net taxable income at the regular corporate rate for the years it did not qualify for taxation as a REIT (and, for such years, would not be allowed a deduction for dividends paid to shareholders in computing its taxable income);
- unless it is entitled to relief under applicable statutory provisions, neither it nor any “successor” company could elect to be taxed as a REIT for four taxable years following the year during which it was disqualified;
- for five years following re-election of REIT status, upon a taxable disposition of an asset owned at the time of such re-election, it could be subject to corporate level tax with respect to any built-in gain inherent in such asset at the time of re-election; and
- by the end of the first year in which it re-elects REIT status, OPI must not have any earnings and profits accumulated in a non-REIT taxable year. As a result, OPI would have to distribute its earnings and profits accumulated prior to the year in which it re-elects REIT status.

As a result of all these factors, OPI’s failure to qualify as a REIT could materially adversely affect certain holders.

2. In Certain Circumstances, Even if OPI Qualifies as a REIT, It and Certain of Its Subsidiaries May be Subject to Certain U.S. Federal, State, and Other Taxes

In order to qualify as a REIT, OPI will be required each year to distribute to shareholders at least 90% of its net REIT taxable income (as adjusted pursuant to IRC Section 857(b) and determined without regard to the dividends paid deduction and by excluding any net capital gain). In addition, it will be subject to a 4% nondeductible excise tax on the amount, if any, by which certain distributions made by it with respect to the calendar year are less than the sum of (i) 85% of its ordinary income, (ii) 95% of its capital gain net income for that year, and (iii) any undistributed taxable income from prior periods. To the extent that OPI does not distribute all of its net capital gain, or distributes at least 90%, but less than 100%, of its REIT taxable income, as adjusted, it will be required to pay regular U.S. federal corporate income tax on the undistributed amount. A REIT may be able to correct an inadvertent failure to meet the distribution requirement in a given year by paying deficiency dividends to its shareholders in a later year.

OPI intends to make distributions to its shareholders to comply with the 90% distribution requirement and to avoid the nondeductible excise tax. However, as described below, OPI's ability to utilize the existing adjusted tax basis in its assets to generate annual cost recovery deductions and losses on sales of properties that could offset gains on sales of other properties, in each case, to reduce taxable income may be significantly limited as a result of an ownership change arising in connection with the consummation of the Plan. Furthermore, differences in timing between taxable income and cash available for distribution could require it to borrow funds or to issue additional equity to enable it to meet the 90% distribution requirement (and therefore to maintain its REIT status) and to avoid income tax or the nondeductible excise tax. However, there can be no assurance that any of these sources of funds, if available at all, would be available to meet OPI's distribution and tax obligations.

B. Certain U.S. Federal Income Tax Consequences of the Plan to the Debtors

As of the tax year ended December 31, 2024, the Debtors had an estimated federal "net unrealized built-in loss" ("*NUBIL*") in their assets of approximately \$1.7 billion, federal net operating losses ("*NOLs*") of approximately \$107 million, and various state net operating losses that generally correspond to the federal NOLs (collectively, the "*Tax Attributes*"). The amount of such Tax Attributes remains subject to further analysis of the Debtors and potentially audit and adjustment by the IRS.

1. Cancellation of Debt Income

In general, absent an exception, a debtor will realize and recognize cancellation of debt ("*COD*") income upon satisfaction of its outstanding indebtedness for total consideration less than the amount of such indebtedness. The amount of COD income, in general, is the excess of (a) the adjusted issue price of the indebtedness satisfied over (b) the sum of (i) the amount of cash paid, (ii) the "issue price" of any debt issued, and (iii) the fair market value of any other consideration (including equity of a debtor or a party related to such debtor) given, in each case, in satisfaction, or as part of the discharge, of such indebtedness at the time of the exchange. However, COD income should not arise to the extent that payment of the indebtedness would have given rise to a

deduction. The Plan provides that holders of certain Claims may receive Reorganized Common Equity, certain Interests and/or Subscription Rights in exchange for their Claims, so the amount of COD income for the Debtors will depend, in part, on the fair market value of the Reorganized Common Equity, such Interests and Subscription Rights at the time the Plan is consummated. Accordingly, the estimated amount of COD income is uncertain at this time.

Under IRC Section 108, a taxpayer is not required to include COD in gross income (i) if the debtor is under the jurisdiction of a court in a case under chapter 11 of the Bankruptcy Code and the discharge of debt occurs pursuant to that proceeding or (ii) to the extent that the taxpayer is insolvent immediately before the discharge. As a consequence of such an exclusion, a debtor generally must reduce its tax attributes by the amount of COD income that it excluded from gross income. In general, such tax attributes are reduced in the following order: (a) NOLs; (b) general business credit carryovers; (c) minimum tax credit carryovers; (d) capital loss carryovers; (e) tax basis in assets (but not below the amount of liabilities to which the taxpayer remains subject immediately after the cancellation of indebtedness); (f) passive activity loss and credit carryovers; and (g) foreign tax credit carryovers. Alternatively, a taxpayer with excluded COD may elect first to reduce the basis of its depreciable assets (a “**Section 108(b)(5) Election**”), in which case the limitation described in (e) does not apply to the reduction in basis of depreciable property and, following such reduction, any remaining COD income that is excluded from gross income reduces any remaining tax attributes in the order specified in the prior sentence. The reduction of the taxpayer’s tax attributes occurs at the end of the tax year for which the excluded COD income is realized, but only after the taxpayer’s net income or loss for the taxable year of the debt discharge has been determined; in this way, the attribute reduction is generally effective as of the start of the taxable year following the discharge. If the amount of excluded COD income exceeds available tax attributes, the excess generally is not subject to U.S. federal income tax.

In connection with the implementation of the Plan, the Debtors expect to realize a substantial amount of excluded COD income for U.S. federal income tax purposes. The Debtors have not determined whether they will make a Section 108(b)(5) Election.

2. Limitation on NOLs and Other Tax Attributes

Following the Effective Date, any NOLs and certain other Tax Attributes, if any, allocable to tax periods or portions thereof ending on or prior to the Effective Date (collectively, “**Pre-Change Losses**”) or built-in losses may be subject to certain limitations under IRC Sections 382 and 383. Any such limitations apply in addition to, and not in lieu of, the attribute reduction that results from the exclusion of COD income arising in connection with the Plan.

If a corporation undergoes an “ownership change” as defined under IRC Section 382, the amount of its “pre-change losses” that may be utilized to offset future taxable income generally is subject to an annual limitation. In general, an “ownership change” occurs if the percentage of the value of the loss corporation’s shares owned by one or more direct or indirect “5-percent shareholders” increases by more than fifty percentage points over the lowest percentage of value owned by the 5-percent shareholders at any time during the applicable testing period. The testing period generally is the shorter of (a) the three-year period preceding the testing date and (b) the period of time since the most recent ownership change of the corporation. The Debtors anticipate that the distribution of the Reorganized Common Equity pursuant to the Plan will result in an ownership

change of OPI for these purposes, and that OPI's use of its Pre-Change Losses will be subject to limitation unless an exception to the general rules of IRC Sections 382 and 383 applies.

(a) General Annual Limitation

In general, the amount of the annual limitation to which a corporation that undergoes an ownership change would be subject is equal to the product of (a) the fair market value of the shares of the corporation immediately before the ownership change (with certain adjustments) and (b) the "long-term tax-exempt rate" (which is the highest of the adjusted federal long-term rates in effect for any month in the three-calendar-month period ending with the calendar month in which the ownership change occurs). For a corporation in bankruptcy that undergoes an ownership change pursuant to a confirmed bankruptcy plan, unless the special exception described below applies, the annual limitation is generally determined by reference to the fair market value of the shares of the corporation immediately after (rather than before) the ownership change and after giving effect to the discharge of creditors' claims, subject to certain adjustments; in no event, however, can the share value for this purpose exceed the pre-change gross value of the assets of the corporation. Any portion of the annual limitation that is not used in a given year may be carried forward, thereby adding to the annual limitation for the subsequent taxable year.

If a loss corporation has a NUBIL immediately prior to an ownership change, any recognized built-in losses ("**RBILs**") will be subject to the annual limitation in the same manner as other Pre-Change Losses. An RBIL generally is any loss (and certain deductions) with respect to an asset held immediately before the date of the ownership change that is recognized during the five-year period beginning on the date of the ownership change (the "**Recognition Period**") to the extent of the excess of the tax basis of the asset over its fair market value immediately prior to the ownership change. Once the aggregate amount of all RBILs that are recognized during the Recognition Period exceeds the NUBIL, such excess RBILs are not subject to the annual limitation. RBILs may be recognized during the Recognition Period for depreciable and amortizable assets, in addition to assets that are actually disposed. While the Debtors expect to have a significant NUBIL immediately prior to any ownership change attributable to the consummation of the Plan, the extent of the NUBIL will depend in part on the fair market value of the Debtors' assets at that time.

If the corporation does not continue its historic business or use a significant portion of its historic assets in a new business for at least two years after the ownership change, the annual limitation resulting from the ownership change is reduced to zero, thereby precluding any utilization of the corporation's pre-change losses (absent any increases due to recognized built-in gains). Currently, the Debtors anticipate that, absent a Section 108(b)(5) Election, all of their NOLs generated on or prior to the Effective Date may be eliminated as a result of the COD attribute reduction arising in connection with the consummation of the Plan. In addition, IRC Section 382 is expected to materially restrict the subsequent utilization of other Tax Attributes after the Effective Date, including RBILs, absent the utilization of IRC Section 382(l)(5) discussed below.

(b) Special Bankruptcy Exception

Under IRC Section 382(l)(5), an exception to the foregoing annual limitation rules generally applies when, among other requirements, so-called "qualified creditors" and shareholders of a debtor corporation in chapter 11 receive, in respect of their claims or equity interests, respectively,

at least fifty percent of the vote and value of the shares of the reorganized debtor (or a controlling corporation if also in chapter 11) pursuant to a confirmed chapter 11 plan. Instead, the debtor's Pre-Change Losses are reduced by the amount of any interest deductions with respect to debt converted into shares in the bankruptcy reorganization that were allowed in the three full taxable years preceding the taxable year in which the ownership change occurs and in the part of the taxable year prior to and including the date of the ownership change attributable to the bankruptcy reorganization (the "***Plan Ownership Change***"). However, if any Pre-Change Losses and built-in losses of the debtor already are subject to an annual usage limitation under IRC Section 382 at the time of an ownership change subject to IRC Section 382(l)(5), those Pre-Change Losses and built-in losses generally will continue to be subject to such limitation.

A qualified creditor is any creditor who has held the debt of the debtor for at least eighteen months prior to the petition date or who has held "ordinary course indebtedness" (generally, indebtedness incurred by the debtor in the ordinary course of its trade or business) that has been owned at all times by such creditor. A creditor who does not become a direct or indirect 5-percent shareholder of the reorganized debtor generally may be treated by the debtor as having always held any debt owned immediately before the ownership change, unless the creditor's participation in formulating the plan of reorganization makes evident to the debtor that the creditor has not owned the debt for the requisite period.

A debtor may elect not to apply IRC Section 382(l)(5) to an ownership change that otherwise satisfies its requirements. This election must be made on the debtor's federal income tax return for the taxable year in which the ownership change occurs. If IRC Section 382(l)(5) applies to an ownership change (and the debtor does not elect out), any subsequent ownership change of the debtor within the two-year period following the date of the Plan Ownership Change will result in the debtor being unable to use any Pre-Change Losses in any taxable year ending after such subsequent ownership change to offset future taxable income, which could materially increase OPI's taxable income and distribution requirements to maintain its REIT status.

If a Plan Ownership Change does not satisfy the requirements of IRC Section 382(l)(5), or if a debtor elects not to apply IRC Section 382(l)(5), the debtor would be subject to the rules discussed above under "*General Annual Limitation*," in which case the utilization of Pre-Change Losses and RBILs may be materially limited. Provided that such a Plan Ownership Change qualifies under IRC Section 382(l)(5), the Debtors currently intend to apply IRC Section 382(l)(5). The determination as to whether the consummation of the Plan will meet the requirements of IRC Section 382(l)(5) is subject to uncertainty, and such determination will depend on, among other things, the extent to which holders of certain Claims immediately prior to consummation of the Plan may be treated as qualified creditors for purposes of IRC Section 382(l)(5).

C. Certain U.S. Federal Income Tax Consequences of the Plan to Holders of Claims

Except as otherwise discussed herein, the summary below generally assumes that holders of the applicable Claims will, each as a class, vote to accept the Plan. As used herein, the term "U.S. holder" means a beneficial owner of the March 2029 Senior Secured Notes Claims, 2027 Senior Secured Notes Claims, September 2029 Senior Secured Notes Claims, DIP Claims, Priority Guaranteed Unsecured Notes Claims, Unsecured Notes Claims, Trade and Vendor Claims or Other

General Unsecured Claims (collectively, “**Old Debt Claims**”) that is for U.S. federal income tax purposes:

- an individual who is a citizen or resident of the United States;
- a corporation, or other entity taxable as a corporation for U.S. federal income tax purposes, created or organized in or under the laws of the United States, any state thereof or the District of Columbia;
- an estate the income of which is subject to U.S. federal income taxation regardless of its source; or
- a trust, if a court within the United States is able to exercise primary jurisdiction over its administration and one or more United States persons have authority to control all of its substantial decisions, or if the trust has a valid election in effect under applicable Treasury Regulations to be treated as a United States person.

A “non-U.S. holder” is a beneficial owner of an Old Debt Claim that is neither a U.S. holder nor an entity classified as a partnership for U.S. federal income tax purposes.

If a partnership or other entity or arrangement classified as a partnership for U.S. federal income tax purposes holds such an Old Debt Claim, the tax treatment of a partner in such partnership generally will depend upon the status of the partner, the activities of the partnership and certain determinations made at the partner-level. Each U.S. holder that is a partnership or a partner in a partnership holding any of such instruments should consult its tax advisor.

1. U.S. Holders of Old Debt Claims

(a) U.S. Holders of March 2029 Senior Secured Notes Claims (Class 5)

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the March 2029 Senior Secured Notes Claims, each holder thereof will receive (A) Cash from the proceeds of New March 2029 Senior Secured Notes or (B) such other treatment reinstating its Claim or providing the economic equivalent of its Claim, as more fully described in the Plan (the “**March 2029 Exchange**”).

To the extent a U.S. holder of March 2029 Senior Secured Notes Claims receives Cash from the proceeds of New March 2029 Senior Secured Notes, such March 2029 Exchange is generally anticipated to be a taxable exchange for U.S. federal income tax purposes. *See generally* “—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of Gain or Loss,” “—Character of Gain or Loss,” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”

To the extent that a U.S. holder of March 2029 Senior Secured Notes Claims receives amended and restated loans in satisfaction of its Claims, the tax treatment of such March 2029 Exchange would depend on whether such March 2029 Exchange constitutes an “exchange” for U.S. federal

income tax purposes and, if so, whether such exchange constitutes a taxable exchange or a tax-deferred exchange for such holder.

Under applicable Treasury Regulations, the modification of the terms of a debt instrument (including pursuant to an exchange of a new debt instrument for the existing debt instrument) generally is a significant modification if, based on all of the facts and circumstances and taking into account all modifications of the debt instrument, the legal rights or obligations that are altered and the degree to which they are altered is “economically significant.” A modification that changes the timing of payments due under a debt instrument is a significant modification if it results in a material deferral of scheduled payments. However, a deferral of one or more scheduled payments is not a material deferral if it is within a safe-harbor period beginning on the original due date of the first scheduled payment that is deferred and extending for a period equal to the lesser of five (5) years and fifty percent (50%) of the original term of the instrument. A change in the yield of a debt instrument is a significant modification if the yield of the modified instrument (as computed under the applicable Treasury Regulations) varies from the annual yield of the unmodified instrument (determined as of the date of the modification) by more than the greater of (i) twenty-five basis points (0.25%) or (ii) five percent (5%) of the annual yield of the unmodified instrument.

Accordingly, whether the March 2029 Exchange constitutes an “exchange” for U.S. federal income tax purposes depends on the terms of such amended and restated loans, which remains unresolved.

If such a March 2029 Exchange did constitute an “exchange” for U.S. federal income tax purposes, then whether a U.S. holder of March 2029 Senior Secured Notes Claims will recognize any realized gain or loss from such March 2029 Exchange will depend on whether such March 2029 Exchange constitutes a taxable exchange or a tax deferred exchange for such holder, which will depend on whether the Claims surrendered in such exchange and takeback debt received, as applicable, constitutes “securities” for U.S. federal income tax purposes. Although not free from doubt, the March 2029 Senior Secured Notes Claims are likely securities, but the nature of any amended and reinstated debt remains unresolved. *See generally* “—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of Gain or Loss,” “—Character of Gain or Loss,” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”

Holders of March 2029 Senior Secured Notes Claims are urged to consult their own tax advisors regarding the U.S. federal, state, and local and non-U.S. tax consequences of the March 2029 Exchange, including upon the resolution of the treatment of the March 2029 Senior Secured Notes Claims, and the tax considerations arising where a holder provides Cash for new loans and receives Cash with respect to its March 2029 Senior Secured Notes Claims.

(b) U.S. Holders of 2027 Senior Secured Notes Claims (Class 6)

a. Recognition of Gain or Loss

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the 2027 Senior Secured Notes Claims, each holder thereof will receive New 2027 Senior Secured Notes and, solely with respect to the members of the 2027 Ad Hoc Group, a

support fee of \$10 million in the aggregate (the “**Support Premium**”), as more fully described in the Plan (the “**2027 Exchange**”).

Whether a U.S. holder of 2027 Senior Secured Notes Claims will recognize any realized gain or loss from the 2027 Exchange will depend on whether the 2027 Exchange constitutes a taxable exchange or a tax-deferred exchange for such holder, which will, in part, depend on whether the Claims surrendered in such exchange and the New 2027 Senior Secured Notes received constitute “securities” for U.S. federal income tax purposes. It is not clear whether the 2027 Senior Secured Notes Claims and the New 2027 Senior Secured Notes constitute securities. *See generally* “—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of Gain or Loss,” “—Character of Gain or Loss,” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.” If the 2027 Exchange is a taxable exchange, then it is possible that all or a portion of such gain or loss recognized on such an exchange may be characterized as ordinary interest income or ordinary loss, as applicable, because the 2027 Senior Secured Notes are contingent payment debt instruments. *See generally* “—Ownership and Disposition of New 2027 Senior Secured Notes.”

Although not free from doubt, the Support Premium is anticipated to be treated as additional amount realized in the 2027 Exchange, and not as a separate fee, for U.S. federal income tax purposes.

b. Ownership and Disposition of New 2027 Senior Secured Notes

It is expected that, under certain circumstances, the Reorganized Debtors may become obligated to make material prepayments of principal on the New 2027 Senior Secured Notes prior to their stated maturity date. The obligation to make these payments may implicate the provisions of the Treasury Regulations relating to contingent payment debt instruments (the “**CPDI Regulations**”).

If the New 2027 Senior Secured Notes have an issue price that does not equal its principal amount, such debt could be treated as a contingent payment debt instrument (“**CPDI**”) subject to the CPDI Regulations. The issue price of the New 2027 Senior Secured Notes will depend, in part, on whether the New 2027 Senior Secured Notes or the 2027 Senior Secured Notes Claims (or both) are “publicly traded” for U.S. federal income tax purposes. If either is publicly traded, the issue price of the New 2027 Senior Secured Notes generally will be determined by reference to fair market value as of the issue date of the New 2027 Senior Secured Notes. *See generally* “—U.S. Holders of September 2029 Senior Secured Notes Claims—Ownership and Disposition of Secured Exit Notes.” A determination by the Debtors or Reorganized Debtors as to whether the New 2027 Senior Secured Notes are CPDIs and, if so, the “comparable yield” and “projected payment schedule” (each, as defined below), will ultimately be based on the relevant facts and circumstances on the Effective Date. However, the treatment of the New 2027 Senior Secured Notes by Debtors or Reorganized Debtors is not binding on the IRS. Accordingly, holders are urged to consult their tax advisors regarding the application of the CPDI Regulations to the New 2027 Senior Secured Notes. The Debtors anticipate disclosing issue price information with respect to the New 2027 Senior Secured Notes and, if the New 2027 Senior Secured Notes are determined by the Debtors or Reorganized Debtors to be CPDIs, a projected payment schedule (as defined below), following the Effective Date.

If the New 2027 Senior Secured Notes are treated as CPDIs, the Debtors expect that they would be treated as received in exchange for publicly traded property, such that the “noncontingent bond method” under the CPDI Regulations would apply. If the New 2027 Senior Secured Notes are treated as CPDIs and subject to the noncontingent bond method, a U.S. holder must accrue an amount of ordinary interest income on the New 2027 Senior Secured Notes as original issue discount (“**OID**”) for U.S. federal income tax purposes for each accrual period prior to and including the maturity date of the New 2027 Senior Secured Notes, regardless of whether the U.S. holder uses the cash or accrual method of tax accounting. Accordingly, U.S. holders may be required to include interest in taxable income in each year in excess of any interest payments actually received in that year. The amount required to be accrued equals the sum of the daily portions of OID with respect to the New 2027 Senior Secured Notes for each day during the taxable year or portion of a taxable year on which the U.S. holder holds the New 2027 Senior Secured Notes, adjusted if necessary, as described below. In general, the daily portion of OID on the New 2027 Senior Secured Notes would be (1) the product of (i) the adjusted issue price (as defined below) of the New 2027 Senior Secured Notes as of the beginning of the accrual period, and (ii) the comparable yield (as defined below) of the New 2027 Senior Secured Notes, adjusted for the length of the accrual period, divided by (2) the number of days in the accrual period.

The “**adjusted issue price**” of the New 2027 Senior Secured Notes is its issue price (as described above) increased by any interest income previously accrued in accordance with the CPDI Regulations, determined without regard to any adjustments to interest accruals described below, and decreased by the projected amount of any payments (in accordance with the projected payment schedule described below) previously made with respect to the New 2027 Senior Secured Notes. The term “**comparable yield**” means the annual yield that the Debtors would pay, as of the issue date, on a fixed rate nonconvertible debt security with no contingent payments, but with terms and conditions otherwise comparable to those of the New 2027 Senior Secured Notes. The manner in which the Debtors should determine the comparable yield is not entirely clear under the CPDI Regulations.

If the New 2027 Senior Secured Notes is treated as a CPDI, the CPDI Regulations require that the Debtors provide to holders of the New 2027 Senior Secured Notes, solely for U.S. federal income tax purposes, a schedule of the projected amounts of payments (the “**projected payment schedule**”). The projected payment schedule must produce the comparable yield. The projected payment schedule would include each noncontingent payment and an amount potentially for each contingent payment as determined under the CPDI Regulations. The indenture for the New 2027 Senior Secured Notes will require U.S. holders to use the comparable yield and projected payment schedule in determining their interest accruals, and the adjustments thereto described below, in respect of the New 2027 Senior Secured Notes. The CPDI Regulations expressly reserve on the appropriate treatment of debt instruments that provide for payments that are contingent as to timing. Accordingly, the application of these rules as described below is uncertain as to the New 2027 Senior Secured Notes.

If, during any taxable year, a U.S. holder receives actual contingent payments with respect to the New 2027 Senior Secured Notes that in aggregate exceed the total amount of projected contingent payments for that taxable year, then, under the CPDI Regulations, the U.S. holder will have a “**net**

positive adjustment” equal to the amount of such excess. The U.S. holder will treat the net positive adjustment as additional interest income.

If a U.S. holder receives in a taxable year actual contingent payment with respect to the New 2027 Senior Secured Notes that in the aggregate are less than the amount of projected contingent payments for that taxable year, then, under the CPDI Regulations, the U.S. holder will have a “*net negative adjustment*” equal to the amount of such deficit. This adjustment will (a) reduce the U.S. Holder's interest income on the New 2027 Senior Secured Notes for that taxable year, and (b) to the extent of any remaining amount after the application of clause (a), give rise to an ordinary loss to the extent of the U.S. holder's interest income on the New 2027 Senior Secured Notes during prior taxable years, reduced to the extent that such interest income was offset by prior net negative adjustments. Any negative adjustment in excess of the amount described in clauses (a) and (b) will be carried forward, as a negative adjustment, to offset future interest income in respect of the New 2027 Senior Secured Notes or to reduce the amount realized on a sale, exchange, retirement, redemption, or other taxable disposition of the New 2027 Senior Secured Notes.

A U.S. holder will generally recognize gain or loss upon the sale, exchange, retirement, redemption, or other taxable disposition of the New 2027 Senior Secured Notes equal to the difference, if any, between the amount realized on such a taxable disposition (reduced by any negative adjustments carried forward) and the adjusted tax basis in the New 2027 Senior Secured Notes. A U.S. holder's adjusted tax basis in the New 2027 Senior Secured Notes will generally be increased by any interest previously included in gross income with respect to the New 2027 Senior Secured Notes (determined without regard to any adjustment to interest accruals described above) and decreased by the amount of any noncontingent payment and the projected amount of any contingent payment previously made on the New 2027 Senior Secured Notes to the U.S. holder. Gain recognized upon a sale, exchange, retirement, redemption, or other taxable disposition of the New 2027 Senior Secured Notes generally will be treated as ordinary interest income, and any loss generally will be treated as ordinary loss to the extent of interest on the New 2027 Senior Secured Notes previously included in income (reduced by the total amount of any net negative adjustments previously taken into account as ordinary losses) and thereafter as capital loss (which will be long-term if the New 2027 Senior Secured Notes has been held for more than one year). The deductibility of capital losses is subject to limitations.

Special rules will apply if there are no remaining contingent payments to be made on the New 2027 Senior Secured Notes, if the amount of a contingent payment on the New 2027 Senior Secured Notes becomes fixed more than six months prior to the due date of the payment, or if, at any time, all remaining contingencies with respect to payments on the New 2027 Senior Secured Notes have a remote likelihood of occurring or not occurring or are incidental in amount.

The CPDI Regulations are complex, and holders should consult their tax advisors about the potential tax consequences if the New 2027 Senior Secured Notes are determined to be CPDIs.

(c) U.S. Holders of September 2029 Senior Secured Notes Claims (Class 7)

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the September 2029 Senior Secured Notes Claims, each holder thereof will

receive (A) either (i) Secured Exit Notes or (ii) Secured Exit Notes and Reorganized Common Equity and (B) to the extent a September 2029 Senior Secured Notes Claim constitutes an Allowed September 2029 Unsecured Claim, Reorganized Common Equity, in each case (A) and (B), as more fully described in the Plan (the “*September 2029 Exchange*”).

(i) Recognition of Gain or Loss

The following summary discusses certain U.S. federal income tax consequences if the September 2029 Exchange constitutes an “exchange” for U.S. federal income tax purposes. Each U.S. holder of a September 2029 Senior Secured Notes Claim should generally realize gain or loss in an amount equal to the difference, if any, between (i) the sum of the issue price of Secured Exit Notes and the fair market value of the Reorganized Common Equity (if any), and (ii) the U.S. holder’s adjusted tax basis in the Claims. Whether a U.S. holder of September 2029 Senior Secured Notes Claims will recognize any such realized gain or loss will depend in part on whether the receipt of Secured Exit Notes and/or Reorganized Common Equity, as applicable, in exchange for such Claims constitutes a taxable exchange or a tax-deferred (or partially tax-deferred) exchange for such holder, which will, in part, depend on whether the Claims surrendered in the exchange, and the Secured Exit Notes received, as applicable, constitute “securities” for U.S. federal income tax purposes.

The term “security” is not defined in the Tax Code or in the Treasury Regulations issued thereunder and has not been clearly defined by judicial decisions. The determination of whether a particular debt obligation constitutes a “security” depends on an overall evaluation of the nature of the debt, but most authorities have held that the length of the term of a debt instrument is an important factor in determining whether such instrument is a security for U.S. federal income tax purposes. These authorities have indicated that a term of less than five years is evidence that the instrument is not a security, whereas a term of ten years or more is evidence that it is a security. In addition, published guidance issued by the IRS may provide support in some instances for treating a new debt instrument issued in exchange for an existing instrument as having a term for these purposes that begins on the issue date of the existing instrument. The September 2029 Senior Secured Notes were mostly issued in a debt exchange that occurred in June 2024, and the remainder were issued in a debt exchange that occurred in October 2024, while the Secured Exit Notes will have a term of 5 years. Thus, it is not clear whether the September 2029 Senior Secured Notes Claims and Secured Exit Notes constitute securities.

(A) September 2029 Senior Secured Notes Claims Exchanged Solely for Secured Exit Notes

If the September 2029 Senior Secured Notes Claims are exchanged solely for Secured Exit Notes and both the September 2029 Senior Secured Notes and the Secured Exit Notes constitute securities for U.S. federal income tax purposes, such exchange should constitute a tax-deferred transaction for a U.S. holder. In such case, the U.S. holder generally would not recognize any gain or loss and would have a tax basis in the Secured Exit Notes equal to the adjusted tax basis in the September 2029 Senior Secured Notes Claims exchanged therefor, and the U.S. holder’s holding period in the Secured Exit Notes generally would include the holding period the U.S. holder had in its September 2029 Senior Secured Notes Claims.

If either or both the September 2029 Senior Secured Notes or the Secured Exit Notes do not constitute securities for U.S. federal income tax purposes, such exchange should constitute a taxable transaction for a U.S. holder. In such case, the U.S. holder would recognize all realized gain or loss and would have a tax basis in the Secured Exit Notes equal to the issue price of such instruments for U.S. federal income tax purposes, and the holding period in the Secured Exit Notes would commence on the day following the Effective Date.

See generally “—Character of Gain or Loss” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”

**(B) September 2029 Senior Secured Notes Claims
Exchanged for Secured Exit Notes and
Reorganized Common Equity**

It is not clear whether the exchange of a September 2029 Senior Secured Notes Claim and an exchange of an Allowed September 2029 Unsecured Claim constitute a single exchange of September 2029 Senior Secured Notes for Secured Exit Notes and Reorganized Common Equity, or, alternatively, an exchange of a September 2029 Senior Secured Notes Claim for either (i) Secured Exit Notes or (ii) Secured Exit Notes and Reorganized Common Equity and, in addition, an exchange of an Allowed September 2029 Unsecured Claim for Reorganized Common Equity. The following discussion assumes that the exchanges will be treated as a single exchange for U.S. federal income tax purposes.

If the September 2029 Senior Secured Notes Claims are exchanged for Secured Exit Notes and Reorganized Common Equity, and both the September 2029 Senior Secured Notes and the Secured Exit Notes constitute securities for U.S. federal income tax purposes, such exchange should constitute a tax-deferred transaction for a U.S. holder. In such case, the U.S. holder generally would not recognize any gain or loss and would have an aggregate tax basis in the Secured Exit Notes and Reorganized Common Equity received equal to the adjusted tax basis in the September 2029 Senior Secured Notes Claims exchanged therefor. Such aggregate tax basis should generally be allocated among the Secured Exit Notes and Reorganized Common Equity based on their relative fair market values. The U.S. holder’s holding period in the Secured Exit Notes and Reorganized Common Equity received as part of the tax-deferred exchange generally would include the holding period that the U.S. holder had in its September 2029 Senior Secured Notes Claims.

If the September 2029 Senior Secured Notes Claims do, but the Secured Exit Notes do not, constitute securities for U.S. federal income tax purposes, the receipt of the Reorganized Common Equity could be tax-free, while the receipt of the Secured Exit Notes may be treated as “boot” received in an otherwise tax-free exchange. In such case, the U.S. holder would generally not recognize gain or loss, except gain may be recognized to the extent of the lesser of (i) the fair market value of the Secured Exit Notes and (ii) the amount of gain realized on the exchange. Such U.S. holder’s holding period in the Reorganized Common Equity would generally include the holding period the U.S. holder had in its September 2029 Senior Secured Notes Claims, while its holding period in the Secured Exit Notes would commence on the day following the Effective Date.

If the September 2029 Senior Secured Notes Claims do not constitute securities for U.S. federal income tax purposes, the exchange of September 2029 Senior Secured Notes Claims for Secured Exit Notes and Reorganized Common Equity would be a fully taxable exchange in which the U.S. holder would recognize all realized gain or loss. Such U.S. holder should generally have a tax basis in such Secured Exit Notes received equal to the issue price of such instruments for U.S. federal income tax purposes and a tax basis in such Reorganized Common Equity equal to their fair market value at the time of the exchange. A U.S. holder's holding period in such Secured Exit Notes and Reorganized Common Equity would commence on the day following the Effective Date.

See generally “—Character of Gain or Loss” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”

(ii) Ownership and Disposition of Secured Exit Notes

(A) Issue Price

Where U.S. holders receive debt instruments and also receive other property in an exchange (such as an exchange of an old debt instrument for a new debt instrument and shares), the “investment unit” rules may apply to the determination of the issue price for any such debt instrument. U.S. holders of the September 2029 Senior Secured Notes Claims will receive, in satisfaction of their Claims, either solely debt instruments (Secured Exit Notes) or debt instruments (Secured Exit Notes) as well as other property (Reorganized Common Equity) pursuant to the Plan. Accordingly, the investment unit rules may apply to determine the issue price of the Secured Exit Notes. The issue price of such Secured Exit Notes will depend, in part, on the issue price of any investment unit and the respective fair market values of the elements of consideration that compose such investment unit. The issue price of an investment unit is generally determined in the same manner as the issue price of a debt instrument and depends, in part, on whether the September 2029 Senior Secured Notes Claims are “publicly traded.”

For this purpose, instruments will generally be considered to be publicly traded if, at any time during the thirty-one (31)-day period ending fifteen (15) days after the relevant issue date, the applicable instruments are traded on an “established market.” Instruments are generally considered to trade on an established market if: (i) there is a price for an executed purchase or sale of the applicable instruments that is reasonably available within a reasonable period of time after the sale, (ii) there is at least one price quote for the applicable instruments from at least one reasonably identifiable broker, dealer or pricing service, which price quote is substantially the same as the price for which the person receiving the quoted price could purchase or sell the applicable instruments (a “firm quote”), or (iii) there is at least one (1) price quote for the applicable instruments, other than a firm quote, available from at least one (1) such broker, dealer, or pricing service. The Debtors expect, and the remainder of this summary assumes, that any investment units will not qualify as “publicly traded.”

There is significant uncertainty as to the application of the investment unit rules and the determination of the issue price of the Secured Exit Notes where the September 2029 Senior Secured Notes Claims are exchanged for both Secured Exit Notes and Reorganized Common Equity. If the investment unit is not treated as publicly traded, but the September 2029 Senior Secured Notes Claims are treated as publicly traded, then the issue price of the investment unit

may be determined by reference to the fair market value of the September 2029 Senior Secured Notes Claims. If neither the investment unit nor the September 2029 Senior Secured Notes Claims are treated as publicly traded, but the Secured Exit Notes are treated as publicly traded, the issue price of the investment units may then be determined by reference to the fair market value of the Secured Exit Notes. While not entirely clear, if none of the investment unit, September 2029 Senior Secured Notes, and Secured Exit Notes are treated as publicly traded, the issue price of the investment unit may be determined by reference to the principal amount of the Secured Exit Notes. Such issue price determined for the investment unit under the above rules is allocated among the elements of consideration comprising the investment unit (i.e., Secured Exit Notes and Reorganized Common Equity) based on their relative fair market values, with such allocation determining the issue price of the Secured Exit Notes. U.S. holders are strongly encouraged to consult their tax advisors regarding the determination of the issue price of the investment units and the Secured Exit Notes.

If the September 2029 Senior Secured Notes Claims are exchanged solely for Secured Exit Notes in the September 2029 Exchange, and if the Secured Exit Notes are treated as publicly traded, then the issue price of the Secured Exit Notes will be their fair market value as of their issue date. If the 2029 Senior Secured Notes Claims are, but the Secured Exit Notes exchanged therefor are not, treated as publicly traded for U.S. federal income tax purposes, then the issue price of the Secured Exit Notes received in such exchange will be the fair market value of the 2029 Senior Secured Notes Claims, as determined on the issue date of the Secured Exit Notes. If neither the 2029 Senior Secured Notes nor the Secured Exit Notes exchanged therefor are treated as publicly traded, then the issue price of the Secured Exit Notes issued in exchange for the 2029 Senior Secured Notes will be the principal amount of the Secured Exit Notes.

The Debtors anticipate publicly disclosing issue price information with respect to the Secured Exit Notes on IRS Form 8937 following the Effective Date. An issuer's allocation of the issue price of an investment unit is binding on all holders of the investment unit unless a U.S. holder explicitly discloses a different allocation on a timely filed income tax return for the taxable year that includes the acquisition date of the investment unit.

(B) Payments of Stated Interest and OID

Payments of qualified stated interest on Secured Exit Notes generally will be taxable to a U.S. holder as ordinary income at the time such interest is received or accrued, in accordance with such U.S. holder's method of tax accounting for U.S. federal income tax purposes. Qualified stated interest generally means stated interest that is unconditionally payable in cash or in property (other than debt instruments of the issuer) at least annually at a single fixed rate or a single qualified floating rate. The stated interest on the Secured Exit Notes is expected to be treated as qualified stated interest.

The Secured Exit Notes will be treated as issued (or deemed reissued) with OID for U.S. federal income tax purposes if the "stated redemption price at maturity" exceeds their "issue price" by an amount equal to or more than a statutorily defined de minimis amount (generally, 0.0025 multiplied by the product of the stated redemption price at maturity and the number of complete years to maturity). The "stated redemption price at maturity" of the Secured Exit Notes is the total of all payments to be made on the Secured Exit Notes other than qualified stated interest.

If the Secured Exit Notes were treated as having been issued (or deemed reissued) with more than de minimis OID, U.S. holders would be required to include the OID in ordinary income on an annual basis under a constant yield accrual method regardless of such U.S. holder's regular method of accounting for U.S. federal income tax purposes, subject to reduction in the case of any acquisition premium. A U.S. holder must include in income in each taxable year the sum of the daily portions of OID for each day on which it held the Secured Exit Notes during the taxable year. To determine the daily portions of OID, the amount of OID allocable to an accrual period is determined, and a ratable portion of such OID is allocated to each day in the accrual period. An accrual period may be of any length and the length of the accrual periods may vary over the life of the Secured Exit Notes, provided that no accrual period may be longer than one (1) year and each scheduled payment of interest or principal on the Secured Exit Notes must occur on either the first day or last day of an accrual period. The amount of OID allocable to an accrual period will equal (a) the product of (i) the Secured Exit Notes' adjusted issue price at the beginning of the accrual period and (ii) the Secured Exit Notes' yield to maturity (adjusted to reflect the length of the accrual period), less (b) any qualified stated interest allocable to the accrual period.

It is expected that, under certain circumstances, the Reorganized Debtors may become obligated to make prepayments of principal on the Secured Exit Notes prior to their stated maturity date. The obligation to make these payments may implicate the provisions of the CPDI Regulations. The CPDI Regulations provide special rules for CPDIs which, if applicable, could cause the timing, amount and character of a holder's income, gain or loss with respect to the Secured Exit Notes to be different from the consequences discussed herein. *See generally "U.S. Holders of 2027 Senior Secured Notes Claims—Ownership and Disposition of New 2027 Senior Secured Notes Claims."* Although the issue is not free from doubt, the Debtors currently intend to take the position that the possibility of such prepayments will not result in the Secured Exit Notes being treated as CPDIs under the applicable Treasury Regulations, but such determination will ultimately have to be based on the relevant facts and circumstances on the Effective Date. The Debtors' position is binding on a holder subject to U.S. federal income taxation unless the holder discloses on its tax return that the holder is taking a contrary position. This position is not binding on the IRS, which may take a contrary position and treat the Secured Exit Notes as CPDIs. This discussion assumes that the Secured Exit Notes are not treated as CPDIs.

(d) U.S. Holders of DIP Claims (Class 8)

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the DIP Claims (excluding Allowed DIP Fee Claims), the DIP Anchor Capital Commitment Fee, DIP Exit Fee, and DIP Upfront Fee, each holder thereof will receive Cash and/or Reorganized Common Equity (the "***DIP Exchange***").

Whether a U.S. holder of DIP Claims will recognize any realized gain or loss in the DIP Exchange will depend on the mix of consideration received in the DIP Exchange for such Claims and whether the Claims surrendered in the DIP Exchange constitute "securities" for U.S. federal income tax purposes. The DIP Claims are likely not securities, in which case the DIP Exchange will be a taxable exchange. The DIP Exit Fee and DIP Upfront Fee are anticipated to give rise to additional OID on the DIP Claims for U.S. federal income tax purposes. While not free from doubt, the DIP Anchor Capital Commitment Fee may be treated as akin to a put option premium that is accrued and recognized over the life of the instrument for U.S. federal income tax purposes. *See generally*

“—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of Gain or Loss,” “—Character of Gain or Loss” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”

(e) U.S. Holders of Priority Guaranteed Unsecured Notes Claims (Class 9)

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the Priority Guaranteed Unsecured Notes Claims, each holder thereof will receive Reorganized Common Equity, as more fully described in the Plan (the “**Priority Note Exchange**”).

Whether a U.S. holder of Priority Guaranteed Unsecured Notes Claims will recognize any realized gain or loss from the Priority Notes Exchange will depend on whether the Priority Notes Exchange constitutes a taxable exchange or a tax-deferred exchange for such holder, which will depend on whether the Claims surrendered in the exchange constitute “securities” for U.S. federal income tax purposes. Although not free from doubt, the Priority Guaranteed Unsecured Notes may constitute securities, in which case the Priority Note Exchange would qualify as a tax-deferred transaction. *See generally “—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of Gain or Loss,” “—Character of Gain or Loss” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”*

(f) U.S. Holders of Unsecured Notes Claims (Class 10)

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the Unsecured Notes Claims, each holder thereof will receive Reorganized Common Equity, Subscription Rights and Warrants, as more fully described in the Plan (the “**Unsecured Notes Exchange**”).

Whether a U.S. holder of Unsecured Notes Claims will recognize any realized gain or loss from the Unsecured Notes Exchange will depend on whether the Unsecured Notes Exchange constitutes a taxable exchange or a tax-deferred exchange for such holder, which will, in part, depend on whether the Claims surrendered, and the Subscription Rights and Warrants received, in the exchange constitute “securities” for U.S. federal income tax purposes.

Unless otherwise indicated, the discussion herein assumes that the Subscription Rights and Warrants are treated for U.S. federal income tax purposes as options to acquire Reorganized Common Equity, but see “—U.S. Holders of Unsecured Notes Claims—Subscription Rights” and “—U.S. Holders of Unsecured Notes Claims—Ownership and Disposition of Warrants” below for a more complete discussion. A right to shares generally can also be treated as a “security.” Accordingly, although not free from doubt, the Subscription Rights and Warrants should constitute “securities” of Reorganized Parent and, unless otherwise indicated, the discussion herein assumes that the Subscription Rights and Warrants are treated as “securities” for U.S. federal income tax purposes.

Of the Unsecured Notes, the 3.450% Senior Notes due 2031 and 6.375% Senior Notes due 2050 should constitute securities, in which case the Unsecured Notes Exchange with respect to such Claims should qualify as a tax-deferred transaction. Although not free from doubt, the 2.650% Senior Notes due 2026 and 2.400% Senior Notes due 2027 may constitute securities, in which case

the Unsecured Notes Exchange with respect to such Claims may also qualify as a tax-deferred transaction. *See generally, including with respect to principles generally applicable to the determination of the tax basis and holding period of the Reorganized Common Equity, Subscription Rights and Warrants received in the Unsecured Notes Exchange, “—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of Gain or Loss,” “—Character of Gain or Loss,” “—Distributions with Respect to Accrued But Unpaid Interest or OID.”*

a. Ownership and Disposition of Warrants

The characterization of a Warrant and its subsequent exercise or other disposition for U.S. federal income tax purposes is uncertain. Although not free from doubt, the Warrants are generally anticipated to be treated as options to acquire Reorganized Common Equity upon exercise by a holder. The discussion herein assumes that such treatment is respected, that the Warrants are not subject to IRC Section 1256, are held as “capital assets” within the meaning of IRC Section 1221, and qualify as “securities” for U.S. federal income tax purposes.

A U.S. holder is generally not anticipated to recognize income, gain or loss upon exercise of a Warrant for its exercise price, if the Reorganized Debtors elect to settle the Warrant in Reorganized Common Equity upon exercise. A U.S. holder’s tax basis in a share of Reorganized Common Equity received upon such exercise of the Warrant will be equal to the sum of (1) the U.S. holder’s tax basis in the Warrant exchanged therefor and (2) the exercise price of such Warrant. A U.S. holder’s holding period in the shares of Reorganized Common Equity received upon exercise will commence on the day after such U.S. holder exercises the Warrant. Although there is no direct legal authority as to the U.S. federal income tax treatment of an exercise of a Warrant on a cashless basis, the Debtors anticipate that such exercise will not be taxable, either because the exercise is not a gain realization event or because it qualifies as a tax-deferred transaction. In the former case, the holding period of the shares of Reorganized Common Equity received upon exercise of the Warrant should commence on the day after the Warrant is exercised. In the latter case, the holding period of the shares of Reorganized Common Equity received upon exercise of Warrant would include the holding period of the exercised Warrant. However, the Reorganized Debtors position is not binding on the IRS, and the IRS may treat a cashless exercise of a Warrant for Reorganized Common Equity as a taxable exchange. U.S. holders are urged to consult their tax advisors as to the consequences of an exercise of a Warrant, including on a cashless basis, and with respect to the holding period and tax basis in the Reorganized Common Equity received.

Upon the sale or other disposition of a Warrant (other than by exercise), a U.S. holder will generally recognize capital gain or loss. *See generally “—Ownership and Disposition of Reorganized Common Equity” and “—Character of Gain or Loss.”*

If a Warrant expires without being exercised, a U.S. holder should recognize a capital loss in an amount equal to such holder’s tax basis in the Warrant. Such loss generally will be long-term capital loss if the U.S. holder’s holding period in such Warrant is more than one year at the time of expiration. The deductibility of capital losses is subject to limitations. *See generally “—Character of Gain or Loss.”*

If the exercise price of the Warrants is adjusted as a result of certain events affecting the Reorganized Common Equity (or in certain circumstances, there is a failure to make adjustments),

such adjustments may result in the deemed payment of a taxable dividend to a U.S. holder. U.S. holders should consult their tax advisors regarding the proper treatment of any adjustments to the exercise price of the Warrants.

b. Subscription Rights

The characterization of a Subscription Right and its subsequent exercise for U.S. federal income tax purposes—as the exercise of an option to acquire Reorganized Common Equity or, alternatively, as an instrument disregarded for tax purposes or as part of an integrated transaction pursuant to which a portion of the underlying Reorganized Common Equity is acquired directly in partial satisfaction of a holder’s Claim and the cash purchase price—is uncertain. As indicated, the discussion herein generally assumes that a Subscription Right is respected as an option to acquire Reorganized Common Equity.

Regardless of the characterization of a Subscription Right, a U.S. holder of an Unsecured Notes Claim generally would not recognize any gain or loss upon the exercise of such Subscription Right. A U.S. holder’s aggregate tax basis in the Reorganized Common Equity received upon exercise of a Subscription Right should be equal to the sum of (i) the amount paid for the Reorganized Common Equity and (ii) the holder’s tax basis, if any, in the Subscription Right. A U.S. holder’s holding period in the Reorganized Common Equity received upon exercise of a Subscription Right (that is respected as an option) generally should commence the day following the Effective Date.

It is uncertain whether a U.S. holder that receives but does not exercise a Subscription Right should be treated as receiving anything of additional value in respect of its Claim. If the U.S. holder is treated as having received a Subscription Right of value (despite its subsequent lapse), such that it obtains a tax basis in the Subscription Right, the U.S. holder generally would recognize a loss upon lapse of the Subscription Right to the extent of the U.S. holder’s tax basis in the Subscription Right. In general, such loss would be a capital loss, long-term or short-term, depending on whether the requisite holding period was satisfied (which, in the case of an exchange for a Claim that qualifies for reorganization treatment, even if the right goes unexercised, should include the holding period of the Claim exchanged therefor).

(g) U.S. Holders of Trade and Vendor Claims (Class 11)

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the Trade and Vendor Claims, each holder will receive payment in full in Cash, as more fully described in the Plan.

A U.S. holder of a Trade and Vendor Claim should generally be treated as receiving its distribution of cash (if any) under the Plan in a taxable exchange under IRC Section 1001. Other than with respect to any amounts received that are attributable to accrued but untaxed interest, each U.S. holder of a Trade and Vendor Claim should recognize gain or loss equal to the difference between the (a) amount of cash actually or constructively received in exchange for its Trade and Vendor Claim, and (b) such U.S. holder’s adjusted tax basis, if any, in such Trade and Vendor Claim. A U.S. holder’s ability to deduct any loss recognized on the exchange of its Trade and Vendor Claim will depend on such U.S. holder’s own circumstances and may be restricted under the Tax Code. *See generally* “—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of

Gain or Loss,” “—Character of Gain or Loss” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”

(h) U.S. Holders of Other General Unsecured Claims (Class 12)

Pursuant to the Plan, in exchange for full and final satisfaction, compromise, settlement, release and discharge of the Other General Unsecured Claims, each holder thereof will receive payment in full in Cash, as more fully described in the Plan. A U.S. holder of an Other General Unsecured Claim should generally be treated as receiving its distribution of cash (if any) under the Plan in a taxable exchange under IRC Section 1001. *See generally “—U.S. Holders of Trade and Vendor Claims,” “—U.S. Holders of September 2029 Senior Secured Notes Claims—Recognition of Gain or Loss,” “—Character of Gain or Loss” and “—Distributions with Respect to Accrued But Unpaid Interest or OID.”*

(i) Ownership and Disposition of Reorganized Common Equity

The following is a summary of certain material U.S. federal income tax consequences of the ownership and disposition of the Reorganized Common Equity applicable to U.S. holders. For any taxable year for which OPI qualifies for taxation as a REIT, amounts distributed to U.S. holders will be taxed as follows.

(i) Distributions Generally

Distributions to U.S. holders, other than capital gain dividends discussed below, will constitute dividends to those holders up to the amount of OPI’s current and accumulated earnings and profits and are taxable to the shareholders as ordinary income. These distributions are not eligible for the dividends-received deduction for corporations. To the extent that OPI makes distributions in excess of its current and accumulated earnings and profits, the distributions will first be treated as a tax-free return of capital, reducing the tax basis in the U.S. holder’s shares, and distributions in excess of the U.S. holder’s tax basis in its shares are taxable as capital gain realized from the sale of the shares.

In general, dividends paid by REITs are not eligible for the reduced tax rates on “qualified dividend income” and, as a result, OPI’s ordinary REIT dividends will continue to be taxed at the higher ordinary income tax rate. However, dividends received by a noncorporate shareholder could be treated as “qualified dividend income” to the extent OPI has dividend income from taxable corporations (such as a taxable REIT subsidiary) and to the extent OPI’s dividends are attributable to income that is subject to tax at the OPI level (for example, if OPI distributed less than 100% of its taxable income). In general, to qualify for the reduced tax rate on qualified dividend income, a shareholder must hold OPI shares for more than 60 days during the 121-day period beginning on the date that is 60 days before the date on which the Reorganized Common Equity becomes ex-dividend. Pursuant to IRC Section 857(g), the aggregate amount of dividends designated by OPI as qualified dividend income or capital gain dividends (discussed below) with respect to any taxable year is limited to the amount of dividends paid by OPI with respect to such year. For these purposes, dividends paid after the close of the taxable year pursuant to IRC Section 858 shall be treated as paid with respect to such year.

OPI will generally be treated as having sufficient earnings and profits to treat as a dividend any distribution it makes up to the amount required to be distributed in order to avoid imposition of the 4% excise tax under IRC Section 4981. As a result, OPI's shareholders may be required to treat certain distributions that would otherwise result in a tax-free return of capital as taxable dividends. Moreover, any deficiency dividend will be treated as a dividend—an ordinary dividend or a capital gain dividend, as the case may be—regardless of OPI's earnings and profits.

Noncorporate shareholders are generally eligible to deduct up to 20% of the amount of ordinary real estate investment trust dividends that are not designated as capital gain dividends or qualified dividend income, subject to certain limitations.

(ii) Capital Gain Dividend

Dividends to U.S. holders that OPI properly designates as capital gain dividends will be treated as long-term capital gain, to the extent they do not exceed OPI's actual net capital gain and to the extent they do not exceed the limitation under IRC Section 857(g) discussed above, for the taxable year without regard to the period for which the shareholder has held its shares. Capital gain dividends are not eligible for the dividends-received deduction for corporations, and corporate shareholders may be required to treat up to 20% of certain capital gain dividends as ordinary income.

Noncorporate taxpayers are generally taxable at a current maximum tax rate of 20% for long-term capital gain, but such capital gains also may be subject to the 3.8% Medicare tax on certain U.S. holders. A portion of any capital gain dividends received by noncorporate taxpayers might be subject to tax at a 25% rate to the extent attributable to gains realized on the sale of real property that correspond to OPI's "unrecaptured IRC Section 1250 gain."

If OPI elects to retain capital gains rather than distribute them, a U.S. holder will be deemed to receive a capital gain dividend equal to the amount of its proportionate share of the retained capital gains. In this case, a U.S. holder will receive certain tax credits and basis adjustments reflecting the deemed distribution and deemed payment of taxes by the U.S. holder.

(iii) Sale or Other Taxable Disposition

A U.S. holder of Reorganized Common Equity will recognize gain or loss upon the sale or other taxable disposition of Reorganized Common Equity equal to the difference between the amount realized upon the disposition and the U.S. holder's adjusted tax basis in the Reorganized Common Equity. Subject to the recapture rules under IRC Section 108(e)(7), any such gain or loss generally will be capital gain or loss, and will be long-term capital gain or loss if the U.S. holder has held the Reorganized Common Equity for more than one year as of the date of disposition. U.S. holders should consult their tax advisors regarding the applicable tax rates and netting rules for capital gains and losses. There are limitations on the deduction of capital losses by both corporate and non-corporate taxpayers.

(j) Character of Gain or Loss

Where gain or loss is recognized by a U.S. holder in an exchange of Claims pursuant to the Plan, the character of such gain or loss as long-term or short-term capital gain or loss or as ordinary

income or loss will be determined by a number of factors, including the tax status of such U.S. holder, whether the Claims constitute capital assets in the hands of such U.S. holder and how long they have been held, whether the Claims were acquired at a market discount, and whether and to what extent the holder previously claimed a worthlessness deduction with respect to the Claims. In general, any gain or loss should be long-term capital gain or loss if the U.S. holder held the Claims, as applicable, as capital assets and such U.S. holder's holding period in the Claims is more than one (1) year at the time of the relevant exchange. A reduced tax rate on long-term capital gain may apply to non-corporate U.S. holders. The deductibility of capital losses is subject to limitations.

A U.S. holder that purchased its Claims from a prior holder at a "market discount" may be subject to the market discount rules of the Tax Code. In general, a debt instrument is considered to have been acquired with market discount if the holder's adjusted tax basis in the debt instrument is less than (i) its "stated redemption price at maturity" (which generally would be equal to the stated principal amount if all stated interest was required to be paid in cash or property at least annually) or (ii) in the case of a debt instrument issued with OID, its adjusted issue price, in each case, by more than a de minimis amount. Under these rules, any gain recognized on the exchange of Claims (which, as discussed below, does not include amounts received in respect of accrued but unpaid interest or OID, if any) generally will be treated as ordinary income to the extent of the market discount accrued (on a straight line basis or, at the election of the U.S. holder, on a constant yield basis) during the U.S. holder's period of ownership, unless such U.S. holder elected to include the market discount in income as it accrued. If a U.S. holder of Claims did not elect to include market discount in income as it accrued and, thus, under the market discount rules, was required to defer all or a portion of any deductions for interest on debt incurred or maintained to purchase or carry its Claims, such deferred amounts should become deductible at the time of the exchange. To the extent that Claims acquired with a market discount are exchanged in a tax-deferred transaction for other property, any market discount that accrued on such Claims but was not recognized by the U.S. holder generally is carried over to the property received therefor, and any gain recognized on the subsequent sale or other disposition of the property generally is treated as ordinary income to the extent of the accrued, but not recognized, market discount with respect to such Claims. U.S. holders who acquired their Claims other than at original issuance should consult their tax advisors regarding the possible application of the market discount rules.

(k) Distributions with Respect to Accrued But Unpaid Interest or OID

In general, to the extent that any consideration received pursuant to the Plan by a U.S. holder of Claims is received in satisfaction of interest accrued or OID accrued, in each case during such U.S. holder's holding period, such amount will be taxable to the U.S. holder as ordinary interest income (if not previously included in the U.S. holder's gross income under such U.S. holder's normal method of accounting). Conversely, a U.S. holder may be entitled to recognize a loss to the extent any accrued interest or amortized OID was previously included in its gross income and is not paid in full. It is unclear whether a U.S. holder would be required to recognize a capital loss, rather than an ordinary loss, with respect to previously included OID that is not paid in full. If the fair value of the consideration is not sufficient to fully satisfy all principal, interest or OID on the Claims, the extent to which such consideration will be attributable to accrued interest and OID is unclear. The Debtors intend to take the position, and the Plan provides, that the consideration

distributed pursuant to the Plan will first be allocable to the principal amount of a Claim and then, to the extent necessary, to any accrued interest or OID thereon. In addition, tax basis in the consideration received by a U.S. holder pursuant to the Plan in satisfaction of interest accrued or OID accrued generally will be equal to the fair market value of such consideration, and such U.S. holder's holding period in such consideration should commence on the day following the Effective Date. Holders of Claims should consult their tax advisors regarding the proper allocation of the consideration received by them under the Plan, as well as the character of any loss claimed with respect to accrued but unpaid interest (including OID) previously included in income for U.S. federal income tax purposes.

(l) Ownership and Disposition of Warrants

The characterization of a Warrant and its subsequent exercise or other disposition for U.S. federal income tax purposes is uncertain. Although not free from doubt, the Warrants are generally anticipated to be treated as options to acquire Reorganized Common Equity upon exercise by a holder. The discussion herein assumes that such treatment is respected, that the Warrants are not subject to IRC Section 1256, are held as "capital assets" within the meaning of IRC Section 1221, and qualify as "securities" for U.S. federal income tax purposes.

A U.S. holder is generally not anticipated to recognize income, gain or loss upon exercise of a Warrant for its exercise price, if the Reorganized Debtors' elect to settle the Warrant in Reorganized Common Equity upon exercise. A U.S. holder's tax basis in a share of Reorganized Common Equity received upon such exercise of the Warrant will be equal to the sum of (1) the U.S. holder's tax basis in the Warrant exchanged therefor and (2) the exercise price of such Warrant. A U.S. holder's holding period in the shares of Reorganized Common Equity received upon exercise will commence on the day after such U.S. holder exercises the Warrant. Although there is no direct legal authority as to the U.S. federal income tax treatment of an exercise of a Warrant on a cashless basis, the Debtors anticipate that such exercise will not be taxable, either because the exercise is not a gain realization event or because it qualifies as a tax-deferred transaction. In the former case, the holding period of the shares of Reorganized Common Equity received upon exercise of the Warrant should commence on the day after the Warrant is exercised. In the latter case, the holding period of the shares of Reorganized Common Equity received upon exercise of Warrant would include the holding period of the exercised Warrant. However, the Reorganized Debtors position is not binding on the IRS, and the IRS may treat a cashless exercise of a Warrant for Reorganized Common Equity as a taxable exchange. U.S. holders are urged to consult their tax advisors as to the consequences of an exercise of a Warrant, including on a cashless basis, and with respect to the holding period and tax basis in the Reorganized Common Equity received.

Upon the sale or other disposition of a Warrant (other than by exercise), a U.S. holder will generally recognize capital gain or loss. *See generally* "*—Ownership and Disposition of Reorganized Common Equity*" and "*—Character of Gain or Loss.*"

If a Warrant expires without being exercised, a U.S. holder should recognize a capital loss in an amount equal to such holder's tax basis in the Warrant. Such loss generally will be long-term capital loss if the U.S. holder's holding period in such Warrant is more than one year at the time

of expiration. The deductibility of capital losses is subject to limitations. *See generally* “—*Character of Gain or Loss.*”

If the exercise price of the Warrants is adjusted as a result of certain events affecting the Reorganized Common Equity (or in certain circumstances, there is a failure to make adjustments), such adjustments may result in the deemed payment of a taxable dividend to a U.S. holder. U.S. holders should consult their tax advisors regarding the proper treatment of any adjustments to the exercise price of the Warrants.

2. Non-U.S. Holders of Old Debt Claims

The following discussion includes only certain U.S. federal income tax consequences of the Plan to non-U.S. holders. The discussion does not include any non-U.S. tax considerations. The rules governing the U.S. federal income tax consequences to non-U.S. holders are complex. Non-U.S. holders are urged to consult their tax advisors regarding the U.S. federal, state, and local and non-U.S. tax consequences of the consummation of the Plan to such non-U.S. holders, including in each case upon the resolution of or any change in the treatment of their claims, and the ownership and disposition of any consideration received pursuant to or in connection with the Plan.

(a) Recognition of Gain or Loss

Whether a non-U.S. holder recognizes gain or loss on the exchange of Claims pursuant to the Plan or upon a subsequent disposition of the consideration received under the Plan, as well as the amount of such gain or loss, is determined in the same manner as set forth above in connection with U.S. holders of the applicable Claims. See “—*U.S. Holders of Old Debt Claims*” above. Any gain recognized (which, as discussed above, does not include amounts received in respect of accrued but unpaid interest or OID, if any) by a non-U.S. holder on the exchange of its Claim generally will not be subject to U.S. federal income taxation unless (i) the non-U.S. holder is an individual who was present in the United States for one hundred and eighty-three (183) days or more during the taxable year in which the gain is realized and certain other conditions are met, or (ii) such gain is effectively connected with the conduct by such non-U.S. holder of a trade or business in the United States (and, if required by an income tax treaty, such gain is attributable to a permanent establishment maintained by such non-U.S. holder in the United States).

If the exception in clause (i) above applies, the non-U.S. holder generally will be subject to U.S. federal income tax at a rate of 30% (or such lower rate under an applicable income tax treaty) on the amount by which such non-U.S. holder’s capital gains allocable to U.S. sources exceed capital losses allocable to U.S. sources during the taxable year. If the exception in clause (ii) above applies, the non-U.S. holder generally will be subject to U.S. federal income tax in the same manner as a U.S. holder with respect to such gain. In addition, if such a non-U.S. holder is a corporation for U.S. federal income tax purposes, it may be subject to a branch profits tax equal to 30% (or such lower rate provided by an applicable income tax treaty) of its effectively connected earnings and profits for the taxable year, subject to certain adjustments.

(b) Ownership and Disposition of Exit Debt

Generally, payments to a non-U.S. holder that are attributable to interest on applicable Secured Exit Notes and New 2027 Senior Secured Notes (together, “*Exit Debt*”) (including, for purposes

of this discussion of non-U.S. holders, any OID) that is not effectively connected with the non-U.S. holder's conduct of a trade or business within the United States for U.S. federal income tax purposes generally will not be subject to U.S. federal income or withholding tax, provided that:

- the non-U.S. holder does not actually or constructively own 10% or more of the total combined voting power of all classes of stock of OPI entitled to vote;
- the non-U.S. holder is not a "controlled foreign corporation" that is a "related person" (each, within the meaning of the Tax Code) with respect to OPI; and
- either (1) the non-U.S. holder certifies in a statement provided to the applicable withholding agent under penalties of perjury that it is not a United States person and provides its name and address; (2) a securities clearing organization, bank or other financial institution that holds customers' securities in the ordinary course of its trade or business and holds the applicable Exit Debt on behalf of the non-U.S. holder certifies to the applicable withholding agent under penalties of perjury that it, or the financial institution between it and the non-U.S. holder, has received from the non-U.S. holder a statement under penalties of perjury that such holder is not a United States person and provides a copy of such statement to the applicable withholding agent; or (3) the non-U.S. holder holds the Exit Debt directly through a "qualified intermediary" (within the meaning of applicable Treasury Regulations) and certain conditions are satisfied.

A non-U.S. holder that does not qualify for the above exemption with respect to interest that is not effectively connected income generally will be subject to withholding of U.S. federal income tax on such interest at a 30% rate, unless such non-U.S. holder is entitled to a reduction in or exemption from withholding on such interest as a result of an applicable income tax treaty. To claim such entitlement, the non-U.S. holder generally must provide the applicable withholding agent with a properly executed IRS Form W-8BEN or W-8BEN-E (or other applicable documentation) claiming a reduction in or exemption from withholding tax on such payments of interest under the benefit of an income tax treaty between the United States and the country in which the non-U.S. holder resides or is established. For purposes of providing a properly executed IRS Form W-8BEN or W-8BEN-E, special procedures are provided under applicable Treasury Regulations for payments through qualified foreign intermediaries or certain financial institutions that hold customers' securities in the ordinary course of their trade or business.

If interest paid to a non-U.S. holder is effectively connected with the conduct by such non-U.S. holder of a trade or business within the United States for U.S. federal income tax purposes (and if required by an applicable income tax treaty, such interest is attributable to a permanent establishment or fixed base maintained by such non-U.S. holder in the United States), the non-U.S. holder generally will not be subject to U.S. federal withholding tax but will be subject to U.S. federal income tax with respect to such interest in the same manner as a U.S. holder under rules similar to those discussed above with respect to gain that is effectively connected with the conduct of a trade or business in the United States. To claim the exemption, the non-U.S. holder must furnish to the applicable withholding agent a valid IRS Form W-8ECI, certifying that interest paid on the applicable Exit Debt is not subject to withholding tax because it is effectively connected with the conduct by the non-U.S. holder of a trade or business within the United States.

(c) Ownership and Disposition of Reorganized Common Equity

(i) Distributions Generally

Any distributions made with respect to Reorganized Common Equity will constitute dividends for U.S. federal income tax purposes to the extent such distributions are paid out of OPI's current or accumulated earnings and profits as determined for U.S. federal income tax purposes. Except as described below, dividends paid with respect to Reorganized Common Equity held by a non-U.S. holder that are not effectively connected with such non-U.S. holder's conduct of a trade or business in the United States (and if an income tax treaty applies, are not attributable to a permanent establishment maintained by such non-U.S. holder in the United States) will be subject to U.S. federal withholding tax at a rate of 30% (or at a reduced rate or exemption from tax under an applicable income tax treaty). A non-U.S. holder generally will be required to satisfy certain IRS certification requirements in order to claim a reduction of or exemption from withholding under a tax treaty by filing IRS Form W-8BEN or W-8BEN-E, as applicable (or a successor form), or other applicable IRS Form W-8, upon which the non-U.S. holder certifies, under penalties of perjury, its status as a non-U.S. person and its entitlement to the lower treaty rate or exemption from tax with respect to such payments. Dividends paid with respect to Reorganized Common Equity held by a non-U.S. holder that are effectively connected with a non-U.S. holder's conduct of a trade or business in the United States (and if required by an applicable income tax treaty, such dividend income is attributable to a permanent establishment maintained by such non-U.S. holder in the United States) generally will not be subject to withholding tax, provided the non-U.S. holder provides a properly executed IRS Form W-8ECI (or a successor form). However, such dividends generally will be subject to U.S. federal income tax in the same manner as a U.S. holder, and a non-U.S. holder that is a corporation for U.S. federal income tax purposes may also be subject to a branch profits tax equal to 30% (or such lower rate provided by an applicable income tax treaty) of its effectively connected earnings and profits for the taxable year, subject to certain adjustments.

Unless OPI's shares constitute "United States real property interests" for U.S. federal income tax purposes ("**USRPIs**"), distributions by OPI which are not paid out of its current or accumulated earnings and profits will not be subject to U.S. income or withholding tax. If it cannot be determined at the time a distribution is made whether or not such distribution will be in excess of OPI's current and accumulated earnings and profits, the distribution will be subject to withholding at the rate applicable to dividends. However, the non-U.S. holder may seek a refund of such amounts from the IRS if it is subsequently determined that such distribution was, in fact, in excess of OPI's current and accumulated earnings and profits. If OPI's Reorganized Common Equity constitutes a USRPI, a distribution in excess of current and accumulated earnings and profits may be subject to a 15% withholding tax (subject to certain exceptions) and may be subject to additional taxation under FIRPTA. However, the 15% withholding tax will not apply to distributions already subject to the 30% dividend withholding.

A non-U.S. holder generally should expect OPI to withhold U.S. federal income tax at the rate of 30% on the gross amount of any distributions of ordinary income made to a non-U.S. holder unless (1) a lower treaty rate applies and proper certification is provided or (2) the non-U.S. holder provides an IRS Form W-8ECI to OPI claiming that the distribution is effectively connected with the non-U.S. holder's conduct of a U.S. trade or business (or, if an income tax treaty applies, is attributable to a U.S. permanent establishment of the non-U.S. holder). However, the non-U.S.

holder may seek a refund of such amounts from the IRS if it is subsequently determined that such distribution was, in fact, in excess of OPI's current and accumulated earnings and profits.

(ii) Capital Gain Dividends

Under Foreign Investment in Real Property Tax Act ("**FIRPTA**"), provided OPI continues to be subject to taxation as a REIT for U.S. federal income tax purposes, a distribution made by OPI to a non-U.S. holder, to the extent attributable to gains ("**USRPI Capital Gains**") from dispositions of USRPIs, will be considered effectively connected with a U.S. trade or business of the non-U.S. holder and therefore will be subject to U.S. income tax at the rates applicable to U.S. holders, without regard to whether such distribution is designated as a capital gain dividend. The properties owned by the Debtors generally are USRPIs. Distributions subject to FIRPTA may also be subject to a 30% branch profits tax in the hands of a corporate non-U.S. holder that is not entitled to treaty exemption.

Distributions attributable to OPI's capital gains which are not USRPI Capital Gains generally will not be subject to income taxation, unless (1) investment in the shares is effectively connected with the non-U.S. holder's U.S. trade or business (or, if an income tax treaty applies, is attributable to a U.S. permanent establishment of the non-U.S. holder), in which case the non-U.S. holder will generally be subject to the same treatment as U.S. holders with respect to such gain (except that a corporate non-U.S. holder may also be subject to the 30% branch profits tax) or (2) the non-U.S. holder is a non-resident alien individual who is present in the United States for one hundred and eighty-three (183) days or more during the taxable year and certain other conditions are present, in which case such non-U.S. holder will be subject to a 30% tax on the individual's capital gains.

OPI generally will be required to withhold and remit to the IRS 21% (or 20% to the extent provided in Treasury Regulations) of any distributions to a non-U.S. holder that are designated as capital gain dividends, or, if greater, 21% of a distribution that could have been designated as a capital gain dividend. Distributions can be designated as capital gains to the extent of OPI's net capital gain for the taxable year of the distribution. The amount withheld is creditable against the non-U.S. holder's U.S. federal income tax liability. This withholding will not apply to any amounts paid to a holder of not more than 10% of OPI's common shares while such shares are regularly traded on an established securities market. Instead, those amounts will be treated as described above under "*— Distributions Generally.*" It is unclear at this time whether the Reorganized Common Equity will be regularly traded on an established market.

(iii) Dispositions

Under FIRPTA, gain on the disposition of certain investments in U.S. real property, including interests in corporations (including REITs) that are United States real property holding corporations (generally, corporations and entities classified as corporations for U.S. federal income tax purposes that hold USRPIs (in each case other than an interest solely as a creditor) whose fair market value equals or exceeds 50% of the fair market value of certain specified assets), is generally subject to U.S. federal income tax in the hands of non-U.S. holders and treated as effectively connected income that is subject to U.S. federal net income tax even if a non-U.S. holder is not otherwise engaged in a U.S. trade or business.

If the Reorganized Common Equity constitutes a USRPI, the gain on the sale of Reorganized Common Equity will be subject to taxation under FIRPTA, and a non-U.S. holder will be subject to U.S. income tax on any gain and withholding on proceeds, subject to the availability of an applicable exception (discussed below). Under the domestically controlled REIT exception, if non-U.S. holders own less than 50% (by value) of the shares of a REIT at all times during a specific period, the interests in such REIT will not be treated as USRPIs and, as a result, a non-U.S. holder would not be subject to taxation under FIRPTA on any gain recognized or FIRPTA withholding with respect to any proceeds received upon a disposition of its shares in any such REIT. No assurance can be given that OPI currently is or will be a domestically controlled REIT at emergence or thereafter. Alternatively, such gain may not be subject to such taxation under FIRPTA if the Reorganized Common Equity is “regularly traded” on an “established securities market,” each as defined by applicable Treasury Regulations, and such non-U.S. holder owned, actually and constructively, 10% or less of the Reorganized Common Equity throughout the shorter of the five-year period ending on the date of the sale or other taxable disposition or the non-U.S. holder’s holding period. Non-U.S. holders are urged to consult their tax advisors regarding the U.S. federal, state, local and foreign income and other tax consequences of owning Reorganized Common Equity, including the complex tax rules that govern the disposition of a USRPI.

(d) Ownership and Disposition of Warrants

A non-U.S. holder generally will not be subject to U.S. federal income tax on the exercise of Warrants into shares of Reorganized Common Stock. However, if a cashless exercise of the Warrants results in a taxable exchange, as described in “—*U.S. Holders of Old Debt Claims—U.S. Holders of Unsecured Notes Claims—Ownership and Disposition of Warrants*,” or upon a sale or other taxable disposition of the Warrants (other than by exercise), then the rules above under “—*Non-U.S. Holders of Old Debt Claims—Ownership and Disposition of Reorganized Common Equity*” would generally apply.

If the exercise price of a Warrant is adjusted as a result of certain events affecting the Reorganized Common Equity (or in certain circumstances, there is a failure to make adjustments), such adjustments may result in the deemed payment of a taxable dividend to a non-U.S. holder. *See generally* “—*U.S. Holders of Old Debt Claims—U.S. Holders of Unsecured Notes Claims—Ownership and Disposition of Warrants*.” Any resulting withholding tax attributable to deemed dividends may be collected from other amounts payable or distributable to, or other assets of, the non-U.S. holder. Non-U.S. holders should consult their tax advisors regarding the proper treatment of any adjustments to the exercise price of the Warrants. *See generally* “—*Non-U.S. Holders of Old Debt Claims—Ownership and Disposition of Reorganized Common Equity*.”

D. Information Reporting and Backup Withholding

All distributions to holders of Claims under the Plan are subject to any applicable tax withholding and information reporting requirements. Under U.S. federal income tax law, interest, dividends and other reportable payments may, under certain circumstances, be subject to “backup withholding” if a recipient of those payments fails to furnish to the payor certain identifying information, fails to report properly interest or dividends, and, under certain circumstances, fails to provide a certification that the recipient is not subject to backup withholding. Backup

withholding currently applies at a rate of 24% of the amount paid. Backup withholding is not an additional tax. Any amounts deducted and withheld generally should be allowed as a credit against that recipient's U.S. federal income tax, provided that appropriate proof is timely provided under rules established by the IRS. Furthermore, certain penalties may be imposed by the IRS on a recipient of payments who is required to supply information but who does not do so in the proper manner. Backup withholding generally should not apply with respect to payments made to certain exempt recipients, such as certain corporations and financial institutions. Information may also be required to be provided to the IRS concerning payments, unless an exemption applies. Holders of Claims are urged to consult their tax advisors regarding their qualification for exemption from backup withholding and information reporting and the procedures for obtaining such an exemption.

Treasury Regulations generally require disclosure by a taxpayer on its U.S. federal income tax return of certain types of transactions in which the taxpayer participated, including, among other types of transactions, certain transactions that result in the taxpayer's claiming a loss in excess of certain thresholds. Holders of Claims are urged to consult their tax advisors regarding these regulations and whether the contemplated transactions under the Plan would be subject to these regulations and require disclosure on their tax returns.

E. Additional Withholding Tax on Payments Made to Foreign Accounts

Withholding taxes may be imposed under IRC Sections 1471 to 1474 (such IRC Sections, commonly referred to as the Foreign Account Tax Compliance Act ("*FATCA*")) on certain types of payments made to non-U.S. financial institutions and certain other non-U.S. entities. Specifically, a 30% withholding tax may be imposed on dividends or interest or (subject to the proposed Treasury Regulations discussed below) gross proceeds from the sale or other disposition of shares or debt instruments, in each case paid to a "foreign financial institution" or a "non-financial foreign entity" (each as defined in the Tax Code), unless (a) the foreign financial institution undertakes certain diligence and reporting obligations, (b) the non-financial foreign entity either certifies it does not have any "substantial United States owners" (as defined in the Tax Code) or furnishes identifying information regarding each substantial United States owner, or (c) the foreign financial institution or non-financial foreign entity otherwise qualifies for an exemption from these rules. If the payee is a foreign financial institution and is subject to the diligence and reporting requirements in clause (a) above, it must enter into an agreement with the United States Department of the Treasury requiring, among other things, that it undertake to identify accounts held by certain "specified United States persons" or "United States owned foreign entities" (each as defined in the Tax Code), annually report certain information about such accounts, and withhold 30% on certain payments to non-compliant foreign financial institutions and certain other account holders. Foreign financial institutions located in jurisdictions that have an intergovernmental agreement with the United States governing FATCA may be subject to different rules.

Under the applicable Treasury Regulations and administrative guidance, withholding under FATCA may apply to payments of dividends on the Reorganized Common Equity and interest on the Exit Debt. While withholding under FATCA would have applied also to payments of gross proceeds from the sale or other disposition of such instruments on or after January 1, 2019, proposed Treasury Regulations eliminate FATCA withholding on payments of gross proceeds

entirely. Taxpayers generally may rely on these proposed Treasury Regulations until final Treasury Regulations are issued. Holders should consult their tax advisors regarding the potential application of withholding under FATCA.

THE FOREGOING SUMMARY HAS BEEN PROVIDED FOR INFORMATIONAL PURPOSES ONLY AND DOES NOT DISCUSS ALL ASPECTS OF U.S. FEDERAL INCOME TAXATION THAT MAY BE RELEVANT TO A PARTICULAR HOLDER OF A CLAIM. ALL HOLDERS OF CLAIMS ARE URGED TO CONSULT THEIR TAX ADVISORS CONCERNING THE FEDERAL, STATE, LOCAL, NON-U.S., AND OTHER TAX CONSEQUENCES APPLICABLE UNDER THE PLAN. NEITHER THE PROPONENTS NOR THEIR PROFESSIONALS WILL HAVE ANY LIABILITY TO ANY PERSON OR HOLDER ARISING FROM OR RELATED TO THE U.S. FEDERAL, STATE, LOCAL AND NON-U.S. TAX CONSEQUENCES OF THE PLAN OR THE FOREGOING DISCUSSION.

IX. CERTAIN RISK FACTORS TO BE CONSIDERED

Prior to voting to accept or reject the Plan, Voting Holders should read and carefully consider the risk factors set forth below, in addition to the information set forth in this Disclosure Statement together with any attachments, exhibits, or documents incorporated by reference hereto. The factors below should not be regarded as the only risks associated with the Plan or its implementation. Additional risk factors identified in OPI's public filings with the SEC may also be applicable to the matters set out herein and should be reviewed and considered in conjunction with this Disclosure Statement, to the extent applicable. The risk factors set forth in OPI's annual report on Form 10-K for the fiscal year ended December 31, 2024, filed with the SEC on February 13, 2025, as may be updated by OPI's other public filings with the SEC, are hereby incorporated by reference. New factors, risks and uncertainties emerge from time to time and it is not possible to predict all such factors, risks and uncertainties.

A. Certain Bankruptcy Law Considerations

1. General

Although the Debtors believe that the Chapter 11 Cases will not be materially disruptive to their business, the Debtors cannot be certain that this will be the case, including if the Effective Date is prolonged. Although the Restructuring Support Agreement and the Plan are designed to minimize the length of the Chapter 11 Cases, it is impossible to predict with certainty the amount of time that one or more of the Debtors may spend in bankruptcy or to assure parties in interest that the Plan will be confirmed. The Chapter 11 Cases will also involve additional expense and may divert some of the attention of the Debtors' management away from business operations.

2. Risk of Material Adverse Effect on Operations

The commencement of the Chapter 11 Cases could adversely affect the relationship between the Debtors and their tenants, vendors, suppliers, service providers, lenders, and other parties in interest. There is a risk, due to uncertainty about the Company's future, that: (a) tenants could terminate or choose not to renew existing contracts and seek alternative leases; (b) tenants' confidence in the Debtors' ability to provide services could erode and, as a result, there could be a significant and precipitous decline in revenues, profitability, and cash flow; (c) suppliers, vendors, and service providers could terminate their relationship with the Debtors or require financial assurances or enhanced performance; and (d) additional involvement by regulatory, taxing, and other authorities may increase the administrative burden on the Debtors and their operations. These factors could adversely affect the Debtors' ability to obtain confirmation of the Plan.

3. Risk of Non-Confirmation of the Plan

Although the Debtors believe that the Plan will satisfy all requirements necessary for confirmation by the Bankruptcy Court, there can be no assurance that the Bankruptcy Court will reach the same conclusion or that modifications to the Plan will not be required for confirmation or that such modifications would not necessitate re-solicitation of votes on the Plan. Moreover, the Debtors can make no assurances that they will receive the requisite votes for acceptance to confirm the Plan or satisfy all of the conditions for confirmation required under the Plan. Even if all Voting Classes

vote in favor of the Plan or the requirements for “cramdown” are met with respect to any Class that rejected the Plan, the Bankruptcy Court, which may exercise substantial discretion as a court of equity, could decline to confirm the Plan if it finds that any of the statutory requirements for confirmation are not met. If the Plan is not confirmed, it is unclear what distributions holders of Claims or Interests ultimately would receive with respect to their Claims or Interests in a subsequent plan of reorganization or otherwise. Non-confirmation of the Plan could result in protracted Chapter 11 Cases, which could significantly and detrimentally impact the Debtors’ relationships with vendors, suppliers, and major tenants. In such circumstances, the Debtors may no longer have consent to use Cash Collateral, or have access to the DIP Facility, which could put additional pressure on liquidity and the Debtors’ ability to continue their operations.

Even if the Plan is confirmed and implemented, the Debtors may not be able to achieve their stated goals. The Debtors continue to face a number of risks, such as a challenging real estate financing market, changes in demand for their services, including reduced government spending, and changing budget priorities among tenants, and increasing expenses. Some of these risks become more acute when a case under the Bankruptcy Code continues for a protracted period without indication of how or when the case may be completed. As a result of these risks and others, there is no guarantee that the implementation of the Plan will achieve the Debtors’ stated goals. Furthermore, even if OPI’s debt and other liabilities are reduced or discharged through the implementation of the Plan as contemplated, the Debtors may need to raise additional funds through public or private debt or equity financing or other various means to fund our business after the completion of the Chapter 11 Cases. The Debtors’ access to additional financing may be limited, if it is available at all. Therefore, adequate funds may not be available when needed or may not be available on favorable terms, or at all.

4. Severability of the Plan

The Debtors cannot guarantee that the Bankruptcy Court will approve every provision of the Plan, and certain provisions may be modified or removed, while the rest of the Plan will be confirmed.

5. Risk of Failing to Satisfy the Vote Requirement

In the event that the Debtors are unable to get sufficient votes from the Classes that are entitled to vote on the Plan, the Debtors may seek to accomplish an alternative chapter 11 plan or seek to cram down the Plan on non-accepting Classes. There can be no assurance that the terms of any such alternative chapter 11 plan would be similar or as favorable to holders of Allowed Claims as those proposed in the Plan.

6. Non-Consensual Confirmation

If any impaired class of claims or equity interests does not accept or is deemed not to accept a plan of reorganization, a bankruptcy court may nevertheless confirm such plan at the proponent’s request if at least one impaired class has voted to accept the plan (with such acceptance being determined without including the vote of any “insider” in such class), and as to each impaired class that has not accepted the Plan, the Bankruptcy Court determines that the plan “does not discriminate unfairly” and is “fair and equitable” with respect to the dissenting impaired classes. If any Class votes to reject the plan, then these requirements must be satisfied with respect to such

rejecting Classes. While the Debtors believe that the Plan satisfies these requirements, there can be no assurance that the Plan will meet these requirements at every Debtor and as of the date hereof, the Debtors expect certain parties in interest to vote to reject the Plan.

7. Impaired Accepting Classes

Section 1129(a)(10) of the Bankruptcy Code requires that an impaired accepting class vote to accept a plan of reorganization in order for such plan to be confirmed. While the Debtors believe they will satisfy this requirement for all Debtors by having impaired accepting classes at many, if not all, of the Debtors, there can be no assurance that the Debtors will confirm a plan at every Debtor.

8. Risk Related to Parties in Interest Objecting to the Debtors' Classification of Claims and Interests

Section 1122 of the Bankruptcy Code provides that a plan may place a claim or an interest in a particular class only if such claim or interest is substantially similar to the other claims or interests in such class. The Debtors believe that the classification of Claims and Interests under the Plan complies with the requirements set forth in the Bankruptcy Code. However, there can be no assurance that a party in interest will not object or that the Bankruptcy Court will approve the classifications.

To the extent that the Bankruptcy Court finds that a different classification is required for the Plan to be confirmed, the Debtors would seek (a) to modify the Plan to provide for whatever classification might be required for Confirmation and (b) to use the acceptances received from any Holder of Claims pursuant to this solicitation for the purpose of obtaining the approval of the Class or Classes of which such Holder ultimately is deemed to be a member. Any such reclassification of Claims, although subject to the notice and hearing requirements of the Bankruptcy Code, could adversely affect the Class in which such Holder was initially a member, or any other Class under the Plan, by changing the composition of such Class and the vote required for approval of the Plan. There can be no assurance that the Bankruptcy Court, after finding that a classification was inappropriate and requiring a reclassification, would approve the Plan based upon such reclassification. Except to the extent that modification of classification in the Plan requires re-solicitation, the Debtors will, in accordance with the Bankruptcy Code and the Bankruptcy Rules, seek a determination by the Bankruptcy Court that acceptance of the Plan by any Holder of Claims pursuant to this solicitation will constitute a consent to the Plan's treatment of such Holder, regardless of the Class as to which such Holder is ultimately deemed to be a member.

9. Risks Related to Possible Objections to the Plan

There is a risk that certain parties could oppose and object to either the entirety of the Plan or specific provisions of the Plan. Although the Debtors believe that the Plan complies with all relevant Bankruptcy Code provisions, there can be no guarantee that a party in interest will not file an objection to the Plan or that the Bankruptcy Court will not sustain such an objection.

10. Releases, Injunctions, and Exculpations Provisions May Not Be Approved

Article X of the Plan provides for certain releases, injunctions, and exculpations for Claims and Causes of Action that may otherwise be asserted against the Debtors, the Reorganized Debtors, the Exculpated Parties, or the Released Parties, as applicable. The scope of the releases provided in the Plan is subject to the completion of the Special Committee Investigation described in Section IV.D of this Disclosure Statement. The releases, injunctions, and exculpations provided in the Plan are subject to objection by parties in interest and may not be approved. If the releases and exculpations are not approved, certain parties may not be considered Releasing Parties, Released Parties, or Exculpated Parties, and certain Released Parties or Exculpated Parties may withdraw their support for the Plan.

11. Risk of Failure to Consummate the Plan

As of the date of this Disclosure Statement, there can be no assurance that the conditions precedent to consummation of the Plan will be satisfied or waived or that the Effective Date will occur. Although the Debtors believe that the Effective Date will occur soon after the Confirmation Date, there can be no assurance as to the timing of the Effective Date. If the conditions precedent to the Effective Date set forth in the Plan have not occurred or have not been waived as set forth in Article IX of the Plan, then the Confirmation Order may be vacated, in which event no distributions would be made under the Plan, the Debtors and all holders of Claims or Interests would be restored to the status quo as of the day immediately preceding the Confirmation Date, and the Debtors' obligations with respect to Claims and Interests would remain unchanged. Nonoccurrence of the Effective Date could result in protracted Chapter 11 Cases, which could significantly and detrimentally impact the Debtors' relationships with vendors, suppliers, and major tenants. In such circumstances, the Debtors may no longer have consent to use Cash Collateral, or have access to the DIP Facility, which could put additional pressure on liquidity and the Debtors' ability to continue their operations.

12. Risk of Termination of the Restructuring Support Agreement

The Restructuring Support Agreement contains certain provisions that give the Debtors and the Consenting Creditors (as defined in the Restructuring Support Agreement) the ability to terminate the Restructuring Support Agreement if various conditions are satisfied. Termination of the Restructuring Support Agreement could result in substantial changes to the Plan and protracted Chapter 11 Cases, which could significantly and detrimentally impact the Debtors' relationships with vendors, suppliers, and major tenants. In such circumstances, the Debtors may no longer have consent to use Cash Collateral, or have access to the DIP Facility, which could put additional pressure on liquidity and the Debtors' ability to continue their operations.

13. Conversion into Chapter 7 Cases

If no chapter 11 plan of reorganization can be confirmed, or if the Bankruptcy Court otherwise finds that it would be in the best interest of Holders of Claims and Interests, the Chapter 11 Cases may be converted to cases under chapter 7 of the Bankruptcy Code, pursuant to which a trustee would be appointed or elected to liquidate the Debtors' assets for distribution in accordance with

the priorities established by the Bankruptcy Code. Please refer to Liquidation Analysis attached hereto as **Exhibit C**, for a discussion of the effects that a chapter 7 liquidation would have on the recoveries of holders of Claims and Interests.

14. One or More Chapter 11 Cases May Be Dismissed

If the Bankruptcy Court finds that a Debtor has incurred substantial or continuing loss or diminution to its estate and lacks a reasonable likelihood of rehabilitation or the ability to effectuate substantial consummation of a confirmed plan or otherwise determines that cause exists, the Bankruptcy Court may dismiss one or more of these Chapter 11 Cases. In such event, the Debtors would be unable to confirm the Plan with respect to the applicable Debtor, which may ultimately result in significantly lower recoveries for creditors than those provided for in the Plan.

15. Amendment of Plan Before Confirmation

The Debtors, subject to the terms and conditions of the Plan, reserve the right to modify the terms and conditions of the Plan or waive any conditions thereto if and as needed or desirable for Confirmation. The potential impact of any such amendment or waiver on holders of Claims and Interests cannot presently be foreseen but may include a change in the economic impact of the Plan on some or all of the proposed Classes or a change in the relative rights of such Classes. In addition, if the Debtors seek to modify or amend the Plan after receiving sufficient acceptances, but prior to Confirmation, re-solicitation may be required.

16. Contingencies Could Affect Votes of Impaired Classes to Accept or Reject the Plan

The distributions available to Holders of Allowed Claims under the Plan can be affected by a variety of contingencies, including, without limitation, whether the Bankruptcy Court orders certain Allowed Claims to be subordinated to other Allowed Claims. The occurrence of any and all such contingencies, which could affect distributions available to Holders of Allowed Claims under the Plan, will not affect the validity of the vote taken by the Impaired Classes to accept or reject the Plan or require any sort of revote by the Impaired Classes.

17. The Debtors May Object to the Amount or Classification of a Claim

Except as otherwise provided in the Plan, the Debtors reserve the right to object to the amount or classification of any Claim under the Plan. The estimates set forth in this Disclosure Statement cannot be relied upon by any Holder of a Claim where such Claim is subject to an objection. Any Holder of a Claim that is subject to an objection thus may not receive its expected share of the estimated distributions described in this Disclosure Statement. Further, the Committee or other parties in interest may object to the amount or classification of any Claim under the Plan in accordance with the Bankruptcy Code.

18. Other Parties-in-Interest May Be Permitted to Propose Alternative Plans That Are Less Favorable to Certain Stakeholders

Other parties in interest could seek authority from the Bankruptcy Court to propose an alternative chapter 11 plan. Under the Bankruptcy Code, a debtor in possession initially has the exclusive

right to propose and solicit acceptances of a chapter 11 plan for the first 120 days after filing. Such exclusivity period can be reduced or terminated, however, upon order of the Bankruptcy Court. If such an order were to be entered, other parties in interest would then be permitted to propose one or more alternative plans.

19. Risk of Re-Solicitation of the Plan

There can be no assurance that the Bankruptcy Court will not require modifications to the Plan that would require re-solicitation of votes from the Voting Classes or Holders of Claims the Plan currently treats as unimpaired and deemed to accept. Moreover, the Debtors can make no assurances that they will receive the requisite acceptances to confirm the Plan if votes are re-solicited. Re-solicitation could delay confirmation of the Plan, and if the Plan is not confirmed, it is unclear what distributions Holders of Claims ultimately would receive with respect to their Claims in a subsequent plan or other proceeding.

20. Risks Related to Reinstatement of March 2029 Senior Secured Notes Subsidiary Guarantors

The Debtors and the March 2029 Ad Hoc Group dispute the amount of the March 2029 Senior Secured Notes Claims. If the Debtors and the March 2029 Ad Hoc Group are unable to come to a consensual resolution regarding the amount of March 2029 Senior Secured Notes Claims, the Debtors may seek to reinstate the March 2029 Senior Secured Notes, rendering the holders of such claims unimpaired pursuant to section 1124(2) of the Bankruptcy Code. Under section 1124(2) of the Bankruptcy Code, a class is rendered unimpaired if the Plan's treatment "does not otherwise alter the legal, equitable, or contractual rights to which such claim or interest entitles the holder of such claim or interest."

The Debtors believe that they are able to (a) comply with all applicable covenants and obligations under the March 2029 Senior Secured Notes Indenture and related debt documents at emergence and (b) cure any defaults under such debt documents in such a way that does not alter the rights of the Holders of the March 2029 Senior Secured Notes Claims, as prescribed by section 1124(2) of the Bankruptcy Code. If the Debtors seek to reinstate the March 2029 Senior Secured Notes, the Debtors expect to demonstrate their satisfaction of the applicable legal standards in connection with confirmation of the Plan. However, reinstatement is likely to be opposed by the March 2029 Ad Hoc Group and March 2029 Senior Secured Notes Trustee and will be litigated in connection with confirmation. The Bankruptcy Court will ultimately determine whether the Debtors are in compliance with section 1124(2) of the Bankruptcy Code.

Alternatively, the Debtors may object to the amount of the March 2029 Senior Secured Notes Claims. Such an objection would result in continuing litigation with the March 2029 Ad Hoc Group and there can be no assurance regarding the timing or outcome of any such dispute. Any litigation could delay confirmation of the Plan and/or occurrence of the Effective Date.

B. Factors Affecting the Value of Reorganized Debtors

1. Claims Could Be More than Projected

There can be no assurance that the estimated Allowed amount of Claims in certain Classes will not be significantly more than projected, which, in turn, could reduce the value of distributions substantially. Inevitably, some assumptions will not materialize, and unanticipated events and circumstances may affect the ultimate results. Therefore, the actual amount of Allowed Claims may vary from the Debtors' projections and feasibility analysis, and the variation may be material.

2. Projections and Other Forward-Looking Statements Are Not Assured, and Actual Results May Vary

Certain of the information contained in this Disclosure Statement is, by nature, forward-looking, and contains estimates and assumptions which might ultimately prove to be incorrect, and contains projections that may differ materially from actual future experiences. There are uncertainties associated with any projections and estimates, and they should not be considered assurances or guarantees of the amount of funds or the amount of Claims in the various Classes that might be Allowed.

The Debtors have prepared financial projections (the “*Financial Projections*”) on a consolidated basis based on certain assumptions, as set forth in Exhibit D hereto. The Financial Projections have not been compiled, audited, or examined by independent accountants, and neither the Debtors nor their advisors make any representations or warranties regarding the accuracy of the Financial Projections or the ability to achieve forecasted results.

Many of the assumptions underlying the Financial Projections are subject to uncertainties that are beyond the control of the Debtors or Reorganized Debtors including the timing, confirmation, and consummation of the Plan, demand or price for services, inflation, and other unanticipated market and economic conditions. Some assumptions may not materialize, and unanticipated events and circumstances may affect the actual results. Projections are inherently subject to substantial and numerous uncertainties and to a wide variety of significant business, economic, and competitive risks, and the assumptions underlying the Financial Projections may be inaccurate in material respects. In addition, unanticipated events and circumstances occurring after the approval of this Disclosure Statement by the Bankruptcy Court, including any natural disasters, terrorist attacks, or health epidemics, may affect the actual financial results achieved. Such results may vary significantly from the forecasts and such variations may be material.

3. Risks Associated with Potential Litigation, Including Litigation Arising Out of the Chapter 11 Cases

In the future, the Reorganized Debtors may become parties to litigation. In general, litigation can be expensive and time consuming to bring or defend against. Such litigation could result in settlements or damages that could significantly affect the Reorganized Debtors' financial results. It is also possible that certain parties will commence litigation with respect to the treatment of their Claims under the Plan. It is not possible to predict the potential litigation that the Reorganized Debtors may become party to, nor the final resolution of such litigation. The impact

of any such litigation on the Reorganized Debtors' businesses and financial stability, however, could be material.

C. Risks Associated with Debtors' Business and Industry

The risks associated with the Debtors' businesses and industry are more fully described in the Debtors' SEC filings, including the 10-K. The risks associated with the Debtors' business and industry described in the Debtors' SEC filings include, but are not limited to:

- (a) the Company has a substantial amount of debt and is subject to risks related to such debt, including the ability to refinance maturing debt and the cost of any such refinanced debt and the inability to further reduce debt leverage, including following the Chapter 11 Cases;
- (b) the Company has a significant amount of scheduled lease expirations in coming years and may be unable to renew such leases when they expire or lease such properties to new tenants without decreasing rents or incurring significant costs or at all;
- (c) the Company's concentration of investments in properties leased to private sector single or majority tenants and the U.S. government, and in properties located in the metropolitan Washington, D.C. area, may subject the Company to risks associated with, among other things, a downturn of business or a lease termination of such single or majority tenants, government budgetary pressures, changes in government policies, priorities related to real estate and other fiscal pressures, including any downturn in economic conditions or a possible recession;
- (d) unfavorable market and commercial real estate industry conditions, particularly impacting the office sector, may continue to adversely affect the Company's business and operations;
- (e) development or redevelopment projects, or potential future sales or development or redevelopment projects, may not be successful or may not be executed on the terms or within the timing the Company expects as a result of competition and ongoing market and economic conditions;
- (f) the Company is subject to risks related to its qualification for taxation as a REIT, including REIT distribution requirements;
- (g) the Company's ownership of real estate is subject to environmental risks and liabilities, as well as risks from adverse weather, natural disasters, and adverse impacts from global climate change;
- (h) insurance may not adequately cover the Company's losses, and insurance costs may increase; and
- (i) the Company is subject to risks related to its reliance on RMR to implement its business strategies and manage its operations.

Certain of these risks, as well as other potential risks to the Debtors' business and industry are detailed below.

1. Unfavorable Market and Industry Conditions

The Debtors' business and operations may be adversely affected by market and economic volatility experienced by the U.S. and global economies, the commercial real estate industry or the local economies in the markets in which their properties are located. Unfavorable economic and industry conditions may be due to, among other things, uncertainties surrounding interest rates and inflation, supply chain disruptions, volatility in the public equity and debt markets, pandemics, geopolitical instability and tensions, economic downturns or a possible recession, labor market conditions, changes in real estate utilization and other conditions beyond the Debtors' control. As economic conditions in the United States may affect the demand for office space, real estate values, occupancy levels and property income, current and future economic conditions in the United States, including slower growth or a possible recession and capital market volatility or disruptions, could have a material adverse impact on the Company's earnings and financial condition. Economic conditions may be affected by numerous factors, including, but not limited to, the pace of economic growth or recessionary concerns, inflation, increases in the levels of unemployment, energy prices, uncertainty about government fiscal and tax policy, geopolitical events, the regulatory environment, the availability of credit and interest rates. Unfavorable market conditions have particularly impacted the office sector and sustained low occupancy in office properties, reduced values of these properties and limited acquisition and disposition volume have negatively impacted the Company's ability to pay distributions to shareholders and these or other conditions may continue to have similar impacts in the future and on the Debtors' results of operations and financial condition.

2. Risks Associated with Failure to Sell Properties, or Proceeds from Sales Falling Short of Predictions

The Debtors expect to sell properties from time to time, including during the Chapter 11 Cases, in order to manage leverage levels or to recycle capital into properties that the Debtors believe have better long-term earnings potential or that the Debtors believe will help diversify their revenue base, improve the average age of their properties, lengthen the weighted average term of their leases, reduce their ongoing capital requirements, or increase their distributions to shareholders. The Debtors' ability to sell properties, and the prices they may receive in any such sales may be affected by various factors. In particular, these factors could arise from, among other things:

- (a) weaknesses in or a lack of established markets for the properties the Debtors may identify for sale;
- (b) the characteristics, tenant utilization, quality, and prospects of the properties;
- (c) limited availability of financing to potential purchasers on reasonable terms;
- (d) changes in the financial condition of prospective purchasers for, and the tenants of, the properties;
- (e) the terms of leases with tenants at certain of the properties;

- (f) the number of prospective purchasers;
- (g) the number of competing properties in the market;
- (h) the effects and requirements of the bankruptcy process on potential sales and marketing processes and prospective purchasers' willingness to purchase properties in a bankruptcy process;
- (i) unfavorable local, national or international economic conditions, such as uncertainties surrounding interest rates and inflation, supply chain challenges and economic downturns or a possible recession and labor market challenges; and
- (j) changes in laws, regulations or fiscal policies of jurisdictions in which the properties are located.

In addition, property dispositions or an inability to consummate dispositions on anticipated terms or timing may affect the Debtors' ability to comply with covenants under existing debt and, as a result, may adversely affect the Debtors' ability to reinstate such debt.

3. Risks Associated with Lease Expirations

Leases representing approximately 4.0% of the Company's annual rental income are scheduled to expire in 2026. Although the Debtors typically will seek to renew or extend the terms of leases for their properties with tenants when they expire, the Debtors cannot be sure that they will be successful in doing so. Certain shifts in space utilization, including increases in remote and other alternative work arrangements, as well as ongoing market and economic conditions, including government spending and budget priorities, may cause tenants not to renew or extend their leases when they expire, or to seek to renew their leases for less space than they currently occupy. If the Debtors (or Reorganized Debtors) are unable to extend or renew leases, or renew leases for reduced space, it may be time consuming and expensive to re-lease these properties to new tenants.

4. Risks Associated with Renewing Leases with Current Tenants, or Leasing Properties to New Tenants

When the Debtors renew leases with current tenants or lease to new tenants, the Debtors may experience rent decreases, and may have to spend substantial amounts for tenant improvements, leasing commissions, or other tenant inducements. Moreover, many of the Debtors' properties have been specially designed for the particular businesses of their tenants; if the current leases for those properties are terminated or are not renewed, the Debtors may be required to renovate those properties at substantial costs, decrease the rents they charge or provide other concessions in order to lease those properties to new tenants. In addition, any rent increases that the Debtors do achieve may not exceed the Debtors' costs associated with renewing leases with current tenants or leasing properties to new tenants, which costs have increased as a result of uncertainty surrounding interest rates and inflation and supply chain challenges, among other things. Further, certain of the Debtors' long-term leases have contractual rent adjustments which may not keep pace with inflation.

5. Risks Associated with Tenants Failing to Satisfy Lease Obligations

The Debtors' business depends on tenants satisfying their lease obligations. The financial capacities of the Debtors' private sector tenants to pay the Debtors rent will depend upon their abilities to successfully operate their businesses, which may be adversely affected by factors over which the Debtors' and the tenants have no control, including market and economic conditions, such as uncertainties surrounding interest rates and inflation, supply chain challenges and economic downturns or a possible recession. The failure of the Debtors' private sector tenants and any applicable parent guarantor to satisfy their lease obligations to the Debtors, whether due to a downturn in their business or otherwise, could materially and adversely affect the Debtors.

In addition, the Debtors' government tenants are subject to discretionary funding from federal, state and local governments, as applicable. Federal government programs are subject to annual congressional budget authorization and appropriation processes, and state and local government programs are often subject to similar processes. For many federal programs, Congress appropriates funds on a fiscal year basis even though the program performance period may extend over several years. Laws and plans adopted by federal, state, and local governments relating to, along with pressures on and uncertainty surrounding, budgets, potential changes in priorities and spending levels, sequestration, the appropriations process, and the permissible debt limits, could adversely affect the funding for the Debtors' government tenants. The budget environment and uncertainty surrounding the appropriations processes remain significant long-term risks as budget cuts could adversely affect the ability of our government tenants to pay rent to the Debtors.

6. Risks Associated with Property Development and Repositioning

The Debtors have engaged in and may engage in repositioning activities with respect to their properties, and, as a result, are subject to certain risks. These risks include cost overruns and untimely completion of construction due to, among other things, weather conditions, inflation, labor, or material shortages or delays in receiving permits or other governmental approvals, as well as the availability and pricing of financing on favorable terms or at all, and finding tenants to lease the Debtors' properties. Although inflation has eased since its peak in 2021 and 2022, inflationary pressures have continued during 2025, and the global economy continues to experience commodity pricing and other inflation, including inflation impacting wages and employee benefits, and it is uncertain whether inflation will decline, remain relatively steady or increase. These conditions have increased the costs for materials, other goods and labor, including construction materials, and caused some delays in construction activities, and these conditions may continue and worsen. These pricing increases, as well as increases in labor costs, could result in substantial unanticipated delays and increased development and renovation costs and could prevent the initiation or the completion of development, redevelopment or repositioning activities. In addition, changes to demand for office space and increased vacancies due to continued increases in remote and other alternative work arrangements and shifts in space utilization, as well as current economic conditions and volatility in the commercial real estate markets, generally, may cause delays in leasing these properties or possible loss of tenancies and negatively impact the Debtors' ability to generate cash flows from these properties that meet or exceed the Debtors' cost of investment. Any of these risks associated with our current or future development, redevelopment, and repositioning activities could have a material adverse effect on the Debtors' business, financial condition, and results of operations.

7. Risks Associated with Government Budgetary Pressure

Government tenants (i.e., federal, state, and other government tenants) represent approximately 25.4% of the Company's annualized rental income as of June 30, 2025. Recent government budgetary and spending priorities and enhancements in technology have resulted in a decrease in government office use for employees. Furthermore, over the past several years, government tenants have reduced their space utilization per employee and consolidated government tenants into existing government owned properties. This activity has reduced the demand for government leased space and efforts to manage space utilization rates may result in the Debtors' tenants exercising early termination rights under their leases, vacating properties upon expiration of their leases in order to relocate to government owned properties or consolidate leased space within a market, or renew their leases for less space than they currently occupy. The current administration is reportedly seeking to reduce the U.S. government's office leases through termination of existing leases. Accordingly, there can be no assurance that the U.S. government will not seek to exercise early termination rights or otherwise purport to terminate our leases with the U.S. government or use the threat thereof to seek rent concessions. Also, the Debtors' government tenants' desire to reconfigure office space to manage utilization per employee may require us to spend significant amounts for tenant improvements, and tenant relocations are often more prevalent in those circumstances. Increasing uncertainty with respect to government agency budgets and funding to implement relocations, consolidations, and reconfigurations has, in some instances, resulted in delayed decisions by some of our government tenants and more focus on short term lease renewals. In addition, the current administration has sought to eliminate or reduce the size of government agencies and programs, which may impact leasing at the Debtors' government leased properties. Although the current administration has issued so called return to work mandates, there can be no assurance such actions will result in increased office utilization. Given the significant uncertainties, the Debtors are unable to reasonably project what the financial impact of market conditions or changing government circumstances will be on the demand for leased space at our properties and our financial results for future periods.

8. Risks Associated with Government Shutdowns

Under the Debtors' leases with the U.S. government, the tenants pay us rent monthly in arrears. If the U.S. government experiences a prolonged shutdown, these tenants may not pay the Debtors rent during the pendency of the shutdown. Although the Debtors expect that these tenants would pay any outstanding rents after the shutdown ends, the Debtors' available cash and leverage targets may be adversely impacted during the period we do not receive rents from these tenants. A failure to receive rents during a government shutdown may impair our ability to fund the Debtors' operations and investments, pay the Debtors' debt obligations, make capital expenditures, and pay distributions to the Debtors' shareholders. In addition, the impact of a prolonged government shutdown on government personnel resources could hinder the Debtors' ability to renew expiring leases or initiate or complete renovation, construction, and other capital maintenance of the affected properties. Moreover, some of the Debtors' tenants are government contractors that rely on government business. If a government shutdown results in the Debtors' government contractor tenants not paying us rent, the negative impact on us from a government shutdown may be compounded.

9. Risks Associated with Single or Majority Tenants

A material portion of the Debtors' annualized rental income comes from properties leased to private sector single tenants or majority occupied tenants. The value of the properties leased to these tenants is materially dependent on their performance under their respective leases. These tenants face competition within their industries and other factors that could reduce their ability to pay the Debtors rent based on market and economic conditions, such as uncertainties surrounding interest rates and inflation, supply chain challenges, economic downturns, or a possible recession. A default by a single or majority tenant, the failure of a guarantor to fulfill its obligations or other premature termination of a lease to such a tenant, or such tenant's election not to extend a lease upon its expiration could have an adverse effect on the Debtors' financial condition, results of operations, liquidity and ability to pay distributions to the Debtors' shareholders.

10. Risks Associated with Market Conditions in the Washington, D.C. Area

As of June 30, 2025, the Debtors derived approximately 24.2% of their annualized rental income from our consolidated properties located in the metropolitan Washington, D.C. market area. In addition, two properties owned by a joint venture in which the Debtors owned a 51% interest are located in the metropolitan Washington, D.C. market area. The D.C. market continues to have weak conditions and a further downturn in economic conditions in this area or a possible recession could result in reduced demand from tenants for the Debtors' properties, reduced rents that tenants in this area are willing to pay when leases expire, and increased lease concessions for new leases and renewals. Additionally, there has been a decrease in demand for new leased space by the U.S. government in the metropolitan Washington, D.C. market area, and that could increase competition for government tenants and adversely affect the Debtors' ability to retain government tenants when leases expire. Thus, adverse developments and/or conditions in the metropolitan Washington, D.C. market area could reduce demand for space, impact the creditworthiness of the Debtors' tenants, or force the Debtors' tenants to curtail operations, which could impair their ability to meet their rent obligations to the Debtors and, accordingly, could have an adverse effect on the Debtors financial condition, results of operations, liquidity and ability to pay distributions to the Debtors' shareholders.

11. Risks Associated with the Reorganized REIT's Ability to Satisfy REIT Conditions and Distribution Requirements

To maintain their qualification for taxation as a REIT under the Internal Revenue Code (the "**IRC**"), the Debtors (or the Reorganized Debtors) are required to satisfy distribution requirements imposed by the IRC. Accordingly, the Debtors may not be able to retain sufficient cash to fund operations, repay debts, invest in properties or fund acquisitions or development, redevelopment or repositioning efforts. The Company's business strategies therefore depend, in part, upon its ability to raise additional capital at reasonable costs. The Debtors may also be unable to raise capital at reasonable costs or at all because of reasons related to their business, market perceptions of their prospects, the terms of their debt, the extent of their leverage or for reasons beyond their control, such as capital market volatility, sustained high interest rates and other market conditions. For example, decreased demand for leased space and increased vacancies due to continued increases in remote and other alternative work arrangements and shifts in space utilization, as well

as current economic conditions, have negatively impacted the availability of debt capital to office REITs on reasonable terms or at all. Because the earnings the Debtors are permitted to retain are limited by the rules governing REIT qualification and taxation, if the Debtors are unable to raise reasonably priced capital, the Debtors (or Reorganized Debtors) may not be able to carry out their business plan.

D. Factors Relating to the Equity Rights Offering

1. Debtors Could Modify or Cancel the Equity Rights Offering Procedures

The Debtors, in consultation with the Committee, may modify the Equity Rights Offering Procedures, to, among other things, adopt additional detailed procedures if necessary in the Debtors' business judgment. The Equity Rights Offering may be modified or cancelled. Such modifications, or the cancellation of the Equity Rights Offering, may adversely affect the rights of those participating, or wishing to participate, in the Equity Rights Offering. Failure to proceed with the Equity Rights Offering may (a) impact the Debtors' ability to emerge if insufficient liquidity exists to satisfy administrative expenses and (b) prevent the Debtors from reinstating or otherwise unimpairing debt if the Debtors are unable to satisfy all covenants under such debt.

E. Factors Relating to the Capital Structure of the Reorganized Debtors

1. Variances from Financial Projections

The Debtors have prepared financial projections on a consolidated basis with respect to the Reorganized Debtors based on certain assumptions as set forth in Exhibit D hereto. The projections have not been compiled, audited, or examined by independent accountants, and neither the Debtors nor their advisors make any representations or warranties regarding the accuracy of the projections or the ability to achieve forecasted results.

Many of the assumptions underlying the projections are subject to significant uncertainties that are beyond the control of the Debtors or Reorganized Debtors, including the timing, confirmation, and consummation of the Plan, declining rents and increasing costs to re-lease space, and other market and economic conditions. Some assumptions may not materialize, and unanticipated events and circumstances may affect the actual results. Projections are inherently subject to substantial and numerous uncertainties and to a wide variety of significant business, economic, and competitive risks, and the assumptions underlying the projections may be inaccurate in material respects.

In addition, if the Debtors emerge from chapter 11, the amounts reported in subsequent consolidated financial statements may materially change relative to historical consolidated financial statements, including as a result of revisions to the Debtors' operating plans pursuant to a plan of reorganization. The Reorganized Debtors also may be required to adopt "fresh start" accounting in accordance with Accounting Standards Codification 852 ("Reorganizations"), in which case their assets and liabilities will be recorded at fair value as of the fresh start reporting date, which may differ materially from the recorded values of assets and liabilities on the Debtors' consolidated balance sheets. The Reorganized Debtors' financial results after the application of fresh start accounting also may be different from historical trends. The Financial Projections

contained in **Exhibit D** hereto do not currently reflect the impact of fresh start accounting, which may have a material impact on the Financial Projections.

2. Leverage

Although the Reorganized Debtors will have less indebtedness than the Debtors, the Reorganized Debtors will still have a significant amount of secured indebtedness. On the Effective Date, after giving effect to the transactions contemplated by the Plan, the Reorganized Debtors will have approximately \$1.7 billion in funded indebtedness.

The degree to which the Reorganized Debtors will be leveraged could have important consequences, placing the Reorganized Debtors at a competitive disadvantage to other, less leveraged competitors, because, among other things: it could affect the Reorganized Debtors' ability to satisfy their obligations under their indebtedness following the Effective Date; a portion of the Reorganized Debtors' cash flow from operations will be used for debt service and therefore will be unavailable to support operations or for working capital, capital expenditures, expansion, acquisitions or general corporate or other purposes; the Reorganized Debtors' ability to refinance their then-existing debt, obtain additional debt financing or equity financing, or pursue mergers, acquisitions and asset sales, on terms acceptable to them or at all, may be limited and their costs of borrowing may be increased; as a result of their indebtedness, the Reorganized Debtors may be more vulnerable to economic downturns and their ability to withstand competitive pressures may be limited; and the Reorganized Debtors' operational flexibility in planning for, or reacting to, changes, opportunities and challenges in their businesses, including changes in the market sector in which they compete, changes in their business and strategic opportunities, and adverse developments in their operations, may be severely limited.

3. Ability to Service Debt

Although the Reorganized Debtors will have less indebtedness than the Debtors, the Reorganized Debtors will still have significant interest expense and principal repayment obligations. The Reorganized Debtors' ability to make payments on and to refinance their debt will depend on their future financial and operating performance and their ability to generate cash in the future. This, to a certain extent, is subject to general economic, business, financial, competitive, and other factors that are beyond the control of the Reorganized Debtors.

Although the Debtors believe the Plan is feasible, there can be no assurance that the Reorganized Debtors will be able to generate sufficient cash flow from operations or that sufficient future borrowings will be available to pay off the Reorganized Debtors' debt obligations. The Reorganized Debtors may need to refinance all or a portion of their debt on or before maturity; however, there can be no assurance that the Reorganized Debtors will be able to refinance any of their debt on commercially reasonable terms or at all.

If the Reorganized Debtors' cash flows and capital resources are insufficient to fund their debt service obligations and other cash requirements, the Reorganized Debtors could face substantial liquidity problems and could be forced to reduce or delay investments and capital expenditures or to sell assets outside of the ordinary course or on below market terms, seek additional capital, or restructure or refinance their indebtedness. The Reorganized Debtors may not be able to effect any

such alternative measures, if necessary, on commercially reasonable terms or at all and, even if successful, such alternative actions may not allow the Reorganized Debtors to meet their scheduled debt service obligations.

The Reorganized Debtors' inability to generate sufficient cash flows to satisfy their debt obligations, or to refinance their indebtedness on commercially reasonable terms or at all, would materially and adversely affect their financial position and results of operations.

If the Reorganized Debtors cannot make scheduled payments on their debt, an event of default may result. An event of default may allow the creditors to accelerate the related debt as well as any other debt to which a cross-acceleration or cross-default provision applies. If the Reorganized Debtors are unable to repay amounts outstanding under their financing agreements when due, the lenders thereunder could, subject to the terms of the financing agreements, seek to foreclose on the collateral that is pledged to secure the indebtedness outstanding under such instruments.

4. Obligations Under Exit Facilities

- The Reorganized Debtors' obligations under the Secured Exit Notes are expected to generally be guaranteed by the same entities that guaranteed the September 2029 Senior Secured Notes and secured by the same collateral that secures the September 2029 Senior Secured Notes, subject to a customary intercreditor agreement, and the DIP Facility, subject to certain limitations (including the exclusion of the assets securing the March 2029 Senior Secured Notes).

If the Reorganized Debtors become insolvent or are liquidated, or if there is a default under certain financing agreements, including, but not limited to, the Secured Exit Notes, and payment on any obligation thereunder is accelerated, the holders of the loans thereunder would be entitled, subject to the applicable intercreditor agreements and other applicable credit documents, to exercise the remedies available to a secured creditor under applicable law, including foreclosure on the collateral that is pledged to secure the indebtedness thereunder, and they would have a claim on the assets securing the obligations under the applicable facility that would be superior to any claim of the holders of unsecured debt of the obligors of the Secured Exit Notes.

5. Restrictive Covenants

The financing agreements governing the Reorganized Debtors' indebtedness are expected to contain various covenants that may restrict the Reorganized Debtors' ability to, among other things, incur additional indebtedness, incur liens, pay dividends or make certain restricted payments, make acquisitions and investments, consummate certain asset sales, enter into certain transactions with affiliates, or merge, consolidate or sell or dispose of certain or substantially all of their assets. As a result of these covenants, the Reorganized Debtors will be limited in the manner in which they conduct their business and may be unable to engage in favorable business activities or finance future operations or capital needs. Additionally, failure to satisfy the covenants in the relevant financing agreement would prevent the Debtors from reinstating debt.

Any failure to comply with the restrictions of the financing agreements may result in an event of default under such financial agreements. An event of default under a financing agreement may

allow the creditors under such financing agreement to accelerate the related debt as well as allow the creditors under any other debt to which a cross-acceleration or cross-default provision applies to accelerate such debt as well. If the Reorganized Debtors are unable to repay amounts outstanding under their financing agreements when due, the lenders thereunder could, subject to the terms of the financing agreements, seek to foreclose on the collateral that is pledged to secure the indebtedness outstanding under such facility.

As a result of these restrictions, the Reorganized Debtors may be (a) limited in how they conduct their business, (b) unable to raise additional debt or equity financing to operate during general economic or business downturns, (c) unable to respond to changing circumstances or to pursue business strategies, and (d) unable to compete effectively, execute their business plan, or take advantage of new business opportunities.

6. Additional Financing

The Reorganized Debtors may be able to incur substantial additional indebtedness in the future. Although agreements governing the Reorganized Debtors' indebtedness are expected to restrict the incurrence of additional indebtedness, these restrictions are and will be subject to a number of qualifications and exceptions and the additional indebtedness incurred in compliance with these restrictions could be substantial. If new debt is added to the Reorganized Debtors' current debt levels, the related risks that the Reorganized Debtors face could intensify.

Moreover, the Reorganized Debtors may need to seek additional financing for general business purposes. For example, they may need funds to make acquisitions or for capital expenditures or operating expenses needed to remain competitive in their market sector, consistent with their historical operations and go-forward business plan. The Reorganized Debtors may be unable to obtain any desired additional financing on terms that are favorable or acceptable to them, including as a result of their debt levels or if there is a decline in the demand for their products or in the solvency of their tenants, vendors, or suppliers or other significantly unfavorable changes in economic conditions occur. Depending on market conditions, adequate funds may not be available to the Reorganized Debtors on acceptable terms or at all, and they may be unable to fund expansion, successfully acquire new properties or reposition existing properties, or respond to competitive pressures, any of which could have a material adverse effect on the Reorganized Debtors' competitive position, business, financial condition, results of operations, and cash flows.

7. If Reorganized Parent Ceases to be Subject to Exchange Act Reporting Obligations, Holders of Reorganized Parent's Securities Would be Subject to the Risks of an Investment in a Private Company (within the meaning of U.S. practice) Rather Than a U.S. Public Reporting Company.

The Debtors currently expect that, as of the Effective Date, Reorganized Parent initially will remain subject to Exchange Act reporting obligations. To suspend reporting obligations under the Exchange Act, among other requirements, Reorganized Parent would need to (a) not be publicly listed on a national securities exchange and (b) deregister the Reorganized Common Equity under Section 12(g) of the Exchange Act and suspend the duty to file reports under Section 15(d) of the Exchange Act, following a determination in accordance with SEC rules that its

Reorganized Common Equity is held by less than 300 shareholders of record. Any decision of whether to deregister the New Common Equity under the Exchange Act and suspend filing Exchange Act reports, and the manner and timing of doing so, would be made by the Reorganized Board, and would be subject to their fiduciary duties and other applicable law, including U.S. securities laws. There can be no assurance as to whether or when the Reorganized Board may make such a decision or how it would be implemented. If the Reorganized Parent suspends filing reports under the Exchange Act, public information regarding the Reorganized Parent may not be readily available.

In the event the Reorganized Common Equity is deregistered and Reorganized Parent suspends filing reports under the Exchange Act, holders of Reorganized Parent's securities would be subject to the risks of an investment in a private company (within the meaning of U.S. practice) rather than a U.S. public reporting company. Upon any deregistration of the Reorganized Common Equity, Reorganized Parent's duty to file periodic reports with the SEC would be suspended, which would result in a substantial decrease in required public disclosure by Reorganized Parent about its operations and prospects for so long as Reorganized Parent is not filing such reports. Reorganized Parent would also be relieved of the obligation to comply with the requirements of the proxy rules under Section 14 of the Exchange Act. The suspension of Reorganized Parent's reporting obligations under the Exchange Act would likely further reduce the limited trading market and liquidity for the Reorganized Common Equity and may negatively impact the value of, and ability to sell, such shares. In addition, shareholders may not be able to rely on Rule 144 under the Securities Act to sell their shares of Reorganized Common Equity in the absence of current public information about the Reorganized Parent, which would limit the trading in the New Common Equity. Shareholders also could be adversely affected by a reduction in Reorganized Parent's "public float," that is, the number of shares owned by outside shareholders and available for trading in the securities markets. In addition, Reorganized Parent might also have substantially less access to capital markets and be severely limited in its ability to use equity to effect acquisitions as a non-reporting company.

F. Factors Relating to Securities to Be Issued Under Plan

1. Potential Dilution

The ownership percentage represented by the Reorganized Common Equity issued or deemed to be issued on the Effective Date under the Plan will be subject to dilution from the equity issued in connection with the Equity Rights Offering, the MIP, and the conversion of any options, warrants, convertible securities, exercisable securities, or other securities that may be issued post-emergence. In the future, similar to all companies, additional equity financings, or other share issuances by any of the Reorganized Debtors could adversely affect the value of the Reorganized Common Equity issuable upon such conversion. The amount and dilutive effect of any of the foregoing could be material.

2. Compliance with Terms of the Secured Exit Notes, New 2027 Senior Secured Notes, and the New March 2029 Senior Secured Notes

The Plan provides that the Debtors will issue the Secured Exit Notes, New 2027 Senior Secured Notes, and the New March 2029 Senior Secured Notes on the Effective Date. The Debtors believe

that they will have sufficient cash flow to make all required interest payments on the Secured Exit Notes, New 2027 Senior Secured Notes, and the New March 2029 Senior Secured Notes. If the Debtors' actual financial performance does not meet their cash flow projections, however, and if other sources of liquidity are not available, there is a risk that the Debtors might be unable to pay interest and principal payments on the Secured Exit Notes, New 2027 Senior Secured Notes, and New March 2029 Senior Secured Notes. Additionally, the Secured Exit Notes, New 2027 Senior Secured Notes, and New March 2029 Senior Secured Notes will contain restrictive covenants that could limit the Debtors' ability to operate their business flexibly, affecting strategic decisions, capital expenditures, and overall financial performance. Such covenants may include restrictions on incurring additional debt, granting liens, making certain acquisitions and investments, making certain dispositions, and other restricted payments or engaging in specific transactions, which could impact the Company's operational efficiency and business plan.

3. Significant Holders

Certain holders of the September 2029 Senior Secured Notes are expected to, or have the ability to, acquire a significant ownership interest in the Reorganized Common Equity pursuant to the Plan. Should these holders act collectively, these holders may, among other things, exercise a controlling influence over the Reorganized Debtors and have the power to elect trustees and approve significant transactions. This concentration of ownership could also facilitate or hinder a negotiated change of control of the Reorganized Debtors and, consequently, have an impact upon the value of the Reorganized Common Equity. The significant ownership stake may allow these holders, should they act collectively, to appoint a majority of the board of trustees, potentially influencing the Company's management and strategic direction. This could lead to changes in corporate governance practices, business strategies, and capital allocation policies that align with the interests of the major shareholders. The interests of these significant holders may not always align with those of other shareholders or the Reorganized Debtors, potentially leading to conflicts in decision-making. Lastly, this ownership structure could either attract potential acquirers due to the ease of negotiating with a small group of major shareholders or deter them if the Holders are not interested in selling their stakes.

4. Equity Interests Subordinated to Reorganized Debtors' Indebtedness

In any subsequent liquidation, dissolution, or winding up of the Reorganized Debtors, the Reorganized Common Equity would rank below all debt claims against the Reorganized Debtors. As a result, holders of the Reorganized Common Equity will not be entitled to receive any payment or other distribution of assets upon the liquidation, dissolution, or winding up of the Reorganized Debtors until after all the Reorganized Debtors' debt obligations have been satisfied.

5. Implied Value Not Intended to Represent Trading Value of Reorganized Common Equity

The valuation of the Reorganized Debtors is not intended to represent the trading value of the Reorganized Common Equity and is subject to additional uncertainties and contingencies, all of which are difficult to predict. Actual market prices of such securities at issuance will depend upon, among other things: (a) prevailing interest rates; (b) conditions in the financial markets; (c) the anticipated initial securities of creditors receiving Reorganized Common Equity under the Plan,

some of which may prefer to liquidate their investment rather than hold it on a long-term basis; and (d) other factors that generally influence the prices of securities. The actual market prices of the Reorganized Common Equity may be volatile. Many factors, including factors unrelated to the Reorganized Debtors' actual operating performance and other factors not possible to predict, could cause the market prices of the Reorganized Common Equity to rise and fall. Accordingly, the implied value, stated herein and in the Plan, of the securities to be issued does not necessarily reflect, and should not be construed as reflecting, values that will be attained for the Reorganized Common Equity in public or private markets, as applicable.

6. Certain Holders of Securities May Be Restricted in Their Ability to Transfer or Sell Their Securities

To the extent that securities issued under the Plan are done so in reliance on the exemption from registration under section 1145(a)(1) of the Bankruptcy Code, such securities may be resold by the holders thereof without registration under the Securities Act unless the holder is an "underwriter," as defined in section 1145(b) of the Bankruptcy Code with respect to such securities. Resales by holders of Claims who 1145 Securities pursuant to the Plan that are deemed to be "underwriters" would not be exempted by section 1145 of the Bankruptcy Code from registration under the Securities Act or applicable law. In addition, certain securities under the Plan will be issued pursuant to other exemptions from the registration requirements of the Securities Act, including pursuant to section 4(a)(2) thereof or Regulation D or Regulation S promulgated thereunder, and such securities will be "restricted" securities under applicable securities laws, and subject to comparable restrictions on transferability. Holders of securities not exempted by section 1145 of the Bankruptcy Code, including the foregoing restricted securities, would only be permitted to sell such securities without registration if they are able to comply with an applicable exemption from registration, including Rule 144 under the Securities Act or Regulation S thereunder. Additionally, to the extent any holder is deemed an "affiliate" of the Reorganized Debtors, the resale of any securities issued under section 1145 of the Bankruptcy Code by that holder will be subject to the "control securities" restrictions of Rule 144 under the Securities Act.

The securities issued under the Plan will not initially be registered under the Securities Act or any state securities laws, and the Debtors make no representations regarding the right of any holder of such securities to freely resell such securities.

G. Factors Relating to Tax

1. General Risks Associated with OPI's REIT Status

While OPI currently intends to continue to be treated as a REIT for U.S. federal income tax purposes following the Effective Date, OPI's intention in this regard may change. Even if OPI intends to continue to be treated as a REIT after the Effective Date, OPI may not meet the conditions for qualification and taxation as a REIT or compliance with the REIT requirements may hinder OPI's ability to grow, which could adversely affect the value of OPI's shares.

If, with respect to any taxable year, OPI fails to maintain its qualification as a REIT, OPI would not be allowed to deduct distributions to shareholders in computing its taxable income and federal income tax. The corporate level income tax would apply to OPI's taxable income at regular

corporate rates. As a result, the amount available for distribution to holders of equity securities that would otherwise receive dividends if OPI remained a REIT would be reduced for the year or years involved, and OPI would no longer be required to make distributions to shareholders. In addition, unless entitled to relief under the relevant statutory provisions, OPI would be disqualified from treatment as a REIT for four subsequent taxable years.

In general, to remain qualified for taxation as a REIT, OPI will be required to pay dividends to its shareholders aggregating annually to at least 90% of its REIT taxable income. The Debtors expect that the aggregate adjusted tax basis in their assets will significantly exceed the aggregate fair market value of their assets immediately prior to the Effective Date. However, the Debtors' ability to utilize such adjusted tax basis in their assets to generate annual cost recovery deductions and losses on sales of properties that could offset gains on sales of other properties, in each case, to reduce or eliminate taxable income may be significantly limited under IRC Section 382 as a result of an "ownership change" arising in connection with the consummation of the Plan. This, in turn, could materially increase OPI's taxable income and required distributions to maintain its REIT status. While an exception to the foregoing limitation rules may be available if an "ownership change" in connection with the consummation of the Plan satisfies the requirements of IRC Section 382(l)(5), there is significant uncertainty as to whether such an "ownership change" will meet those requirements. Furthermore, differences in timing between taxable income and cash available for distribution could require OPI to borrow funds or to issue additional equity to enable it to meet the 90% distribution requirement (and therefore to maintain its REIT status). However, no assurance can be provided that OPI would have access to such funding nor that such funding would be available to meet OPI's distributions and tax obligations.

2. Non-U.S. Holders May Be Subject to U.S. Federal Income Taxes on Gain Recognized on the Sale of Their Shares if OPI Fails to Qualify as a "Domestically Controlled" REIT

A non-United States person disposing of a United States real property interest, including shares of an entity that is a United States real property holding corporation (generally, corporations and entities classified as corporations for U.S. federal income tax purposes that hold USRPIs whose fair market value equals or exceeds 50% of certain specified assets), is generally subject to a tax under the Foreign Investment in Real Property Tax Act, known as FIRPTA, on the gain recognized on the disposition of such interest. FIRPTA does not apply, however, to the disposition of shares in a REIT if the REIT is a "domestically controlled" REIT. A REIT is "domestically controlled" for this purpose if, at all times during a specified testing period (generally, the continuous five-year period ending on the date of disposition), less than 50% in value of its shares is held directly or indirectly by non-United States persons.

The Reorganized Common Equity interests are generally expected to be United States real property interests potentially subject to FIRPTA taxation. Prior to OPI's delisting from NASDAQ in October 2025, the Debtors believe that OPI qualified as a domestically controlled REIT. The application of the rules to determine whether a REIT is domestically controlled is different for a REIT whose shares are de-listed, but the Debtors have concluded that OPI has continued to be regularly traded on an established securities market, first on the OTC Pink Sheets Market and now on the OTC Expert Market. Accordingly, the Debtors do not believe that OPI's delisting has caused it not to be domestically controlled. However, no assurance can be given that OPI will be a

domestically controlled REIT immediately after consummation of the Plan or thereafter. Accordingly, it is possible that non-U.S. holders of the Reorganized Common Equity may be subject to U.S. federal income taxes on any gain recognized on a taxable disposition of such Equity.

H. Additional Factors

1. Debtors Could Withdraw Plan

Subject to the terms of, and without prejudice to, the rights of any party to the Restructuring Support Agreement, including consent rights contained therein, the Plan may be revoked or withdrawn prior to the Confirmation Date by the Debtors.

2. Debtors Have No Duty to Update

The statements contained in this Disclosure Statement are made by the Debtors as of the date hereof, unless otherwise specified herein, and the delivery of this Disclosure Statement after that date does not imply that there has been no change in the information set forth herein since that date. The Debtors have no duty to update this Disclosure Statement unless otherwise ordered to do so by the Bankruptcy Court.

3. The Financial Information Contained in this Disclosure Statement Has Not Been Audited

In preparing this Disclosure Statement, the Debtors and their advisors relied on financial data derived from their books and records that was available at the time of such preparation. Although the Debtors have used their reasonable business judgment to ensure the accuracy of the financial information, and any conclusions or estimates drawn from such financial information, provided in this Disclosure Statement, and while the Debtors believe that such financial information fairly reflects the financial condition of the Debtors, the Debtors are unable to warrant that the financial information contained herein, or any such conclusions or estimates drawn therefrom, is without inaccuracies.

4. No Representations Outside this Disclosure Statement Are Authorized

No representations concerning or related to the Debtors, the Chapter 11 Cases, or the Plan are authorized by the Bankruptcy Court or the Bankruptcy Code, other than as set forth in this Disclosure Statement. Any representations or inducements made to secure your vote for acceptance or rejection of the Plan that are other than those contained in, or included with, this Disclosure Statement should not be relied upon in making the decision to vote to accept or reject the Plan.

5. No Legal or Tax Advice Is Provided by this Disclosure Statement

The contents of this Disclosure Statement should not be construed as legal, business, or tax advice. Each holder of a Claim or Interest should consult their own legal counsel and accountant as to legal, tax, and other matters concerning their Claim or Interest. This Disclosure Statement is not

legal advice to you. This Disclosure Statement may not be relied upon for any purpose other than to determine how to vote on the Plan or object to confirmation of the Plan.

6. No Admission Made

Nothing contained herein or in the Plan will constitute an admission of, or will be deemed evidence of, the tax or other legal effects of the Plan on the Debtors or holders of Claims or Interests.

7. Certain Tax Consequences

For a discussion of certain tax considerations to the Debtors and certain holders of Claims in connection with the implementation of the Plan, see Article VIII hereof.

X.

SOLICITATION AND VOTING PROCEDURES

Holders of Claims entitled to vote on the Plan are advised to read the Solicitation Procedures Order, which sets forth in greater detail the voting instructions summarized herein.

Before voting to accept or reject the Plan, each holder of a Claim entitled to vote on the Plan should carefully review the Plan attached hereto as **Exhibit A**. All descriptions of the Plan set forth in this Disclosure Statement are subject to the terms and conditions of the Plan.

A. The Voting Record Date and Voting Deadline

Voting Record Date. The Bankruptcy Court has approved February 13, 2026 as the voting record date (the “***Voting Record Date***”) with respect to all Claims and Interests in the Voting Classes. The Voting Record Date is the date on which the Debtors will determine which Holders of Claims in the Voting Classes are entitled to vote to accept or reject the Plan.

Voting Deadline. The Bankruptcy Court has approved **4:00 p.m. (prevailing Central Time) on April 15, 2026 as the Voting Deadline**. The Voting Deadline is the date by which all Ballots must be properly executed, completed and delivered so as to be ***actually received*** by the Solicitation Agent in order to be counted as votes to accept or reject the Plan.

B. Parties Entitled to Vote and Types of Ballots

Under the Bankruptcy Code, only holders of claims or interests in “impaired” classes are entitled to vote on a plan. Under section 1124 of the Bankruptcy Code, a class of claims or interests is deemed to be “impaired” under a plan unless (i) the plan leaves unaltered the legal, equitable, and contractual rights to which such claim or interest entitles the holder thereof or (ii) notwithstanding any legal right to an accelerated payment of such claim or interest, the plan cures all existing defaults (other than defaults resulting from the occurrence of events of bankruptcy) and reinstates the maturity of such claim or interest as it existed before the default.

If, however, the holder of an impaired claim or interest will not receive or retain any distribution under the plan on account of such claim or interest, the Bankruptcy Code deems such holder to have rejected the plan, and, accordingly, holders of such claims and interests do not actually vote on the plan. If a claim or interest is not impaired by the plan, the Bankruptcy Code presumes the holder of such claim or interest to have accepted the plan and, accordingly, holders of such claims and interests are not entitled to vote on the Plan.

A vote may be disregarded if the Bankruptcy Court determines, pursuant to section 1126(e) of the Bankruptcy Code, that it was not solicited or procured in good faith or in accordance with the provisions of the Bankruptcy Code.

The Claims in the following Classes are impaired under the Plan and entitled to vote to accept or reject the Plan: The Debtors will provide the following ballots (collectively, the “***Ballots***”) directly to Holders of Claims in the Voting Classes (i.e., Class 5, Class 6, Class 7, Class 8, Class 9, Class 10, Class 11, and Class 12) (collectively, the “***Voting Holders***”) or, as applicable, through their Nominees (as described below):

Class	Claim	Ballot
5	March 2029 Senior Secured Notes Claims	• <i>“March 2029 Senior Secured Notes Beneficial Holder Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 10-A, will be sent to Beneficial Holders of Class 5 Claims through their Nominees • <i>“March 2029 Senior Secured Notes Master Ballots,”</i> the form of which is attached to the Solicitation Procedures Order as Exhibit 10-B, will be sent to Nominees of Beneficial Holders of Class 5 Claims
6	2027 Senior Secured Notes Claims	• <i>“2027 Senior Secured Notes Beneficial Holder Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 3-A, will be sent to Beneficial Holders of Class 6 Claims through their Nominees • <i>“2027 Senior Secured Notes Master Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 3-B, will be sent to Nominees of Beneficial Holders of Class 6 Claims
7	September 2029 Senior Secured Notes Claims	• <i>“September 2029 Senior Secured Notes Beneficial Holder Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 4-A, will be sent to Beneficial Holders of Class 7 Claims through their Nominees • <i>“September 2029 Senior Secured Notes Master Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 4-B, will be sent to Nominees of Beneficial Holders of Class 7 Claims
8	DIP Claims	• <i>“DIP Claim Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 5, will be sent to Holders of Class 8 Claims

9	Priority Guaranteed Unsecured Notes Claims	• <i>“Priority Guaranteed Unsecured Notes Beneficial Holder Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 6-A, will be sent to Beneficial Holders of Class 9 Claims through their Nominees; • <i>“Priority Guaranteed Unsecured Notes Master Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 6-B, will be sent to Nominees of Beneficial Holders of Class 9 Claims
10	Unsecured Notes Claims	• <i>“Unsecured Notes Beneficial Holder Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 7-A, will be sent to Beneficial Holders of Class 10 Claims through their Nominees³⁵ • <i>“Unsecured Notes Master Ballots,”</i> the form of which is attached to the Supplemental Solicitation Procedures Order as Exhibit 7-B, will be sent to Nominees of Beneficial Holders of Class 10 Claims³⁶
11	Trade and Vendor Claims	• <i>“Trade and Vendor Claim Ballots,”</i> the form of which is attached to the Solicitation Procedures Order as Exhibit 8, will be sent to Holders of Class 11 Claims
12	Other General Unsecured Claims	<i>“Other General Unsecured Claim Ballots,”</i> the form of which is attached to the Solicitation Procedures Order as Exhibit 9, will be sent to Holders of Class 12 Claims.

Subject to the terms of the Restructuring Support Agreement, each Ballot will include an option for the applicable Holder of Claims to affirmatively opt out of the Third-Party Release contained in Section 10.6(b) of the Plan. To the extent a Voting Party wishes to opt out of the Third-Party

³⁵ The March 2029 Senior Secured Notes Beneficial Holder Ballots, 2027 Senior Secured Notes Beneficial Holder Ballots, September 2029 Senior Secured Notes Beneficial Holder Ballots, Priority Guaranteed Unsecured Notes Beneficial Holder Ballots, and the Unsecured Notes Beneficial Holder Ballots, are collectively, the ***“Beneficial Holder Ballots.”***

³⁶ The March 2029 Senior Secured Notes Master Ballots, 2027 Senior Secured Notes Master Ballots, September 2029 Senior Secured Notes Master Ballots, Priority Guaranteed Unsecured Notes Master Ballots, and Unsecured Notes Master Ballots, are, collectively, the ***“Master Ballots.”***

Releases, the Voting Party must check the box on the Ballot indicating such Voting Party is electing to opt out of the Third-Party Release and follow the instructions on the applicable Ballot to properly submit their elections.

Voting Holders should read their Ballot(s) carefully and follow the instructions contained therein. Please use only the Ballot(s) that accompanies this Disclosure Statement to cast your vote. Each Ballot contains detailed voting instructions and sets forth in detail, among other things, the deadlines, procedures, and instructions for voting to accept or reject the Plan, the Voting Record Date for voting purposes, and the applicable standards for tabulating Ballots. Beneficial Holders in the Noteholder Voting Classes (as defined below) must vote according to voting instructions provided by their Nominees.

C. Voting Instructions

Under the Plan, Holders of Claims in the Voting Classes are entitled to vote to accept or reject the Plan. Those Holders may vote by completing a Ballot and returning it, or causing it to be returned, to the Solicitation Agent so that it is **actually received** by the Voting Deadline.

There are special voting rules and procedures for Beneficial Holders of Class 5, Class 6, Class 7, Class 9, and Class 10 Claims (the “*Noteholder Voting Classes*”) and their Nominees, which are discussed in subsection D.1 below (and set forth in greater detail in the Solicitation Procedures Order and in the applicable form of Beneficial Holder Ballot and Master Ballot).

Each Ballot will also allow Holders of Claims in the Voting Classes to opt out of the Third-Party Release set forth in Section 10.6(b) of the Plan. Any Holder of Claims in the Voting Classes that opts out of the Third-Party Release will not receive a Debtor Release or a Third-Party Release from the Releasing Parties, subject to the terms of the Restructuring Support Agreement.

PLEASE REFER TO THE INSTRUCTIONS ATTACHED TO THE BALLOTS THAT YOU HAVE RECEIVED FOR MORE DETAILED INFORMATION REGARDING THE VOTING REQUIREMENTS, RULES AND PROCEDURES APPLICABLE TO VOTING YOUR CLAIM OR TRANSMITTING THE VOTE OF ANY BENEFICIAL HOLDER FOR WHOM YOU ARE THE NOMINEE.

The Debtors have engaged Kroll Restructuring Administration LLC as their Solicitation Agent to assist in the transmission of voting materials and in the tabulation of votes with respect to the Plan. To be counted as votes to accept or reject the Plan, **all** Ballots (all of which will clearly indicate the appropriate return address), are required to be properly executed, completed, dated and delivered according to the instructions contained thereon, so that they are **actually received** on or before the Voting Deadline by the Solicitation Agent in the manner prescribed in the Ballots.

IF A BALLOT IS DAMAGED OR LOST, YOU MAY CONTACT THE SOLICITATION AGENT AT THE NUMBER SET FORTH BELOW TO RECEIVE A REPLACEMENT BALLOT.

IF YOU HAVE ANY QUESTIONS CONCERNING VOTING PROCEDURES, YOU MAY CONTACT THE SOLICITATION AGENT BY (BENEFICIAL HOLDERS OF CLAIMS IN

THE NOTEHOLDER VOTING CLASSES SHOULD REFER QUESTIONS REGARDING VOTING INSTRUCTIONS PROVIDED BY THEIR NOMINEES TO SUCH NOMINEES):

E-mail: OPIinfo@ra.kroll.com (with a reference to “OPI Solicitation Inquiry” in the subject line) or Telephone: (877) 418-2778 (U.S./Canada, toll-free) or +1 (646) 825-3871 (international, toll).

Additional copies of this Disclosure Statement, the Plan, and the Plan Supplement (when filed) are available, free of charge, upon written request made to the Solicitation Agent, at the e-mail address set forth immediately above or at the following address (solicitation documents can also be reviewed and downloaded, free of charge, at the Debtors’ Chapter 11 case website maintained by the Solicitation Agent at <https://restructuring.ra.kroll.com/OPI>):

**OPI Ballot Processing Center
c/o Kroll Restructuring Administration LLC
850 Third Avenue, Suite 412
Brooklyn, New York 11232**

ANY BALLOT THAT IS EXECUTED AND RETURNED BUT WHICH DOES NOT INDICATE EITHER AN ACCEPTANCE OR REJECTION OF THE PLAN WILL NOT BE COUNTED. OTHER THAN THE MASTER BALLOTS, ANY BALLOT THAT INDICATES BOTH AN ACCEPTANCE AND A REJECTION OF THE PLAN WILL NOT BE COUNTED. THE DEBTORS, IN THEIR SOLE DISCRETION, MAY REQUEST THAT THE SOLICITATION AGENT ATTEMPT TO CONTACT SUCH VOTERS TO CURE ANY SUCH DEFECTS IN THE BALLOTS. THE FAILURE TO VOTE DOES NOT CONSTITUTE A VOTE TO ACCEPT OR REJECT THE PLAN. AN OBJECTION TO THE CONFIRMATION OF THE PLAN, EVEN IF TIMELY SERVED, DOES NOT CONSTITUTE A VOTE TO ACCEPT OR REJECT THE PLAN.

D. Voting Procedures

Voting Holders in each Class should provide all of the information requested by the applicable Ballot and should complete and return all Ballots received in accordance with the instructions provided.

1. Voting Procedures for Noteholder Voting Classes

Record holders of March 2029 Senior Secured Notes Claims, 2027 Senior Secured Notes Claims, September 2029 Senior Secured Notes Claims, Priority Guaranteed Unsecured Notes Claims, and Unsecured Notes Claims (collectively, the “*Notes Claims*”) may include brokers, dealers, commercial banks, trust companies, or other agent nominees (“*Nominees*”). If such entities do not hold Notes Claims for their own account, they must provide copies of the Solicitation Package to their beneficial holder clients in the Noteholder Voting Classes that are the Voting Holders of such Notes Claims as of the Voting Record Date (the “*Beneficial Holders*”). Any Voting Holder of Notes Claims who has not received a Ballot should contact his, her, or its Nominee or the Solicitation Agent.

The following voting procedures apply to Beneficial Holders and their Nominees in the Noteholder Voting Classes:

- (a) the Solicitation Agent will distribute or cause to be distributed through the applicable Nominees (i) Solicitation Packages for each Beneficial Holder in the Noteholder Voting Classes, as of the Voting Record Date, represented by a Nominee, which will contain, among other things, a Beneficial Holder Ballot for each Beneficial Holder, and (ii) a Master Ballot for the Nominee;
- (b) any Nominee that is a Holder of record with respect to Claims in the Noteholder Voting Classes shall vote on behalf of, or facilitate voting by, Beneficial Holders of such Claims, as applicable, either by
 - (i) (A) immediately, and in any event within three Business Days after its receipt of the Solicitation Packages, distributing the Solicitation Packages, including the Beneficial Holder Ballots, it receives from the Solicitation Agent to all such Beneficial Holders, (B) providing such Beneficial Holders with a return address to send the completed Beneficial Holder Ballots, (C) compiling and validating the votes and other relevant information of all such Beneficial Holders on the Master Ballot, and (D) transmitting the Master Ballot to the Solicitation Agent so that it is received no later than the Voting Deadline, or
 - (ii) if the Nominee elects to “pre-validate” the Beneficial Holder Ballots, immediately, and in any event within three Business Days after receipt of the Solicitation Packages, distributing the Solicitation Packages it receives from the Solicitation Agent to all such Beneficial Holders, including in each package a Beneficial Holder Ballot that it has “pre-validated,” signed by the Nominee and including the Nominee’s name and DTC participant number, the Beneficial Holder’s account number and name, the amount of Claims held by the Nominee for such Beneficial Holder, a medallion guarantee stamp (or list of authorized signers) confirming the Beneficial Holder’s position in the applicable notes as of the Voting Record Date, so that the Beneficial Holder may complete and return the pre-validated Beneficial Holder Ballot directly to the Solicitation Agent so that it is received no later than the Voting Deadline;
- (c) the applicable indenture trustee will not be entitled to vote on behalf of a Beneficial Holder; rather, each Beneficial Holder must vote his or her own Claim(s) in the Noteholder Voting Classes according to instructions received from its Nominee;
- (d) any vote returned to a Nominee by a Beneficial Holder, whether in a Beneficial Holder Ballot or otherwise according to the Nominee’s instructions, shall not be counted for purposes of accepting or rejecting the Plan until such Nominee properly completes and delivers to the Solicitation Agent a Master Ballot that reflects the vote of such Beneficial Holders so that it is received no later than the Voting Deadline or otherwise validates the Beneficial Holder Ballot in a manner acceptable to the Solicitation Agent. Nominees will retain all Beneficial Holder Ballots returned by Beneficial Holders for a period of one year after the Effective Date of the Plan;

- (e) if a Beneficial Holder holds Claims in the Noteholder Voting Classes through more than one Nominee or through multiple accounts, such Beneficial Holder may receive more than one Beneficial Holder Ballot and each such Beneficial Holder should execute a separate Beneficial Holder Ballot for each block of Claims that it holds through any Nominee and must return each such Beneficial Holder Ballot to the appropriate Nominee;
- (f) votes cast by Beneficial Holders through Nominees will be applied to the applicable positions held by such Nominees, as of the Voting Record Date, as evidenced by the applicable securities position report(s) obtained from DTC. Votes submitted by a Nominee pursuant to a Master Ballot will not be counted in excess of the amount of such Claims held by such Nominee as of the Voting Record Date. Votes cast on account of Claims in the Noteholder Voting Classes will be tabulated in the same manner with respect to each applicable Debtor;
- (g) Master Ballots may be submitted (i) by first class mail, overnight courier, or hand delivery to the Kroll address set forth below and in the Master Ballot, or (ii) via e-mail to OPIBallots@ra.kroll.com with “OPI Solicitation Master Ballot Submission” in the subject line;
- (h) Beneficial Holders may submit a pre-validated Beneficial Holder Ballot directly to the Solicitation Agent, in accordance with instructions provided by the applicable Nominee, via (i) first class mail, hand delivery, or overnight courier to OPI Ballot Processing Center, c/o Kroll Restructuring Administration LLC, 850 3rd Avenue, Suite 412, Brooklyn, New York 11232 or (ii) e-mail to OPIBallots@ra.kroll.com (with “OPI Solicitation Pre-Validated Ballot Submission” in the subject line);
- (i) if conflicting votes or “over votes” are submitted by a Nominee pursuant to a Master Ballot, the Solicitation Agent will use reasonable efforts to reconcile discrepancies with the Nominees. If over votes on a Master Ballot are not reconciled before the preparation of the voting report tabulating votes on the Plan, the Debtors shall apply the votes to accept and to reject the Plan in the same proportion as the votes to accept and to reject the Plan submitted on the Master Ballot that contained the over vote, but only to the extent of the Nominee’s position in applicable Noteholder Voting Class;
- (j) to assist in the solicitation process, the Solicitation Agent may, but is not required to, contact parties that submit incomplete or otherwise deficient Ballots to make a reasonable effort to cure such deficiencies; provided, however, that the Solicitation Agent is not obligated to do so and neither the Debtors nor the Solicitation Agent will suffer any liability for failure to notify parties of such deficiencies;
- (k) for purposes of tabulating votes, each Nominee or Beneficial Holder will be deemed to have voted the principal amount of its Claims in the Noteholder Voting Classes, although any principal amounts may be adjusted by the Solicitation Agent to reflect the amount of the Claim actually voted, including prepetition interest;
- (l) a single Nominee may complete and deliver to the Solicitation Agent multiple Master Ballots. Votes reflected on multiple Master Ballots will be counted, except to the extent

that they are duplicative of other Master Ballots. If two or more Master Ballots are inconsistent, the latest received valid Master Ballot received before the Voting Deadline will, to the extent of such inconsistency, supersede and revoke any prior received Master Ballot. Likewise, if a Beneficial Holder submits more than one Ballot to its Nominee, (i) the latest received Beneficial Holder Ballot received before the submission deadline imposed by the Nominee shall be deemed to supersede any prior Beneficial Holder Ballot submitted by the Beneficial Holder, and (ii) the Nominee shall complete the Master Ballot accordingly; and

- (m) no fees or commissions or other remuneration will be payable to any Nominee, broker, dealer, or other person for soliciting Beneficial Holder Ballots with respect to the Plan.

Specific Instructions for Beneficial Holders. A Voting Holder who holds Notes Claims as a registered record holder in its own name should vote on the Plan by completing and signing the applicable Beneficial Holder Ballot and returning it directly to the Solicitation Agent on or before the Voting Deadline via (i) the enclosed self-addressed, postage paid envelope; (ii) first class mail, hand delivery, or overnight courier to OPI Ballot Processing Center, c/o Kroll Restructuring Administration LLC, 850 3rd Avenue, Suite 412, Brooklyn, New York 11232; or (iii) e-mail to OPIBallots@ra.kroll.com (with “OPI Solicitation Record Holder Ballot Submission” in the subject line).

A Voting Holder who is a Beneficial Holder (i.e., holding Notes Claims in “street name” through a Nominee) may vote on the Plan by

- (a) Completing and signing the Beneficial Holder Ballot provided to the applicable Holder by their Nominee. Holders of Notes Claims should return the Beneficial Holder Ballot to their Nominee as promptly as possible in accordance with the instructions provided by their Nominee and in sufficient time to allow such Nominee to process the Holder’s instructions and return a completed Master Ballot to the Solicitation Agent by the Voting Deadline; or
- (b) Completing the “pre-validated” Beneficial Holder Ballot (as described below) provided to the applicable Holder by their Nominee. Voting Holders should return the “pre-validated” Beneficial Holder Ballot to the Solicitation Agent by the Voting Deadline.

Any Beneficial Holder Ballot returned to a Nominee by a Voting Holder will not be counted for purposes of acceptance or rejection of the Plan until such Nominee properly completes and delivers to the Solicitation Agent that Beneficial Holder Ballot (properly validated) or a Master Ballot casting the vote of such Holder.

If any Voting Holder owns Notes Claims through more than one Nominee, such Holder may receive multiple mailings containing the Beneficial Holder Ballots. The Voting Holder should execute a separate Beneficial Holder Ballot for each block of Notes Claims that it holds through any particular Nominee and return each Beneficial Holder Ballot to the respective Nominee in the return envelope provided therewith, if any, or in accordance with the Nominee’s voting instructions. Voting Holders who execute multiple Beneficial Holder Ballots with respect to Notes

Claims held through more than one Nominee must indicate on each Beneficial Holder Ballot the names of all such other Nominees and the additional amounts of such Notes Claims so held and voted.

Specific Instructions for Nominees. Prior to the Solicitation Mailing Date, the Solicitation Agent will determine the Nominees holding Notes Claims on behalf of Beneficial Holders of such Notes Claims as of the Voting Record Date, as evidenced by the applicable securities position report(s) obtained from DTC, and will distribute an appropriate number of Solicitation Packages to such Nominees to allow them to forward one to each applicable Beneficial Holder.

A Nominee that, on the Voting Record Date, is the record holder of Notes Claims for one or more Voting Holders may obtain the votes of Voting Holders of such Notes Claims in the following ways:

- (a) ***Pre-Validated Ballots.*** The Nominee may “pre-validate” a Beneficial Holder Ballot by signing the Beneficial Holder Ballot and including their DTC participant number; indicating the account number of the Beneficial Holder and the principal amount of the applicable Claims held by the Nominee for such Beneficial Holder accompanied by a medallion guarantee stamp (or list of authorized signers) certifying the Beneficial Holder’s position as of the Voting Record Date; and then forwarding the Beneficial Holder Ballot together with this Disclosure Statement, and preaddressed, postage-paid return envelope addressed to, and provided by, the Solicitation Agent, and other materials requested to be forwarded, to the Voting Holder for voting. The Beneficial Holder then completes the remaining information requested on the Beneficial Holder Ballot and returns the Beneficial Holder Ballot directly to the Solicitation Agent so that it is **actually received** by the Solicitation Agent on or before the Voting Deadline.
- (b) ***Master Ballots.*** If the Nominee elects not to pre-validate Beneficial Holder Ballots, the Nominee may obtain the votes of Voting Holders by forwarding to the Voting Holders the unsigned Beneficial Holder Ballots, together with this Disclosure Statement, a pre-addressed, postage-paid return envelope addressed to, the Nominee, and other materials in the Solicitation Package. After collecting the Beneficial Holder Ballots completed by the Nominee’s Voting Holders, the Nominee should, in turn, complete a Master Ballot compiling the votes and other information from the Beneficial Holder Ballots, execute the Master Ballot, and deliver the Master Ballot to the Solicitation Agent so that it is **actually received** by the Solicitation Agent on or before the Voting Deadline.

For the avoidance of doubt and consistent with industry standard, Nominees, in lieu of forwarding paper copies of, or flash drives containing, the Solicitation Packages and Beneficial Holder Ballots to their beneficial holder clients, may employ the Nominee’s customary practice of providing notice of the voting event and the terms thereof to their beneficial holder clients, as well as collecting their beneficial holder clients’ votes and opt-out elections, whether by e-mail, telephone, or providing electronic access to an online platform. Furthermore, if it is the Nominee’s customary and accepted practice to submit a “voting instruction form” to beneficial

holders for the purpose of conveying solicitation information and recording the beneficial holder's vote, Nominees may send such voting instruction form in lieu of, or in addition to, a Beneficial Holder Ballot; *provided* that, regardless of the means by which Nominees record their beneficial holder clients' votes, such votes will not be tabulated by the Solicitation Agent until the Nominee submits a Master Ballot containing its beneficial holder clients' vote(s) to the Solicitation Agent on or before the Voting Deadline.

Notwithstanding anything to the contrary set forth in this Disclosure Statement or the Solicitation Procedures, Nominees shall forward paper copies of, or flash drives containing, the Solicitation Packages and Beneficial Ballots to their Beneficial Holder clients upon request of such Beneficial Holder clients or the applicable trustee or agent.

- (c) ***Special Procedures for Beneficial Holders of Class 16 Existing Equity Interests.*** Beneficial Holders of Class 16 Existing Equity Interests will receive their Opt-In Non-Voting Status Notices and Release Opt-In Forms, as applicable, from the Nominees through which they hold their equity in "street name". The Nominees will be served, in the Debtors' sole discretion, via electronic mail (where available) or via next business day service or first class mail, with a sufficient number of Opt-In Non-Voting Status Notices, and Release Opt-In Forms for each Beneficial Holder represented by the applicable Nominee as of the Voting Record Date. As detailed in the Release Opt-In Form, Beneficial Holders who elect to opt in to, in the case of Class 16 Interests, the Plan Releases will submit their Release Opt-In Forms directly to the Solicitation Agent (i) in paper format by regular mail, overnight courier, or hand delivery or (ii) online via the Public Equity Opt-In Portal.

EACH NOMINEE SHOULD ADVISE ITS VOTING HOLDERS TO RETURN THEIR BENEFICIAL HOLDER BALLOTS TO THE NOMINEE BY A DATE CALCULATED BY THE NOMINEE TO ALLOW IT TO PREPARE AND RETURN THE MASTER BALLOT TO THE SOLICITATION AGENT SO THAT IT IS **ACTUALLY RECEIVED** BY THE SOLICITATION AGENT ON OR BEFORE THE VOTING DEADLINE.

NOMINEES AND BENEFICIAL HOLDERS MAY RETURN MASTER BALLOTS OR PRE-VALIDATED BENEFICIAL HOLDER BALLOTS, AS APPLICABLE, VIA E-MAIL TO OPIBALLOTS@RA.KROLL.COM WITH A REFERENCE TO "OPI SOLICITATION MASTER/PRE-VALIDATED BENEFICIAL HOLDER BALLOT SUBMISSION" IN THE SUBJECT LINE.

2. Voting Procedures for Holders of DIP Claims, Trade and Vendor Claims, and Other General Unsecured Claims

Each holder of a Claim in Class 8 (DIP Claims), Class 11 (Trade and Vendor Claims), and Class 12 (Other General Unsecured Claims) will receive its Solicitation Package containing the applicable Ballot(s) directly from the Solicitation Agent and will be served, in the Debtors' sole discretion, via electronic mail, first-class mail, or overnight delivery.

Voting Holders of DIP Claims, Trade and Vendor Claims, and Other General Unsecured Claims should provide all of the information requested on their Ballots, and should complete and submit their Ballots in accordance with the instructions set forth therein, such that it is actually received by the Solicitation Agent by the Voting Deadline.

3. Tabulation of Votes and Other Balloting Requirements

THE FOLLOWING IS IMPORTANT INFORMATION REGARDING VOTING THAT SHOULD BE READ CAREFULLY BY ALL HOLDERS OF CLAIMS IN THE VOTING CLASSES. PLEASE REFER TO THE SOLICITATION PROCEDURES ORDER AND ALL EXHIBITS ATTACHED THERETO, INCLUDING THE BALLOTS, FOR MORE DETAILED INFORMATION.

- (a) For your vote to be counted, your Ballot must be properly executed, completed, and delivered to the Solicitation Agent so that it is **actually received** no later than the Voting Deadline. Beneficial Holders in the Noteholder Voting Classes who receive a Beneficial Holder Ballot from a Nominee are advised to return the Beneficial Holder Ballot to such Nominee (in accordance with the Nominee's instructions) with sufficient time for such Nominee to complete and return the Master Ballot to the Solicitation Agent prior to the Voting Deadline.
- (b) A Holder of a Claim may cast only one vote per each Claim so held. By signing and returning a Ballot, each Holder of a Claim will certify to the Bankruptcy Court and the Debtors that no other Ballots with respect to such Claim has been cast or, if any other Ballots have been cast with respect to such Claim, such earlier Ballots are thereby superseded.
- (c) **Any Ballot that is received *after* the Voting Deadline will *not* be counted toward confirmation of the Plan unless the Debtors have granted an extension of the Voting Deadline in writing (e-mail being sufficient) with respect to such Ballot.**
- (d) **Additionally, the following Ballots will *not* be counted:**
 - (i) any Ballot that is illegible or contains insufficient information to permit the identification of the claimant;
 - (ii) any Ballot cast by or on behalf of an entity that does not hold a Claim in a Voting Class;
 - (iii) any Ballot that is otherwise properly completed, executed and timely returned to the Solicitation Agent, but that (x) does not indicate an acceptance or rejection of the Plan, (y) indicates both an acceptance and rejection of the Plan, or (z) partially accepts and partially rejects the Plan;
 - (iv) any Ballot submitted by telecopy, facsimile, e-mail (other than Master Ballots or pre-validated Beneficial Holder Ballots), or other electronic means except for the Solicitation Agent's online balloting portal;

- (v) any unsigned Ballot;
- (vi) in the event (x) a Ballot, (y) a group of Ballots within a Voting Class received from a single creditor, or (z) a group of Ballots received from the various Holders of multiple portions of a single Claim partially reject and partially accept the Plan, such Ballots may not be counted in the Debtors' discretion;
- (vii) any Ballot sent to the Debtors, the Debtors' agents or representatives (other than the Solicitation Agent), or the Debtors' financial or legal advisors; and
- (viii) any Ballot not cast in accordance with the procedures approved in the Solicitation Procedures Order.

Other Balloting Requirements. The following specific terms shall also apply to the respective Classes of Claims:

- (a) **DIP Claims.** The Claim amounts for voting purposes only will be established based on the amounts of the applicable positions held by each claimant, as of the Voting Record Date, as evidenced by the applicable books and records maintained by the Debtors or the DIP Agent under the DIP Credit Agreement, with the register therefor provided, pursuant to the Bankruptcy Court's direction, to the Solicitation Agent in electronic Microsoft Excel, or similar electronic, format within one Business Day following the Voting Record Date.
- (b) **Notes Claims.** The amount of Claims held by directly registered and Beneficial Holders in the Noteholder Voting Classes (each as defined below), for voting purposes only, will be established through the applicable indenture trustee(s) or applicable Nominees (as defined below), as the case may be, in the amount of the applicable positions held by such registered or Nominee Holders as of the Voting Record Date, as evidenced by the applicable securities position report(s) from the Depository Trust Company ("**DTC**"), the applicable indenture trustee, or other applicable depository firm.

Other Tabulation Requirements. In tabulating votes, the following hierarchy will be used to determine the amount of the Claim associated with each such Holder's vote:

- (a) the Claim amount (i) settled or agreed upon by the Debtors, as reflected in a document filed with the Bankruptcy Court, (ii) set forth in an order of the Bankruptcy Court, or (iii) set forth in a document executed by the Debtors pursuant to authority granted by the Bankruptcy Court;
- (b) the Claim amount Allowed (temporarily or otherwise) pursuant to a motion for temporary allowance of a Claim for voting purposes;
- (c) the Claim amount contained in a valid Proof of Claim, except for any amounts asserted on account of any interest accrued after the Petition Date; *provided* that any Ballot cast by a Holder of a Claim who timely files a Proof of Claim in respect of (i) a wholly-contingent Claim or a Claim in a wholly unliquidated or unknown amount (based on a reasonable review by the Debtors or the Solicitation Agent) that is not the subject of an objection will count toward satisfying the numerosity requirement of section 1126(c) of the Bankruptcy

Code and will count as a Ballot for a Claim in the amount of \$1.00 solely for the purposes of satisfying the dollar amount provisions of section 1126(c) of the Bankruptcy Code and (ii) a partially liquidated and partially unliquidated Claim, such Claim will be Allowed for voting purposes only in the liquidated amount; provided, further, that to the extent the Claim amount contained in the Proof of Claim is different from the Claim amount set forth in a document filed with the Bankruptcy Court as referenced in subparagraph (a) above, the Claim amount in the document filed with the Bankruptcy Court shall supersede the Claim amount set forth on the respective Proof of Claim for voting purposes;

- (d) the Claim amount listed in the Schedules (to the extent such Claim is not superseded by a timely filed Proof of Claim); *provided* that such Claim is not scheduled as wholly-contingent, -disputed, or -unliquidated or has not been paid; *provided, further*, that if the applicable Claims Bar Date has not expired prior to the Voting Record Date, a Claim listed in the Schedules as wholly contingent, disputed, or -unliquidated shall not be entitled to vote;
- (e) Proofs of Claim filed for \$0.00 are not entitled to vote;
- (f) in the absence of any of the foregoing, such Claim shall be disallowed for voting purposes unless otherwise ordered by the Bankruptcy Court; and
- (g) notwithstanding anything to the contrary herein or in the Solicitation Procedures Order, any duplicate Claim, any Claim that is substantiated by an invoice that is invalid or previously rejected, or any Claim that has been paid, satisfied, amended, or superseded, may be adjusted or expunged on the Claims Register by the Debtors without the Debtors having to file an application, motion, complaint, objection, or any other legal proceeding seeking to object to such Claim and without any further notice to or action, order, or approval of the Bankruptcy Court.

4. Means of Ballot Submission

In addition to accepting hard-copy Ballots and hard-copy Release Opt-Out Forms and Release Opt-In Forms via first-class mail, overnight courier, and hand delivery, the Solicitation Agent will accept:

- (a) Ballots submitted by Voting Holders who are not Beneficial Holders of Notes Claims in the Noteholder Voting Classes, through a customized online balloting portal on the Debtors' case website to be maintained by the Solicitation Agent (the "***E Ballot Portal***");
- (b) Release Opt-Out Forms or Release Opt-In Forms submitted by Holders of Claims (but, for the avoidance of doubt, not Beneficial Holders of Class 16 Existing Common Equity) through the E-Ballot Portal; *provided* that any Ballots or Release Opt-In Forms submitted by beneficial Holders of Class 16 Existing Common Equity will be accepted (i) by first class mail, overnight courier, and hand delivery or (ii) through a customized online document submission portal located on the left-hand navigation panel of the Debtors'

restructuring website to be maintained by the Solicitation Agent (the “**Public Equity Opt-In Portal**”),³⁷

- (c) Master Ballots submitted by Nominees (as defined herein) via first class mail, overnight courier, or hand delivery or e-mail to OPIBallots@ra.kroll.com (with “OPI Solicitation Master Ballot Submission” in the subject line); and
- (d) “pre-validated” Beneficial Holder Ballots submitted directly to the Solicitation Agent by Beneficial Holders, in accordance with instructions provided by the applicable Nominee, via first class mail, overnight courier, or hand delivery or e-mail to OPIBallots@ra.kroll.com (with “OPI Solicitation Pre-Validated Ballot Submission” in the subject line).

The Debtors will file with the Bankruptcy Court a certification of votes (the “**Voting Declaration**”) as soon as practicable after the Voting Deadline and in advance of the Confirmation Hearing. The Voting Declaration will, among other things, set forth the voting results, certify to the Bankruptcy Court in writing the voting amount and number of Claims of the Voting Classes accepting or rejecting the Plan, and delineate every Ballot that is excluded from the final voting results, including, but not limited to, those Ballots that are late or (in whole or in material part) illegible, unidentifiable, lacking signatures or other necessary information, submitted in a manner not provided for herein, or damaged (“**Irregular Ballots**”). The Voting Declaration will also indicate the Debtors’ intentions with regard to each such Irregular Ballot.

Kroll is required to retain all paper copies of Ballots and all solicitation-related correspondence for one year following the Effective Date, whereupon, Kroll is authorized to destroy or otherwise dispose of all paper copies of Ballots; printed solicitation materials including unused copies of the Solicitation Package; and all solicitation-related correspondence (including undeliverable mail), in each case unless otherwise directed by the Debtors or the Clerk of the Court in writing within such one-year period.

5. Other Voting Requirements and Conditions

(a) Transferred Claims

With respect to any transferred Claim in a Voting Class, the transferee will be entitled to receive a Solicitation Package and, if the Holder of such Claim is entitled to vote with respect to the Plan, cast a Ballot on account of such Claim **only if**: (a) all actions necessary to effectuate the transfer of the Claim pursuant to Bankruptcy Rule 3001(e) have been completed by the Voting Record Date; or (b) the transferee files by the Voting Record Date (i) the documentation required by

³⁷ Holders of Claims and Interests entitled to submit a Ballot, Release Opt-Out Form, or Release Opt-In Form may elect to electronically cast, sign, and submit such Ballot, Release Opt-Out Form, or Release Opt-In Form instantly by utilizing the E-Ballot Portal or the Public Equity Opt-In Portal, as applicable. Instructions for electronic, online transmission of Ballots, Release Opt-Out Forms, and Release Opt-In Forms are set forth on the applicable forms of Ballot, Release Opt-Out Form, and Release Opt-In Form. The encrypted data and audit trail created by any electronic submission shall become part of the record of each applicable Ballot, Release Opt-Out Form, or Release Opt-In Form submitted through the E-Ballot Portal or the Public Equity Opt-In Portal, as applicable, and the applicable Holder’s electronic signature will be deemed to be immediately legally valid and effective.

Bankruptcy Rule 3001(e) to evidence the transfer and (ii) a sworn statement of the transferor supporting the validity of the transfer.

In the event a Claim is transferred after the Voting Record Date, the transferee of such Claim shall be bound by any vote on the Plan or opt-out election made by the Holder of such Claim as of the Voting Record Date. Where any portion of a single Claim has been transferred to a transferee, all Holders of any portion of such single Claim may be (a) treated as a single creditor for purposes of the numerosity requirements in section 1126(c) of the Bankruptcy Code and (b) required to vote every portion of such Claim collectively to accept or reject the Plan. In the event that (x) a Ballot, (y) a group of Ballots within one Voting Class received from a single creditor, or (z) a group of Ballots received from the various Holders of multiple portions of a single Claim partially reject and partially accept the Plan, such Ballot may not be counted in the Debtors' discretion.

(b) Claims Aggregation, Multiple Ballots, No Split Votes, Rejection Damages Claims

For purposes of the numerosity requirement of section 1126(c) of the Bankruptcy Code, separate Claims held by a single Holder in a particular Class may be aggregated and treated as if such Holder held one Claim in such Class, and all votes related to such Claim may be treated as a single vote to accept or reject the Plan; *provided, however*, that if separate affiliated entities hold Claims in a particular Class, these will not be aggregated and will not be treated as if such creditor held one Claim in such Class, and the vote of each affiliated entity will be counted separately as a vote to accept or reject the Plan.

If multiple Ballots are received from the same Holder with respect to the same Claim prior to the Voting Deadline, the last properly executed Ballot timely received by the Solicitation Agent will be deemed to reflect that voter's intent and will supersede and revoke any prior received Ballot. After the Voting Deadline, no Ballot may be withdrawn or modified without the prior written consent (e-mail being sufficient) of the Debtors.

Holders must vote all of their Claims within a particular Class either to accept or reject the Plan and may not split any votes. Accordingly, a Ballot (other than a Master Ballot) that partially rejects and partially accepts the Plan will not be counted. Further, to the extent there are multiple Claims within the same Class, the applicable Debtor may, in its discretion, aggregate the Claims of any particular Holder within a Class for the purpose of counting votes.

Holders of Claims that may be asserted against multiple Debtors must vote such Claims either to accept or reject the Plan at each such Debtor and may not vote any such Claim to accept at one Debtor and reject at another Debtor. Accordingly, a Ballot (other than a Master Ballot) that rejects the Plan for a Claim at one Debtor and accepts the Plan for the same Claim at another Debtor will not be counted.

For the avoidance of doubt, a Holder will only be entitled to receive a Solicitation Package on account of a Claim arising from the rejection of an Executory Contract or Unexpired Lease if the Claim is filed by the Voting Record Date.

E. Non-Voting Status Notices and Release Opt-Out Form and Release Opt-In Form

Claims in Classes 1, 2, 3, and 4 are Unimpaired under the Plan and, pursuant to Section 1126(f) of the Bankruptcy Code, are conclusively presumed to accept the Plan. Claims in Classes 13 and 14 are either Unimpaired or Impaired under the Plan and are conclusively presumed to accept or deemed to reject the Plan, as applicable. Claims in Classes 15 and 16 are Impaired under the Plan and are conclusively presumed to reject the Plan (collectively with Classes 1, 2, 3, 4, 13, and 14 the “*Non-Voting Classes*”).

In light of their presumed acceptance or deemed rejection of the Plan, the Debtors are not soliciting votes to accept or reject the Plan from the Holders of Claims and Interests in the Non-Voting Classes. Instead, the Solicitation Agent will also serve, or cause to be delivered, via e-mail, first class mail, or overnight courier, in the Debtors’ sole discretion, in addition to the Confirmation Hearing Notice, the (a) Opt-Out Non-Voting Status Notice and the Release Opt-Out Form to third-party Holders of Claims in the Non-Voting Classes who are presumed to accept the Plan and (b) Opt-In Non-Voting Status Notice and the Release Opt-In Form to third-party Holders of Claims or Interests in the Non-Voting Classes who are deemed to reject the Plan.

The Non-Voting Status Notices (i) inform recipients of their status as Holders or potential Holders of Claims or Interests in the Non-Voting Classes; (ii) provide the relevant text of the releases, exculpation, and injunction provisions set forth in the Plan that apply to such Holders, notwithstanding their non-voting status; and (iii) inform such Holders of the separate Release Opt-Out Form or Release Opt-In Form, as applicable, to allow Holders of Claims or Interests in the Non-Voting Classes to opt out of or opt in to the Releases, as applicable.

The Non-Voting Status Notices state that, unless a party timely opts out of or opts into the Releases as provided in the Release Opt-Out Form or Release Opt-In Form, as applicable, by submitting the Release Opt-Out Form or Release Opt-In Form so that it is actually received by the Solicitation Agent on or before the Voting Deadline, such party will be granted a release as a Released Party under the Plan.

Holders of Claims or Interests who take no action with respect to the Release Opt-Out Form or Release Opt-In Form (and do not otherwise object to the Releases in accordance with the terms of the Plan) will automatically be deemed to grant the Releases. HOLDERS OF CLAIMS OR INTERESTS IN THE NON-VOTING CLASSES MUST COMPLETE AND RETURN THE RELEASE OPT-OUT FORM OR RELEASE OPT-IN FORM, AS APPLICABLE, SO THAT IT IS ACTUALLY RECEIVED BY THE SOLICITATION AGENT BY APRIL 15, 2026, AT 4:00 P.M. (PREVAILING CENTRAL TIME) (OR OTHERWISE OBJECT TO SUCH RELEASES IN ACCORDANCE WITH THE TERMS OF THE PLAN AND THE SOLICITATION PROCEDURES ORDER), OR SUCH HOLDERS WILL BE DEEMED TO HAVE GRANTED THE RELEASES.

Because the Intercompany Claims and Intercompany Interests are all held by the Debtors or affiliates of the Debtors, the Bankruptcy Court has waived any requirement to serve the Holders of Claims and Interests in Classes 13 and 14 with Solicitation Packages or any other type of form or notice in connection with solicitation. Holders of Claims or Interests in the Classes 13 and 14

can access the Disclosure Statement and the Plan at no cost on the website maintained by the Solicitation Agent at <https://restructuring.ra.kroll.com/OPI>.

F. Specific Distribution Procedures for Holders of September 2029 Senior Secured Notes Claims

September 2029 Recovery Election. Holders of Allowed September 2029 Senior Secured Notes Claims are entitled to receive their pro rata share of \$300 million of Secured Exit Notes under the Plan. Additionally, Holders of Allowed September 2029 Senior Secured Notes Claim shall have the right to receive, in the aggregate, its Pro Rata Share of \$120 million in Secured Exit Notes and \$98 million of Reorganized Common Equity. Holders of Allowed Original September 2029 Senior Secured Notes Claims shall be permitted to submit September 2029 Recovery Elections to elect their preferred amounts of such Secured Exit Notes and Reorganized Common Equity, or a combination thereof, as set forth in Section 4.7(c)(ii) of the Plan.³⁸

To the extent that properly and timely submitted September 2029 Recovery Elections result in an oversubscription of

- (a) Secured Exit Notes, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim that made an election selecting the oversubscribed Secured Exit Notes shall receive its Pro Rata Share of \$120 million in Secured Exit Notes, with the balance of such Holder's Allowed September 2029 Senior Secured Notes Claim being exchanged for Reorganized Common Equity at a conversion price of \$20.00 per share; or
- (b) Reorganized Common Equity, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim that made an election selecting the oversubscribed Reorganized Common Equity shall receive its Pro Rata Share of \$98 million in Reorganized Common Equity, with the balance of such Holder's Allowed Original September 2029 Senior Secured Notes Claim being exchanged for Secured Exit Notes on a dollar-for-dollar basis.

Notwithstanding anything to the contrary in the Plan, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim shall receive an equal distribution in terms of value provided under the Plan.

Holders of September 2029 Notes and DIP Claims. In accordance with the Solicitation Procedures Order, as among a Holder of an Allowed September 2029 Senior Secured Notes Claim on account of, arising under, or relating to Original September 2029 Senior Secured Notes, to the extent such Holder is also a DIP Lender, such Holder shall have priority in making the September 2029 Recovery Election over all such Holders that are not DIP Lenders.

³⁸ For the avoidance of doubt, Holders of Allowed Subsequent September 2029 Senior Secured Notes Claims shall not have the right to make the September 2029 Recovery Election and shall receive its Pro Rata Share of \$120 million in Secured Exit Notes and \$98 million of Reorganized Common Equity based on the Subsequent 2029 Adjusted Claim Amount.

Procedures for the September 2029 Recovery Election

The Debtors intend to obtain the September 2029 Recovery Elections from holders of Allowed Original September 2029 Senior Secured Notes Claims, including such holders who also hold DIP Claims (collectively, the “***Electing Holders***”), in connection with effectuating distributions under the Plan pursuant to the procedures outlined below and in the Election Notices to be delivered to Electing Holders regarding the September 2029 Recovery Elections (the “***September 2029 Recovery Election Procedures***”).

September 2029 Recovery Elections will be processed via the Depository Trust Company’s (“***DTC***”) Automated Tender Offer Program (“***ATOP**Election Notice***”).

The Election Notice shall specify the specific instructions for Electing Holders to validly tender their September 2029 Senior Secured Notes to DTC via ATOP, indicate their September 2029 Recovery Election, and receive distributions thereof (the “***Election Instructions***”). The Election Notice may be delivered to Electing Holders through DTC (including via their Nominees) or otherwise in the discretion of the Solicitation Agent or Distribution Agent. The Solicitation Agent and Distribution Agent reserve the right to modify the Election Instructions in their discretion and without further notice to the Bankruptcy Court to most effectively facilitate the September 2029 Recovery Elections and distributions in respect thereof. The Debtors reserve the right to allocate the distributions in respect of the September 2029 Recovery Election in their discretion for any Electing Holder who fails to validly make its September 2029 Recovery Election.

HOLDERS OF ORIGINAL SEPTEMBER 2029 SENIOR SECURED NOTES SHOULD CLOSELY FOLLOW THE ELECTION INSTRUCTIONS FOR MAKING THE SEPTEMBER 2029 RECOVERY ELECTION THAT ARE COMMUNICATED IN THE ELECTION NOTICE.

To the extent that a Holder does not make or does not properly indicate a September 2029 Recovery Election pursuant to the September 2029 Recovery Election Procedures, the Debtors reserve the right to allocate the portion of such recoveries attributable to the September 2029 Recovery Election for such non-electing Holders in the Debtors’ discretion.

XI. CONFIRMATION OF PLAN

A. Confirmation Hearing

Section 1128(a) of the Bankruptcy Code requires the Bankruptcy Court to hold a confirmation hearing upon appropriate notice to all required parties. Notice of the Confirmation Hearing will be provided to all known creditors and equity holders or their representatives. The Confirmation Hearing may be adjourned from time to time by the Bankruptcy Court without further notice except for the announcement of the continuation date made at the Confirmation Hearing, at any subsequent continued Confirmation Hearing, or pursuant to a notice filed on the docket for the Chapter 11 Cases.

B. Objections to Confirmation

Section 1128(b) of the Bankruptcy Code provides that any party in interest may object to the confirmation of a plan. Any objection to confirmation of the Plan must (i) be in writing; (ii) conform to the applicable Bankruptcy Rules and the Bankruptcy Local Rules; (iii) set forth the name of the objecting party, the basis for the objection, and the specific grounds thereof; (iv) include proposed language that if included in the Plan would remedy the matters set forth in the objection; and (v) be filed with the Bankruptcy Court, together with proof of service. In addition to being filed with the Bankruptcy Court, any such responses or objections must be served on the following parties so as to be received by the Objection Deadline of **April 15, 2026, at 4:00 p.m. (prevailing Central Time)**:

- (a) **Debtors at**
Office Properties Income Trust
Two Newton Place, 255 Washington Street, Suite 300,
Newton, Massachusetts 02458-1634
Attn: Yael Duffy (yduffy@rmrgroup.com)
Brian Donley (bdonley@rmrgroup.com)
- (b) **Counsel to Debtors at**
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Anupama Yerramalli (anu.yerramalli@lw.com)
Keith A. Simon (keith.simon@lw.com)
Ashley Gherlone Pezzi (ashley.pezzi@lw.com)
Anthony R. Joseph (Anthony.joseph@lw.com)

- and -

Hunton Andrews Kurth LLP
600 Travis Street, Suite 4200

Houston, Texas 77002

Attn: Timothy A. ("Tad") Davidson II (taddavidson@hunton.com)

Ashley L. Harper (ashleyharper@hunton.com)

Philip M. Guffy (pguffy@hunton.com)

(c) **Counsel to the September 2029 Ad Hoc Group at**

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Andrew Costello (andrew.costello@whitecase.com)

- and -

White & Case LLP

555 S. Flower St., Suite 2700

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(d) **Counsel to the 2027 Ad Hoc Group at**

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(e) **Counsel to the March 2029 Ad Hoc Group at**

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Robert A. Britton (rbritton@paulweiss.com)

Joseph M. Graham (jgraham@paulweiss.com)

Lucian Wang (lwang@paulweiss.com)

(f) **RMR at**

The RMR Group LLC

Two Newton Place, 255 Washington Street, Suite 300

Newton, MA 02458-1634

Attn: Adam Portnoy (APortnoy@rmrgroup.com)

Lindsey Getz (Lindsey.Getz@rmrgroup.com)

(g) **Counsel to RMR at**

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Neil M. Snyder (NMSnyder@wlrk.com)
Angela K. Herring (AKHerring@wlrk.com)

- (h) **Counsel to the Committee** at
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787 Seventh Avenue,
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Attn: Brett H. Miller (bmiller@willkie.com),
Paul J. Labov (plabov@willkie.com)
Todd M. Goren (tgoren@willkie.com)
James H. Burbage (jburbage@willkie.com)

- and -

600 Travis Street
Houston, Texas 77002
Attn: Jennifer J. Hardy (jhardy2@willkie.com)

- (i) **Office of U.S. Trustee** at
Office of the United States Trustee for the Southern District of Texas
515 Rusk Street, Suite 3516
Houston, Texas 77002
Attn: Vianey Garza (Vianey.Garza@usdoj.gov)
Ha Nguyen (Ha.Nguyen@usdoj.gov)

IF AN OBJECTION TO CONFIRMATION IS NOT TIMELY SERVED AND FILED BY APRIL 15, 2026 AT 4:00 P.M. (PREVAILING CENTRAL TIME), IT MAY NOT BE CONSIDERED BY THE BANKRUPTCY COURT.
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C. Requirements for Confirmation of Plan

1. Requirements of Section 1129(a) of Bankruptcy Code

At the Confirmation Hearing, the Bankruptcy Court will determine whether the confirmation requirements specified in section 1129(a) of the Bankruptcy Code have been satisfied, including whether:

- (a) the Plan complies with the applicable provisions of the Bankruptcy Code;
- (b) the Debtors have complied with the applicable provisions of the Bankruptcy Code;
- (c) the Plan has been proposed in good faith and not by any means forbidden by law;

- (d) any payment made or promised by the Debtors, for services or for costs and expenses in or in connection with the Chapter 11 Cases, or in connection with the Plan and incident to the Chapter 11 Cases, has been disclosed to the Bankruptcy Court, and any such payment made before confirmation of the Plan is reasonable, or if such payment is to be fixed after confirmation of the Plan, such payment is subject to the approval of the Bankruptcy Court as reasonable;
- (e) the Debtors have disclosed, to the extent known, the identity and affiliations of any individual proposed to serve, after confirmation of the Plan, as a director, trustee, or officer of the Reorganized Debtors, an affiliate of the Debtors participating in the Plan with the Debtors, or a successor to the Debtors under the Plan, and the appointment to, or continuance in, such office of such individual is consistent with the interests holders of Claims and Interests and with public policy, and the Debtors have disclosed the identity of any insider who will be employed or retained by the Reorganized Debtors, and the nature of any compensation for such insider;
- (f) with respect to each Class of Claims or Interests, each holder of an Impaired Claim or Interest has either accepted the Plan or will receive or retain under the Plan, on account of such holder's Claim, property of a value, as of the Effective Date of the Plan, that is not less than the amount such holder would receive or retain if the Debtors were liquidated on the Effective Date of the Plan under chapter 7 of the Bankruptcy Code;
- (g) except to the extent the Plan meets the requirements of section 1129(b) of the Bankruptcy Code (as discussed further below), each Class of Claims or Interests either accepted the Plan or is not impaired under the Plan;
- (h) except to the extent that the holder of a particular Claim has agreed to a different treatment of such Claim, the Plan provides that Administrative Expense Claims, Other Priority Claims, and Priority Tax Claims will be paid in full or receive such other treatment consistent with the provisions of section 1129(a)(9) of the Bankruptcy Code;
- (i) at least one Class of impaired Claims has accepted the Plan, determined without including any acceptance of the Plan by any insider holding a Claim in such Class;
- (j) confirmation of the Plan is not likely to be followed by the liquidation, or the need for further financial reorganization, of the Debtors or any successor to the Debtors under the Plan; and
- (k) all fees payable under section 1930 of title 28, as determined by the Bankruptcy Court at the Confirmation Hearing, have been paid or the Plan provides for the payment of all such fees on the Effective Date of the Plan.

As provided above, among the requirements for confirmation are that the Plan is: (A) accepted by all impaired Classes of Claims and Interests entitled to vote or, if rejected or deemed rejected by an impaired Class, that the Plan "does not discriminate unfairly" and is "fair and equitable" as to such Class; (B) in the "best interests" of the holders of Claims and Interests impaired under the Plan; and (C) feasible.

2. Acceptance of Plan

Under the Bankruptcy Code, a class accepts a chapter 11 plan if (i) holders of two-thirds (2/3) in amount and (ii) with respect to holders of claims, more than a majority in number of the allowed claims in such class (other than those designated under section 1126(e) of the Bankruptcy Code) vote to accept the plan. Holders of Claims or Interests that fail to vote are not counted in determining the thresholds for acceptance of the plan.

If any impaired Class of Claims or Interests does not accept the Plan, the Bankruptcy Court may still confirm the Plan at the request of the Debtors if at least one Class of Claims has accepted the Plan and, as to each Impaired Class of Claims or Interests that has not accepted the Plan (or is deemed to reject the Plan), the Plan “does not discriminate unfairly” and is “fair and equitable” under the so-called “cramdown” provisions set forth in section 1129(b) of the Bankruptcy Code. The “unfair discrimination” test applies to classes of claims or interests that are of equal priority and are receiving different treatment under the plan. A chapter 11 plan does not discriminate unfairly, within the meaning of the Bankruptcy Code, if the legal rights of a dissenting class are treated in a manner consistent with the treatment of other classes whose legal rights are substantially similar to those of the dissenting class and if no class of claims or interests receives more than it legally is entitled to receive for its claims or interests. The test does not require that the treatment be the same or equivalent, but that such treatment be “fair.” The “fair and equitable” test applies to classes of different priority and status (e.g., secured versus unsecured; claims versus interests) and includes the general requirement that no class of claims receive more than 100% of the allowed amount of the claims in such class. As to a dissenting class, if any, the test sets different standards that must be satisfied for the plan to be confirmed, depending on the type of claims or interests in such class. The following sets forth the “fair and equitable” test that must be satisfied as to each type of class for a plan to be confirmed if such class rejects the plan:

- (a) **Secured Creditors.** Each holder of an impaired secured claim either (a) retains its liens on the property, to the extent of the allowed amount of its secured claim, and receives deferred cash payments having a value, as of the effective date of the plan, of at least the allowed amount of such secured claim, (b) has the right to credit bid the amount of its claim if its property is sold and retains its lien on the proceeds of the sale, or (c) receives the “indubitable equivalent” of its allowed secured claim.
- (b) **Unsecured Creditors.** Either (a) each holder of an impaired unsecured claim receives or retains under the Plan, property of a value, as of the effective date of the Plan, equal to the amount of its allowed claim or (b) the holders of claims and interests that are junior to the claims of the dissenting class will not receive any property under the plan.
- (c) **Interests.** Either (a) each equity interest holder will receive or retain under the plan property of a value equal to the greater of (i) the fixed liquidation preference or redemption price, if any, of such equity interest and (ii) the value of the equity interest or (b) the holders of interests that are junior to the interests of the dissenting class will not receive or retain any property under the plan.

The Debtors believe the Plan satisfies the “fair and equitable” requirement with respect to any rejecting Class.

IF ALL OTHER CONFIRMATION REQUIREMENTS ARE SATISFIED AT THE CONFIRMATION HEARING, THE DEBTORS WILL ASK THE BANKRUPTCY COURT TO RULE THAT THE PLAN MAY BE CONFIRMED ON THE GROUND THAT THE SECTION 1129(b) REQUIREMENTS HAVE BEEN SATISFIED.

3. Best Interests Test

As noted above, with respect to each impaired class of claims and equity interests, confirmation of a plan requires that each such holder either: (a) accept the plan; or (b) receive or retain under the plan property of a value, as of the effective date of the plan, that is not less than the value such holder would receive or retain if the Debtors were liquidated under chapter 7 of the Bankruptcy Code. This requirement is referred to as the “best interests test.”

This test requires a bankruptcy court to determine what the holders of allowed claims and allowed equity interests in each impaired class would receive from a liquidation of the debtor’s assets and properties in the context of a liquidation under chapter 7 of the Bankruptcy Code. To determine if a plan is in the best interests of each impaired class, the value of the distributions from the proceeds of the liquidation of the debtor’s assets and properties (after subtracting the amounts attributable to the aforesaid claims) is then compared with the value offered to such classes of claims and equity interests under the plan.

Under the Plan, all holders of Impaired Claims and Interests will receive property with a value not less than the value such holder would receive in a liquidation under chapter 7 of the Bankruptcy Code. This conclusion is based primarily on: (a) consideration of the effects that a chapter 7 liquidation would have on the ultimate proceeds available for distribution to holders of Impaired Claims and Interests; and (b) the Liquidation Analysis attached hereto as **Exhibit C**.

Any liquidation analysis is speculative, as it is necessarily premised on assumptions and estimates that are inherently subject to significant uncertainties and contingencies, many of which would be beyond the control of the Debtors. The Liquidation Analysis provided in **Exhibit C** is solely for the purpose of disclosing to holders of Claims and Interests the effects of a hypothetical chapter 7 liquidation of the Debtors, subject to the assumptions set forth therein. There can be no assurance as to values that would actually be realized in a chapter 7 liquidation nor can there be any assurance that a bankruptcy court will accept the Debtors’ conclusions or concur with such assumptions in making its determinations under section 1129(a)(7) of the Bankruptcy Code.

4. Feasibility

Section 1129(a)(11) of the Bankruptcy Code requires that a debtor demonstrate that confirmation of a plan is not likely to be followed by liquidation or the need for further financial reorganization. For purposes of determining whether the Plan meets this requirement, the Debtors have analyzed their ability to meet their obligations under the Plan. As part of this analysis, the Debtors have prepared the Financial Projections for fiscal years 2026 through 2030. The Financial Projections, and the assumptions on which they are based, are attached hereto as **Exhibit D**. Based upon such Financial Projections, the Debtors conclude they will have sufficient resources to make all payments required pursuant to the Plan and that confirmation of the Plan is not likely to be

followed by liquidation or the need for further reorganization. Moreover, Article VIII hereof sets forth certain risk factors that could impact the feasibility of the Plan.

The Financial Projections assume that the Plan will be consummated in accordance with its terms and that all transactions contemplated by the Plan will be consummated on or prior to an Effective Date of May 1, 2026. Any significant delay in the Effective Date may have a significant negative impact on the operations and financial performance of the Debtors including, but not limited to, an increased risk or inability to meet forecasts and the incurrence of higher reorganization expenses.

In connection with the planning and development of the Plan, the Financial Projections were prepared by the Debtors, with the assistance of their professionals, to present the anticipated impact of the Plan. The Financial Projections assume that the Plan will be implemented in accordance with its stated terms. The Financial Projections are based on forecasts of key economic variables and may be significantly impacted by business, industry, regulatory, market and financial uncertainties and contingencies, and a variety of other factors.

Consequently, the estimates and assumptions underlying the Financial Projections are inherently uncertain and are subject to material business, economic, and other uncertainties. Therefore, such Financial Projections, estimates, and assumptions are not necessarily indicative of current values or future performance, which may be significantly less or more favorable than set forth herein.

The Financial Projections should be read in conjunction with the assumptions, qualifications, and explanations set forth in this Disclosure Statement, the Plan, and the Plan Supplement, in their entirety, and the historical consolidated financial statements (including the notes and schedules thereto).

XII. OBJECTIONS AND COMMENTS OF PARTIES IN INTEREST TO CONFIRMATION AND CONSUMMATION OF PLAN

Certain Holders of Claims and Interests have provided certain objections and comments to the Disclosure Statement and the Plan, which are summarized below. The Holders of the Claims and Interests who have so objected reserve all rights, including with respect to the Plan's proposed treatment of their Claims and whether such treatment renders their Claims impaired or unimpaired, as applicable.

Specifically, the March 2029 Ad Hoc Group contends that the commencement of the Chapter 11 Cases resulted in the automatic and immediate acceleration of the principal amount of the March 2029 Senior Secured Notes, plus all accrued and unpaid interest and any and all applicable premiums, including the Make-Whole Amount. They assert that the Allowed amount of the March 2029 Senior Secured Notes Claims is equal to no less than \$321,646,519.06 as of the Petition Date.

The March 2029 Ad Hoc Group asserts that any treatment reinstating its Allowed March 2029 Senior Secured Notes Claim requires the Debtors to satisfy all covenants under the March 2029 Senior Secured Notes Indenture.

The March 2029 Ad Hoc Group requests that the Debtors provide the Holders of March 2029 Senior Secured Notes Claims written notice of the treatment the Debtors intend to provide under the Plan no later than fourteen days prior to the deadline to object to confirmation of the Plan. The requested notice shall specify, in reasonable detail, whether the Debtors intend to (i) repay the Allowed March 2029 Senior Secured Notes Claims in full in Cash, (ii) reinstate the Allowed March 2029 Senior Secured Notes Claim, or (iii) otherwise render such Allowed March 2029 Senior Secured Notes Claim Unimpaired in accordance with section 1124 of the Bankruptcy Code. If the Debtors elect the treatment in clause (ii), the notice should provide sufficient information for the Holders of March 2029 Senior Secured Notes Claims to determine whether the Debtors are able to comply with the covenants in the March 2029 Senior Secured Notes Indenture. If the Debtors elect the treatment proposed in clause (iii), the notice shall provide the material terms of such other Unimpaired treatment, if applicable, and should also include the Debtors' valuation of the collateral securing the March 2029 Senior Secured Notes and the material assumptions and support for such valuation.

The Holders of March 2029 Senior Secured Notes Claims and Wilmington Trust, solely as trustee for the March 2029 Senior Secured Notes, reserve all rights with respect to the Plan's proposed treatment of their Claims, including whether such treatment renders their Claims Unimpaired.

Debtors' Response. Pursuant to the Plan, the Debtors intend to reinstate the March 2029 Senior Secured Notes unless a consensual agreement is reached with the March 2029 Ad Hoc Group. If reinstating the March 2029 Senior Secured Notes, the Debtors believe that the Reorganized Debtors will be able to comply with all applicable covenants and obligations under the March 2029 Senior Secured Notes Indenture and related debt documents and will demonstrate the requirements of reinstatement at confirmation. The Debtors, however, will continue to work in good faith with the March 2029 Ad Hoc Group to reach a consensual resolution. In the event the Debtors and the March 2029 Ad Hoc Group are unable to reach a consensual resolution, then, no later than fourteen

days prior to the Voting Deadline, the Debtors will provide notice to the March 2029 Ad Hoc Group of the Debtors' intention to reinstate the March 2029 Senior Secured Notes and provide the detail sufficient for the Holders of March 2029 Senior Secured Notes Claims to determine whether the Debtors are able to comply with the covenants in the March 2029 Senior Secured Notes Indenture.

The Debtors estimate that the range of the aggregate amount of March 2029 Senior Secured Notes Claims is from approximately \$290 million to \$321.6 million, which consists of outstanding principal amount as of the Petition Date, accrued prepetition interest, original issue discount (to the extent allowed) and the Make Whole Amount (to the extent allowed), which will be impacted by the payment of any stated interest postpetition. The Debtors believe that the March 2029 Senior Secured Notes are oversecured. If the Debtors seek to object to the aggregate amount of the March 2029 Senior Secured Notes Claim, the Debtors will file an objection to such Claim at least thirty days before the Voting Deadline in accordance with Bankruptcy Rule 3007, and the Holders of March 2029 Senior Secured Notes Claims or Wilmington Trust, solely as trustee for the March 2029 Senior Secured Notes, will have until the Voting Deadline to file a response to such claim objection, unless otherwise agreed by the Debtors and the March 2029 Ad Hoc Group and Wilmington Trust.

Risks Related to Reinstatement of March 2029 Senior Secured Notes Subsidiary Guarantors.

The Debtors and the March 2029 Ad Hoc Group dispute the amount of the March 2029 Senior Secured Notes Claims. If the Debtors and the March 2029 Ad Hoc Group are unable to come to a consensual resolution regarding the amount of March 2029 Senior Secured Notes Claims, the Debtors may seek to reinstate the March 2029 Senior Secured Notes, rendering the holders of such claims unimpaired pursuant to section 1124(2) of the Bankruptcy Code. Under section 1124(2) of the Bankruptcy Code, a class is rendered unimpaired if the Plan's treatment "does not otherwise alter the legal, equitable, or contractual rights to which such claim or interest entitles the holder of such claim or interest."

The Debtors believe that they are able to (a) comply with all applicable covenants and obligations under the March 2029 Senior Secured Notes Indenture and related debt documents at emergence and (b) cure any defaults under such debt documents in such a way that does not alter the rights of the Holders of the March 2029 Senior Secured Notes Claims, as prescribed by section 1124(2) of the Bankruptcy Code. If the Debtors seek to reinstate the March 2029 Senior Secured Notes, the Debtors expect to demonstrate their satisfaction of the applicable legal standards in connection with confirmation of the Plan. However, reinstatement is likely to be opposed by the March 2029 Ad Hoc Group and March 2029 Senior Secured Notes Trustee and will be litigated in connection with confirmation. The Bankruptcy Court will ultimately determine whether the Debtors are in compliance with section 1124(2) of the Bankruptcy Code.

The foregoing risk factor is also reproduced at Section IX.A.21 of the Disclosure Statement.

XIII. ALTERNATIVES TO CONFIRMATION AND CONSUMMATION OF PLAN

The Debtors have evaluated several alternatives to the Plan. After evaluating these alternatives, the Debtors have concluded that the Plan is the best alternative and will maximize recoveries to parties in interest, assuming confirmation and consummation of the Plan. If the Plan is not confirmed and consummated, the alternatives to the Plan are (i) the preparation and presentation of an alternative reorganization, (ii) a sale of some or all of the Debtors' assets pursuant to section 363 of the Bankruptcy Code, or (iii) a liquidation under chapter 7 of the Bankruptcy Code.

A. Alternative Plan of Reorganization

If the Plan is not confirmed, the Debtors (or if the Debtors' exclusive period in which to file a plan of reorganization has expired, any other party in interest) could attempt to formulate a different plan. Such a plan might involve either (i) a reorganization and continuation of the Debtors' business or (ii) an orderly liquidation of their assets. The Debtors, however, believe that the Plan, as described herein, enables their stakeholders to realize the most value under the circumstances. In addition, if the Plan is not confirmed pursuant to the terms of the Restructuring Support Agreement, the Consenting Creditors have the right to terminate the Restructuring Support Agreement (and all obligations thereunder) either in its entirety or as to themselves only, as applicable.

B. Sale Under Section 363 of the Bankruptcy Code

If the Plan is not confirmed, the Debtors could seek from the Bankruptcy Court, after notice and hearing, authorization to sell all or substantially all of their assets under section 363 of the Bankruptcy Code. Holders of Allowed Claims in Classes 4, 5, 6, 7, and 8 would be entitled to credit bid on any property to which their security interest is attached to the extent of the value of such security interest, and to offset their Claims against the purchase price of the property. In addition, the security interests in the Debtors' assets held by Holders of Claims in Classes 4, 5, 6, 7, and 8 would attach to the proceeds of any sale of the Debtors' assets to the extent of their secured interests therein. Upon analysis and consideration of this alternative, the Debtors do not believe a sale of all or substantially all of their assets under section 363 of the Bankruptcy Code would yield a higher recovery for the holders of Claims and Interests under the Plan.

C. Liquidation under Chapter 7 of Bankruptcy Code

If no plan can be confirmed, the Chapter 11 Cases may be converted to cases under chapter 7 of the Bankruptcy Code in which a trustee would be elected or appointed to liquidate the assets of the Debtors for distribution to their creditors in accordance with the priorities established by the Bankruptcy Code. The effect that a chapter 7 liquidation would have on the recovery of holders of Allowed Claims and Interests is set forth in the Liquidation Analysis attached hereto as Exhibit C.

The Debtors believe that liquidation under chapter 7 would result in smaller distributions to creditors than those provided for in the Plan because of, among other things, the delay resulting from the conversion of the Chapter 11 Cases, the additional administrative expenses associated with the appointment of a trustee and the trustee's retention of professionals who would be required to become familiar with the many legal and factual issues in the Chapter 11 Cases, and the loss in value attributable to an expeditious liquidation of the Debtors' assets as required by chapter 7.

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**XIV.
CONCLUSION AND RECOMMENDATION**

The Debtors believe the Plan is in the best interests of all stakeholders and urge the holders of Claims in Classes 5, 6, 7, 8, 9, 10, 11, and 12 to vote in favor of the Plan.

Dated: March 16, 2026

Respectfully submitted,

On behalf of Office Properties Income Trust and
its Debtor Affiliates

By: /s/ John R. Castellano
Name: John R. Castellano
Title: Chief Restructuring Officer

Exhibit A

Plan

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION**

	x	
	:	
In re:	:	Chapter 11
	:	
OFFICE PROPERTIES INCOME TRUST, <i>et al.</i> ,	:	Case No. 25-90530 (CML)
	:	
Debtors. ¹	:	(Jointly Administered)
	x	

**SECOND AMENDED JOINT CHAPTER 11 PLAN OF REORGANIZATION OF
OFFICE PROPERTIES INCOME TRUST AND ITS DEBTOR AFFILIATES**

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Dated: March 16, 2026
Houston, Texas

Counsel for the Debtors and Debtors in Possession

¹ A complete list of the Debtors in the Chapter 11 Cases may be obtained on the website of the Debtors' claims and noticing agent at <https://restructuring.ra.kroll.com/OPI>. The Debtors' mailing address is Two Newton Place, 255 Washington Street, Suite 300, Newton, Massachusetts 02458-1634.

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**JOINT CHAPTER 11 PLAN OF REORGANIZATION OF
OFFICE PROPERTIES INCOME TRUST AND ITS DEBTOR AFFILIATES**

Office Properties Income Trust and each of the debtors and debtors-in-possession in the above-captioned cases (each a “**Debtor**” and, collectively, the “**Debtors**”) jointly propose this Plan (as defined herein) for the treatment and resolution of the outstanding Claims against, and Interests in, the Debtors. Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to such terms in Article I.A of this Plan.

The Plan is proposed jointly for administrative purposes only. The Debtors seek to consummate the Transactions on the Effective Date. The Debtors are the proponents of this Plan within the meaning of section 1129 of the Bankruptcy Code. This Plan does not contemplate substantive consolidation of any of the Debtors.

This Plan shall be deemed a motion to approve the good-faith compromises and settlements of all Claims, Interests, Causes of Action, and controversies pursuant to Bankruptcy Rule 9019.

Reference is made to the Disclosure Statement for a discussion of the Debtors’ history, businesses, results of operations, historical financial information, projections, and future operations, as well as a summary and analysis of this Plan and certain related matters, including distributions to be made under this Plan. There also are other agreements and documents, which shall be Filed with the Bankruptcy Court, that are referenced in this Plan, the Plan Supplement, or the Disclosure Statement as exhibits and schedules. All such exhibits and schedules are incorporated into and are a part of this Plan as if set forth in full herein. Subject to certain restrictions and requirements set forth in section 1127 of the Bankruptcy Code, Bankruptcy Rule 3019, and the terms and conditions set forth in the Restructuring Support Agreement and this Plan, the Debtors reserve the right to alter, amend, modify, revoke, or withdraw this Plan before its substantial consummation.

ALL HOLDERS OF CLAIMS ENTITLED TO VOTE ON THIS PLAN ARE ENCOURAGED TO READ THIS PLAN AND THE DISCLOSURE STATEMENT IN THEIR ENTIRETY BEFORE VOTING TO ACCEPT OR REJECT THIS PLAN.
--

ARTICLE I.

DEFINITIONS AND INTERPRETATION.

A. Definitions.

The following terms shall have the respective meanings specified below:

1.1 “**2027 Ad Hoc Group**” means that certain ad hoc group of Holders of 2027 Senior Secured Notes Claims represented by the 2027 Ad Hoc Group Advisors.

1.2 “**2027 Ad Hoc Group Advisors**” means Milbank LLP, Evercore Group L.L.C., Porter Hedges LLP, Hilco Real Estate, LLC, and such other Professional advisors as are retained by the 2027 Ad Hoc Group with the prior written consent of the Debtors.

1.3 “**2027 Senior Secured Noteholders**” means the Holders of the 2027 Senior Secured Notes.

1.4 “**2027 Senior Secured Notes**” means those certain 3.250% Senior Secured Notes due 2027, issued pursuant to the 2027 Senior Secured Notes Indenture.

1.5 “**2027 Senior Secured Notes Claims**” means any Claim on account of, arising under, or relating to the 2027 Senior Secured Notes Documents, including any Claims in respect of all principal amount outstanding, interest, fees, premiums, expenses, costs, and other charges arising thereunder or related thereto, and postpetition interest, as applicable. For the avoidance of doubt, the 2027 Senior Secured Notes Claims shall exclude the 2027 Senior Secured Notes ICA Claims.

1.6 “**2027 Senior Secured Notes Claims Challenge**” means that certain adversary proceeding commenced in these Chapter 11 Cases on November 2, 2025, Adv. Proc. No. 25-03802 (CML), by the Debtors against the 2027 Senior Secured Notes Trustee seeking, among other things, a declaratory judgment disallowing certain OID associated with the 2027 Senior Secured Notes as of the Petition Date, subject to the Debtors’ right to amend the complaint in such adversary proceeding pursuant to the Bankruptcy Rules and applicable law; *provided* that the Debtors or the Reorganized Debtors, as applicable, shall dismiss with prejudice the 2027 Senior Secured Notes Claims Challenge on the Effective Date.

1.7 “**2027 Senior Secured Notes Claims Settlement**” means the settlement among the Debtors, the 2027 Ad Hoc Group, and the September 2029 Ad Hoc Group set forth in Exhibit A to that certain *Notice of Settlement Term Sheet by and Among the Debtors, 2027 Ad Hoc Group, and September 2029 Ad Hoc Group with Regards to the Plan* [Docket No. 971].

1.8 “**2027 Senior Secured Notes Documents**” means, collectively, the 2027 Senior Secured Notes Indenture, the 2027 Senior Secured Notes Security Documents, and the other documents governing the 2027 Senior Secured Notes.

1.9 “**2027 Senior Secured Notes First Lien Collateral**” means “First Lien Collateral” under and defined in the 2027 Senior Secured Notes Indenture.

1.10 “**2027 Senior Secured Notes ICA Adversary Proceeding**” means that certain adversary proceeding commenced in these Chapter 11 Cases on January 24, 2026, Adv. Proc. No. 26-03016 (CML), by the 2027 Senior Secured Notes Trustee against Helix Partners Management, LP, Redwood Capital Management LLC, and certain Debtors asserting, among other things, the 2027 Senior Secured Notes ICA

Claims; *provided* that the 2027 Senior Secured Notes Trustee shall dismiss with prejudice the 2027 Senior Secured Notes ICA Adversary Proceeding on the Effective Date.

1.11 “2027 Senior Secured Notes ICA Claims” means any Claim of the 2027 Senior Secured Notes Parties on account of, arising under, or relating to that certain Exchange Notes 1L/2L Subordination and Intercreditor Agreement, dated as of December 11, 2024, by and between the 2027 Senior Secured Notes Trustee, as initial junior agent, the Original September 2029 Senior Secured Notes Trustee, as initial senior agent, and the Subsequent September 2029 Senior Secured Notes Trustee, as initial additional senior agent; *provided* that the 2027 Senior Secured Notes Parties shall dismiss with prejudice, and release pursuant to this Plan, the 2027 Senior Secured Notes ICA Claims on the Effective Date.

1.12 “2027 Senior Secured Notes Indenture” means that certain Indenture, dated as of December 11, 2024, among the Parent, the Initial Subsidiary Guarantors (as defined therein and party thereto) and the 2027 Senior Secured Notes Trustee, as trustee and collateral agent, as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.13 “2027 Senior Secured Notes Parties” means, collectively, the 2027 Senior Secured Notes Trustee, and 2027 Senior Secured Noteholders.

1.14 “2027 Senior Secured Notes Property Appraisals” means the appraisals of the properties constituting the New 2027 Senior Secured Notes Collateral Package prepared by a nationally recognized appraisal firm.

1.15 “2027 Senior Secured Notes Security Documents” means, collectively, “Security Documents” under and defined in the 2027 Senior Secured Notes Indenture and any ancillary documents, agreements, or instruments.

1.16 “2027 Senior Secured Notes Trustee” means (a) U.S. Bank Trust Company, National Association, as initial trustee, (b) UMB Bank, National Association, as successor trustee, or (c) any successor thereto duly appointed in accordance with the terms of the 2027 Senior Secured Notes Indenture, in each case solely in its capacity as trustee and collateral agent under the 2027 Senior Secured Notes Documents.

1.17 “2027 Unsecured Claims” means the 2027 Senior Secured Notes Claims that constitute Unsecured Claims pursuant to applicable law and sections 502 and 506(a) of the Bankruptcy Code or any other similar provisions.

1.18 “510(b) Claim” means any Claim against the Debtors that is subject to subordination under section 510(b) of the Bankruptcy Code, including any Claim arising out of or related to any agreement for the purchase or sale of Securities of the Debtors or any of their Affiliates or any agreements related or ancillary to such agreement for the purchase or sale of Securities of the Debtors or any of their Affiliates.

1.19 “Additional Consenting Creditors” means the beneficial holders, or investment advisors, sub-advisors, or managers for the accounts of beneficial holders or beneficial holders, of Existing Debt that subsequently become party to the Restructuring Support Agreement from time to time pursuant to a Joinder (as defined in the Restructuring Support Agreement) in accordance with Section 7.17 of the Restructuring Support Agreement.

1.20 “Adequate Protection Stipulation” means the *Stipulation and Agreed Order Entered Between the Debtors, 2027 Ad Hoc Group, 2027 Senior Secured Notes Trustee, and September 2029 Ad*

Hoc Group Providing Adequate Protection, entered by the Bankruptcy Court on March 5, 2026 [Docket No. 976].

1.21 “**Administrative Claim**” means a Claim for costs and expenses of administration of the Chapter 11 Cases pursuant to sections 503(b), 507(a)(2), 507(b), or 1114(e)(2) of the Bankruptcy Code, including, without limitation: (a) the actual and necessary costs and expenses incurred on or after the Petition Date until and including the Effective Date of preserving the Estates and operating businesses, including fees and expenses Allowed by the Bankruptcy Court as compensation for services rendered or reimbursement of expenses incurred through and including the Effective Date under sections 330, 331, 503(b)(2), 503(b)(3), 503(b)(4), or 503(b)(5) of the Bankruptcy Code; (b) Claims pursuant to section 503(b)(9) of the Bankruptcy Code; (c) all fees and charges assessed against the Estates pursuant to section 1930 of chapter 123 of title 28 of the United States Code; and (d) any Adequate Protection Claims (as defined in the DIP Orders).

1.22 “**Affiliate**” shall, with respect to an Entity, have the meaning set forth in section 101(2) of the Bankruptcy Code as if such Entity were a debtor in a case under the Bankruptcy Code.

1.23 “**Allowed**” means, (a) any Claim or Interest (i) as to which no objection has been Filed prior to the Claim Objection Deadline and that is evidenced by a proof of Claim or Interest, as applicable, timely Filed by the applicable Bar Date or that is not required to be evidenced by a Filed proof of Claim or Interest, as applicable, under this Plan, the Bankruptcy Code, or a Final Order, and no request for estimation or other challenge, including pursuant to section 502(d) of the Bankruptcy Code or otherwise, has been interposed or (ii) as to which any objection has been determined by a Final Order to the extent such objection is determined in favor of the respective Holder; (b) any Claim or Interest that is scheduled by the Debtors as neither disputed, contingent, nor unliquidated, and as for which no proof of Claim or Interest, as applicable, has been timely Filed in an unliquidated or a different amount; (c) any Claim or Interest that is compromised, settled, or otherwise resolved pursuant to the authority of the Debtors or the Reorganized Debtors, as applicable; (d) any Claim or Interest as to which the liability of the Debtors or Reorganized Debtors, as applicable, and the amount thereof are determined by a Final Order of a court of competent jurisdiction other than the Bankruptcy Court; or (e) any Claim or Interest expressly allowed under this Plan. For the avoidance of doubt, a Proof of Claim Filed after the applicable Bar Date shall not be Allowed for any purposes whatsoever absent entry of a Final Order allowing such late-Filed Claim. “Allow,” “Allows,” and “Allowing” shall have correlative meanings.

1.24 “**Allowed 2027 Senior Secured Notes Claim Amount**” means an aggregate amount equal to \$385,000,000, *plus* all accrued and unpaid interest, fees, costs, and other charges as of the Petition Date and postpetition interest and any reasonable fees, costs, and charges through the Effective Date, subject to the terms of the 2027 Senior Secured Notes Claims Settlement; *provided* that, without duplication of any amounts agreed to be paid under the terms of the 2027 Senior Secured Notes Claims Settlement or paid pursuant to Article 2.8 of this Plan, all such accrued and unpaid interest, fees, costs, and other charges shall be paid in full in Cash on the Effective Date and shall not be recharacterized or reallocated pursuant to section 506(b) of the Bankruptcy Code as payments of principal, interest, or otherwise.

1.25 “**Allowed March 2029 Senior Secured Notes Claim Amount**” means an aggregate amount equal to the outstanding principal amount of March 2029 Senior Secured Notes arising under the March 2029 Senior Secured Notes Documents as of the Petition Date, *plus* all accrued and unpaid interest, fees, costs, and other charges as of the Petition Date, and postpetition interest and any reasonable fees, costs, and charges through the Effective Date, in each case to the extent allowable under applicable law and sections 502 or 506(b) of the Bankruptcy Code or otherwise agreed to between the Debtor or the Reorganized Debtors, as applicable, and the requisite Holders of the March 2029 Senior Secured Notes Claims.

1.26 “**Allowed September 2029 Senior Secured Notes Claim Amount**” means the amount that is the lesser of (a) the September 2029 Senior Secured Notes Claim Amount and (b) the total value of the September 2029 First Lien Collateral and any residual value (after accounting for senior security interests held by Holders of the Secured Credit Facility Claims) of the September 2029 Second Lien Collateral, in each case where the security interest with respect to such collateral has not been invalidated by the Bankruptcy Court.

1.27 “**Allowed September 2029 Unsecured Claim**” means a September 2029 Senior Secured Notes Claim that constitutes an Unsecured Claim pursuant to applicable law and sections 502 and 506(a) of the Bankruptcy Code or any other similar provisions.

1.28 “**Amended RMR Management Agreements**” means the RMR Management Agreements as amended pursuant to this Plan and the Restructuring Term Sheet.

1.29 “**Asset**” means all rights, title, and interests of the Debtors in and to property of whatever type or nature, including real, personal, mixed, intellectual, tangible, and intangible property.

1.30 “**Avoidance Action**” means any and all actual or potential avoidance, recovery, subordination, or similar actions or remedies that may be brought by or on behalf of the Debtors or the Estates under the Bankruptcy Code or applicable non-bankruptcy law, including actions or remedies arising under chapter 5 and section 724(a) of the Bankruptcy Code or under similar or related local, state, federal, or foreign statutes and common law, including fraudulent transfer laws, fraudulent conveyance laws, or other similar related laws, in each case whether or not litigation to prosecute such Claim(s) and Cause(s) of Action was commenced prior to the Effective Date.

1.31 “**Bankruptcy Code**” means title 11 of the United States Code, 11 U.S.C. § 101, et seq., as amended from time to time, as applicable to the Chapter 11 Cases.

1.32 “**Bankruptcy Court**” means the United States Bankruptcy Court for the Southern District of Texas, Houston Division, or such other court having jurisdiction over the Chapter 11 Cases.

1.33 “**Bankruptcy Rules**” means the Federal Rules of Bankruptcy Procedure as promulgated by the United States Supreme Court under section 2075 of title 28 of the United States Code and any Local Bankruptcy Rules of the Bankruptcy Court, in each case, as amended from time to time and applicable to the Chapter 11 Cases.

1.34 “**Bar Date**” means the applicable date established by the Bankruptcy Court by which respective proofs of Claims and Interests must be Filed under the Claims Bar Date Order.

1.35 “**Business Day**” means any day, other than a Saturday, Sunday, “legal holiday” (as that term is defined in Bankruptcy Rule 9006(a)), or any other day on which commercial banks are required or authorized by law or executive order to be closed for commercial business with the public in New York City, New York.

1.36 “**Cancelled Instruments**” shall have the meaning ascribed to such term in Article 5.10(a) of this Plan.

1.37 “**Cash**” means cash in legal tender of the United States of America and cash equivalents, including bank deposits, checks, and other similar items.

1.38 “**Cash Collateral**” means all of the Debtors’ “cash collateral” as defined under section 363 of the Bankruptcy Code.

1.39 “**Causes of Action**” means any action, claim, cross-claim, third-party claim, cause of action, controversy, dispute, proceeding, demand, right, lien, indemnity, contribution, guaranty, suit, obligation, liability, loss, debt, fee or expense, damage, interest, judgment, cost, account, defense, remedy, offset, power, privilege, proceeding, license and franchise of any kind or character whatsoever, known, unknown, foreseen or unforeseen, existing or hereafter arising, contingent or non-contingent, matured or unmatured, suspected or unsuspected, liquidated or unliquidated, Disputed or undisputed, secured or unsecured, assertable directly or derivatively (including any alter ego theories), choate, inchoate, reduced to judgment or otherwise whether arising before, on, or after the Petition Date, in contract or in tort, in law or in equity or pursuant to any other theory of law (including under any state or federal securities laws). Causes of Action also includes: (a) any right of setoff, counterclaim or recoupment and any claim for breach of contract or for breach of duties imposed by law or in equity; (b) the right to object to, and seek the disallowance of, Claims or Interests; (c) any claim pursuant to section 362 or chapter 5 of the Bankruptcy Code; (d) any claim or defense including fraud, mistake, duress and usury and any other defenses set forth in section 558 of the Bankruptcy Code; (e) any state law fraudulent transfer claim; and (f) any Avoidance Actions.

1.40 “**Chapter 11 Cases**” means (a) when used with reference to a particular Debtor, the case under chapter 11 of the Bankruptcy Code commenced by such Debtor in the Bankruptcy Court, and (b) when used with reference to all Debtors, the jointly administered cases under chapter 11 of the Bankruptcy Code commenced by the Debtors in the Bankruptcy Court.

1.41 “**Claim**” means (a) a right to payment, whether or not such right is reduced to judgment, liquidated, unliquidated, fixed, contingent, matured, unmatured, disputed, undisputed, legal, equitable, secured, or unsecured, or (b) a right to an equitable remedy for breach of performance if such breach gives rise to a right to payment, whether or not such right to an equitable remedy is reduced to judgment, fixed, contingent, matured, unmatured, disputed, undisputed, secured, or unsecured, each as set forth in section 101(5) of the Bankruptcy Code.

1.42 “**Claim Objection Deadline**” means the deadline for objecting to Filed Proofs of Claim or scheduled Claims, which shall be, unless otherwise extended pursuant to the Plan: (a) the one hundred eightieth (180th) day following the later of (i) the Effective Date and (ii) the date that a Proof of Claim is Filed or amended or a Claim is otherwise asserted or amended in writing by or on behalf of a Holder of such Claim; or (b) such later date as may be fixed by the Bankruptcy Court.

1.43 “**Claims Bar Date Order**” means the *Order (I) Establishing Bar Dates and Related Procedures for Filing Proofs of Claim, (II) Approving the Form and Manner of Notice Thereof, and (III) Granting Related Relief* [Docket No. 443].

1.44 “**Claims Register**” means the official register of Claims and Interests maintained by the Notice and Claims Agent.

1.45 “**Class**” means any group of Claims or Interests classified as set forth in Article III of this Plan pursuant to sections 1122 and 1123(a)(1) of the Bankruptcy Code.

1.46 “**Collateral**” means any Asset of an Estate that is subject to a Lien securing the payment or performance of a Claim, which Lien is not invalid and has not been avoided under the Bankruptcy Code or applicable non-bankruptcy law, and any security as such term is defined in section 101(49) of the Bankruptcy Code.

1.47 “**Committee**” means the Official Committee of Unsecured Creditors (and all subcommittees thereof) appointed in the Chapter 11 Cases in accordance with section 1102(a) of the Bankruptcy Code pursuant to the *Notice of Appointment of Committee of Unsecured Creditors* filed by the U.S. Trustee on November 17, 2025 [Docket No. 192], as reconstituted pursuant to that certain *Amended Notice of Appointment of Committee of Unsecured Creditors* filed by the U.S. Trustee on February 3, 2026 [Docket No. 777] and as may be further reconstituted from time to time.

1.48 “**Committee Advisors**” means Willkie Farr & Gallagher LLP and Alvarez & Marsal North America, LLC.

1.49 “**Committee Settlement**” means the settlement among the Debtors, the Committee, the September 2029 Ad Hoc Group, and RMR set forth in Exhibit A to that certain *Notice of Settlement Term Sheet by and Among the Debtors, Official Committee of Unsecured Creditors, September 2029 Ad Hoc Group and RMR with Regards to the Plan* [Docket No. 855].

1.50 “**Conditions Precedent**” shall have the meaning set forth in Article IX of this Plan.

1.51 “**Confirmation**” means the Bankruptcy Court’s entry of the Confirmation Order on the docket of the Chapter 11 Cases.

1.52 “**Confirmation Date**” means the date upon which Confirmation occurs.

1.53 “**Confirmation Hearing**” means the hearing to be held by the Bankruptcy Court to consider confirmation of this Plan, as such hearing may be adjourned or continued from time to time.

1.54 “**Confirmation Order**” means the order of the Bankruptcy Court confirming this Plan pursuant to section 1129 of the Bankruptcy Code.

1.55 “**Consenting Creditors**” means the Additional Consenting Creditors and the Initial Consenting September 2029 Senior Secured Noteholders.

1.56 “**Consenting September 2029 Senior Secured Noteholders**” shall have the meaning set forth in the Restructuring Support Agreement.

1.57 “**Corporate Governance Documents**” means, with respect to any Person other than a natural person, the organizational and corporate governance documents for each such Person including limited liability company agreements, operating agreements, certificates of incorporation, certificates of formation, certificates of limited partnership, articles of organization (or equivalent organizational documents), warrants agreements, certificates of designation for preferred stock or other forms of preferred equity, by-laws, partnership agreements, operating agreements, limited liability company agreements, shareholders’ agreements, members’ agreement, or equivalent governing documents.

1.58 “**Cure**” means the payment of Cash by the Debtors, or the distribution of other property (as the parties may agree or the Bankruptcy Court may order), as necessary to (a) cure a monetary default by the Debtors in accordance with the terms of an Executory Contract or Unexpired Lease of the Debtors and (b) permit the Debtors to assume such Executory Contract or Unexpired Lease pursuant to section 365 of the Bankruptcy Code.

1.59 “**Cure Claim**” means a Claim (unless waived or modified by the applicable counterparty) based upon a Debtor’s defaults under an Executory Contract or an Unexpired Lease assumed by such Debtor

under section 365 of the Bankruptcy Code, other than a default that is not required to be cured pursuant to section 365(b)(2) of the Bankruptcy Code.

1.60 “Cure Dispute” means a pending objection relating to assumption or assumption and assignment of an Executory Contract or Unexpired Lease pursuant to section 365 of the Bankruptcy Code.

1.61 “Cure Notice” means a notice to parties to Executory Contracts or Unexpired Leases to be assumed or assumed and assigned reflecting the Debtors’ intention to potentially assume or assume and assign the contract or lease in connection with the Plan and, where applicable, setting forth the proposed Cure amount (if any).

1.62 “D&O Policy” means, collectively, all insurance policies (including any “tail policy”) issued or providing coverage to any of the Debtors for current or former directors’, managers’, trustees’, and officers’ liability, and all agreements, documents, or instruments related thereto.

1.63 “Debtor” or “Debtors” shall have the meaning set forth in the introductory paragraph of this Plan.

1.64 “Debtor Release” means the releases set forth in Article 10.6(a) of this Plan.

1.65 “Debtors in Possession” means the Debtors in their capacity as debtors in possession in the Chapter 11 Cases pursuant to sections 1101, 1107(a) and 1108 of the Bankruptcy Code.

1.66 “Definitive Documents” means, collectively: (a) this Plan; (b) the Plan Supplement, including, without limitation, any schedules of assumed or rejected contracts and a restructuring steps memorandum (if applicable); (c) the Disclosure Statement and the Solicitation Materials and exhibits related thereto; (d) the order of the Bankruptcy Court approving such Disclosure Statement and Solicitation Procedures in connection thereto; (e) the DIP Documents; (f) the Confirmation Order; (g) the Secured Exit Notes Indenture and related note documents (including intercreditor agreements); (h) the Equity Rights Offering Documents; (i) the Reorganized Common Equity Documents; (j) the New Corporate Governance Documents; (k) the Amended RMR Management Agreements; (l) all material pleadings and motions Filed by the Debtors with the Bankruptcy Court in connection with the Chapter 11 Cases (and related orders), including any “first day” and “second day” pleadings, and all orders sought pursuant thereto; (m) such other agreements, instruments, and documentation as may be agreed in writing (email sufficient) between the Debtors and the Required September 2029 Senior Secured Noteholders to document and consummate the Transactions; (n) the New Warrant Documents; (o) the New 2027 Senior Secured Notes Documents, and (p) any exhibits, schedules, amendments, modifications, supplements, appendices, or other documents, motions, pleadings, and/or agreements, as applicable, relating to any of the foregoing; *provided*, for the avoidance of doubt, that any procedural notices or Filings are not Definitive Documents; *provided further* that (x) the Definitive Documents in clauses (a), (c), (d), (f), (h), (i), (j) (solely to the extent the documents specified in (j) is for the Parent and addresses minority shareholder rights), and (n) shall be in a form reasonably acceptable to the Committee, and (y) with respect to the Definitive Documents in clause (b), (g), (k), (o), and (p) the Debtors shall consult in good faith with the Committee Advisors regarding the form and substance of any such proposed filing of such Definitive Document.

1.67 “DIP Agent” means the “Agent” (as defined in the DIP Credit Agreement), solely in its capacities as administrative agent and collateral agent under the DIP Credit Agreement, its successors, assigns, or any replacement agents appointed pursuant to the terms of the DIP Credit Agreement.

1.68 “DIP Anchor Capital Commitment Fee” means “Anchor Capital Commitment Fee” under and defined in the DIP Documents.

1.69 “**DIP Claims**” means all Claims held by the DIP Lenders or the DIP Agent on account of, arising under, or relating to the DIP Credit Agreement, the DIP Facility, or the DIP Orders, including Claims for all principal amounts outstanding, and any and all fees, interest, expenses, Indemnification Obligations, reimbursement obligations, and other amounts due under the DIP Documents.

1.70 “**DIP Commitment and Exit Fee Equity Distribution**” means shares of Reorganized Common Equity issued pursuant to Article 4.8(c)(i) of this Plan, which shall equal to (a) the aggregate amount of the DIP Anchor Capital Commitment Fee and the DIP Exit Fee *divided by* (b) a conversion price of \$20.00 per share, with such amount to be subject to dilution on account of the Initial Equity Compensation and the exercise of the New Warrants.

1.71 “**DIP Commitments**” means the commitments in respect of the DIP Facility.

1.72 “**DIP Credit Agreement**” means that certain Amended and Restated Secured Debtor-in-Possession Term Loan Credit Agreement entered by and among Office Properties Income Trust, as borrower, the guarantors party thereto, the DIP Agent, and the DIP Lenders (as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof) in respect of the DIP Facility.

1.73 “**DIP Documents**” means the DIP Credit Agreement, the other “Loan Documents” as defined in the DIP Credit Agreement, the DIP Motion, the DIP Orders, and any other agreement, document, and/or instrument entered or entered into in connection with any of the foregoing.

1.74 “**DIP Equity Distribution**” means shares of Reorganized Common Equity issued pursuant to Article 4.8(c)(i) of this Plan, which shall equal to the aggregate amount of DIP Claims (net of DIP Fee Claims) *divided by* a conversion price of \$12.60 per share, with such amount to be subject to dilution on account of the Initial Equity Compensation and the exercise of the New Warrants.

1.75 “**DIP Exit Fee**” means “Exit Fee” under and defined in the DIP Documents.

1.76 “**DIP Facility**” means that certain \$125 million secured debtor-in-possession financing facility provided by the DIP Lenders on the terms of, and subject to the conditions set forth in, the DIP Credit Agreement and approved by the Bankruptcy Court pursuant to the DIP Orders.

1.77 “**DIP Fee Claims**” means all Claims on account of the DIP Anchor Capital Commitment Fee, the DIP Exit Fee, and the DIP Upfront Fee.

1.78 “**DIP Lenders**” means the lenders from time to time party to the DIP Credit Agreement.

1.79 “**DIP Loans**” means the loans provided pursuant to the DIP Facility.

1.80 “**DIP Motion**” means the motion seeking approval by the Bankruptcy Court of the DIP Facility and entry of the DIP Orders, including any declarations, notices, exhibits, and/or annexes thereto (as amended, modified, or supplemented from time to time).

1.81 “**DIP Obligations**” shall have the meaning set forth in the DIP Documents.

1.82 “**DIP Orders**” means, collectively, the Interim DIP Order, the Final DIP Order, and the Adequate Protection Stipulation.

1.83 “**DIP Upfront Fee**” means “Upfront Fee” under and defined in the DIP Documents.

1.84 “**DIP Upfront Fee Equity Distribution**” means shares of Reorganized Common Equity issued pursuant to Article 4.8(c)(ii) of this Plan, which shall equal the amount of the DIP Upfront Fee *divided by* a conversion price of \$12.60 per share, with such amount to be subject to dilution on account of the Initial Equity Compensation and the exercise of the New Warrants.

1.85 “**Disallowed**” means, with respect to any Claim or Interest, that such Claim or Interest has been determined by a Final Order or specified in a provision of this Plan not to be Allowed.

1.86 “**Disclosure Statement**” means the disclosure statement disclosing the terms and conditions of this Plan, including all exhibits, schedules, supplements, modifications, and amendments thereto, that is prepared and distributed in accordance with the Bankruptcy Code, the Bankruptcy Rules, and any other applicable law and approved by the Bankruptcy Court pursuant to section 1125 of the Bankruptcy Code.

1.87 “**Disputed**” means with respect to a Claim, (a) any Claim, which is disputed under Article 7.1 of this Plan or as to which the Debtors have interposed and not withdrawn an objection or request for estimation that has not been determined by a Final Order; (b) any Claim, proof of which was required to be timely and properly Filed but as to which no such Proof of Claim was Filed; (c) any Claim that is listed in the Schedules as unliquidated, contingent, or disputed, and as to which no request for payment or Proof of Claim has been Filed; or (d) any Claim that is otherwise disputed by any of the Debtors or the Reorganized Debtors in accordance with applicable law or contract, which dispute has not been withdrawn, resolved, or overruled by a Final Order. To the extent the Debtors dispute only the amount of a Claim, such Claim shall be deemed Allowed in the amount the Debtors do not dispute, if any, and Disputed as to the balance of such Claim.

1.88 “**Distribution Agent**” means the Debtors, the Debtors’ agent, or the Reorganized Debtors in each case acting under Article VI of this Plan, to make or facilitate the distributions required by this Plan.

1.89 “**Distribution Record Date**” means the date that is fifteen (15) days prior to the anticipated Effective Date of this Plan, or such other time as designated by the Debtors. For the avoidance of doubt, the Distribution Record Date shall not apply to any securities of the Debtors deposited with DTC, the Holder of which shall receive a distribution in accordance with the terms of Article VI of this Plan and the customary procedures of DTC.

1.90 “**DTC**” means The Depository Trust Company.

1.91 “**Effective Date**” means the date on which each of the Conditions Precedent set forth in Article IX of this Plan have been satisfied or waived in accordance with the terms thereof. Without limiting the foregoing, any action to be taken on the Effective Date may be taken on or as soon as reasonably practicable after the Effective Date.

1.92 “**Entity**” means an individual, corporation, partnership, limited liability partnership, limited liability company, association, joint stock company, joint venture, estate, trust, unincorporated organization, “governmental unit” (as defined in section 101(27) of the Bankruptcy Code) or any political subdivision thereof, or other “person” (as defined in section 101(41) of the Bankruptcy Code) or other “entity” (as defined in section 101(15) of the Bankruptcy Code).

1.93 “**Equitization/Prepayment Notice**” shall have the meaning set forth in the DIP Documents.

1.94 “**Equity Rights Offering**” means that certain equity rights offering to be consummated by the Reorganized Parent on the Effective Date in accordance with the Equity Rights Offering Documents

and this Plan and subject to the Equity Rights Offering Procedures, pursuant to which the Reorganized Parent shall issue Subscription Rights to all Holders of Allowed Unsecured Notes Claims.

1.95 “Equity Rights Offering Backstop Commitment Letter” means that certain Equity Rights Offering Backstop Commitment Letter attached as Exhibit A to the Equity Rights Offering Order, including all exhibits, annexes, and schedules attached thereto, as may be amended, supplemented, or modified from time to time and including in accordance with the terms thereof.

1.96 “Equity Rights Offering Backstop Parties” means, collectively, (a) certain members of the Unsecured Notes Ad Hoc Group, (b) ValueWorks Limited Partners LP, and (c) Diamond Family Investments LLC, as reflected in the Equity Rights Offering Backstop Commitment Letter.

1.97 “Equity Rights Offering Documents” means, collectively, the Equity Rights Offering Order and any and all agreements, documents, and instruments delivered or entered into in connection with the Equity Rights Offering, including the Equity Rights Offering Procedures and the Equity Rights Offering Backstop Commitment Letter, each as may be amended, restated, supplemented, or otherwise modified from time to time according to their respective terms.

1.98 “Equity Rights Offering Order” means the order of the Bankruptcy Court approving the Equity Rights Offering Procedures.

1.99 “Equity Rights Offering Procedures” means those certain rights offering procedures with respect to the Equity Rights Offering as set forth in the Equity Rights Offering Documents and as approved by the Bankruptcy Court.

1.100 “Equity Rights Offering Shares” means the Reorganized Common Equity issued pursuant to the Equity Rights Offering, as described in the Equity Rights Offering Documents, subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants.

1.101 “Estate” or “Estates” means, individually or collectively, the estate or estates of the Debtors created under section 541 of the Bankruptcy Code.

1.102 “Exculpated Parties” means each of the following in their capacity as such and, in each case, to the maximum extent permitted by law: (a) the Debtors and their Estates, (b) each independent director of the Debtors, and (c) the Committee and each member of the Committee.

1.103 “Executory Contract” means a contract to which one or more Debtors is a party that is subject to assumption or rejection under section 365 of the Bankruptcy Code.

1.104 “Existing Common Equity” means any common stock in the Parent that is issued and outstanding as of the Petition Date.

1.105 “Existing Debt” means the Mortgage Debt, the Secured Credit Facility Obligations, the March 2029 Senior Secured Notes, the 2027 Senior Secured Notes, the September 2029 Senior Secured Notes, the Priority Guaranteed Unsecured Notes, and the Unsecured Notes.

1.106 “Exit Costs” means any amounts relating to or arising from the Debtors’ emergence from the Chapter 11 Cases, including, without limitation, unpaid Professional fees and expenses, Cure amounts, and administrative expenses.

1.107 “**File**” or “**Filed**” or “**Filing**” means file, filed, or filing, respectively, with the Bankruptcy Court or its authorized designee in the Chapter 11 Cases.

1.108 “**Final DIP Order**” means the order entered by the Bankruptcy Court authorizing the Debtors to enter into the DIP Credit Agreement and approving, among other things, the DIP Facility, the DIP Commitments, the DIP Loans, the Debtors’ use of Cash Collateral, and the parties’ rights with respect thereto on a final basis (as may be amended, supplemented, or modified from time to time).

1.109 “**Final Order**” means as applicable, an order or judgment of the Bankruptcy Court, or other court of competent jurisdiction with respect to the relevant subject matter, which has not been reversed, stayed, modified, or amended, including any order subject to appeal but for which no stay of such order has been entered, and as to which the time to appeal, seek certiorari, or move for a new trial, reargument, or rehearing has expired and as to which no appeal, petition for certiorari, or other proceeding for a new trial, reargument, or rehearing has been timely taken, or as to which any appeal that has been taken or any petition for certiorari that has been or may be Filed has been withdrawn with prejudice, resolved by the highest court to which the order or judgment was appealed or from which certiorari could be sought, or any request for new trial, reargument, or rehearing has been denied, resulted in no stay pending appeal or modification of such order, or has otherwise been dismissed with prejudice; *provided* that no order or judgment shall fail to be a “Final Order” solely because of the possibility that a motion under Rules 59 or 60 of the Federal Rules of Civil Procedure or any analogous Bankruptcy Rule (or any analogous rules applicable in another court of competent jurisdiction) or sections 502(j) or 1144 of the Bankruptcy Code has been or may be Filed with respect to such order or judgment.

1.110 “**General Unsecured Claims**” means all Claims against the Debtors that are non-priority and unsecured, excluding Mortgage Debt Guarantee Claims, Allowed September 2029 Unsecured Claims, Priority Guaranteed Unsecured Notes Claims, Unsecured Notes Claims, and Intercompany Claims.

1.111 “**Governmental Unif**” means any supranational, national, state, municipal, local or foreign government, any court, tribunal, arbitrator or arbitral body (public or private), administrative agency, commission or other governmental official, authority or instrumentality (including any legislature, commission, regulatory administrative authority, governmental agency, bureau, branch or department).

1.112 “**Holder**” means any Entity that is the record or beneficial owner of any Claim or Interest, including any nominees, investment managers, investment advisors, sub-advisors, or managers of funds or discretionary accounts that hold, or trustees of trusts that hold, any Claim or Interest; *provided* that, for purposes of distributions to be made under this Plan, Holder shall include each Notes Trustee.

1.113 “**Impaired**” means, with respect to a Claim, Interest, or Class of Claims or Interests, “impaired” within the meaning of sections 1123(a)(4) and 1124 of the Bankruptcy Code.

1.114 “**Indemnification Obligation**” means, collectively, any and all obligations of the Debtors pursuant to their corporate charters, bylaws, limited liability company agreements, memorandum and articles of association, or other organizational documents or agreements to indemnify all current officers, directors, trustees, agents or employees, in each case solely in their capacity as such, employed by the Debtors on and/or after the Petition Date with respect to all past, present, and future actions, suits, and proceedings against the Debtors or such officers, directors, trustees, agents, or employees based upon any act or omission for or on behalf of the Debtors.

1.115 “**Initial Consenting September 2029 Senior Secured Noteholders**” means the holders of September 2029 Senior Secured Notes, and investment advisors, sub-advisors, or managers for the accounts

of beneficial holders or beneficial holders of September 2029 Senior Secured Notes that signed the Restructuring Support Agreement on October 30, 2025.

1.116 “Initial Equity Compensation” means the two percent (2%) of Reorganized Common Equity issued to RMR upon the occurrence of the Effective Date pursuant to the Amended RMR Management Agreements (which shall not dilute the Reorganized Common Equity distributed to Holders of Allowed September 2029 Senior Secured Note Claims but shall be subject to dilution by the New Warrants).

1.117 “Insured Claim” means any Claim or portion of a Claim that is, or may be, insured under any insured policy.

1.118 “Intercompany Claim” means any Claim against a Debtor held by another Debtor or Non-Debtor Affiliate; *provided* that any Claim against a Debtor held by any joint venture entity shall not constitute an “Intercompany Claim.”

1.119 “Intercompany Interest” means any Interest in a Debtor held by another Debtor.

1.120 “Interest” means any equity, including all ordinary shares, units, common stock, preferred stock, membership interest, partnership interest, or other instruments evidencing an ownership interest, or “equity security” (as defined in section 101(16) of the Bankruptcy Code) in any of the Debtors, whether or not transferable, and any option, warrant or right, contractual or otherwise, including, without limitation, equity-based employee incentives, grants, stock options, stock appreciation rights, restricted stock, restricted stock units, performance shares/units, incentive awards, or other instruments issued to employees of the Debtors, to acquire any such interests in a Debtor that existed immediately before the Effective Date; *provided* that the foregoing shall not apply to any entitlement to participate in or receive any Interests of the Reorganized Debtors on or following the Effective Date.

1.121 “Interim DIP Order” means the *Interim Order Pursuant to Sections 105, 361, 362, 363, and 364 of the Bankruptcy Code and Rules 2002, 4001, 6004, and 9014 of the Federal Rules of Bankruptcy Procedure (I) Authorizing the Debtors to Use Cash Collateral and Obtain Secured Postpetition Financing; (II) Granting Liens and Superpriority Administrative Claims; (III) Providing Adequate Protection; (IV) Scheduling a Final Hearing; and (V) Granting Related Relief* entered by the Bankruptcy Court on November 5, 2025 [Docket No. 150].

1.122 “IRS” means the Internal Revenue Service of the United States of America.

1.123 “JPM” means JPMorgan Chase Bank, National Association,

1.124 “JPM Loan Agreements” means, collectively, (a) that certain Loan Agreement, dated as of August 8, 2023, by and between JPM as lender, and Echelon Pkwy MS LLC, as borrower; (b) that certain Loan Agreement, dated as of June 30, 2023, by and between JPM, as lender, and Rio Robles CA LLC, as borrower; (c) that certain Loan Agreement, dated as of June 23, 2023, by and between JPM, as lender, and Sterling Park LLC, as borrower; (d) that certain Loan Agreement, dated as of May 25, 2023, by and between JPM, as lender, and 3300 75th Avenue LLC, as borrower; and (e) that certain Loan Agreement, dated as of June 27, 2023, by and between JPM, as lender, and Ewing Boulevard LLC, as borrower, each as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.125 “Lien” shall have the meaning set forth in section 101(37) of the Bankruptcy Code.

1.126 “Local Bankruptcy Rules” means the Bankruptcy Local Rules for the United States Bankruptcy Court for the Southern District of Texas.

1.127 “March 2029 Ad Hoc Group” means that certain ad hoc group of Holders of March 2029 Senior Secured Notes Claims represented by the March 2029 Ad Hoc Group Advisors.

1.128 “March 2029 Ad Hoc Group Advisors” means Paul, Weiss, Rifkind, Wharton & Garrison LLP, Ducera Partners LLC, Munsch Hardt Kopf & Harr, P.C., and such other Professional advisors as are retained by the March 2029 Ad Hoc Group with the prior written consent of the Debtors.

1.129 “March 2029 Senior Secured Notes” means those certain 9.000% Senior Secured Notes due 2029, issued by the Parent pursuant to the March 2029 Senior Secured Notes Indenture.

1.130 “March 2029 Senior Secured Notes Claims” means any Claim on account of, arising under, or relating to the March 2029 Senior Secured Notes or the March 2029 Senior Secured Notes Documents.

1.131 “March 2029 Senior Secured Notes Documents” means, collectively, the March 2029 Senior Secured Notes Indenture, the March 2029 Senior Secured Notes Security Documents, and all other documents governing the March 2029 Senior Secured Notes.

1.132 “March 2029 Senior Secured Notes Indenture” means that certain Indenture, dated as of February 12, 2024, by and between the Parent and U.S. Bank Trust Company, National Association, as initial trustee and collateral agent, as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.133 “March 2029 Senior Secured Notes Security Documents” means, collectively, “Security Documents” under and defined in the March 2029 Senior Secured Notes Indenture and any ancillary documents, agreements, or instruments.

1.134 “March 2029 Senior Secured Notes Trustee” means (a) U.S. Bank Trust Company, National Association, as initial trustee, (b) Wilmington Trust, N.A., as successor trustee, or (c) any successor thereto duly appointed in accordance with the terms of the March 2029 Senior Secured Notes Indentures, in each case solely in its capacity as trustee and collateral agent under the March 2029 Senior Secured Notes Indentures.

1.135 “Mortgage Debt” means the amount due and owing, in the aggregate, under the Mortgage Loan Agreements.

1.136 “Mortgage Debt Claims” means any Claim on account of, arising under, or relating to the Mortgage Debt.

1.137 “Mortgage Debt Documents” means, collectively, the Mortgage Loan Agreements and the other documents governing the Mortgage Debt.

1.138 “Mortgage Debt Guarantee Claims” means any Claim on account of, arising under, or relating to the guarantee granted under the Mortgage Debt Documents.

1.139 “Mortgage Debt Guarantee Settlement Agreement” shall have the meaning ascribed to such term in Article 4.3(c)(ii) of this Plan.

1.140 “**Mortgage Debt Trustees**” means any “Trustee” as defined in the Mortgage Loan Agreements, or any successor thereto duly appointed in accordance with the terms of the respective Mortgage Loan Agreement.

1.141 “**Mortgage Loan Agreements**” means, collectively, the JPM Loan Agreements and the UBS Loan Agreement.

1.142 “**New 2027 Senior Secured Notes**” means, new notes (a) issued pursuant to the New 2027 Senior Secured Notes Indenture, (b) in an aggregate principal amount equaling \$385,000,000, which amount may be reduced by, among other things, a pay down of up to \$50,000,000 in accordance with the schedule set forth in the 2027 Senior Secured Notes Claim Settlement and the New 2027 Senior Secured Notes Indenture, (c) bearing interest at 8.125%, and (d) secured by a first lien security interest on the New 2027 Senior Secured Notes Collateral Package.

1.143 “**New 2027 Senior Secured Notes Collateral Package**” means, collectively, (a) the 2027 Senior Secured Notes First Lien Collateral, but excluding (i) the Interests held by OPI 25 Exchange LLC in SIR Parsippany (Jefferson) LLC and SIR Irving (Freeport) LLC and (ii) the properties held by SIR Parsippany (Jefferson) LLC and SIR Irving (Freeport) LLC, and (b) such additional property as required to meet the New 2027 Senior Secured Notes Minimum Value Requirement.

1.144 “**New 2027 Senior Secured Notes Documents**” means, collectively, the New 2027 Senior Secured Notes Indenture and the other documents governing the New 2027 Senior Secured Notes.

1.145 “**New 2027 Senior Secured Notes Indenture**” means the indenture governing the New 2027 Senior Secured Notes.

1.146 “**New 2027 Senior Secured Notes Minimum Value Requirement**” means the requirement that the cumulative fair market values of the properties constituting the New 2027 Senior Secured Notes Collateral Package shall equal or exceed \$460,000,000, as determined by the 2027 Senior Secured Notes Property Appraisals.

1.147 “**New Board**” means the initial composition of the board of directors, managers, or trustees of Reorganized Parent.

1.148 “**New Corporate Governance Documents**” means the new Corporate Governance Documents of the Reorganized Debtors, after giving effect to the Transactions, as applicable, including any shareholders agreement, limited liability company agreement, or similar document.

1.149 “**New March 2029 Senior Secured Notes**” means new notes (a) in an aggregate principal amount equaling the Allowed March 2029 Senior Secured Notes Claim Amount and (b) secured by the same collateral securing the March 2029 Senior Secured Notes.

1.150 “**New Mortgage Debt**” means \$177.3 million in new mortgages secured by the same collateral securing the Mortgage Debt, or otherwise Unimpaired Mortgage Debt.

1.151 “**New Secured Credit Facility**” means \$425 million in new credit facility obligations secured by the same collateral securing the Secured Credit Facility, or otherwise Unimpaired Secured Credit Facility Obligations.

1.152 “**New Warrants**” means warrants which shall be, among other things, (a) issued on the terms set forth in the New Warrants Documents, (b) exercisable for 5.0% of Reorganized Common Equity

outstanding as of the Effective Date (after taking into account the Reorganized Common Equity issued or issuable, as applicable, as a result of the Initial Equity Compensation or the exercise of the New Warrants), (c) exercisable at a strike price equal to \$25 per share, and (d) exercisable within seven (7) years from the Effective Date.

1.153 “New Warrants Agreement” means the form of warrant agreement governing New Warrants.

1.154 “New Warrants Documents” means the New Warrants, New Warrants Agreement, and any and all documents required to implement, issue, or distribute the New Warrants.

1.155 “Non-Debtor Affiliates” means any direct or indirect subsidiary or Affiliate of the Debtors that is not a Debtor; *provided* that the “Non-Debtor Affiliates” shall exclude RMR, its direct and indirect subsidiaries, its direct and indirect parent entities, and RMR-managed entities (other than Parent and Parent’s direct and indirect subsidiaries).

1.156 “Non-Voting Class” means each of Classes 1, 2, 3, 4, 13, 14, 15, and 16.

1.157 “Notes Claims” means, collectively, the March 2029 Senior Secured Notes Claims, the 2027 Senior Secured Notes Claims, the September 2029 Senior Secured Notes Claims, the Priority Guaranteed Unsecured Notes Claims, and the Unsecured Notes Claims.

1.158 “Notes Documents” means, collectively, the March 2029 Senior Secured Notes Documents, the 2027 Senior Secured Notes Documents, the September 2029 Senior Secured Notes Documents, the Priority Guaranteed Unsecured Notes Documents, and the Unsecured Notes Documents.

1.159 “Notes Indentures” means, collectively, the March 2029 Senior Secured Notes Indenture, the 2027 Senior Secured Notes Indenture, the September 2029 Senior Secured Notes Indentures, the Priority Guaranteed Unsecured Notes Indenture, and the Unsecured Notes Indentures.

1.160 “Notes Trustees” means, collectively, the March 2029 Senior Secured Notes Trustee, the Priority Guaranteed Unsecured Notes Trustee, the Unsecured Notes Trustee, and the Senior Secured Notes Trustees.

1.161 “Notice and Claims Agent” means Kroll Restructuring Administration LLC, in its capacity as noticing, claims, and solicitation agent for the Debtors, pursuant to an order of the Bankruptcy Court.

1.162 “OID” means any unamortized original issue discount (after giving effect to the provisions of the Bankruptcy Code).

1.163 “Original September 2029 Senior Secured Notes” means those certain 9.000% Senior Secured Notes due 2029, issued pursuant to the Original September 2029 Senior Secured Notes Indenture.

1.164 “Original September 2029 Senior Secured Notes Claims” means September 2029 Senior Secured Notes Claims on account of, arising under, or relating to the Original September 2029 Senior Secured Notes.

1.165 “Original September 2029 Senior Secured Notes Indenture” means that certain Indenture, dated as of June 20, 2024, by and between the Parent and U.S. Bank Trust Company, National Association, as trustee and collateral agent as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.166 “**Original September 2029 Senior Secured Notes Trustee**” means U.S. Bank Trust Company, National Association, or any successor thereto duly appointed in accordance with the terms of the Original September 2029 Senior Secured Notes Indenture, in each case solely in its capacity as trustee and collateral agent under the Original September 2029 Senior Secured Notes Indenture.

1.167 “**Other General Unsecured Claim**” means any General Unsecured Claim that is not a Trade and Vendor Claim; *provided* that any Claim that satisfies the definition of a 510(b) Claim shall be classified in Class 15 510(b) Claims.

1.168 “**Other Priority Claim**” means any Claim other than an Administrative Claim or a Priority Tax Claim entitled to priority in right of payment under section 507(a) of the Bankruptcy Code.

1.169 “**Other Secured Claim**” means any Secured Claim other than Mortgage Debt Claims, Secured Credit Facility Claims, March 2029 Senior Secured Notes Claims, 2027 Senior Secured Notes Claims, or September 2029 Senior Secured Notes Claims.

1.170 “**Parent**” means Office Properties Income Trust.

1.171 “**Person**” means an individual, corporation, partnership, joint venture, association, joint stock company, limited liability company, limited liability partnership, trust, estate, unincorporated organization, Governmental Unit, or other Entity.

1.172 “**Petition Date**” means October 30, 2025, the date on which the Debtors commenced the Chapter 11 Cases.

1.173 “**Plan**” means this joint chapter 11 plan, including all appendices, exhibits, schedules, and supplements hereto (including any appendices, schedules, and supplements to this Plan contained in the Plan Supplement), as the same may be amended, supplemented, or modified from time to time in accordance with the provisions of the Bankruptcy Code and the terms hereof.

1.174 “**Plan Securities**” means, collectively, the Secured Exit Notes, the New 2027 Senior Secured Notes, the New March 2029 Senior Secured Notes (if any), the Reorganized Common Equity (including any Reorganized Common Equity issued or issuable upon or on account of the Initial Equity Compensation and/or the Equity Rights Offering), the Subscription Rights, and the New Warrants.

1.175 “**Plan Supplement**” means, collectively, the compilation of the Plan Supplement Documents, all of which are incorporated by reference into, and are an integral part of, this Plan, as all of the same may be amended, supplemented, or modified from time to time through the Effective Date, the form of each of which shall be subject to any applicable consent and/or consultation rights set forth in the Restructuring Support Agreement.

1.176 “**Plan Supplement Documents**” means, collectively, documents and forms of documents, and all exhibits, attachments, schedules, agreements, documents and instruments referred to in the Plan Supplement, ancillary or otherwise, all of which are incorporated by reference into, and are an integral part of, this Plan, subject to the consent of the Required September 2029 Senior Secured Noteholders (which consent shall not be unreasonably withheld, delayed, or conditioned), and as all of the same may be amended, supplemented, or modified from time to time through the Effective Date. The Plan Supplement Documents will include, without limitation, the following documents: (a) the Secured Exit Notes Documents; (b) the New Corporate Governance Documents; (c) the New Warrants Documents; (d) if applicable, the Reorganized Common Equity Documents; (e) the New 2027 Senior Secured Notes Documents; (f) the identity of the members of the New Board and any officers of the Reorganized Debtors;

(g) if applicable, the Transaction Steps Exhibit; (h) the Schedule of Rejected Executory Contracts and Unexpired Leases; (i) the Schedule of Assumed Executory Contracts and Unexpired Leases; (j) the Schedule of Retained Causes of Action; (k) the Amended RMR Management Agreements; and (l) the Mortgage Debt Guarantee Settlement Agreements.

1.177 “Prepetition Credit Documents” means, collectively, the March 2029 Senior Secured Notes Documents, the Mortgage Debt Documents, the Secured Credit Facility Documents, the September 2029 Senior Secured Notes Documents, the 2027 Senior Secured Notes Documents, the Priority Guaranteed Unsecured Notes Documents, and the Unsecured Notes Documents.

1.178 “Prerequisite Condition” shall have the meaning ascribed to such term in Article 9.2 of this Plan.

1.179 “Priority Guarantee Distributable Value” means, with respect to the Debtor subsidiaries that have provided unsecured guarantees under the 2027 Senior Secured Notes and the Priority Guaranteed Unsecured Notes, any value distributable on account of Allowed Priority Guaranteed Unsecured Notes Claims upon satisfaction of all Allowed Claims against such Debtor subsidiary guarantors that are senior in priority to Allowed Claims at the Parent pursuant to the Bankruptcy Code.

1.180 “Priority Guaranteed Unsecured Notes” means those certain 8.000% Senior Priority Guaranteed Unsecured Notes due 2027, issued pursuant to the Priority Guaranteed Unsecured Notes Indenture.

1.181 “Priority Guaranteed Unsecured Notes Claims” means any Claim on account of, arising under, or relating to the Priority Guaranteed Unsecured Notes Indenture.

1.182 “Priority Guaranteed Unsecured Notes Documents” means, collectively, the Priority Guaranteed Unsecured Notes Indenture and the other documents governing the Priority Guaranteed Unsecured Notes.

1.183 “Priority Guaranteed Unsecured Notes Indenture” means that certain Indenture, dated as of March 12, 2025, by and among Office Properties Income Trust, the subsidiary guarantors party thereto, and U.S. Bank Trust Company, National Association, as trustee, as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.184 “Priority Guaranteed Unsecured Notes Trustee” means (a) U.S. Bank Trust Company, National Association, as initial trustee, (b) Computershare Trust Company, National Association, as successor trustee, or (c) any successor thereto duly appointed in accordance with the terms of the Priority Guaranteed Unsecured Notes Indenture, in each case in its sole capacity as trustee and collateral agent under the Priority Guaranteed Unsecured Notes.

1.185 “Priority Guaranteed Unsecured Notes Trustee Fees and Expenses” means the reasonable and documented fees, expenses, indemnities, and disbursements of the Priority Guaranteed Unsecured Notes Trustee (including the reasonable and documented fees, disbursements, and other charges of counsel) incurred in connection with the Priority Guaranteed Unsecured Notes Documents, the Chapter 11 Cases, or the Plan.

1.186 “Priority Tax Claim” means any Claim of a Governmental Unit of the kind specified in section 507(a)(8) of the Bankruptcy Code.

1.187 “**Pro Rata Share**” means, with respect to any distribution on account of an Allowed Claim or Interest, a distribution equal in amount to the ratio (expressed as a percentage) that the amount of such Allowed Claim or Interest, as applicable, bears to the aggregate amount of all Allowed Claims or Interests, as applicable, in all Classes participating in such distribution.

1.188 “**Professional**” means an Entity (a) employed pursuant to a Bankruptcy Court order in accordance with sections 327, 328, 363, and/or 1103 of the Bankruptcy Code and to be compensated for services rendered before or on the Effective Date pursuant to sections 327, 328, 329, 330, 331, or 363 of the Bankruptcy Code or (b) awarded compensation and reimbursement by the Bankruptcy Court pursuant to section 503(b)(4) of the Bankruptcy Code that are not Restructuring Expenses.

1.189 “**Professional Fee Claim**” means all Claims for fees and expenses (including transaction and success fees) incurred by a Professional on or after the Petition Date to the extent such fees and expenses have not been paid pursuant to an order of the Bankruptcy Court.

1.190 “**Professional Fee Claim Estimate**” means the aggregate unpaid Professional Fee Claims as estimated in accordance with Article 2.6 of this Plan.

1.191 “**Professional Fee Escrow**” means an escrow account established and funded pursuant to Article 2.4 of this Plan.

1.192 “**Proof of Claim**” means a proof of Claim Filed against any of the Debtors in the Chapter 11 Cases.

1.193 “**Reinstatement**” or “**Reinstated**” or “**Reinstate**” means, with respect to Claims and Interests, that the Claim or Interest shall be rendered Unimpaired in accordance with section 1124 of the Bankruptcy Code.

1.194 “**Related Fund**” means, with respect to any Holder of Allowed Claims, any Affiliates (including at the institutional level) of such Holder or any fund, account (including any separately managed accounts) or investment vehicle that is controlled, managed, advised, or sub-advised by such Holder, an Affiliate of such Holder, or by the same investment manager, advisor or subadvisor as such Holder.

1.195 “**Related Parties**” means with respect to a Person, that Person’s current and former affiliates, and such Person’s and its current and former affiliates’ current and former directors, managers, trustees, officers, equity holders (regardless of whether such interests are held directly or indirectly), affiliated investment funds or investment vehicles, predecessors, participants, successors, and assigns, subsidiaries, and each of their respective current and former equity holders, officers, directors, managers, trustees, principals, members, employees, agents, fiduciaries, trustees, advisory board members, financial advisors, limited partners, general partners, attorneys, accountants, managed accounts or funds, management companies, fund advisors, investment bankers, consultants, investment managers, investment advisors, representatives, and other Professionals, and such Person’s respective heirs, executors, estates, and nominees, each in their capacity as such; *provided* that the Debtors’ and the Reorganized Debtors’ “Related Parties” shall exclude RMR, its direct and indirect subsidiaries, its direct and indirect parent entities, and RMR-managed entities (other than Parent and Parent’s direct and indirect subsidiaries).

1.196 “**Release Opt-In Form**” means the form to be provided to Holders (other than Debtors) of Claims and Interests in Classes 15 and 16 through which such Holders may elect to affirmatively opt in to the releases set forth in Article 10.6(b) of this Plan.

1.197 “Release Opt-Out Form” means the form to be provided to Holders (other than Debtors) of Claims in Classes 1, 2, 3, and 4 through which such Holders may elect to affirmatively opt out of the releases set forth in Article 10.6(b) of this Plan.

1.198 “Released Parties” means, collectively, each of, and in each case in its capacity as such: (a) the Debtors; (b) the Reorganized Debtors; (c) the Consenting Creditors; (d) the DIP Lenders; (e) the DIP Agent; (f) the September 2029 Senior Secured Notes Trustees; (g) RMR; (h) the Committee and its members; (i) the members of the 2027 Ad Hoc Group; (j) the 2027 Senior Secured Notes Trustee; (k) the Holders of Claims in Voting Classes that do not affirmatively elect to “opt out” of the releases set forth in Article 10.6(b) of this Plan as provided on their respective ballots; (l) the Holders of Claims in Classes 1, 2, 3, and 4 that do not affirmatively elect to “opt out” of the releases set forth in Article 10.6(b) of this Plan as provided on their respective Release Opt-Out Forms; (m) the Holders of Claims or Interests in Classes 15 and 16 that affirmatively elect to “opt in” to the releases set forth in Article 10.6(b) of this Plan as provided on their respective Release Opt-In Forms; and (n) the Related Parties of each Entity in clauses (a) through (m); provided that any Holder of a Claim or Interest that timely objects to the releases set forth in Article 10.6(b) of this Plan, either through (x) a formal objection Filed on the docket of the Chapter 11 Cases or (y) an informal objection provided to the Debtors by electronic mail, and such objection is not withdrawn on the docket of the Chapter 11 Cases or via electronic mail, as applicable, before the Confirmation Hearing, shall not be a “Released Party.”

1.199 “Releases” means, collectively, the releases set forth in Article 10.6 of this Plan.

1.200 “Releasing Parties” means, collectively, each of, and in each case in its capacity as such: (a) the Debtors; (b) the Reorganized Debtors; (c) the Consenting Creditors; (d) the DIP Lenders; (e) the DIP Agent; (f) the September 2029 Senior Secured Notes Trustees; (g) RMR; (h) the Committee and its members; (i) the members of the 2027 Ad Hoc Group; (j) the 2027 Senior Secured Notes Trustee; (k) the Holders of Claims in Voting Classes that do not affirmatively elect to “opt out” of the releases set forth in Article 10.6(b) of this Plan as provided on their respective ballots; (l) the Holders of Claims in Classes 1, 2, 3, and 4 that do not affirmatively elect to “opt out” of the releases set forth in Article 10.6(b) of this Plan as provided on their respective Release Opt-Out Forms; (m) the Holders of Claims or Interests in Classes 15 and 16 that affirmatively elect to “opt in” to the releases set forth in Article 10.6(b) of this Plan as provided on their respective Release Opt-In Forms; and (l) the Related Parties of each Entity in clauses (a) through (m), solely to the extent such Related Party (I) would be obligated to grant a release under principles of agency if it were so directed by the Entity in the foregoing clauses (a) through (h) to whom they are related or (II) may assert Claims or Causes of Action on behalf of or in a derivative capacity by or through an Entity in clause (a) through (m); *provided* that any Holder of a Claim or Interest that timely objects to the releases set forth in Article 10.6(b) of this Plan, either through (x) a formal objection Filed on the docket of the Chapter 11 Cases or (y) an informal objection provided to the Debtors, the September 2029 Ad Hoc Group, and RMR by electronic mail, and such objection is not withdrawn on the docket of the Chapter 11 Cases or via electronic mail, as applicable, before the Confirmation Hearing, shall not be a “Releasing Party.”

1.201 “Reorganized Common Equity” means a single class of new common equity interests of Reorganized Parent (or such other Entity as agreed by the Debtors or the Reorganized Debtors (as applicable) and the Required September 2029 Senior Secured Noteholders) authorized to be issued (a) on the Effective Date or (b) as otherwise permitted pursuant to this Plan and the New Corporate Governance Documents, including any authorized but unissued units, shares, or other equity interests of such voting class.

1.202 “Reorganized Common Equity Documents” means any and all documents required to implement, issue, or distribute the Reorganized Common Equity, including a registration rights agreement, if any.

1.203 “Reorganized Debtors” means the Debtors, or any successor(s) or assign(s) thereto, by merger, consolidation, reorganization, or otherwise, in the form of a corporation, limited liability company, partnership, trust, or other form, as the case may be, on and after the Effective Date.

1.204 “Reorganized Parent” means, subject to the Transaction Steps Exhibit (if applicable) and the applicable New Corporate Governance Documents, (a) Office Properties Income Trust, a trust, as reorganized pursuant to this Plan on or after the Effective Date, and its successors, or (b) such other Entity, whether by merger, consolidation or otherwise, and which may be a trust, corporation, limited liability company or partnership, as contemplated by Transaction Steps Exhibit, if applicable, that shall be the Debtors’ new parent.

1.205 “Required September 2029 Senior Secured Noteholders” means, at the relevant time, Consenting September 2029 Senior Secured Noteholders who, collectively, hold September 2029 Senior Secured Notes representing more than 50.0% of the aggregate principal amount of all the September 2029 Senior Secured Notes held by September 2029 Senior Secured Noteholders party to the Restructuring Support Agreement, including, in any event, each member of the September 2029 Ad Hoc Group SteerCo.

1.206 “Restructuring Expenses” means the reasonable and documented unpaid fees and expenses incurred by the September 2029 Ad Hoc Group Advisors related to the Chapter 11 Cases, and the Consenting September 2029 Senior Secured RSA Fee (as defined in the Restructuring Support Agreement).

1.207 “Restructuring Support Agreement” means that certain Restructuring Support Agreement, dated as of October 30, 2025, by and among the Debtors, the Consenting September 2029 Senior Secured Noteholders, and RMR, including all exhibits, annexes, and schedules attached thereto, as may be amended, supplemented or modified from time to time and including in accordance with the terms thereof.

1.208 “Restructuring Term Sheet” means that certain Restructuring Term Sheet attached as Exhibit A to the Restructuring Support Agreement, including all exhibits, annexes, and schedules attached thereto, as may be amended, supplemented or modified from time to time and including in accordance with the terms thereof.

1.209 “RMR” means The RMR Group LLC, in its capacity as the manager of the Parent under the RMR Management Agreements.

1.210 “RMR Management Agreements” means, collectively, (a) that certain Second Amended and Restated Property Management Agreement, dated as of June 5, 2015, by and between Government Properties Income Trust (now known as Office Properties Income Trust) and Reit Management & Research LLC (now known as RMR) and (b) that certain Second Amended and Restated Business Management Agreement, dated as of June 5, 2015, by and between Government Properties Income Trust (now known as Office Properties Income Trust) and Reit Management & Research LLC (now known as RMR), in each case as amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof and in the Restructuring Support Agreement.

1.211 “Schedule of Assumed Executory Contracts and Unexpired Leases” means the schedule of Executory Contracts and Unexpired Leases to be assumed by the Debtors pursuant to this Plan, if any, as the same may be amended, modified, or supplemented from time to time. Such schedule shall include the RMR Management Agreements.

1.212 “***Schedule of Rejected Executory Contracts and Unexpired Leases***” means the schedule of Executory Contracts and Unexpired Leases to be rejected by the Debtors pursuant to this Plan, if any, as the same may be amended, modified, or supplemented from time to time.

1.213 “***Schedule of Retained Causes of Action***” means a schedule of Causes of Action to be retained by the Reorganized Debtors as set forth in the Plan Supplement.

1.214 “***Schedules***” means the schedules of assets and liabilities and the statements of financial affairs filed by the Debtors under section 521 of the Bankruptcy Code, Bankruptcy Rule 1007, and the Official Bankruptcy Forms of the Bankruptcy Rules, as such schedules and statements have been or may be supplemented or amended from time to time.

1.215 “***Secured Claim***” means a Claim (a) secured by a Lien on Collateral to the extent of the value of such Collateral as (i) set forth in this Plan, (ii) agreed to by the Holder of such Claim and the Debtors, or (iii) determined by a Final Order in accordance with section 506(a) of the Bankruptcy Code exceeds the value of the Claim or (b) secured by the amount of any right of setoff of the Holder thereof in accordance with section 553 of the Bankruptcy Code; *provided* that nothing in this definition shall alter the terms of any subordination pursuant to section 510 of the Bankruptcy Code.

1.216 “***Secured Credit Facility***” means the revolving and term loan credit facility provided for under the Secured Credit Facility Credit Agreement.

1.217 “***Secured Credit Facility Ad Hoc Group***” means that certain ad hoc group of Holders of Secured Credit Facility Claims represented by the Secured Credit Facility Ad Hoc Group Advisors.

1.218 “***Secured Credit Facility Ad Hoc Group Advisors***” means Jones Day, FTI Consulting, Inc., and any local counsel retained by the Secured Credit Facility Ad Hoc Group, and such other Professional advisors as are retained by the Secured Credit Facility Ad Hoc Group with the prior written consent of the Debtors.

1.219 “***Secured Credit Facility Agent***” means Wilmington Savings Fund Society, FSB, as successor administrative agent to Wells Fargo Bank, National Association under the Secured Credit Facility Credit Agreement, its successors, assigns, or any replacement agents appointed pursuant to the terms of the Secured Credit Facility Credit Agreement.

1.220 “***Secured Credit Facility Claims***” means any Claim on account of, arising under, or relating to the Secured Credit Facility.

1.221 “***Secured Credit Facility Credit Agreement***” means that certain Second Amended and Restated Credit Agreement, dated as of January 29, 2024, by and between Debtor OPI WF Borrower LLC, as borrower, Debtor WF Holding LLC, as holdings, Office Properties Income Trust, as parent, the financial institutions party thereto, as lenders, and Wells Fargo Bank, National Association, as administrative agent, as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.222 “***Secured Credit Facility Documents***” means, collectively, the Secured Credit Facility Credit Agreement and the other documents governing the Secured Credit Facility.

1.223 “***Secured Credit Facility Obligations***” means “Obligations” under and defined in the Secured Credit Facility Credit Agreement.

1.224 “**Secured Exit Notes**” means the senior secured notes in an aggregate principal amount up to \$420 million, to be issued under this Plan on the Effective Date on terms and conditions set forth in the Secured Exit Notes Documents.

1.225 “**Secured Exit Notes Documents**” means, collectively, the Secured Exit Notes Term Sheet, the Secured Exit Notes Indenture, and the other documents governing the Secured Exit Notes.

1.226 “**Secured Exit Notes Indenture**” means the indenture governing the Secured Exit Notes.

1.227 “**Secured Exit Notes Term Sheet**” means the Secured Exit Notes Term Sheet annexed to the Restructuring Term Sheet as Annex 2.

1.228 “**Securities Act**” means the Securities Act of 1933, as amended.

1.229 “**Security**” or “**Securities**” means any instruments that qualify as a “security” under section 2(a)(1) of the Securities Act.

1.230 “**Senior Secured Notes Trustees**” means, collectively, the September 2029 Senior Secured Notes Trustees and the 2027 Senior Secured Notes Trustee.

1.231 “**September 2029 Ad Hoc Group**” means that certain ad hoc group of Holders of primarily September 2029 Senior Secured Notes Claims represented by the September 2029 Ad Hoc Group Advisors.

1.232 “**September 2029 Ad Hoc Group Advisors**” means White & Case LLP, Houlihan Lokey Capital, Inc., and any local counsel retained by the September 2029 Ad Hoc Group, and such other Professional advisors as are retained by the September 2029 Ad Hoc Group with the prior written consent of the Debtors.

1.233 “**September 2029 Ad Hoc Group SteerCo**” means Helix Partners Management LP and Redwood Capital Management LLC, in each case, on behalf of certain funds and accounts which they manage or advise.

1.234 “**September 2029 First Lien Collateral**” means “First Lien Collateral” under and defined in the September 2029 Senior Secured Notes Indentures.

1.235 “**September 2029 Recovery Election**” means the right of each Holder of an Allowed Original September 2029 Senior Secured Notes Claim to elect to receive certain of its Allowed September 2029 Senior Secured Notes Claim recovery in Secured Exit Notes, Reorganized Common Equity, or a combination thereof, pursuant to Article 4.7(c)(ii) of this Plan.

1.236 “**September 2029 Second Lien Collateral**” means “Second Lien Collateral” under and defined in the September 2029 Senior Secured Notes Indentures.

1.237 “**September 2029 Senior Secured Noteholders**” means the Holders of the September 2029 Senior Secured Notes.

1.238 “**September 2029 Senior Secured Notes**” means those certain 9.000% Senior Secured Notes due 2029, issued pursuant to the September 2029 Senior Secured Notes Indentures.

1.239 “**September 2029 Senior Secured Notes Claim Amount**” means the amount in the aggregate of (a) the outstanding September 2029 Senior Secured Notes Claims as of the Petition Date, less

(i) any OID associated with the September 2029 Senior Secured Notes Disallowed by the Bankruptcy Court, (ii) any postpetition interest paid to Holders of the September 2029 Senior Secured Notes that the Bankruptcy Court determines (or, solely with respect to any postpetition interest paid to Holders of the Original September 2029 Senior Secured Notes, which the Debtors or Reorganized Debtors, as applicable, and the Required September 2029 Senior Secured Noteholders agree) is a reduction in the principal amount of the September 2029 Senior Secured Notes, and (iii) any additional amounts Disallowed by the Bankruptcy Court pursuant to the Bankruptcy Code and applicable non-bankruptcy law, including any interest, fees, premiums, expenses, costs, and other charges not Allowed pursuant to sections 502 or 506 of the Bankruptcy Code; *plus* (b) any OID associated with the September 2029 Senior Secured Notes as of the Petition Date that is ultimately Allowed by Final Order; and (c) without duplication, any other amounts Allowed by Final Order.

1.240 “September 2029 Senior Secured Notes Claims” means any Claim on account of, arising under, or relating to the September 2029 Senior Secured Notes Documents, including any Claims in respect of all principal amount outstanding, interest, fees, premiums, expenses, costs, and other charges arising thereunder or related thereto, and postpetition interest, as applicable.

1.241 “September 2029 Senior Secured Notes Documents” means, collectively, the September 2029 Senior Secured Notes Indenture, the September 2029 Senior Secured Notes Security Documents, and the other documents governing the September 2029 Senior Secured Notes.

1.242 “September 2029 Senior Secured Notes Indentures” means, collectively, the Original September 2029 Senior Secured Notes Indenture and the Subsequent September 2029 Senior Secured Notes Indenture.

1.243 “September 2029 Senior Secured Notes Security Documents” means, collectively, “Security Documents” under and defined in the September 2029 Senior Secured Notes Indentures and any ancillary documents, agreements, or instruments.

1.244 “September 2029 Senior Secured Notes Trustees” means, collectively, the Original September 2029 Senior Secured Notes Trustee and the Subsequent September 2029 Senior Secured Notes Trustee.

1.245 “Solicitation” means the solicitation of votes on this Plan.

1.246 “Solicitation Materials” means materials used in connection with Solicitation, including the Disclosure Statement, and any procedures established by the Bankruptcy Court with respect to Solicitation.

1.247 “Solicitation Procedures” means the procedures concerning Solicitation established pursuant to a motion of the Debtors for an order, among other things, (a) approving the adequacy of the Disclosure Statement, (b) approving the Solicitation and voting procedures with respect to this Plan, (c) approving the forms of ballots and notices in connection with this Plan, (d) scheduling certain dates with respect to the Solicitation and approval of this Plan, and (e) granting related relief, to be Filed by the Debtors.

1.248 “Solicitation Procedures Order” means the order of the Bankruptcy Court approving, among other things, the Solicitation Procedures.

1.249 “Subscription Rights” means the right to purchase Reorganized Common Equity issued to all Holders of Allowed Unsecured Notes Claims to subscribe for the purchase of Reorganized Common

Equity at \$17 per share in an aggregate amount equal to \$35 million (with such amount to be subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants), pursuant to applicable exemptions from registration under the Securities Act and/or section 1145 of the Bankruptcy Code.

1.250 “**Subsequent Condition**” shall have the meaning ascribed to such term in Article 9.2 of this Plan.

1.251 “**Subsequent Equity Compensation**” means up to eight percent (8%) of Reorganized Common Equity that RMR shall be entitled to receive, upon the Reorganized Debtors’ satisfaction of certain financial and/or other performance metrics to be determined by the New Board, pursuant to the Amended RMR Management Agreements and a management incentive plan authorized by the New Board.

1.252 “**Subsequent September 2029 Senior Secured Notes**” means those certain 9.000% Senior Secured Notes due 2029, issued pursuant to the Subsequent September 2029 Senior Secured Notes Indenture.

1.253 “**Subsequent September 2029 Senior Secured Notes Claims**” means any Claim on account of, arising under, or relating to the Subsequent September 2029 Senior Secured Notes.

1.254 “**Subsequent September 2029 Senior Secured Notes Adjusted Claim Amount**” means an amount equal to \$37,570,000.

1.255 “**Subsequent September 2029 Senior Secured Notes Indenture**” means that certain Indenture, dated as of October 8, 2024, by and between Office Properties Income Trust and U.S. Bank Trust Company, National Association, as trustee and collateral agent, as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.256 “**Subsequent September 2029 Senior Secured Notes Trustee**” means (a) U.S. Bank Trust Company, National Association, as initial trustee, (b) BOKF, NA, as successor trustee, or (c) any successor thereto duly appointed in accordance with the terms of the Subsequent September 2029 Senior Secured Notes Indenture, in each case solely in its capacity as trustee and collateral agent under the Subsequent September 2029 Senior Secured Notes Indenture.

1.257 “**Trade and Vendor Claim**” means any General Unsecured Claim held by trade creditors against the Debtors for, among other things, goods and services provided prepetition, indemnification, or rejection damages, or any other unsecured Claim against the Debtors not entitled to priority of payment under section 507(a) of the Bankruptcy Code; *provided* that any Claim that satisfies the definition of a 510(b) Claim shall be classified in Class 15 510(b) Claims.

1.258 “**Transactions**” means the transactions set forth in Article V of this Plan, together with any other transaction that may be necessary or appropriate to effect any transaction described in, approved by, contemplated by, or necessary to effectuate this Plan, subject to any applicable consent and/or consultation rights set forth in the Restructuring Support Agreement, including: (a) the execution and delivery of any appropriate agreements or other documents of merger, amalgamation, consolidation, restructuring, conversion, disposition, transfer, formation, organization, dissolution, or liquidation containing terms that are consistent with the terms of this Plan, and that satisfy the requirements of applicable law and any other terms to which the applicable Persons may agree, including the documents comprising the Plan Supplement; (b) the execution and delivery of appropriate instruments of transfer, assignment, assumption, or delegation of any Asset, property, right, liability, debt, or obligation on terms consistent with the terms of this Plan and having other terms for which the applicable Persons agree; (c) the filing of appropriate certificates or articles of incorporation, reincorporation, merger, amalgamation, consolidation, conversion, or dissolution

pursuant to applicable state law; (d) such other transactions that are required to effectuate the Transaction Steps Exhibit (if any) and such other transactions to effectuate the restructuring contemplated by this Plan, in each case, in a tax efficient manner for the Debtors and Reorganized Debtors, including any mergers, consolidations, restructurings, conversions, dispositions, transfers, formations, organizations, dissolutions, or liquidations; (e) the execution, delivery, and Filing, if applicable, of the Definitive Documents and Plan Supplement Documents; (f) the issuance of Plan Securities, all of which shall be authorized and approved in all respects, in each case, without further action being required under applicable law, regulation, order or rule; (g) pursuant to the Equity Rights Offering Documents, the implementation and consummation of the Equity Rights Offering, the issuance of Subscription Rights pursuant to the Equity Rights Offering Procedures to the Holders of Allowed Unsecured Notes Claims and the issuance and distribution of the Reorganized Common Equity in connection therewith; and (h) all other actions that the applicable Persons determine to be necessary or appropriate, including making filings or recordings that may be required by applicable law.

1.259 “Transaction Steps Exhibit” means any summary of transaction steps to complete the restructuring contemplated by this Plan included in the Plan Supplement.

1.260 “UBS Loan Agreement” means that certain Loan Agreement, dated as of September 13, 2023, by and among UBS AG, as lender, and Clay Ave Waco LLC and Primerica Pkwy GA LLC, collectively, as borrowers, as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.261 “Unexpired Lease” means a lease to which one or more of the Debtors is a party that is subject to assumption or rejection under section 365 of the Bankruptcy Code.

1.262 “Unimpaired” means, with respect to a Class of Claims or Interests, a Class of Claims or Interests that is unimpaired within the meaning of section 1124 of the Bankruptcy Code.

1.263 “Unsecured Claim” means any Claim that is not a Secured Claim.

1.264 “Unsecured Equity Pool” means any remaining Reorganized Common Equity after accounting for Reorganized Common Equity issued pursuant to the Equity Rights Offering and in satisfaction of the DIP Claims and the Allowed September 2029 Senior Secured Notes Claims. Such Reorganized Common Equity in the Unsecured Equity Pool shall be subject to dilution on account of the Initial Equity Compensation and the exercise of the New Warrants.

1.265 “Unsecured Equity Pool Waterfall” means the distribution of the Unsecured Equity Pool, which shall be allocated and distributed to the Holders of Allowed Priority Guaranteed Unsecured Notes Claims, Allowed September 2029 Unsecured Claims, and Allowed Unsecured Notes Claims, on or as soon as reasonably practicable after the Effective Date, in the following priority: (a) first, pro rata on account of (i) Allowed Priority Guaranteed Unsecured Notes Claims, in the aggregate amount up to the Priority Guarantee Distributable Value; and (b) second, on account of (i) Allowed September 2029 Unsecured Notes Claims, (ii) Unsecured Notes Claims, and (iii) Allowed Priority Guaranteed Unsecured Notes Claims (if any and only to the extent not paid in full from the distribution in (a) of this Article 1.265 of the Plan).

1.266 “Unsecured Notes” means, collectively, (a) those certain 2.650% Senior Notes due 2026, (b) those certain 2.400% Senior Notes due 2027, (c) those certain 3.450% Senior Notes due 2031, and (d) those certain 6.375% Senior Notes due 2050, in each case issued pursuant to the applicable Unsecured Notes Indenture.

1.267 “**Unsecured Notes Ad Hoc Group**” means that certain ad hoc group of Holders of Unsecured Notes Claims represented by the Unsecured Notes Ad Hoc Group Advisors.

1.268 “**Unsecured Notes Ad Hoc Group Advisors**” means Glenn Agre Bergman & Fuentes LLP, Province, LLC, and any local counsel retained by the Unsecured Notes Ad Hoc Group, and such other Professional advisors as are retained by the Unsecured Notes Ad Hoc Group with the prior written consent of the Debtors.

1.269 “**Unsecured Notes Claims**” means any Claim on account of, arising under, or relating to the Unsecured Notes.

1.270 “**Unsecured Notes Documents**” means, collectively, the Unsecured Notes Indentures and the other documents governing the Unsecured Notes.

1.271 “**Unsecured Notes Indentures**” means, collectively, (a) that certain Indenture, dated as of July 20, 2017, by and between Government Properties Income Trust (now known as Office Properties Income Trust) and U.S. Bank National Association, (b) that certain Indenture, dated as of July 20, 2017, by and between Government Properties Income Trust (now known as Office Properties Income Trust) and U.S. Bank National Association, (c) that certain Indenture, dated as of July 20, 2017, by and between Government Properties Income Trust (now known as Office Properties Income Trust) and U.S. Bank National Association, and (d) that certain Indenture, dated as of July 20, 2017, by and between Government Properties Income Trust (now known as Office Properties Income Trust) and U.S. Bank National Association, in each case as may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time in accordance with the terms thereof.

1.272 “**Unsecured Notes Trustee**” means (a) U.S. Bank Trust Company, National Association, as initial trustee, (b) CSC Delaware Trust Company, as successor trustee, or (c) any successor thereto duly appointed in accordance with the terms of the Unsecured Notes Indentures, in each case solely in its capacity as trustee and collateral agent under the Unsecured Notes Indentures.

1.273 “**Unsecured Notes Trustee Fees and Expenses**” means the reasonable and documented fees, expenses, indemnities, and disbursements of the Unsecured Notes Trustee (including the reasonable and documented fees, disbursements, and other charges of counsel) incurred in connection with the Unsecured Notes Documents, the Chapter 11 Cases, or the Plan.

1.274 “**U.S. Trustee**” means the Office of the United States Trustee for the Southern District of Texas.

1.275 “**Voting Classes**” means, collectively, Classes 5, 6, 7, 8, 9, 10, 11, and 12.

1.276 “**Working Capital Requirement**” means the amount of Cash required by the Reorganized Debtors for working capital purposes as of the Effective Date, as determined in consultation with the (a) September 2029 Ad Hoc Group Advisors and (b) the Committee Advisors.

B. Interpretation; Application of Definitions and Rules of Construction.

Unless otherwise specified, all section or exhibit references in this Plan are to the respective section in, or exhibit to, this Plan, as the same may be amended, waived, or modified from time to time. The words “herein,” “hereof,” “hereto,” “hereunder,” and other words of similar import refer to this Plan as a whole and not to any particular section, subsection, or clause contained therein and have the same meaning as “in this Plan,” “of this Plan,” “to this Plan,” and “under this Plan,” respectively. The words

“includes” and “including” are not limiting. The headings in this Plan are for convenience of reference only and shall not limit or otherwise affect the provisions hereof. For purposes herein: (a) in the appropriate context, each term, whether stated in the singular or plural, shall include both the singular and plural, and pronouns stated in the masculine, feminine, or neuter gender shall include the masculine, feminine, and the neuter gender; (b) any reference herein to a contract, lease, instrument, release, indenture, or other agreement or document being in a particular form or on particular terms and conditions means that the referenced document shall be substantially in that form or substantially on those terms and conditions; (c) unless otherwise specified herein, all references herein to “Articles” are references to Articles hereof or hereto; (d) the rules of construction set forth in section 102 of the Bankruptcy Code shall apply; (e) any term used in capitalized form herein that is not otherwise defined but that is used in the Bankruptcy Code or the Bankruptcy Rules shall have the meaning assigned to that term in the Bankruptcy Code or the Bankruptcy Rules, as the case may be; (f) any docket number references in this Plan shall refer to the docket number of any document Filed with the Bankruptcy Court in the Chapter 11 Cases; (g) references to “shareholders,” “directors,” and/or “officers” shall also include “members” and/or “managers,” as applicable, as such terms are defined under the applicable state limited liability company laws; (h) except as otherwise provided herein, any reference to a document or agreement that is to be issued or entered into that is dependent on an election to be made pursuant to this Plan or an event occurring shall be deemed to be followed by the words “if applicable”; (i) any immaterial effectuating provisions may be interpreted by the Debtors, or after the Effective Date, the Reorganized Debtors, in such a manner that is consistent with the overall purpose and intent of this Plan all without further notice to or action, order, or approval of the Bankruptcy Court or any other Entity; *provided* that any effectuating provision that has an economic impact will not be considered “immaterial”; and (j) except as otherwise provided, any references to the Effective Date shall mean the Effective Date or as soon as reasonably practicable thereafter. To the extent that the treatment, allowance, or disallowance of any Claim herein is interpreted as a Claim objection, this Plan shall be deemed a Claim objection to such Claim.

C. Computation of Time.

Unless otherwise specifically stated herein, the provisions of Bankruptcy Rule 9006(a) shall apply in computing any period of time prescribed or allowed herein. If the date on which a transaction may occur pursuant to this Plan shall occur on a day that is not a Business Day, then such transaction shall instead occur on the next Business Day but shall be deemed to have been completed as of the required date.

D. Reference to Monetary Figures.

All references in this Plan to monetary figures shall refer to the legal tender of the United States of America, unless otherwise expressly provided.

E. Reference to the Debtors or the Reorganized Debtors.

Except as otherwise specifically provided in this Plan to the contrary, references in this Plan to the Debtors or the Reorganized Debtors shall have the meaning ascribed to in Article I of this Plan (excluding the Plan Supplement), to the extent the context requires.

F. Controlling Document.

In the event of an inconsistency between this Plan and the Plan Supplement, the terms of the relevant document in the Plan Supplement shall control (unless stated otherwise in the Plan Supplement or the Confirmation Order). In the event of an inconsistency between this Plan and any other instrument or document created or executed pursuant to this Plan, or between this Plan and the Disclosure Statement, this Plan shall control. The provisions of this Plan and of the Confirmation Order shall be construed in a manner

consistent with each other so as to effectuate the purposes of each; *provided* that if there is determined to be any inconsistency between any Plan provision and any provision of the Confirmation Order that cannot be so reconciled, then, solely to the extent of such inconsistency, the provisions of the Confirmation Order shall govern and any such provision of the Confirmation Order shall be deemed a modification of this Plan.

ARTICLE II.

ADMINISTRATIVE, PRIORITY TAX, AND PROFESSIONAL FEE CLAIMS.

2.1. *Administrative Claims.*

Except to the extent that a Holder of an Allowed Administrative Claim agrees to different treatment, each Holder of an Allowed Administrative Claim (other than a Professional Fee Claim) shall receive, in full and final satisfaction of such Allowed Administrative Claim, (a) Cash in an amount equal to such Allowed Administrative Claim on the Effective Date or as soon as practicable thereafter or (b) such other treatment consistent with the provisions of section 1129(a)(9) of the Bankruptcy Code and as agreed to by the Debtors; *provided* that Allowed Administrative Claims representing liabilities incurred in the ordinary course of business by the Debtors, as Debtors in Possession, shall be paid by the Debtors or the Reorganized Debtors, as applicable, in the ordinary course of business, consistent with past practice and in accordance with the terms and subject to the conditions of any orders, course of dealing, or agreements governing, instruments evidencing, or other documents relating to such transactions.

2.2. *Priority Tax Claims.*

Except to the extent that a Holder of an Allowed Priority Tax Claim agrees to less favorable treatment, on the earlier of (a) the Effective Date, to the extent such Claim is an Allowed Priority Tax Claim on the Effective Date, (b) the first Business Day after the date that is thirty (30) days after the date such Priority Tax Claim becomes an Allowed Priority Tax Claim, or (c) the date such Allowed Priority Tax Claim is due and payable in the ordinary course, each Holder of an Allowed Priority Tax Claim shall receive, in full and final satisfaction, settlement, release and discharge of, and in exchange for, such Allowed Priority Tax Claim, at the sole option of the Debtor or the Reorganized Debtors, as applicable, (i) Cash in an amount equal to such Allowed Priority Tax Claim or (ii) such other treatment reasonably acceptable to the Debtors or Reorganized Debtors (as applicable) consistent with the provisions of section 1129(a)(9) of the Bankruptcy Code; *provided* that the Debtors and the Reorganized Debtors, as applicable, reserve the right to prepay all or a portion of any such amounts at any time under this option without penalty or premium. Nothing in the foregoing or otherwise in this Plan shall prejudice the Debtors' or the Reorganized Debtors' rights and defenses regarding any asserted Priority Tax Claim.

2.3. *Restructuring Expenses.*

The Restructuring Expenses incurred, or estimated to be incurred, up to and including the Effective Date shall be paid in full in Cash on the Effective Date or as soon as reasonably practicable thereafter (to the extent not previously paid during the course of the Chapter 11 Cases) in accordance with, and subject to, the terms of the Restructuring Support Agreement, without any requirement to File a fee application with the Bankruptcy Court or without any requirement for Bankruptcy Court review or approval. All Restructuring Expenses to be paid on the Effective Date shall be estimated prior to and as of the Effective Date and such estimates shall be delivered to the Debtors at least five (5) Business Days before the anticipated Effective Date; *provided* that such estimates shall not be considered an admission or limitation with respect to such Restructuring Expenses. On the Effective Date, or as soon as practicable thereafter,

final invoices for all Restructuring Expenses incurred prior to and as of the Effective Date shall be submitted to the Debtors.

For the avoidance of doubt, any reasonable and documented fees and out-of-pocket expenses payable pursuant to the DIP Orders shall continue to be paid pursuant to the terms and conditions of the DIP Orders.

2.4. *Professional Fee Claims.*

All Professionals seeking approval by the Bankruptcy Court of Professional Fee Claims shall (a) File, on or before the date that is thirty (30) days after the Effective Date (unless extended by the Reorganized Debtors), their respective applications for final allowances of compensation for services rendered and reimbursement of expenses incurred and (b) be paid in full, in Cash, in such amounts as are Allowed by the Bankruptcy Court or authorized to be paid in accordance with the order(s) relating to or allowing any such Professional Fee Claims.

2.5. *Professional Fee Escrow.*

(a) As soon as reasonably practicable after the Confirmation Date and no later than the Effective Date, the Debtors shall establish and fund the Professional Fee Escrow with Cash equal to the Professional Fee Claims Estimate, and no Liens, Claims, or Interests shall encumber the Professional Fee Escrow or Cash held in the Professional Fee Escrow in any way. The Professional Fee Escrow (including funds held in the Professional Fee Escrow) (i) shall not be and shall not be deemed property of the Debtors, their Estates, or the Reorganized Debtors, and (ii) shall be held in trust for the Professionals; *provided* that funds remaining in the Professional Fee Escrow after all Allowed Professional Fee Claims have been irrevocably paid in full in Cash shall revert to the Reorganized Debtors. Allowed Professional Fee Claims shall be paid in Cash to such Professionals from funds held in the Professional Fee Escrow when such Claims are Allowed by an order of the Bankruptcy Court; *provided* that the Debtors' obligations with respect to Professional Fee Claims shall not be limited nor deemed to be limited in any way to the balance of funds held in the Professional Fee Escrow.

(b) If the amount of funds in the Professional Fee Escrow is insufficient to fund payment in full of all Allowed Professional Fee Claims and any other Allowed amounts owed to Professionals, the deficiency shall be promptly, and, in any event, by no later than five (5) Business Days of the Debtors or the Reorganized Debtors, as applicable, being alerted to such deficiency, funded in Cash to the Professional Fee Escrow from the Debtors' Estates or Reorganized Debtors, as applicable, without any further action or order of the Bankruptcy Court.

(c) Any objections to Professional Fee Claims shall be served and Filed no later than twenty-one (21) days after Filing of the final applications for compensation or reimbursement.

2.6. *Professional Fee Claims Estimate.*

Each Professional shall estimate in good faith its unpaid Professional Fee Claim and other unpaid fees and expenses incurred in rendering services to the Debtors, before and as of the Effective Date and shall deliver such reasonable, good faith estimate to the Debtors no later than five (5) Business Days prior to the Effective Date; *provided* that such estimate shall not limit, nor shall it be deemed to limit, the amount of the fees and expenses that are the subject of the Professional's final request for payment of Filed Professional Fee Claims. If a Professional does not provide an estimate, the Debtors, in consultation with the Committee Advisors if such Professional was retained by the Committee, shall estimate in good faith the unpaid and unbilled fees and expenses of such Professional. The total aggregate amount so estimated

to be outstanding as of the anticipated Effective Date shall be utilized by the Debtors to determine the amount to be funded to the Professional Fee Escrow; *provided* that the Reorganized Debtors shall use Cash on hand to increase the amount of the Professional Fee Escrow to the extent fee applications are Filed after the Effective Date in excess of the amount held in the Professional Fee Escrow based on such estimates.

2.7. *Post-Confirmation Date Fees and Expenses.*

(a) Except as otherwise specifically provided in this Plan, on and after the Confirmation Date, the Debtors or Reorganized Debtors, as applicable, may, in the ordinary course of business and without any further notice to or action, order, or approval of the Bankruptcy Court, pay in Cash all reasonable and documented legal, professional, or other fees and expenses related to implementation of this Plan incurred by the Debtors or the Reorganized Debtors, as applicable, and the Committee.

(b) Upon and following the Confirmation Date, any requirement that Professionals comply with sections 327 through 331, 363, and 1103 of the Bankruptcy Code in seeking retention for services rendered after such date shall terminate, and the Debtors or the Reorganized Debtors, as applicable, may employ any Professional in the ordinary course of business without any further notice to or action, order, or approval of the Bankruptcy Court.

2.8. *Adequate Protection Payments*

For the avoidance of doubt, any adequate protection payments, including for any reasonable and documented fees and out-of-pocket expenses or unpaid postpetition interest, owed to any Holders (including reimbursement of any payments by such Holders) or any Prepetition Secured Parties (as such term is defined in the DIP Orders) entitled to adequate protection pursuant to the DIP Orders through and including the Effective Date shall continue to be paid by the Debtors or the Reorganized Debtors, as applicable, in accordance with the terms of the DIP Orders.

ARTICLE III.

CLASSIFICATION OF CLAIMS AND INTERESTS.

3.1. *Classification in General.*

A Claim or Interest is placed in a particular Class for all purposes, including voting, confirmation, and distribution under this Plan and under sections 1122 and 1123(a)(1) of the Bankruptcy Code; *provided* that a Claim or Interest is placed in a particular Class for the purpose of receiving distributions pursuant to this Plan only to the extent that such Claim or Interest is an Allowed Claim or Allowed Interest in that Class and such Claim or Interest has not been satisfied, released, or otherwise settled prior to the Effective Date. All of the potential Classes for the Debtors are set forth herein. Certain Debtors may not have any Holders of Claims or Interests in a particular Class or Classes, and such Claims or Interests shall be treated as set forth in Article 3.5 of this Plan.

3.2. *Formation of Debtor Groups for Convenience Only.*

This Plan groups the Debtors together solely for the purpose of (a) describing treatment under this Plan, (b) Confirmation of this Plan, and (c) making distributions in respect of Claims and Interests under this Plan (including pursuant to the Unsecured Equity Pool Waterfall). Such groupings shall not affect any Debtor's status as a separate legal Entity, change the organizational structure of the Debtors' business enterprise, constitute a change of control of any Debtor for any purpose, cause a merger or consolidation of

any legal Entities, or cause the transfer of any assets; and, except as otherwise provided by or permitted under this Plan, all Debtors shall continue to exist as separate legal Entities after the Effective Date.

3.3. *Summary of Classification.*

The following table designates the Classes of Claims against and Interests in each of the Debtors and specifies which of those Classes are (a) Impaired or Unimpaired by this Plan, (b) entitled to vote to accept or reject this Plan in accordance with section 1126 of the Bankruptcy Code, and (c) presumed to accept or deemed to reject this Plan. In accordance with section 1123(a)(1) of the Bankruptcy Code, Administrative Claims, Priority Tax Claims, Restructuring Expenses, and Professional Fee Claims have not been classified. The classification of Claims and Interests set forth herein shall apply separately to each Debtor.

Class	Designation	Treatment	Entitled to Vote
1	Other Secured Claims	Unimpaired	No (Presumed to Accept)
2	Other Priority Claims	Unimpaired	No (Presumed to Accept)
3	Mortgage Debt Guarantee Claims	Unimpaired	No (Presumed to Accept)
4	Secured Credit Facility Claims	Unimpaired	No (Presumed to Accept)
5	<i>March 2029 Senior Secured Notes Claims</i>	<i>Impaired²</i>	<i>Yes</i>
6	<i>2027 Senior Secured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
7	<i>September 2029 Senior Secured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
8	<i>DIP Claims</i>	<i>Impaired</i>	<i>Yes</i>
9	<i>Priority Guaranteed Unsecured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
10	<i>Unsecured Notes Claims</i>	<i>Impaired</i>	<i>Yes</i>
11	<i>Trade and Vendor Claims</i>	<i>Impaired</i>	<i>Yes</i>
12	<i>Other General Unsecured Claims</i>	<i>Impaired</i>	<i>Yes</i>
13	Intercompany Claims	Unimpaired / Impaired	No (Presumed to Accept / Deemed to Reject)
14	Intercompany Interests	Unimpaired / Impaired	No (Presumed to Accept / Deemed to Reject)
15	510(b) Claims	Impaired	No (Deemed to Reject)
16	Existing Common Equity	Impaired	No (Deemed to Reject)

² In the event that the March 2029 Senior Secured Notes Claims are Reinstated pursuant to Article 4.5(c)(ii) of this Plan, Class 5 March 2029 Senior Secured Notes Claims will be Unimpaired.

3.4. ***Special Provision Governing Unimpaired Claims.***

Except as otherwise provided in this Plan, nothing under this Plan shall affect, diminish, or impair the rights of the Debtors or the Reorganized Debtors, as applicable, in respect of any Unimpaired Claims, including all rights in respect of legal and equitable defenses to, or setoffs or recoupments against, any such Unimpaired Claims; and, except as otherwise specifically provided in this Plan, nothing herein shall be deemed to be a waiver or relinquishment of any Claim, Cause of Action, right of setoff, or other legal or equitable defense that the Debtors had immediately prior to the Petition Date, against or with respect to any Claim that is Unimpaired (including, for the avoidance of doubt, any Claim that is Reinstated) by this Plan. Except as otherwise specifically provided in this Plan, the Reorganized Debtors shall have, retain, reserve, and be entitled to assert all such Claims, Causes of Action, rights of setoff, and other legal or equitable defenses that the Debtors had immediately prior to the Petition Date fully as if the Chapter 11 Cases had not been commenced, and all of the Reorganized Debtors' legal and equitable rights with respect to any Reinstated Claim or Claim that is otherwise Unimpaired by this Plan may be asserted after the Confirmation Date and the Effective Date to the same extent as if the Chapter 11 Cases had not been commenced.

3.5. ***Elimination of Vacant Classes.***

Any Class of Claims or Interests that, as of the commencement of the Confirmation Hearing, does not have at least one Holder of a Claim or Interest that is Allowed in an amount greater than zero for voting purposes shall be considered vacant, deemed eliminated from this Plan of such Debtor for purposes of voting to accept or reject such Debtor's Plan, and disregarded for purposes of determining whether such Debtor's Plan satisfies section 1129(a)(8) of the Bankruptcy Code with respect to that Class.

3.6. ***No Waiver.***

Nothing contained in this Plan shall be construed to waive a Debtor's or other Person's right to object on any basis to any Disputed Claim.

3.7. ***Voting Classes; Presumed Acceptance or Deemed Rejection by Non-Voting Classes.***

If a Class contains Claims or Interests eligible to vote and no Holders of Claims or Interests eligible to vote in such Class vote to accept or reject this Plan, this Plan shall be presumed accepted by such Class.

Claims and Interests in the Non-Voting Classes are either (a) Unimpaired and, therefore, their Holders are conclusively presumed to have accepted this Plan pursuant to section 1126(f) of the Bankruptcy Code, or (b) Impaired and shall receive no distributions under this Plan and, therefore, deemed to have rejected this Plan pursuant to 1126(g) of the Bankruptcy Code. Accordingly, Holders of Claims and Interests in the Non-Voting Classes are not entitled to vote on this Plan and the votes of such Holders shall not be solicited. Notwithstanding their non-voting status, Holders of such Claims and Interests in the Non-Voting Classes (except Holders of Intercompany Claims and Interests in Classes 13 and 14) shall receive a Release Opt-Out Form or Release Opt-In Form solely for purposes of providing such Holders with the opportunity to opt out of or in to, as applicable, the releases set forth in Article 10.6(b) of this Plan.

ARTICLE IV.

TREATMENT OF CLAIMS AND INTERESTS.

4.1. ***Other Secured Claims (Class 1).***

(a) *Classification:* Class 1 consists of Other Secured Claims.

(b) *Treatment:* The legal, equitable, and contractual rights of Holders of Allowed Other Secured Claims are unaltered by this Plan. On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Other Secured Claim agrees to less favorable treatment of its Allowed Other Secured Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Other Secured Claim, on the Effective Date, each Holder of an Allowed Other Secured Claim shall receive, at the Debtors' or Reorganized Debtors' sole discretion (as applicable):

(i) payment in full in Cash;

(ii) delivery of the Collateral securing its Allowed Other Secured Claim;

(iii) Reinstatement of its Allowed Other Secured Claim; or

(iv) such other treatment rendering its Allowed Other Secured Claim Unimpaired in accordance with section 1124 of the Bankruptcy Code.

(c) *Impairment and Voting:* Class 1 is Unimpaired, and the Holders of Other Secured Claims are conclusively presumed to have accepted this Plan pursuant to section 1126(f) of the Bankruptcy Code. Therefore, Holders of Other Secured Claims are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to such Other Secured Claims. Holders of Other Secured Claims shall be provided a Release Opt-Out Form solely for the purpose of affirmatively opting out of the releases set forth in Article 10.6(b) of this Plan.

4.2. ***Other Priority Claims (Class 2).***

(a) *Classification:* Class 2 consists of Other Priority Claims.

(b) *Treatment:* The legal, equitable, and contractual rights of the Holders of Allowed Other Priority Claims are unaltered by this Plan. On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Other Priority Claim agrees to less favorable treatment of its Allowed Other Priority Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Other Priority Claim, on the Effective Date, each Holder of an Allowed Other Priority Claim shall receive treatment in a manner consistent with section 1129(a)(9) of the Bankruptcy Code.

(c) *Impairment and Voting:* Class 2 is Unimpaired, and the Holders of Other Priority Claims are conclusively presumed to have accepted this Plan pursuant to section 1126(f) of the Bankruptcy Code. Therefore, Holders of Other Priority Claims are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to Other Priority Claims. Holders of Other Priority Claims shall be provided a Release Opt-Out Form solely for the purpose of affirmatively opting out of the releases set forth in Article 10.6(b) of this Plan.

4.3. ***Mortgage Debt Guarantee Claims (Class 3).***

(a) *Classification:* Class 3 consists of Mortgage Debt Guarantee Claims.

(b) *Allowance:* Mortgage Debt Guarantee Claims shall be Allowed on the Effective Date in an aggregate amount equal to the outstanding principal amount of Mortgage Debt arising under the Mortgage Loan Agreements as of the Petition Date, *plus* all accrued and unpaid interest, fees, costs, and other charges as of the Petition Date, and postpetition interest and any reasonable fees, costs, and charges through the Effective Date, in each case to the extent allowable under applicable law and sections 502 or 506(b) of the Bankruptcy Code.

(c) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Mortgage Debt Guarantee Claim agrees to less favorable treatment of its Allowed Mortgage Debt Guarantee Claim, at the option of the Debtors' or Reorganized Debtors' (as applicable):

(i) following payment in full in Cash of the Mortgage Debt Claims from the proceeds of the New Mortgage Debt, each Mortgage Debt Guarantee Claim shall be cancelled, released, discharged, and extinguished and shall be of no further force or effect, and each Holder of an Allowed Mortgage Debt Guarantee Claim shall not receive any distribution on account of such Allowed Mortgage Debt Guarantee Claim;

(ii) the treatment set forth pursuant to the terms of any settlement agreement (each, a "***Mortgage Debt Guarantee Settlement Agreement***") agreed to by the Debtors and the applicable Holder of an Allowed Mortgage Debt Guarantee Claim; or

(iii) in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Mortgage Debt Guarantee Claim, each Holder of such Allowed Mortgage Debt Guarantee Claim shall receive such other treatment reinstating its Allowed Mortgage Debt Guarantee Claim or rendering such Allowed Mortgage Debt Guarantee Claim Unimpaired in accordance with section 1124 of the Bankruptcy Code.

(d) *Impairment and Voting:* Class 3 is Unimpaired, and the Holders of Mortgage Debt Guarantee Claims in Class 3 are conclusively presumed to have accepted this Plan pursuant to section 1126(f) of the Bankruptcy Code. Therefore, Holders of Mortgage Debt Guarantee Claims are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to such Mortgage Debt Guarantee Claims. Holders of Mortgage Debt Guarantee Claims shall be provided a Release Opt-Out Form solely for the purpose of affirmatively opting out of the releases set forth in Article 10.6(b) of this Plan.

4.4. ***Secured Credit Facility Claims (Class 4).***

(a) *Classification:* Class 4 consists of Secured Credit Facility Claims.

(b) *Allowance:* Secured Credit Facility Claims shall be Allowed on the Effective Date in an aggregate amount equal to the outstanding principal amount of Secured Credit Facility Obligations arising under the Secured Credit Facility Documents as of the Petition Date, *plus* all accrued and unpaid interest, fees, costs, and other charges as of the Petition Date, and postpetition interest and any reasonable fees, costs, and charges through the Effective Date, in each case to the extent allowable under applicable law and sections 502 or 506(b) of the Bankruptcy Code.

(c) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Secured Credit Facility Claim agrees to less favorable treatment of its Allowed Secured Credit Facility Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Secured Credit Facility Claim, each Holder of an Allowed Secured Credit Facility Claim shall receive, at the option of the Debtors' or Reorganized Debtors' (as applicable):

(i) payment in full in Cash of such Allowed Secured Credit Facility Claim from the proceeds of the New Secured Credit Facility; or

(ii) such other treatment reinstating its Secured Credit Facility Claim or rendering such Allowed Secured Credit Facility Claim Unimpaired in accordance with section 1124 of the Bankruptcy Code.

(d) *Impairment and Voting:* Class 4 is Unimpaired, and the Holders of Secured Credit Facility Claims in Class 4 are conclusively presumed to have accepted this Plan pursuant to section 1126(f) of the Bankruptcy Code. Therefore, Holders of Secured Credit Facility Claims are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to such Secured Credit Facility Claims. Holders of Secured Credit Facility Claims shall be provided a Release Opt-Out Form solely for the purpose of affirmatively opting out of the releases set forth in Article 10.6(b) of this Plan.

4.5. ***March 2029 Senior Secured Notes Claims (Class 5).***

(a) *Classification:* Class 5 consists of March 2029 Senior Secured Notes Claims.

(b) *Allowance:* March 2029 Senior Secured Notes Claims shall be Allowed on the Effective Date in the Allowed March 2029 Senior Secured Notes Claim Amount.

(c) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed March 2029 Senior Secured Notes Claim agrees to less favorable treatment of its March 2029 Senior Secured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed March 2029 Senior Secured Notes Claim, each Holder of an Allowed March 2029 Senior Secured Notes Claim shall receive, at the option of the Debtors' or Reorganized Debtors' (as applicable):

(i) payment in full in Cash of such Allowed March 2029 Senior Secured Notes Claim from the proceeds of the New March 2029 Senior Secured Notes; or

(ii) such other treatment reinstating its Allowed March 2029 Senior Secured Notes Claim or providing the economic equivalent of such Allowed March 2029 Senior Secured Notes Claim, subject to terms and conditions to be agreed to between the Debtors or the Reorganized Debtors, as applicable, and the requisite Holders of the Allowed March 2029 Senior Secured Notes Claims.

(d) *Impairment and Voting:* Class 5 is Impaired, and the Holders of March 2029 Senior Secured Notes Claims are entitled to vote to accept or reject this Plan.

4.6. ***2027 Senior Secured Notes Claims (Class 6).***

(a) *Classification:* Class 6 consists of 2027 Senior Secured Notes Claims.

(b) *Allowance:* 2027 Senior Secured Notes Claims shall be Allowed on the Effective Date in the Allowed 2027 Senior Secured Notes Claim Amount. For the avoidance of doubt, all 2027 Unsecured Claims shall be Disallowed on the Effective Date.

(c) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed 2027 Senior Secured Notes Claim agrees to less favorable treatment of its Allowed 2027 Senior Secured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed 2027 Senior Secured Notes Claim, each Holder of an Allowed 2027 Senior Secured Notes Claim shall receive its Pro Rata Share of the New 2027 Senior Secured Notes, which shall have an aggregate value equal to the Allowed 2027 Senior Secured Notes Claim Amount.

(d) *Impairment and Voting.* Class 6 is Impaired, and the Holders of 2027 Senior Secured Notes Claims are entitled to vote to accept or reject this Plan.

4.7. *September 2029 Senior Secured Notes Claims (Class 7).*

(a) *Classification:* Class 7 consists of September 2029 Senior Secured Notes Claims.

(b) *Allowance:* September 2029 Senior Secured Notes Claims shall be Allowed as Secured Claims under section 506(a) of the Bankruptcy Code in the Allowed September 2029 Senior Secured Notes Claim Amount. To the extent any September 2029 Senior Secured Notes Claims constitute Allowed September 2029 Unsecured Claims, such Claims shall be Allowed in an aggregate amount equal to the September 2029 Senior Secured Notes Claim Amount. To the extent any September 2029 Senior Secured Notes Claims constitute Allowed Subsequent September 2029 Senior Secured Notes Claims, such Claims shall be Allowed in an aggregate amount equal to the Subsequent September 2029 Senior Secured Notes Adjusted Claim Amount, *plus* all accrued and unpaid interest, fees, costs, and other charges as of the Petition Date, and postpetition interest and any reasonable fees, costs, and charges through the Effective Date, in each case to the extent allowable under applicable law and sections 502 or 506(b) of the Bankruptcy Code and the DIP Order; *provided* that (i) any postpetition interest related to such Claim will be calculated using the Subsequent September 2029 Senior Secured Notes Adjusted Claim Amount as the outstanding principal amount, and (ii) any prepetition interest on account of the Subsequent September 2029 Senior Secured Notes shall be calculated using \$42,570,000 as the outstanding principal amount.

(c) *Treatment:*

(i) Allowed September 2029 Senior Secured Notes Claims: On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed September 2029 Senior Secured Notes Claim agrees to less favorable treatment of its Allowed September 2029 Senior Secured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed September 2029 Senior Secured Notes Claim, each Holder of an Allowed September 2029 Senior Secured Notes Claim shall receive:

A. its Pro Rata Share of \$300 million in Secured Exit Notes; and

B. its portion of Secured Exit Notes and Reorganized Common Equity (which Reorganized Common Equity shall not be diluted by the Initial Equity Compensation), or a combination thereof, in each case pursuant to Article 4.7(c)(ii) of this Plan.

(ii) September 2029 Recovery Election: Pursuant to this Plan and the Solicitation Procedures Order, each Holder of an Allowed September 2029 Senior Secured Notes

Claim shall have the right to receive, in the aggregate, its Pro Rata Share of \$120 million in Secured Exit Notes and \$98 million of Reorganized Common Equity (subject to dilution by the exercise of the New Warrants). Holders of Allowed Original September 2029 Senior Secured Notes Claims shall be permitted to submit September 2029 Recovery Elections to elect their preferred amounts of such Secured Exit Notes and Reorganized Common Equity, or a combination thereof. To the extent that properly and timely submitted September 2029 Recovery Elections result in an oversubscription of (1) Secured Exit Notes, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim that made an election selecting the oversubscribed Secured Exit Notes shall receive its Pro Rata Share of \$120 million in Secured Exit Notes, with the balance of such Holder's Allowed Original September 2029 Senior Secured Notes Claim being exchanged for Reorganized Common Equity at a conversion price of \$20.00 per share; or (2) Reorganized Common Equity, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim that made an election selecting the oversubscribed Reorganized Common Equity shall receive its Pro Rata Share of \$98 million in Reorganized Common Equity (subject to dilution by the exercise of the New Warrants), with the balance of such Holder's Allowed Original September 2029 Senior Secured Notes Claim being exchanged for Secured Exit Notes on a dollar-for-dollar basis. Notwithstanding anything to the contrary in this Article 4.7(c)(ii) of this Plan, each Holder of an Allowed Original September 2029 Senior Secured Notes Claim shall receive an equal distribution in terms of value provided under this Plan. For the avoidance of doubt, Holders of Allowed Subsequent September 2029 Senior Secured Notes Claims shall not have the right to make the September 2029 Recovery Election and shall receive its Pro Rata Share of \$120 million in Secured Exit Notes and \$98 million of Reorganized Common Equity (subject to dilution by the exercise of the New Warrants) based on the Subsequent September 2029 Senior Secured Notes Adjusted Claim Amount.

A. In accordance with the Solicitation Procedures Order, as among a Holder of an Allowed September 2029 Senior Secured Notes Claim on account of, arising under, or relating to Original September 2029 Senior Secured Notes, to the extent such Holder is also a DIP Lender, such Holder shall have priority in making the September 2029 Recovery Election over all such Holders that are not DIP Lenders.

(iii) Allowed September 2029 Unsecured Claims: On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed September 2029 Senior Secured Notes Claim agrees to less favorable treatment of its Allowed September 2029 Unsecured Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed September 2029 Unsecured Claim, each Holder of such Claim shall receive its Pro Rata Share of 5.3% of Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall (to the extent the Debtors or the Reorganized Debtors, as applicable, elect to satisfy all DIP Claims in the DIP Equity Distribution, the DIP Commitment and Exit Fee Equity Distribution, and the DIP Upfront Fee Equity Distribution, as applicable, pursuant to Article 4.8(c) of this Plan), subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants; *provided* that such equity distribution may be adjusted based on the date on which the Effective Date occurs and/or the portion of DIP Claims (if any) the Debtors or the Reorganized Debtors, as applicable, elect to satisfy in Cash pursuant to Article 4.8(c) of this Plan.

(d) *Impairment and Voting:* Class 7 is Impaired, and the Holders of September 2029 Senior Secured Notes Claims in Class 7 are entitled to vote to accept or reject this Plan.

4.8. ***DIP Claims (Class 8).***

(a) *Classification:* Class 8 consists of DIP Claims.

(b) *Allowance:* DIP Claims shall be Allowed on the Effective Date in an aggregate amount equal to the outstanding principal amount of DIP Loans arising under the DIP Documents, *plus* all accrued and unpaid interest, fees, costs, and other charges through the Effective Date as Allowed by the Final DIP Order.

(c) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed DIP Claim agrees to less favorable treatment of its Allowed DIP Claim, in full and final satisfaction, settlement, release, and discharge of, and in exchange for its Allowed DIP Claim:

(i) Each DIP Claim (excluding any Allowed DIP Fee Claim) shall receive, at the sole discretion of the Debtors or the Reorganized Debtors (as applicable), its Pro Rata Share of Cash in the Allowed amount of all DIP Claims or the DIP Equity Distribution; and

(ii) notwithstanding the foregoing, each Allowed DIP Fee Claim shall receive, at the sole discretion of the Debtors or the Reorganized Debtors (as applicable), (1) with respect to the DIP Anchor Capital Commitment Fee and DIP Exit Fee, the DIP Commitment and Exit Fee Equity Distribution or its Pro Rata Share of Cash equaling the DIP Anchor Capital Commitment Fee and the DIP Exit Fee and (2) with respect to the DIP Upfront Fee, the DIP Upfront Fee Equity Distribution or its Pro Rata Share of Cash equaling the DIP Upfront Fee;

provided that to the extent the Restructuring Support Agreement is terminated, all Allowed DIP Claims shall be paid in full in Cash.

(d) *Impairment and Voting:* Class 8 is Impaired, and the Holders of DIP Claims are entitled to vote to accept or reject this Plan.

4.9. ***Priority Guaranteed Unsecured Notes Claims (Class 9)***

(a) *Classification:* Class 9 consists of Priority Guaranteed Unsecured Notes Claims.

(b) *Allowance:* Priority Guaranteed Unsecured Notes Claims shall be Allowed on the Effective Date in an aggregate amount equal to the outstanding principal amount of Priority Guaranteed Unsecured Notes arising under the Priority Guaranteed Unsecured Notes Documents as of the Petition Date, *plus* all accrued and unpaid interest, fees, costs, and other charges as of the Petition Date, and postpetition interest and any reasonable fees, costs, and charges through the Effective Date, in each case to the extent allowable under applicable law and sections 502 or 506(b) of the Bankruptcy Code.

(c) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of a Priority Guaranteed Unsecured Notes Claim agrees to less favorable treatment of its Allowed Priority Guaranteed Unsecured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Priority Guaranteed Unsecured Notes Claim, each Holder of an Allowed Priority Guaranteed Unsecured Notes Claim shall receive a 100% recovery in Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall and subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants; *provided* that such equity distribution may be adjusted based on the date on which the Effective Date occurs and/or the portion of

DIP Claims (if any) the Debtors or the Reorganized Debtors, as applicable, elect to satisfy in Cash pursuant to Article 4.8(c) of this Plan.

(d) *Impairment and Voting:* Class 9 is Impaired, and the Priority Guaranteed Unsecured Notes Claims are entitled to vote to accept or reject this Plan.

4.10. ***Unsecured Notes Claims (Class 10)***

(a) *Classification:* Class 10 consists of Unsecured Notes Claims.

(b) *Allowance:* Unsecured Notes Claims shall be Allowed on the Effective Date in an aggregate amount equal to the outstanding principal amount of Unsecured Notes arising under the Unsecured Notes Documents as of the Petition Date, *plus* all accrued and unpaid interest, fees, costs, and other charges as of the Petition Date.

(c) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Unsecured Notes Claim agrees to less favorable treatment of its Allowed Unsecured Notes Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Unsecured Notes Claim, each Holder of an Allowed Unsecured Notes Claim shall receive, at the option of the Debtors' or Reorganized Debtors' (as applicable):

(i) its Pro Rata Share of 6.3% of Reorganized Common Equity pursuant to the Unsecured Equity Pool Waterfall (to the extent the Debtors or the Reorganized Debtors, as applicable, elect to satisfy all DIP Claims in the DIP Equity Distribution, the DIP Commitment and Exit Fee Equity Distribution, and the DIP Upfront Fee Equity Distribution, as applicable, pursuant to Article 4.8(c) of this Plan), subject to dilution by the Initial Equity Compensation and the exercise of the New Warrants; *provided* that such equity distribution may be adjusted based on the date on which the Effective Date occurs and/or the portion of DIP Claims (if any) the Debtors or the Reorganized Debtors, as applicable, elect to satisfy in Cash pursuant to Article 4.8(c) of this Plan;

(ii) New Warrants; and

(iii) Subscription Rights in accordance with the Equity Rights Offering Documents and this Plan and subject to the Equity Rights Offering Procedures.

(d) *Impairment and Voting:* Class 10 is Impaired, and the Holders of Unsecured Notes Claims are entitled to vote to accept or reject this Plan.

4.11. ***Trade and Vendor Claims (Class 11)***

(a) *Classification:* Class 11 consists of Trade and Vendor Claims.

(b) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Trade and Vendor Claim agrees to less favorable treatment of its Allowed Trade and Vendor Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Trade and Vendor Claim, each Holder of such Allowed Trade and Vendor Claim shall be paid in full in Cash.

(c) *Impairment and Voting:* Class 11 is Impaired, and the Holders of Trade and Vendor Claims are entitled to vote to accept or reject this Plan.

4.12. Other General Unsecured Claims (Class 12)

(a) *Classification:* Class 12 consists of Other General Unsecured Claims.

(b) *Treatment:* On or as soon as reasonably practicable after the Effective Date, except to the extent that a Holder of an Allowed Other General Unsecured Claim agrees to less favorable treatment of its Allowed Other General Unsecured Claim, in full and final satisfaction, settlement, release, and discharge and in exchange for each Allowed Other General Unsecured Claim:

(i) each Holder of an Allowed Other General Unsecured Claim that is Allowed in an amount less than or equal to \$25,000 shall receive Cash in an amount equal to 100% of the Allowed amount of such Claim; and

(ii) Each Holder of an Allowed Other General Unsecured Claim that is Allowed in an amount greater than \$25,000 shall receive \$25,000 in Cash;

provided that an Other General Unsecured Claim may not be subdivided into multiple Other General Unsecured Claims less than or equal to \$25,000 for purposes of receiving treatment as set forth in Article 4.12(b)(i) of this Plan; *provided further* that to the extent that a Holder of an Other General Unsecured Claim against a Debtor holds any joint and several liability claims, guaranty claims, or other similar claims against any other Debtors arising from or relating to the same obligations or liability as such Other General Unsecured Claim, such Holder shall only be entitled to a distribution on one Other General Unsecured Claim against the Debtors in full and final satisfaction of all such Claims.

(c) *Impairment and Voting:* Class 12 is Impaired, and the Holders of Other General Unsecured Claims are entitled to vote to accept or reject this Plan.

4.13. Intercompany Claims (Class 13).

(a) *Classification:* Class 13 consists of Intercompany Claims.

(b) *Treatment:* On or as soon as reasonably practicable after the Effective Date, all Intercompany Claims shall, at the option of the Debtors or Reorganized Debtors (as applicable), either be:

(i) Reinstated; or

(ii) set off, settled, distributed, contributed, merged, canceled, or released.

(c) *Impairment and Voting:* Class 13 is either (i) Unimpaired, and the Holders of Intercompany Claims in Class 13 are conclusively presumed to have accepted this Plan pursuant to section 1126(f) of the Bankruptcy Code or (ii) Impaired, and such Holders are conclusively deemed to have rejected this Plan pursuant to section 1126(g) of the Bankruptcy Code. Therefore, Holders of Intercompany Claims are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to such Intercompany Claims.

4.14. Intercompany Interests (Class 14).

(a) *Classification:* Class 14 consists of Intercompany Interests.

(b) *Treatment:* On or as soon as reasonably practicable after the Effective Date, all Intercompany Interests shall, at the option of the Debtors or Reorganized Debtors (as applicable), either be:

- (i) Reinstated; or
- (ii) set off, settled, distributed, contributed, merged, canceled, or released.

(c) *Impairment and Voting:* Class 14 is either (i) Unimpaired, and Holders of Intercompany Interests in Class 14 are conclusively presumed to have accepted this Plan pursuant to section 1126(f) of the Bankruptcy Code or (ii) Impaired, and such Holders of Intercompany Interests are conclusively deemed to have rejected this Plan pursuant to section 1126(g) of the Bankruptcy Code. Therefore, Holders of Intercompany Interests are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to such Intercompany Interests.

4.15. 510(b) Claims (Class 15).

(a) *Classification:* Class 15 consists of 510(b) Claims.

(b) *Treatment:* On or as soon as reasonably practicable after the Effective Date, all 510(b) Claims shall be cancelled, released, discharged, and extinguished and shall be of no further force or effect, and Holders of 510(b) Claims shall not receive any distribution on account of such 510(b) Claims.

(c) *Impairment and Voting:* Class 15 is Impaired, and its Holders are not receiving or retaining any property under this Plan; accordingly, Holders of 510(b) Claims in Class 15 are conclusively deemed to reject this Plan pursuant to section 1126(g) of the Bankruptcy Code. Therefore, Holders of 510(b) Claims are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to such 510(b) Claims. Holders of 510(b) Claims shall be provided a Release Opt-In Form solely for the purpose of affirmatively opting in to the releases set forth in Article 10.6(b) of this Plan.

4.16. Existing Common Equity (Class 16).

(a) *Classification:* Class 16 consists of Existing Common Equity.

(b) *Treatment:* On or as soon as reasonably practicable after the Effective Date, all Existing Common Equity shall be cancelled, released, discharged, and extinguished and shall be of no further force or effect, and Holders of Existing Common Equity shall not receive any distribution on account of such Existing Common Equity.

(c) *Impairment and Voting:* Class 16 is Impaired, and its Holders are not receiving or retaining any property under this Plan; accordingly, Holders of Existing Common Equity in Class 16 are conclusively deemed to reject this Plan pursuant to section 1126(g) of the Bankruptcy Code. Therefore, Holders of Existing Common Equity are not entitled to vote to accept or reject this Plan, and the votes of such Holders will not be solicited with respect to such Existing Common Equity. Holders of Existing Common Equity shall be provided a Release Opt-In Form solely for the purpose of affirmatively opting in to the releases set forth in Article 10.6(b) of this Plan.

ARTICLE V.

MEANS FOR IMPLEMENTATION.

5.1. *Compromise and Settlement of Claims, Interests, and Controversies.*

Pursuant to sections 363 and 1123 of the Bankruptcy Code and Bankruptcy Rule 9019, and in consideration for the classification, distribution, releases, and other benefits provided under this Plan, upon the Effective Date, the provisions of this Plan shall constitute a good faith compromise and settlement of all Claims, Interests, and controversies relating to the contractual, legal, and subordination rights that a Claim or an Interest Holder may have with respect to any Allowed Claim or Allowed Interest or any distribution to be made on account of such Allowed Claim or Allowed Interest, including pursuant to the transactions set forth in the Transaction Steps Exhibit, if any. Entry of the Confirmation Order shall constitute the Bankruptcy Court's approval of the compromise or settlement of all such Allowed Claims, Allowed Interests, and controversies, as well as a finding by the Bankruptcy Court that such compromise, settlement, and transactions are in the best interests of the Debtors, their Estates, and Holders of Allowed Claims and Allowed Interests, and is fair, equitable, and within the range of reasonableness. Subject to the provisions of this Plan governing distributions, all distributions made to Holders of Allowed Claims and Allowed Interests in any Class are intended to be and shall be final. As consideration for, among other things, the Releases provided pursuant to this Plan, the Consenting Creditors and RMR have agreed pursuant to the Restructuring Support Agreement, for the benefit of the Debtors and the Debtors' Estates, to make contributions to enable the implementation of this Plan, such contributions being fundamentally necessary to the implementation of this Plan.

5.2. *Continued Corporate Existence; Effectuating Documents; Corporate Action; Transactions.*

(a) Except as otherwise provided in this Plan, the Plan Supplement Documents, or, if applicable, the Transaction Steps Exhibit, the Debtors shall continue to exist after the Effective Date as Reorganized Debtors in accordance with the applicable laws of the respective jurisdictions in which they are incorporated or organized and pursuant to the respective Corporate Governance Documents (or other analogous formation, constituent, or Corporate Governance Documents) in effect before the Effective Date or the New Corporate Governance Documents or other applicable Corporate Governance Documents, except to the extent such certificate of incorporation, certificate of formation, bylaws, or operating agreement (or other analogous formation, constituent, or Corporate Governance Documents) are amended by this Plan or otherwise, and, to the extent any such document is amended, such document is deemed to be amended pursuant to this Plan and requires no further action or approval (other than any requisite filings required under applicable state or federal law).

(b) Notwithstanding anything herein to the contrary, on or about the Effective Date or as soon as reasonably practicable thereafter, the Debtors or the Reorganized Debtors, as applicable, shall take all actions set forth in and contemplated by the Transaction Steps Exhibit, if applicable, and enter into any transaction, and may take all actions as may be necessary or appropriate to effectuate the transactions described in, approved by, contemplated by, or necessary or appropriate to effectuate this Plan, including the Transactions.

(c) Upon the Effective Date, all actions contemplated by this Plan shall be deemed authorized and approved in all respects, including (i) the assumption of Executory Contracts and Unexpired Leases as provided herein; (ii) the selection of managers, trustees, directors, or officers for the Reorganized Debtors; (iii) the distribution of the Plan Securities and implementation of, and performance under, the Amended RMR Management Agreements; (iv) entry into the New Corporate Governance Documents;

(v) in connection with or pursuant to the Equity Rights Offering Documents, including the implementation and consummation of the Equity Rights Offering and the issuance of the Reorganized Common Equity to the Holders of Allowed Unsecured Notes Claims; (vi) in connection with or pursuant to the New Warrants Documents, including the issuance of the New Warrants to the Holders of Allowed Unsecured Notes Claims; and (vii) all other actions contemplated by this Plan (whether to occur before, on, or after the Effective Date), in each case in accordance with and subject to the terms hereof.

(d) The Confirmation Order shall and shall be deemed to, pursuant to sections 363, 1123, and 1142 of the Bankruptcy Code, authorize and direct parties, as applicable, among other things, to perform all actions as may be necessary or appropriate to effect any transaction described in, approved by, contemplated by, or necessary to effectuate this Plan, including the Transactions.

(e) Each officer, director, manager, or trustee of the Debtors is (and each officer, director, manager, or trustee of the Reorganized Debtors shall be) authorized and directed to issue, execute, deliver, File, or record such contracts, Securities, instruments, releases, indentures, and other agreements or documents and take such actions as may be necessary or appropriate to effectuate, implement, and further evidence the terms and conditions of this Plan and the Securities issued pursuant to this Plan in the name of and on behalf of the Reorganized Debtors, all of which shall be authorized and approved in all respects, in each case, without the need for any approvals, authorization, consents, or any further action required under applicable law, regulation, order, or rule (including any action by the stockholders or directors or managers of the Debtors or the Reorganized Debtors) except for those expressly required pursuant to this Plan.

(f) All matters provided for in this Plan involving the corporate, limited liability company, or trust structure of the Debtors or the Reorganized Debtors, and any corporate, limited liability company, or trust action required by the Debtors or the Reorganized Debtors in connection with this Plan or the Transactions shall be deemed to have occurred and shall be in effect, without any requirement of further action by the Security holders, directors, managers, trustees, or officers of the Debtors or the Reorganized Debtors or by any other stakeholder, and with like effect as though such action had been taken unanimously by the stockholders, directors, managers, trustees, or officers, as applicable, of the Debtors or Reorganized Debtors.

5.3. *Intercompany Interests; Corporate Reorganization.*

To the extent Reinstated under this Plan, on the Effective Date, the Intercompany Interests (a) shall be Reinstated for the ultimate benefit of the Holders of Claims that receive Reorganized Common Equity under this Plan, and their Holders shall receive no recovery or distribution, and (b) without the need for any further corporate action or approval of any board of directors, board of managers, board of trustees, managers, trustees, management, or stockholders of any Debtor or Reorganized Debtor, as applicable, the certificates and all other documents representing the Reinstated Intercompany Interests shall be deemed to be in full force and effect.

5.4. *New Corporate Governance Documents.*

Subject to Article 5.2 of this Plan, the Reorganized Debtors shall enter into agreements and amend their Corporate Governance Documents to the extent necessary to implement the terms and provisions of this Plan. Without limiting the generality of the foregoing, as of the Effective Date, each of the Reorganized Debtors shall be governed by the New Corporate Governance Documents applicable to it. On the Effective Date, the Corporate Governance Documents of each of the Reorganized Debtors will be deemed to be

modified to prohibit the issuance of non-voting equity Securities, solely to the extent required under section 1123(a)(6) of the Bankruptcy Code.

5.5. Secured Exit Notes Documents.

(a) On the Effective Date, the Reorganized Debtors shall be authorized to execute, deliver, and enter into the Secured Exit Notes Documents without further (i) notice to or order or other approval of the Bankruptcy Court, (ii) act or omission under applicable law, regulation, order, or rule, (iii) vote, consent, authorization, or approval of any Person, or (iv) action by the Holders of Claims or Interests. The Secured Exit Notes Documents shall constitute legal, valid, binding, and authorized joint and several obligations of the applicable Reorganized Debtors, enforceable in accordance with their respective terms and such obligations shall not be enjoined or subject to discharge, impairment, release, avoidance, recharacterization, or subordination under applicable law, this Plan, or the Confirmation Order. The financial accommodations to be extended pursuant to the Secured Exit Notes Documents (and other definitive documentation related thereto) are reasonable and are being extended, and shall be deemed to have been extended, in good faith and for legitimate business purposes.

(b) Confirmation of this Plan shall be deemed approval of the Secured Exit Notes and the Secured Exit Notes Documents, all transactions contemplated thereby, and all actions to be taken, undertakings to be made, and obligations to be incurred by the Reorganized Debtors in connection therewith, and authorization of the Reorganized Debtors to enter into, execute, and deliver the Secured Exit Notes Documents.

(c) On the Effective Date, all Liens and security interests granted pursuant to the applicable Secured Exit Notes Documents shall be (i) valid, binding, perfected, and enforceable Liens and security interests in the personal and real property described in and subject to such document, with the priorities established in respect thereof under applicable non-bankruptcy law and (ii) not subject to avoidance, recharacterization, or subordination under any applicable law, this Plan, or the Confirmation Order.

(d) The Reorganized Debtors and the Persons granted Liens and security interests under the applicable Secured Exit Notes Documents are authorized to make all filings and recordings and to obtain all governmental approvals and consents necessary to establish and perfect such Liens and security interests under the provisions of the applicable state, provincial, federal, or other law (whether domestic or foreign) that would be applicable in the absence of this Plan and the Confirmation Order (it being understood that perfection shall occur automatically by virtue of the entry of the Confirmation Order without the need for any filings or recordings) and will thereafter cooperate to make all other filings and recordings that otherwise would be necessary under applicable law to give notice of such Liens and security interests to third parties.

5.6. New 2027 Senior Secured Notes Documents.

(a) On the Effective Date, the Reorganized Debtors shall be authorized to execute, deliver, and enter into the New 2027 Senior Secured Notes Documents without further (i) notice to or order or other approval of the Bankruptcy Court, (ii) act or omission under applicable law, regulation, order, or rule, (iii) vote, consent, authorization, or approval of any Person, or (iv) action by the Holders of Claims or Interests. The New 2027 Senior Secured Notes Documents shall be subject to the reasonable consent of the 2027 Ad Hoc Group and shall constitute legal, valid, binding, and authorized joint and several obligations of the applicable Reorganized Debtors, enforceable in accordance with their respective terms and such obligations shall not be enjoined or subject to discharge, impairment, release, avoidance, recharacterization, or subordination under applicable law, this Plan, or the Confirmation Order. The

financial accommodations to be extended pursuant to the New 2027 Senior Secured Notes Documents (and other definitive documentation related thereto), if any, are reasonable and are being extended, and shall be deemed to have been extended, in good faith and for legitimate business purposes.

(b) Confirmation of this Plan shall be deemed approval of the New 2027 Senior Secured Notes and the New 2027 Senior Secured Notes Documents, all transactions contemplated thereby, and all actions to be taken, undertakings to be made, and obligations to be incurred by the Reorganized Debtors in connection therewith, and authorization of the Reorganized Debtors to enter into, execute, and deliver the New 2027 Senior Secured Notes Documents.

(c) On the Effective Date, all Liens and security interests granted pursuant to the applicable New 2027 Senior Secured Notes Documents shall be (i) valid, binding, perfected, and enforceable Liens and security interests in the personal and real property described in and subject to such document, with the priorities established in respect thereof under applicable non-bankruptcy law and (ii) not subject to avoidance, recharacterization, or subordination under any applicable law, this Plan, or the Confirmation Order.

(d) The Reorganized Debtors and the Persons granted Liens and security interests under the applicable New 2027 Senior Secured Notes Documents are authorized to make all filings and recordings and to obtain all governmental approvals and consents necessary to establish and perfect such Liens and security interests under the provisions of the applicable state, provincial, federal, or other law (whether domestic or foreign) that would be applicable in the absence of this Plan and the Confirmation Order (it being understood that perfection shall occur automatically by virtue of the entry of the Confirmation Order without the need for any filings or recordings) and will thereafter cooperate to make all other filings and recordings that otherwise would be necessary under applicable law to give notice of such Liens and security interests to third parties.

5.7. *Equity Rights Offering*

(a) On the Effective Date, the Debtors or the Reorganized Debtors, as applicable, shall cause (i) the Equity Rights Offering to be consummated and (ii) the Reorganized Common Equity to be issued, in each case, pursuant to the Equity Rights Offering Documents and this Plan and subject to the Equity Rights Offering Procedures and applicable securities laws. The Equity Rights Offering shall be fully backstopped by the Equity Rights Offering Backstop Parties in accordance with and subject to the terms and conditions of the Equity Rights Offering Backstop Commitment Letter. The Subscription Rights shall not have any oversubscription rights.

(b) Prior to the Effective Date, in accordance with the Equity Rights Offering Documents and this Plan and subject to the Equity Rights Offering Procedures and applicable securities laws, the Reorganized Parent shall issue Subscription Rights to each Holder of an Allowed Unsecured Notes Claim that entitles such Holder to elect to purchase up to its “*pro rata* share” (as used and referenced in the Equity Rights Offering Procedures) of the Equity Rights Offering Shares. Once a Holder of an Allowed Unsecured Notes Claim has tendered such Holder’s Unsecured Notes through DTC, such Holder may not transfer its Allowed Unsecured Notes Claim or Unsecured Notes pursuant to the Equity Rights Offering Procedures. Except as described in the Equity Rights Offering Procedures, Subscription Rights shall not be separately transferable from the Allowed Unsecured Notes Claim.

(c) The proceeds of the Equity Rights Offering shall only be used to satisfy Exit Costs and the Working Capital Requirement.

(d) Entry of the Equity Rights Offering Order shall constitute Bankruptcy Court approval of the Equity Rights Offering, the Equity Rights Offering Documents, and all transactions contemplated thereby, and all actions to be taken, undertakings to be made, and obligations to be incurred by the Reorganized Debtors in connection therewith, including the issuance of Reorganized Common Equity pursuant thereto and the payment of any fees, indemnities, expenses, and other payments provided for in connection therewith in accordance with the Equity Rights Offering Backstop Commitment Letter, and authorization of the Reorganized Debtors to enter into and execute any other documents necessary to effectuate the transactions in this Article 5.7 of the Plan.

(e) The consummation of the Equity Rights Offering is conditioned on the consummation of the other transactions contemplated by this Plan and satisfaction of the applicable conditions specified in the Equity Rights Offering Documents. The Reorganized Common Equity sold in the Equity Rights Offering may not be sold, transferred, or assigned, except in the circumstances set forth in the Equity Rights Offering Documents and subject to the transfer provisions, if any, and other applicable provisions set forth in the New Corporate Governance Documents of the applicable issuer.

(f) When the issuance of Reorganized Common Equity pursuant to this Plan and the Equity Rights Offering Documents would otherwise result in the issuance of a number of shares of Reorganized Common Equity that is not a whole number, the actual issuance of shares of Reorganized Common Equity shall be rounded to the next lower whole number with no further payment therefor. The total number of authorized shares of Reorganized Common Equity shall be adjusted as necessary to account for the foregoing rounding.

5.8. ***Exemption from Registration Under Securities Laws.***

(a) No registration statement shall be filed under the Securities Act, or pursuant to any state securities laws, with respect to the offer, issuance, and distribution of the Plan Securities under this Plan, the Transaction Steps Exhibit (if applicable), the Equity Rights Offering Documents, the Secured Exit Notes Documents, the New 2027 Senior Secured Notes Documents, the Confirmation Order, or the New Warrants Documents.

(b) The offering, sale, issuance, and distribution of the Plan Securities (other than the Secured Exit Notes and the New 2027 Senior Secured Notes) in exchange for Claims pursuant to Article II, Article III, Article IV, and other provisions of this Plan, the Transaction Steps Exhibit (if applicable), the Confirmation Order, the New Warrants Documents, and the Equity Rights Offering Documents, shall be exempt from, among other things, the registration requirements of section 5 of the Securities Act and any other applicable United States, state, or local law requiring registration for the offer or sale of a Security pursuant to section 1145(a) of the Bankruptcy Code to the fullest extent permissible. Any and all such Plan Securities issued pursuant to section 1145(a) of the Bankruptcy Code may be resold without registration under the Securities Act by the recipients thereof pursuant to the exemption provided by section 4(a)(1) of the Securities Act, unless the Holder (i) is an “underwriter” with respect to such Securities, as that term is defined in section 1145(b) of the Bankruptcy Code, (ii) is an “affiliate” of Reorganized Parent (as defined in Rule 144(a)(1) promulgated under the Securities Act), or (iii) has been such an “affiliate” within ninety (90) days of such transfer, in each case subject to (1) compliance with any applicable state or foreign securities laws, if any, and any rules and regulations of the SEC, if any, applicable at the time of any future transfer of such Securities; (2) the restrictions, if any, on the transferability of such Securities in the New Corporate Governance Documents of the applicable issuers of, or in agreements or instruments applicable to holders of, such Securities; and (3) any other applicable regulatory approval. Any recipients of Plan Securities that are Affiliates of the Reorganized Parent will receive “control” Plan Securities that will be subject to the “control securities” restrictions of Rule 144 promulgated under the Securities Act.

(c) The offering, sale, issuance, and distribution of the Secured Exit Notes and the New 2027 Senior Secured Notes in exchange for Claims, and any portion of the other Plan Securities that is not eligible for the exemption of registration provided by section 1145 of the Bankruptcy Code, shall be made in reliance upon section 4(a)(2) of the Securities Act and/or Regulation D and/or Regulation S promulgated thereunder and on equivalent state law registration exemptions or, solely to the extent such exemptions are not available, other available exemptions from registration under the Securities Act. The Secured Exit Notes and any other Plan Securities that are not issued pursuant to section 1145(a) of the Bankruptcy Code will be considered “restricted” Plan Securities, will bear customary legends, and may not be resold except pursuant to an effective registration statement or under an available exemption from the registration requirements of the Securities Act, and in any case, if applicable, subject to the terms of the New Corporate Governance Documents of the applicable issuer.

(d) The Reorganized Debtors and Reorganized Parent need not provide any further evidence other than this Plan and the Confirmation Order with respect to the treatment of the Plan Securities under applicable securities laws. The availability of the exemption under section 1145 of the Bankruptcy Code or any other applicable securities laws shall not be a condition to the occurrence of the Effective Date.

(e) Notwithstanding anything to the contrary in this Plan, no Person or Entity (including, for the avoidance of doubt, DTC) shall be entitled to require a legal opinion regarding the validity of any transaction contemplated by this Plan, including, for the avoidance of doubt, whether the Plan Securities on issuance are exempt from registration and/or eligible for DTC book-entry delivery, settlement, and depository services. All such Persons and Entities, including DTC, shall be required to accept and conclusively rely upon this Plan or the Confirmation Order in lieu of a legal opinion regarding whether the Plan Securities are exempt from registration and/or eligible for DTC book-entry delivery, settlement, and depository services. Notwithstanding any policies, practices, or procedures of DTC, DTC and any participants and intermediaries shall fully cooperate and take all actions to facilitate any and all transactions necessary or appropriate for implementation of this Plan or other contemplated thereby, including any and all distributions pursuant to this Plan.

5.9. *New Warrants*

On the Effective Date, the Reorganized Parent shall issue New Warrants to the Holders of Allowed Unsecured Notes Claims pursuant to the New Warrants Documents. Such New Warrants will be exercisable for an amount of common stock of Reorganized Parent equal to 5.0% of the Reorganized Common Equity outstanding as of the Effective Date (after taking into account the Reorganized Common Equity issued or issuable, as applicable, as a result of the Initial Equity Compensation or the exercise of the New Warrants).

5.10. *Cancellation of Existing Securities and Agreements.*

(a) Except for the purpose of evidencing a right to a distribution under this Plan and except as otherwise set forth in this Plan, including with respect to Executory Contracts or Unexpired Leases that shall be assumed by the Reorganized Debtors, or any contract, instrument, or other agreement or document created in connection with this Plan, on the Effective Date, all agreements, indentures (including any guarantee under such indentures), instruments, notes, certificates, mortgages, Security documents, and any other instruments or documents evidencing any Claim or Interest (other than the March 2029 Senior Secured Notes Claims (as applicable), Mortgage Debt Guarantee Claims (solely to the extent treated pursuant to Article 4.3(c)(ii) or (iii) of this Plan), Secured Credit Facility Claims (solely to the extent treated pursuant to Article 4.4(c)(ii) of this Plan), Intercompany Claims, and Intercompany Interests that are not modified by this Plan) (collectively, the “*Cancelled Instruments*”) and any rights of any Holder in respect thereof shall be deemed cancelled, discharged, null and void, and of no further force or effect against the

Debtors or the applicable Notes Trustee, without any further act or action of any person under any applicable agreement, instrument, document, law, regulation, order, or rule and without any need for further action or approval of the Bankruptcy Court, and the obligations of the Debtors thereunder shall be deemed automatically fully satisfied, released, and discharged. The holders of, or parties to, such Cancelled Instruments, securities, and other documentation shall have no rights arising from or related to such Cancelled Instruments, securities, or other documentation or the cancellation thereof, except the rights expressly provided for pursuant to the Plan. Notwithstanding such cancellation and discharge, on the Effective Date and the release of the Notes Trustees from their respective duties thereunder, but subject to any applicable provisions of Article VI of this Plan, the September 2029 Senior Secured Notes Indentures, 2027 Senior Secured Notes Indenture, Priority Guaranteed Unsecured Notes Indenture, and Unsecured Notes Indentures shall continue in effect solely (i) to preserve the rights, privileges, indemnities, immunities and exculpations thereunder of the respective Notes Trustees and agents (on their own behalf or on behalf of their respective noteholders, as applicable) as against their respective noteholders, including their right to assert any applicable charging Lien against any distributions on account of any unpaid fees, expenses, or indemnification obligation; (ii) to the extent necessary to allow the Holders of September 2029 Senior Secured Notes Claims, 2027 Senior Secured Notes Claims, Priority Guaranteed Unsecured Notes Claims, and Unsecured Notes Claims to receive distributions under this Plan in accordance herewith, subject to any applicable charging Lien; (iii) to the extent necessary to allow the Debtors, the Reorganized Debtors, and/or the Notes Trustees each to make post-Effective Date distributions in accordance with the Plan, subject to the respective rights of the Notes Trustees under their respective Indentures, including any applicable charging Lien, or take such other action expressly authorized pursuant to this Plan on account of the Allowed September 2029 Senior Secured Notes Claims, 2027 Senior Secured Notes Claims, Priority Guaranteed Unsecured Notes Claims, and Unsecured Notes Claims; (iv) to preserve any rights of each Notes Trustee (on its own behalf or on behalf of any of its noteholder, as applicable) thereunder, respectively, to maintain, enforce, and exercise any charging Liens, as applicable, under the terms of the applicable agreements, or any related or ancillary document, instrument, agreement, or principle of law, against any money or property distributed or allocable on account of such Claims or Interests, as applicable; and (v) to preserve the rights of each Notes Trustee (on its own behalf or on behalf of its respective noteholders, as applicable) to appear and be heard in the Chapter 11 Cases or in any related adversary proceeding in the Bankruptcy Court to which it is a participant to, and any appeals relating thereto, including to enforce any obligations owed to any such Notes Trustee (on its own behalf or on behalf of its respective noteholders, as applicable), as applicable, under the Plan, the Plan Supplement, the Confirmation Order, or other document incorporated therein; *provided* that nothing in the foregoing shall affect the discharge of Claims pursuant to the Bankruptcy Code, the Confirmation Order, or this Plan or result in any liability or expense to the Reorganized Debtors. Nothing contained herein shall be deemed to cancel, terminate, release, or discharge the obligation of the Debtors or any of their counterparties under any Executory Contract or lease to the extent such Executory Contract or lease has been assumed by the Debtors pursuant to a Final Order of the Bankruptcy Court or hereunder. For the avoidance of doubt, the Notes Trustees shall have no ongoing duties to the Holders of the Notes Claims under any of the cancelled or discharged Notes Indentures as of the Effective Date of the Plan, including no duty for any of the Notes Trustees to object to any claims in the Chapter 11 Cases or others, other than such duties that are expressly set forth in the Plan or Confirmation Order. Each of the Notes Trustees shall be entitled to the protections afforded to the Distribution Agent in Article VI of this Plan with respect to distributions made by it at the request of the Reorganized Debtors or as provided by the Plan or Confirmation Order.

(b) Except as provided in the Plan (including Article VI of this Plan), the Plan Supplement, or the Confirmation Order, or as may be necessary to effectuate the terms of the Plan, on the Effective Date, without any further action or approval of the Bankruptcy Court or any Holders, the Notes Trustees and each Holder, and their respective agents, successors, and assigns, shall each be automatically and fully discharged and released of all of their duties and obligations associated with the Cancelled Instruments, as applicable; *provided* that any provisions of the Cancelled Instruments that survive the

cancellation or termination of the Cancelled Instruments pursuant to the Plan shall survive in accordance with the terms of this Plan. All distributions made under the Plan or on account of the Allowed Claims of Holders of September 2029 Senior Secured Notes Claims, 2027 Senior Secured Notes Claims, Priority Guaranteed Unsecured Notes Claims, and Unsecured Notes Claims shall be made to or at the direction of the applicable Notes Trustee for further distribution to the Holders of such Notes Claims under the terms of the September 2029 Senior Secured Notes Documents, 2027 Senior Secured Notes Documents, Priority Guaranteed Unsecured Notes Documents, and Unsecured Notes Documents, respectively, including any provisions relating to the surrender and cancellation of the September 2029 Senior Secured Notes, 2027 Senior Secured Notes, Priority Guaranteed Unsecured Notes, and Unsecured Notes, and the Debtors and/or Reorganized Debtors, as applicable, shall use commercially reasonable efforts to coordinate with the applicable Notes Trustee with respect to the surrender and cancellation of the applicable notes at DTC (if any).

(c) For the avoidance of doubt, on and after the final distribution on account of the applicable Notes Claims, or notice from the Debtors or Reorganized Debtors, as applicable, that there will be no further distribution on account of the foregoing, (i) the applicable Notes Documents shall thereafter be deemed to be null, void, and worthless, and (ii) at the request of the applicable Notes Trustee, DTC shall take down the relevant position relating to the applicable Cancelled Instrument without any requirement of indemnification or security on the part of the Debtors, the Reorganized Debtors, the applicable Notes Trustee, or any other party.

5.11. *Cancellation of Liens.*

(a) Except as otherwise specifically provided herein, including pursuant to Article 5.2(a) and 5.10 of this Plan, all notes, instruments, certificates evidencing debt of the Debtors and Existing Common Equity will be cancelled and obligations of the Debtors thereunder will be discharged and of no further force or effect, except, where applicable, for the purpose of allowing the applicable agents and trustees to receive distributions from the Debtors under this Plan and to make any further distributions to the applicable Holders on account of their Claims.

(b) Upon the full payment or other satisfaction of its Allowed Other Secured Claim, or promptly thereafter, any Lien securing any Other Secured Claim shall be deemed released and the Holder of such Allowed Other Secured Claim shall deliver to the Debtors or the Reorganized Debtors, as applicable, any Collateral or other property of a Debtor held by such Holder, together with any termination statements, instruments of satisfaction, or releases of all security interests with respect to its Allowed Other Secured Claim that may be reasonably required to terminate any related financing statements, mortgages, mechanics' or other statutory Liens, or lis pendens, or similar interests or documents.

(c) After the Effective Date and following the (i) distributions to Holders on account of Allowed September 2029 Senior Secured Notes Claims, Allowed March 2029 Senior Secured Notes Claims (as applicable), and Allowed 2027 Senior Secured Notes Claims, and (ii) payment of the Restructuring Expenses, any Lien securing such Claims shall be deemed released and the Debtors or the Reorganized Debtors may, in their sole discretion, take any action necessary to terminate, cancel, extinguish, and/or evidence the release of any and all mortgages, deeds of trust, Liens, pledges, and other security interests with respect to the September 2029 Senior Secured Notes Claims, March 2029 Senior Secured Notes Claims (as applicable), and 2027 Senior Secured Notes Claims, including the preparation and filing, in form, substance, and content of any and all documents necessary to terminate, satisfy, or release any mortgages, deeds of trust, Liens, pledges, and other security interests held by the Senior Secured Notes Trustees, the March 2029 Senior Secured Notes Trustee (as applicable), the September 2029 Senior Secured Noteholders, the Holders of March 2029 Senior Secured Notes, and the 2027 Senior Secured Noteholders, including UCC-3 termination statements.

5.12. *Officers and Boards of Directors.*

(a) The New Board shall, as of the Effective Date, be composed of (i) five (5) individuals appointed by the September 2029 Ad Hoc Group, (ii) one (1) individual appointed by the Committee, with such individual being reasonably acceptable to the Debtors and the September 2029 Ad Hoc Group, and (iii) one (1) individual appointed by RMR.

(b) The officers of the respective Debtors immediately before the Effective Date, as applicable, shall serve as the initial officers of each of the respective Reorganized Debtors on the Effective Date. After the Effective Date, the selection of officers of the Reorganized Debtors shall be as provided by their respective organizational documents.

(c) Except to the extent that a member of the board of directors, a member of the board of managers, or a member of the board of trustees, as applicable, of a Debtor continues to serve as a director, manager, or trustee of such Debtor on and after the Effective Date, the members of the board of directors, board of managers, or board of trustees of each Debtor prior to the Effective Date, in their capacities as such, shall have no continuing obligations to the Reorganized Debtors on or after the Effective Date and each such director, manager, or trustee will be deemed to have resigned or shall otherwise cease to be a director, manager, or trustee of the applicable Debtor on the Effective Date. Commencing on the Effective Date, each of the directors, managers, and trustees of each of the Reorganized Debtors shall be elected and serve pursuant to the terms of the applicable organizational documents of such Reorganized Debtor and may be replaced or removed in accordance with such organizational documents.

5.13. *Amended RMR Management Agreements.*

On the Effective Date, the RMR Management Agreements shall be assumed by the Reorganized Debtors and the Reorganized Debtors shall enter into the Amended RMR Management Agreements. The Amended RMR Management Agreements shall provide for, among other things, the Initial Equity Compensation and the Subsequent Equity Compensation (with such Subsequent Equity Compensation being payable upon the Reorganized Debtors' satisfaction of certain financial and/or other performance metrics to be determined by the New Board).

5.14. *Authorization, Issuance, and Delivery of Plan Securities.*

On the Effective Date, Reorganized Parent is authorized to transfer, issue or cause to be issued and shall transfer or issue the Plan Securities for distribution in accordance with the terms of this Plan without the need for any further board, stockholder, or other corporate action. All of the Plan Securities transferable or issuable under this Plan, when so transferred or issued, shall be duly authorized, validly issued, fully paid, and non-assessable. To the extent applicable, Reorganized Parent's New Corporate Governance Documents shall have provided for sufficient shares of authorized Reorganized Common Equity to effectuate the issuance of Reorganized Common Equity contemplated by and in connection with this Plan, including the Equity Rights Offering, the Initial Equity Compensation, the Subsequent Equity Compensation, and the New Warrants, and Reorganized Parent shall issue or reserve for issuance a sufficient number of shares of Reorganized Common Equity to effectuate all such issuances. Each Holder of Reorganized Common Equity shall be deemed, without further notice or action, to have agreed to be bound by the New Corporate Governance Documents, as the same may be amended from time to time following the Effective Date in accordance with their terms. The New Corporate Governance Documents shall be binding on all Entities receiving Reorganized Common Equity (and their respective successors and

permitted assignees), whether received pursuant to this Plan or otherwise and regardless of whether such Entity executes or delivers a signature page to any New Corporate Governance Document.

5.15. *Equitization/Prepayment Notice*

As of the date that is no less than ten (10) calendar days before the deadline to object to this Plan, the Debtors shall File the Equitization/Prepayment Notice that discloses the Debtors' intent to either (a) equitize or not equitize the DIP Obligations pursuant to the DIP Documents or (b) prepay the DIP Obligations in part or in whole.

5.16. *2027 Ad Hoc Group Support Fee*

On or before August 1, 2026, the Debtors or Reorganized Debtors, as applicable, shall pay \$10,000,000 in Cash to the 2027 Ad Hoc Group pursuant to the terms of the 2027 Senior Secured Notes Claims Settlement.

5.17. *Nonconsensual Confirmation.*

To the extent any Voting Class has not voted to accept this Plan (except to the extent such Class is presumed to accept this Plan pursuant to Article 3.7 of this Plan), the Debtors intend to undertake to have the Bankruptcy Court confirm this Plan under section 1129(b) of the Bankruptcy Code as to any Classes that reject or are deemed to reject this Plan.

5.18. *Closing or Dismissing of the Chapter 11 Cases.*

Upon the occurrence of the Effective Date, the Debtors or the Reorganized Debtors, as applicable, shall be authorized, but not directed, to submit an order to the Bankruptcy Court under certification of counsel to close or file a motion to structurally dismiss, as applicable, each Chapter 11 Case in accordance with the Bankruptcy Code and Bankruptcy Rules. Furthermore, the Distribution Agent is authorized to destroy all paper or hardcopy records related to the Chapter 11 Cases two (2) years after the Effective Date has occurred.

5.19. *Notice of Effective Date.*

On or as soon as practicable after the Effective Date, the Debtors shall File a notice of the occurrence of the Effective Date with the Bankruptcy Court.

ARTICLE VI.

DISTRIBUTIONS.

6.1. *Distributions Generally.*

The Distribution Agent shall make all distributions under this Plan to the appropriate Holders of Allowed Claims in accordance with the terms of this Plan. The Notes Trustees shall make or direct distributions to the holders of notes under their respective indentures, and shall cooperate with the Reorganized Debtors with respect to distributions of Plan consideration being made through DTC.

All distributions to Holders of the Notes Claims shall be deemed completed when made to (or at the direction of) the applicable Notes Trustee. The Notes Trustee shall hold or direct such distributions for the benefit of the Holders of the applicable Notes Claims. As soon as practicable following the Effective

Date, the Notes Trustees shall arrange to deliver or direct the delivery of such distributions to or on behalf of the Holders of applicable Notes Claims in accordance with the terms of the applicable Notes Documents, the Plan, and the Confirmation Order. The Notes Trustees may, if applicable, transfer or direct the transfer of such distributions directly through the facilities of DTC (whether by means of book-entry exchange, free delivery, or otherwise) and will be entitled to recognize and deal for all purposes under the Plan with Holders of the applicable Notes Claims, to the extent consistent with the customary practices and procedures of DTC. If any Notes Trustee is unable to make, or consents to the Distribution Agent making, such distributions, the Distribution Agent, with such Notes Trustee's cooperation, shall make such distribution.

The Notes Trustees shall not incur any liability whatsoever on account of any distributions made in accordance with the Plan except for gross negligence, willful misconduct, or fraud. Each Notes Trustee shall have no duties, obligations, or responsibilities with respect to any form of distribution to Holders of applicable Notes Claims that is not delivered to it in a form that is distributable through the facilities of the DTC, and the Distribution Agent shall make such distributions. For the avoidance of doubt, all distributions referenced in this Article 6.1 of the Plan shall be subject to any applicable charging Lien or priority of payment held by the applicable Notes Trustee, including with respect to reasonable and documented fees and out-of-pocket expenses incurred by the Notes Trustee after the Effective Date in connection with making or directing distributions under this Plan, which fees and expenses may be deducted in Cash from such distributions.

6.2. *Distribution Record Date.*

As of the close of business on the Distribution Record Date, the various transfer registers for each of the Classes of Claims or Interests as maintained by the Debtors or their respective agents, shall be deemed closed, and there shall be no further changes in the record Holders of any of the Claims or Interests. The Debtors or the Reorganized Debtors shall have no obligation to recognize any transfer of the Claims or Interests occurring on or after the Distribution Record Date. In addition, with respect to payment of any Cure Claims or disputes over any Cure Claims, neither the Debtors nor the Distribution Agent shall have any obligation to recognize or deal with any party other than the non-Debtor party to the applicable Executory Contract or Unexpired Lease as of the Distribution Record Date, even if such non-Debtor party has sold, assigned, or otherwise transferred its Cure Claim. For the avoidance of doubt, the Distribution Record Date shall not apply to any securities of the Debtors deposited with DTC, the Holder of which shall receive their Plan distribution in accordance with the terms of this Article VI of the Plan and the customary procedures of DTC and the relevant Indenture.

6.3. *Special Rules for Disputed Claims.*

Except as otherwise agreed by the relevant parties: (a) no partial payments and no partial distributions shall be made with respect to a Disputed Claim until all such disputes in connection with such Disputed Claim have been resolved by settlement or Final Order; and (b) any Entity that holds both an Allowed Claim and a Disputed Claim shall not receive any distribution on the Allowed Claim unless and until all objections to the Disputed Claim have been resolved by settlement or Final Order or such Claims or Interests have been Allowed or expunged.

6.4. *Date of Distributions.*

Except as otherwise provided in this Plan (including payments made in the ordinary course of the Debtors' business) or as paid pursuant to a prior Bankruptcy Court order, on the Effective Date or, if a Claim or Interest is not Allowed on the Effective Date, on the date that such Claim or Interest becomes Allowed, or, in each case, as soon as reasonably practicable thereafter, or as otherwise determined in

accordance with this Plan and Confirmation Order, including the treatment provisions of Article IV of this Plan, each Holder of an Allowed Claim shall receive the full amount of the distributions that this Plan provides for Allowed Claims in the applicable Class provided in this Plan; *provided* that (a) the Reorganized Debtors may implement periodic distribution dates to the extent they determine them to be appropriate; (b) the Distribution Agent may make distributions of Plan Securities following the Effective Date, including to Holders of Disputed Claims that become Allowed Claims; (c) any Holder as of the Distribution Record Date may send a written notice to the Distribution Agent that the distributions in respect of such Holder's Allowed Claims shall be made to one or more of its Affiliates, designees, or Related Funds. If and to the extent that there are Disputed Claims, distributions on account of any such Disputed Claims shall be made pursuant to the provisions set forth in Article VII of this Plan; *provided* that any Plan Security that is issuable to Holders of Allowed Claims but is withheld from distribution on account of a Holder of a Disputed Claim shall not be issued until such time such Disputed Claim is resolved and the Plan Securities are to be distributed. Except as specifically provided in this Plan, Holders of Allowed Claims shall not be entitled to interest, dividends, or accruals on the distributions provided for in this Plan, regardless of whether such distributions are delivered on or at any time after the Effective Date.

6.5. *Distribution Agent.*

Except for distributions made by or at the direction of the Notes Trustees, all distributions under this Plan shall be made by the applicable Distribution Agent or such other Entity designated by the Debtors in their sole discretion as Distribution Agent pursuant to the Plan Supplement Documents, on or after the Effective Date or as otherwise provided herein. A Distribution Agent shall not be required to give any bond or surety or other Security for the performance of its duties, and all reasonable fees and expenses incurred by such Distribution Agents directly related to distributions hereunder shall be reimbursed by the Reorganized Debtors.

6.6. *Rights and Powers of Distribution Agent.*

(a) From and after the Effective Date, the Distribution Agent, solely in its capacity as Distribution Agent, shall be exculpated by all Entities, including Holders of Claims against and Interests in the Debtors and other parties in interest, from any and all Claims, Causes of Action, and other assertions of liability arising out of the discharge of the powers and duties conferred upon such Distribution Agent by this Plan or any order of the Bankruptcy Court entered pursuant to or in furtherance of this Plan, or applicable law, except for actions or omissions to act arising out of the gross negligence or willful misconduct, fraud, malpractice, criminal conduct, or *ultra vires* acts of such Distribution Agent. No Holder of a Claim or Interest or other party in interest shall have or pursue any Claim or Cause of Action vested in a Distribution Agent by order of the Bankruptcy Court, pursuant to this Plan, or as deemed by such Distribution Agent to be necessary and proper to implement the provisions hereof.

(b) The Distribution Agent shall be empowered to: (i) effect all actions and execute all agreements, instruments, and other documents necessary to perform its duties under this Plan; (ii) make all applicable distributions or payments provided for under this Plan; (iii) employ professionals to represent it with respect to its responsibilities; and (iv) exercise such other powers (A) as may be vested in the Distribution Agent by order of the Bankruptcy Court (including any Final Order issued after the Effective Date) or pursuant to this Plan or (B) as deemed by the Distribution Agent to be necessary and proper to implement the provisions of this Plan. Subject to the express written consent and direction of and with the cooperation of the applicable Notes Trustee, the Distribution Agent may (in lieu of the applicable Notes Trustee) make distributions on account of the applicable Notes Claims, subject to any applicable charging Lien.

6.7. *Expenses of Distribution Agent.*

Except as otherwise ordered by the Bankruptcy Court and subject to the written agreement of the Reorganized Debtors, the reasonable and documented fees and expenses incurred by the Distribution Agent acting in such capacity (including reasonable and documented attorneys' fees and expenses) on or after the Effective Date shall be paid in Cash by the Reorganized Debtors in the ordinary course of business.

6.8. *No Postpetition Interest.*

Except as otherwise specifically provided for in this Plan, the Confirmation Order, or another Final Order of the Bankruptcy Court (including the DIP Order), postpetition interest shall not accrue or be paid on any Claims, and no Holder of a Claim shall be entitled to interest accruing on such Claim on or after the Petition Date.

6.9. *Delivery of Distributions.*

Subject to Bankruptcy Rule 9010, all distributions to any Holder of an Allowed Claim (other than distributions made by the respective Notes Trustees) shall be made by a Distribution Agent, who shall transmit such distribution to the applicable Holders of Allowed Claims; *provided* that such Holder and relevant Affiliate, designee, or Related Fund comply with all applicable withholding and reporting requirement set forth in Article 6.20 of this Plan. If a distribution to any Holder is returned as undeliverable, no further distributions shall be made to such Holder unless and until such Distribution Agent is notified in writing of such Holder's then-current address, at which time all currently-due, missed distributions shall be made to such Holder as soon as reasonably practicable thereafter without interest. Nothing herein shall require the Distribution Agent to attempt to locate Holders of undeliverable distributions and, if located, assist such Holders in complying with Article 6.20 of this Plan.

For the avoidance of doubt, in connection with a distribution through the facilities of DTC for non-tendered positions, DTC shall be considered a single Holder for purposes of the distribution. In connection with the distribution to tendered positions, if applicable, distributions will be made at the beneficial owner level in accordance with the elections received thereto. The Debtors reserve the right to adjust the rounding conventions discussed herein, including the methods used for allocating through DTC.

6.10. *Distributions as of Effective Date.*

Distributions to Holders of Disputed Claims that are not Allowed Claims as of the Effective Date but which later become Allowed Claims shall be deemed to have been made on the Effective Date.

6.11. *Unclaimed Property.*

One year from the later of (a) the Effective Date and (b) the date that is fifteen (15) Business Days after the date of a distribution on an Allowed Claim, all Cash distributions payable on account of such Claim that are undeliverable or otherwise unclaimed shall be deemed unclaimed property under section 347(b) of the Bankruptcy Code and shall revert to the Reorganized Debtors or their successors or assigns, and all Claims of any other person (including the Holder of a Claim in the same Class) to such distribution shall be discharged and forever barred. The Reorganized Debtors and the Distribution Agent shall have no obligation to attempt to locate any Holder of an Allowed Claim other than by reviewing the Debtors' books and records and the Filings with the Bankruptcy Court.

6.12. *Time Bar to Cash Payments.*

Notwithstanding Article 6.11 of this Plan, checks issued by the Distribution Agent in respect of Allowed Claims shall be null and void if not negotiated within ninety (90) days after the date of issuance thereof. Thereafter, the amount represented by such voided check shall irrevocably revert to the Reorganized Debtors, and any Claim in respect of such voided check shall be discharged and forever barred, notwithstanding any federal or state escheat laws to the contrary. Requests for re-issuance of any check shall be made to the applicable Distribution Agent by the Holder of the Allowed Claim to whom such check was originally issued, prior to the expiration of the ninety (90) day period.

6.13. *Manner of Payment under Plan.*

Except as otherwise specifically provided in this Plan, at the option of the Debtors or the Reorganized Debtors, as applicable, any Cash payment to be made hereunder may be made by a check or wire transfer or as otherwise required or provided in applicable agreements or customary practices of the Debtors.

6.14. *Satisfaction of Claims.*

Except as otherwise specifically provided in this Plan, any distributions and deliveries to be made on account of Allowed Claims under this Plan shall be in complete and final satisfaction, release, settlement, and discharge of and exchange for such Allowed Claims.

6.15. *Fractional Stock.*

No fractional shares of Reorganized Common Equity shall be distributed. If any distributions of Reorganized Common Equity pursuant to this Plan would result in the issuance of a fractional share of Reorganized Common Equity, then the number of shares of Reorganized Common Equity to be issued in respect of such distribution will be calculated to one decimal place and rounded up or down to the closest whole share (with a half share or greater rounded up and less than a half share rounded down). The total number of shares of Reorganized Common Equity to be distributed in connection with this Plan shall be adjusted as necessary to account for the rounding provided for in this Article 6.15 of the Plan. No consideration shall be provided in lieu of fractional shares that are rounded down. Neither the Reorganized Debtors nor the Distribution Agent shall have any obligation to make a distribution that is less than one (1) share of Reorganized Common Equity. Fractional shares of Reorganized Common Equity that are not distributed in accordance with this section shall be returned to, and the ownership thereof shall vest in, the Reorganized Debtors.

6.16. *Minimum Cash Distributions.*

The Distribution Agent shall not be required to make any distribution of Cash less than one hundred dollars (\$100) to any Holder of an Allowed Claim; *provided* that if any distribution is not made pursuant to this Article 6.16 of the Plan, such distribution shall be added to any subsequent distribution to be made on behalf of the Holder's Allowed Claim. Furthermore, whenever payment of a fractional amount of Cash would otherwise be required under the Plan, such fractional distribution shall be rounded down to the nearest penny.

6.17. *Setoffs.*

(a) The Debtors and the Reorganized Debtors, or such Entity's designee as instructed by such Debtor or Reorganized Debtor, as applicable, may, but shall not be required to, set off or recoup

against any Claim and any distribution to be made pursuant to this Plan on account of such Claim, any and all Claims, rights, and Causes of Action of any nature whatsoever that the Debtors or the Reorganized Debtors or their successors may have against the Holder of such Claim pursuant to the Bankruptcy Code or applicable non-bankruptcy law; *provided* that neither the failure to do so nor the allowance of any Claim hereunder shall constitute a waiver or release by a Debtor or a Reorganized Debtor or its successor of any Claims, rights, or Causes of Action that a Debtor or Reorganized Debtor or its successor or assign may possess against the Holder of such Claim.

(b) In no event shall any Holder of Claims be entitled to set off any such Claim against any Claim, right, or Cause of Action of the Debtor or Reorganized Debtor, unless (i) the Debtors or the Reorganized Debtors, as applicable, have consented or (ii) such Holder has Filed a motion with the Bankruptcy Court requesting the authority to perform such setoff on or before the Confirmation Date, and notwithstanding any indication in any Proof of Claim or otherwise that such Holder asserts, has, or intends to preserve any right of setoff pursuant to section 553 of the Bankruptcy Code or otherwise. Notwithstanding the foregoing, this paragraph does not create any new rights to setoff or recoupment that did not exist under any applicable law or agreement in existence prior to the Effective Date.

6.18. *Allocation of Distributions Between Principal and Interest.*

Except as otherwise provided in this Plan and subject to Article 6.9 of this Plan or as otherwise required by law (as reasonably determined by the Reorganized Debtors), distributions with respect to an Allowed Claim shall be allocated first to the principal portion of such Allowed Claim (as determined for United States federal income tax purposes) and, thereafter, to the remaining portion of such Allowed Claim, if any.

6.19. *No Distribution in Excess of Amount of Allowed Claim.*

Notwithstanding anything in this Plan to the contrary, no Holder of an Allowed Claim shall receive, on account of such Allowed Claim, distributions in excess of the Allowed amount of such Claim.

6.20. *Withholding and Reporting Requirements.*

(a) *Withholding Rights.* In connection with this Plan, any party issuing any instrument or making any distribution described in this Plan or payment in connection therewith shall comply with all applicable withholding and reporting requirements imposed by any federal, state, or local taxing authority, and all distributions pursuant to this Plan and all related agreements shall be subject to any such withholding or reporting requirements. In the case of a non-Cash issuance or distribution that is subject to withholding, and subject to this Article 6.20 of the Plan, the distributing party may withhold an appropriate portion of such distributed property and either (i) sell such withheld property to generate Cash necessary to pay over the withholding tax (or reimburse the distributing party for any advance payment of the withholding tax) or (ii) pay the withholding tax using its own funds and retain such withheld property. Any amounts withheld pursuant to the preceding sentence shall be deemed to have been distributed to and received by the applicable recipient for all purposes of this Plan. Notwithstanding the foregoing, all Persons holding Claims or Interests shall be required to provide any information necessary to effect information reporting and the withholding of such taxes (or to establish eligibility for a reduction of or an exemption from the withholding of any taxes), and each Holder of an Allowed Claim or any other Entity that receives a distribution pursuant to this Plan shall have the sole and exclusive responsibility for the satisfaction and payment of any taxes imposed by any Governmental Unit, including income, withholding, and other taxes, on account of such distribution. Any party issuing any instrument or making any distribution pursuant to this Plan has the right, but not the obligation, to not make a distribution until such Holder has made arrangements satisfactory to such issuing or disbursing party for payment of any such tax obligations. The

Distribution Agent reserves the right to allocate all distributions made under this Plan in compliance with all applicable wage garnishments, alimony, child support and other spousal awards, Liens, and encumbrances.

(b) *Forms.* Any party entitled to receive any property as an issuance or distribution under this Plan shall, upon request, properly complete, duly execute, and deliver to the Distribution Agent or such other Entity designated by the Reorganized Debtors (which Entity shall subsequently deliver to the Distribution Agent any applicable IRS Form W-8 or Form W-9 or any other forms or documents received hereunder) an appropriate IRS Form W-9 or (if the payee is a foreign Entity) an appropriate IRS Form W-8 (together with all attachments) and any other forms or documents reasonably requested by any Reorganized Debtor to reduce or eliminate any withholding required by any federal, state, or local taxing authority. If such request is made by the Reorganized Debtors, the Distribution Agent, or such other Entity designated by the Reorganized Debtors or Distribution Agent and such party fails to comply before the date that is one hundred eighty (180) days after the request is made, the amount of such distribution shall irrevocably revert to the applicable Reorganized Debtor and any Claim in respect of such distribution shall be discharged and forever barred from assertion against such Reorganized Debtor or its respective property.

ARTICLE VII.

PROCEDURES FOR DISPUTED CLAIMS

7.1. *Disputed Claims Generally.*

Except as expressly provided in the Plan or in any order entered in the Chapter 11 Cases before the Effective Date (including the Confirmation Order), no Claim shall become an Allowed Claim unless and until such Claim is deemed Allowed pursuant to the Plan or Final Order, including the Confirmation Order (when it becomes a Final Order) Allowing such Claim. Except insofar as a Claim is Allowed under the Plan or was Allowed prior to the Effective Date, the Debtors, Reorganized Debtors, as applicable, shall have and retain any and all rights and defenses such Debtor has with respect to any Disputed Claim. Any objections to Claims shall be served and Filed on or before the later of: (a) the Claim Objection Deadline; and (b) such later date as may be fixed by the Bankruptcy Court. All Disputed Claims not objected to by the end of such period shall be deemed Allowed unless such period is extended upon approval of the Bankruptcy Court.

7.2. *Objections to Claims.*

Except insofar as a Claim is Allowed under this Plan, the Debtors or the Reorganized Debtors, as applicable, shall be entitled to object to Claims. After the Effective Date, the Reorganized Debtors shall have the authority (a) to File, withdraw, or litigate to judgment objections to Claims; (b) to settle or compromise any Disputed Claim without any further notice to or action, order, or approval by the Bankruptcy Court; and (c) to administer and adjust the Debtors' Claims Register to reflect any such settlements or compromises without any further notice to or action, order, or approval by the Bankruptcy Court.

7.3. *Estimation of Claims.*

The Debtors or the Reorganized Debtors, as applicable, may (a) determine, resolve, and otherwise adjudicate all contingent, unliquidated, and Disputed Claims in the Bankruptcy Court and (b) at any time request that the Bankruptcy Court estimate any contingent, unliquidated, or Disputed Claim pursuant to section 502(c) of the Bankruptcy Code regardless of whether the Debtors previously objected to such Claim or whether the Bankruptcy Court has ruled on any such objection. The Bankruptcy Court shall retain jurisdiction to estimate any Claim, including at any time during litigation concerning any objection to any

Claim or during the pendency of any appeal relating to any such objection. In the event that the Bankruptcy Court estimates any contingent, unliquidated, or Disputed Claim, the amount so estimated shall constitute either the Allowed amount of such Claim or a maximum limitation on the Allowed amount of such Claim, as determined by the Bankruptcy Court. If the estimated amount constitutes a maximum limitation on the Allowed amount of such Claim, the Debtors or the Reorganized Debtors, as applicable, may pursue supplementary proceedings to object to the allowance of such Claim. Notwithstanding section 502(j) of the Bankruptcy Code, in no event shall any Holder of a Claim that has been estimated pursuant to section 502(c) of the Bankruptcy Code or otherwise be entitled to seek reconsideration of such estimation unless such Holder has Filed a motion requesting the right to seek such reconsideration on or before twenty-one (21) days after the date on which such Claim is estimated.

7.4. *Adjustment to Claims Register Without Objection*

Any duplicate Claim or Interest or any Claim or Interest that has been paid or satisfied, or any Claim that has been amended or superseded, may be adjusted or expunged on the Claims Register by the Debtors or Reorganized Debtors, as applicable, without the Debtors or Reorganized Debtors, as applicable, having to File an application, motion, complaint, objection, or any other legal proceeding seeking to object to such Claim or Interest and without any further notice or action, order, or approval of the Bankruptcy Court.

7.5. *Disallowance of Claims.*

Any Claims held by Entities from which property is recoverable under sections 542, 543, 550, or 553 of the Bankruptcy Code or that is a transferee of a transfer avoidable under sections 522(f), 522(h), 544, 545, 547, 548, 549, or 724(a) of the Bankruptcy Code, shall be deemed Disallowed pursuant to section 502(d) of the Bankruptcy Code, and Holders of such Claims may not receive any distributions on account of such Claims until such time as such Causes of Action against that Entity have been settled or a Bankruptcy Court order with respect thereto has been entered and all sums due, if any, to the Debtors by that Entity have been turned over or paid to the Debtors or the Reorganized Debtors.

Except as otherwise provided herein or as agreed to by the Debtors or Reorganized Debtors, as applicable, any and all Claims for which Proofs of Claim have not been Filed or were Filed after the applicable Bar Date, except for Holders of Claims not required to File Proofs of Claim under the Claims Bar Date Order, shall be deemed Disallowed and such Proofs of Claim shall be expunged from the Claims Register as of the Effective Date without any further notice to or action, order, or approval of the Bankruptcy Court, and Holders of such Claims may not receive any distributions on account of such Claims, unless a late Proof of Claim is deemed timely Filed by a Final Order.

7.6. *No Distributions Pending Allowance.*

If an objection, motion to estimate, or other challenge to a Claim is Filed, no payment or distribution provided under this Plan shall be made on account of such Claim unless and until (and only to the extent that) such Disputed Claim becomes an Allowed Claim.

7.7. *Distributions After Allowance.*

To the extent that a Disputed Claim ultimately becomes an Allowed Claim, distributions (if any) shall be made to the Holder of such Allowed Claim in accordance with the provisions of this Plan, including the treatment provisions provided in Article IV of this Plan.

7.8. *Claim Resolution Procedures Cumulative.*

All of the Claims, objection, estimation, and resolution procedures in this Plan are intended to be cumulative and not exclusive of one another. Claims may be estimated and subsequently settled, compromised, withdrawn, or resolved in accordance with this Plan without further notice or Bankruptcy Court approval.

7.9. *Single Satisfaction of Claims and Interests.*

In no case shall the aggregate value of all property received or retained under this Plan on account of any Allowed Claim or Interest exceed 100 percent (100%) of the underlying Allowed Claim or Interest plus applicable interest required to be paid hereunder, if any.

ARTICLE VIII.

TREATMENT OF EXECUTORY CONTRACTS AND UNEXPIRED LEASES.

8.1. *Assumption or Rejection of Executory Contracts and Unexpired Leases.*

(a) As of and subject to the occurrence of the Effective Date and the payment of any applicable Cure amount, all Executory Contracts and Unexpired Leases of the Debtors which have not expired by their own terms on or prior to the Confirmation Date, shall be deemed assumed by the Debtors in accordance with, and subject to, the provisions and requirements of sections 365 and 1123 of the Bankruptcy Code, except for those Executory Contracts and Unexpired Leases that, in each case:

(i) have been assumed, assumed and assigned, or rejected by the Debtors by prior order of the Bankruptcy Court;

(ii) are the subject of a motion to reject Filed by the Debtors pending on the Effective Date;

(iii) are identified as rejected Executory Contracts and Unexpired Leases by the Debtors on the Schedule of Rejected Executory Contracts and Unexpired Leases to be Filed in the Plan Supplement, which may be amended by the Debtors up to and through the Effective Date to add or remove Executory Contracts and Unexpired Leases by Filing with the Bankruptcy Court a subsequent Plan Supplement and serving it on the affected non-Debtor contract parties;

(iv) are rejected or terminated pursuant to the terms of this Plan; or

(v) are the subject of a pending Cure Dispute.

(b) Without amending or altering any prior order of the Bankruptcy Court approving the assumption or rejection of any Executory Contract or Unexpired Lease, the Confirmation Order shall constitute an order of the Bankruptcy Court approving such assumptions, assignments and assignments, and the rejection of Executory Contracts and Unexpired Leases set forth in the Schedule of Rejected Executory Contracts and Unexpired Leases provided for in this Plan pursuant to sections 365 and 1123 of the Bankruptcy Code as of the Effective Date.

(c) To the extent any provision in any Executory Contract or Unexpired Lease assumed or assumed and assigned (as applicable) pursuant to this Plan or any prior order of the Bankruptcy Court (including, without limitation, any “change of control” provision) prohibits, restricts, or conditions, or purports to prohibit, restrict, or condition, or is modified, breached, or terminated, or deemed modified, breached, or terminated by (a) the commencement of the Chapter 11 Cases or the insolvency or financial condition of any Debtor at any time before the closing or dismissal of its respective Chapter 11 Case, (b) any Debtor’s or any Reorganized Debtor’s assumption or assumption and assignment (as applicable) of such Executory Contract or Unexpired Lease or (c) the Confirmation or consummation of this Plan, then such provision shall be deemed modified such that the Transactions contemplated by this Plan shall not entitle the non-Debtor party thereto to modify or terminate such Executory Contract or Unexpired Lease or to exercise any other default-related rights or remedies with respect thereto, and any required consent under any such contract or lease shall be deemed satisfied by the Confirmation of this Plan.

(d) Each Executory Contract and Unexpired Lease assumed and/or assigned pursuant to this Plan shall revest in and be fully enforceable by the applicable Reorganized Debtor or the applicable assignee in accordance with its terms and conditions, except as modified by the provisions of this Plan, any order of the Bankruptcy Court approving its assumption and/or assignment, or applicable law.

(e) The Debtors reserve the right, on or before the Effective Date, to amend the Schedule of Assumed Executory Contracts and Unexpired Leases and/or Schedule of Rejected Executory Contracts and Unexpired Leases and/or to add or remove any Executory Contract and Unexpired Lease; *provided* that the Debtors or Reorganized Debtors, as applicable, may amend the Schedule of Assumed Executory Contracts and Unexpired Leases and/or the Schedule of Rejected Executory Contracts and Unexpired Leases to add or delete any Executory Contracts or Unexpired Leases after such date (i) with respect to any Executory Contract or Unexpired Lease that is the subject of a Cure Dispute as of the Effective Date, at any time through the later of (x) ninety (90) days after the Effective Date and (y) five (5) Business Days after entry of a Final Order resolving such Cure Dispute, or (ii) to the extent agreed with the relevant counterparty and, to the extent required, upon entry of an order of the Bankruptcy Court.

(f) The inclusion or exclusion of a contract or lease on any schedule or exhibit shall not constitute an admission by any Debtor that such contract or lease is an Executory Contract or Unexpired Lease or that any Debtor has any liability thereunder.

8.2. ***Determination of Cure Disputes and Deemed Consent***

(a) The Debtors shall File, as part of the Plan Supplement, the Schedule of Rejected Executory Contracts and Unexpired Leases and the Schedule of Assumed Executory Contracts and Unexpired Leases.

(b) The Debtors shall serve an initial Cure Notice on parties to Executory Contracts and Unexpired Leases to be assumed or assumed and assigned no later than twenty-one (21) days before the deadline set to File objections to Confirmation of this Plan. If a counterparty to any Executory Contract

or Unexpired Lease that the Debtors or Reorganized Debtors, as applicable, intend to assume or assume and assign is not listed on such a notice, the proposed Cure amount for such Executory Contract or Unexpired Lease shall be deemed to be zero Dollars (\$0).

(c) If there is a Cure Dispute pertaining to assumption or assumption and assignment of an Executory Contract or Unexpired Lease, such dispute shall be heard by the Bankruptcy Court prior to such assumption or assumption and assignment, as applicable, being effective and any such dispute shall be resolved by the Bankruptcy Court at the Confirmation Hearing (to the extent not resolved by the parties prior to the Confirmation Hearing) or at a later date as agreed to by the parties or ordered by the Bankruptcy Court; *provided* that on the Effective Date or as soon as reasonably practicable thereafter, or on such other terms as the parties to such Executory Contract or Unexpired Lease may otherwise agree, the Debtors or the Reorganized Debtors, as applicable, may settle any dispute regarding the Cure amount or the nature thereof without any further notice to any party or any action, order, or approval of the Bankruptcy Court.

(d) Any counterparty to an Executory Contract or Unexpired Lease that fails to object timely to the notice of the proposed assumption or assumption and assignment, as applicable, of such Executory Contract or Unexpired Lease or the relevant Cure amount within twenty-one (21) days of the service of the applicable Cure Notice, (i) shall be deemed to have assented to (1) such Cure amount and the nature thereof, (2) assumption or assumption and assignment, as applicable, of the applicable Executory Contract or Unexpired Lease notwithstanding any provision thereof that purports to (A) prohibit, restrict, or condition the transfer or assignment of such contract or lease or (B) terminate or permit the termination of a contract or lease as a result of any direct or indirect transfer or assignment of the rights of the Debtors under such contract or lease or a change, if any, in the ownership or control to the extent contemplated by the Plan, and shall forever be barred and enjoined from asserting such objection against the Debtors or terminating or modifying such contract or lease on account of Transactions contemplated by the Plan, and (ii) shall be forever barred, estopped, and enjoined from challenging the validity of such assumption or assumption and assignment, as applicable, or the Allowed amount of such Cure amount thereafter.

8.3. *Payments Related to Assumption of Executory Contracts and Unexpired Leases.*

Subject to resolution of any Cure Dispute, all Cure amounts shall be satisfied promptly, or otherwise as soon as practicable, by the Debtors or Reorganized Debtors, as the case may be, upon assumption or assumption and assignment, as applicable, of the underlying Executory Contracts and Unexpired Leases. Assumption or assumption and assignment, as applicable, of any Executory Contract or Unexpired Lease pursuant to the Plan, or otherwise, shall result in the full release and satisfaction of any Claims or defaults, subject to satisfaction of the Cure amount, whether monetary or nonmonetary, including defaults of provisions restricting the change in control or ownership interest composition or other bankruptcy-related defaults, arising under any assumed Executory Contract or Unexpired Lease at any time before the Effective Date of the assumption or assumption and assignment, as applicable. Any Proofs of Claim Filed with respect to an Executory Contract or Unexpired Lease that has been assumed shall be deemed Disallowed and expunged, without further notice to or action, order or approval of the Bankruptcy Court or any other Entity, upon the deemed assumption of such contract or Unexpired Lease.

8.4. *Claims on Account of the Rejection of Executory Contracts or Unexpired Leases.*

(a) All Proofs of Claim with respect to Claims arising from the rejection of Executory Contracts or Unexpired Leases, pursuant to this Plan or the Confirmation Order, if any, must be Filed with the Bankruptcy Court within twenty-one (21) days after service of an order of the Bankruptcy Court (including the Confirmation Order) approving such rejection. Any Claim arising from the rejection of Executory Contracts or Unexpired Leases that becomes an Allowed Claim is classified and shall be treated as a Class 11 Trade and Vendor Claim or Class 12 Other General Unsecured Claim, as applicable.

(b) Any Person or Entity that is required to File a Proof of Claim arising from the rejection of an Executory Contract or an Unexpired Lease that fails to timely do so shall be forever barred, estopped and enjoined from asserting such Claim, and such Claim shall not be enforceable, against the Debtors, the Reorganized Debtors or the Estates, and the Debtors, the Reorganized Debtors and their Estates and their respective assets and property shall be forever discharged from any and all indebtedness and liability with respect to such Claim unless otherwise ordered by the Bankruptcy Court or as otherwise provided herein. All such Claims shall, as of the Effective Date, be subject to the permanent injunction set forth in Article 10.5 of this Plan.

8.5. *Survival of the Debtors' Indemnification Obligations.*

Except as otherwise provided in this Plan or the Confirmation Order, and subject to the Schedule of Retained Causes of Action, to the fullest extent permitted by applicable law, the Indemnification Obligations shall not be discharged, impaired, or otherwise affected by this Plan; *provided* that the Debtors or the Reorganized Debtors, as applicable, shall not indemnify any such officers, directors, trustees, agents, or employees of the Debtors for any Claims or Causes of Action arising out of or relating to any act or omission for which indemnification is barred under applicable law or that is excluded under the terms of the foregoing organizational documents or applicable agreements governing the Debtors' Indemnification Obligations. The Reorganized Debtors shall not indemnify any Persons for any Claims or Causes of Action arising out of or relating to any act or omission that is a criminal act or constitutes intentional fraud, gross negligence, or willful misconduct. Except as otherwise provided in this Plan, all such Indemnification Obligations shall be deemed and treated as Executory Contracts that are assumed by the Debtors under this Plan.

8.6. *Insurance Policies.*

(a) All insurance policies to which any Debtor is a party as of the Effective Date, including any D&O Policy, shall be deemed to be and treated as Executory Contracts and shall be assumed by the applicable Debtors or the Reorganized Debtors and shall continue in full force and effect thereafter in accordance with their respective terms, and all such insurance policies shall vest in the Reorganized Debtors. Coverage for defense and indemnity under the D&O Policies shall remain available to all individuals within the definition of "Insured" in any D&O Policy.

(b) In addition, after the Effective Date, all officers, directors, trustees, or employees who served in such capacity at any time before the Effective Date shall be entitled to the benefits of any D&O Policy (including any "tail" policy) for the full term of such policy regardless of whether such officers, directors, and/or employees remain in such positions after the Effective Date, in each case, to the extent set forth in such policies and on terms no less favorable than the Debtors' existing policies.

(c) In addition, after the Effective Date, the Reorganized Debtors shall not terminate or otherwise reduce the coverage under any D&O Policy (including any "tail policy") in effect as of the Petition Date, and any current directors, officers, trustees, members, managers, or employees of any of the Debtors who served in such capacity at any time prior to the Effective Date shall be entitled to the benefits of any such D&O Policy for the full term of such policy regardless of whether such employees, members, managers, trustees, directors, and/or officers remain in such positions after the Effective Date to the extent set forth in such policies.

(d) In the event that the Debtors determine that an Allowed Claim is covered in full or in part under one of the Debtors' insurance policies, no distributions under this Plan shall be made on account of such Allowed Claim unless and until, and solely to the extent that, (i) the Holder of such Allowed Claim has exhausted all remedies with respect to such insurance policy, and (ii) an insurer authorized to

issue a coverage position under such insurance policy, or the agent of such insurer, issues a formal determination, which the Debtors in their sole discretion do not contest, that coverage under such insurance policy is excluded or otherwise unavailable for losses arising from such Allowed Claim. Any proceeds available pursuant to one of the Debtors' insurance policies shall reduce the Allowed amount of a Claim on a dollar-for-dollar basis. To the extent that one or more of the Debtors' insurers agrees to satisfy a Claim in full or in part (if and to the extent adjudicated by a court of competent jurisdiction), then immediately upon such insurers' agreement, the applicable portion of such Claim may be expunged without a Claim objection having to be Filed and without any further notice to or action, order, or approval of the Bankruptcy Court. If an applicable insurance policy has a self-insured retention, the Holder of an Insured Claim shall have an Allowed General Unsecured Claim or a Section 510(b) Claim, as applicable, against the applicable Debtor's Estate solely up to the amount of the self-insured retention that may be established upon the liquidation of the Insured Claim. Such self-insured retention shall be considered satisfied pursuant to this Plan through allowance of the General Unsecured Claim or Section 510(b) Claim, as applicable, solely in the amount of the applicable self-insured retention, if any; *provided* that nothing herein obligates the Debtors or the Reorganized Debtors to otherwise satisfy any self-insured retention under any insurance policy. Any recovery on account of the Insured Claim in excess of the self-insured retention established upon the liquidation of the Claim shall be recovered solely from the Debtors' insurance coverage, if any, and only to the extent of available insurance coverage and any proceeds thereof. Nothing in this Plan shall be construed to limit, extinguish, or diminish the insurance coverage that may exist or shall be construed as a finding that liquidated any Claim payable pursuant to an insurance policy.

8.7. ***Assignment.***

To the extent provided under the Bankruptcy Code or other applicable law, any Executory Contract or Unexpired Lease transferred and assigned hereunder shall remain in full force and effect for the benefit of the transferee or assignee in accordance with its terms, notwithstanding any provision in such Executory Contract or Unexpired Lease (including those of the type set forth in section 365(b)(2) of the Bankruptcy Code) that prohibits, restricts, or conditions such transfer or assignment. To the extent provided under the Bankruptcy Code or other applicable law, any provision that prohibits, restricts, or conditions the assignment or transfer of any such Executory Contract or Unexpired Lease or that terminates or modifies such Executory Contract or Unexpired Lease or allows the counterparty to such Executory Contract or Unexpired Lease to terminate, modify, recapture, impose any penalty, condition renewal or extension, or modify any term or condition upon any such transfer and assignment, constitutes an unenforceable anti-assignment provision and is void and of no force or effect.

8.8. ***Modifications, Amendments, Supplements, Restatements, or Other Agreements.***

Unless otherwise provided herein or by separate order of the Bankruptcy Court, each Executory Contract and Unexpired Lease that is assumed shall include any and all modifications, amendments, supplements, restatements, or other agreements made directly or indirectly by any agreement, instrument, or other document that in any manner affects such Executory Contract or Unexpired Lease.

8.9. ***Reservation of Rights.***

(a) Neither the exclusion nor inclusion of any contract or lease by the Debtors on any exhibit, schedule, or other annex to this Plan or in the Plan Supplement, nor anything contained in this Plan, will constitute an admission by the Debtors that any such contract or lease is or is not in fact an Executory Contract or Unexpired Lease or that the Debtors or the Reorganized Debtors or their respective Affiliates has any liability thereunder.

(b) Except as otherwise provided in this Plan, nothing in this Plan will waive, excuse, limit, diminish, or otherwise alter any of the defenses, claims, Causes of Action, or other rights of the Debtors and the Reorganized Debtors under any executory or non-Executory Contract or any unexpired or expired lease.

(c) Nothing in this Plan will increase, augment, or add to any of the duties, obligations, responsibilities, or liabilities of the Debtors or the Reorganized Debtors under any executory or non-Executory Contract or any unexpired or expired lease.

(d) If there is a dispute regarding a Cure Claim or whether a contract or lease is or was executory or unexpired at the time of assumption or rejection under this Plan, the Debtors or Reorganized Debtors, as applicable, shall have sixty (60) days following entry of a Final Order resolving such dispute to alter their treatment of such contract or lease by Filing a notice indicating such altered treatment.

ARTICLE IX.

CONDITIONS PRECEDENT TO CONSUMMATION OF THIS PLAN.

9.1. *Conditions Precedent to the Effective Date.*

(a) The following are Conditions Precedent to the Effective Date of this Plan:

(i) the Restructuring Support Agreement shall not have been terminated and shall be in full force and effect;

(ii) the Bankruptcy Court shall have entered the Confirmation Order in form and substance consistent with and subject to the consent rights set forth in the Restructuring Support Agreement and the Confirmation Order shall not be subject to a stay pending appeal;

(iii) all documentation necessary for the issuance of the Reorganized Common Equity shall have been executed and delivered by the Reorganized Parent;

(iv) the Secured Exit Notes, the New 2027 Senior Secured Notes, the Reorganized Common Equity, and the New Warrants shall have been issued;

(v) the 2027 Senior Secured Notes, the September 2029 Senior Secured Notes, the March 2029 Senior Secured Notes (as applicable), the Priority Guaranteed Unsecured Notes, and the Unsecured Notes shall have been cancelled;

(vi) the New Mortgage Debt, the New Secured Credit Facility, and the New March 2029 Senior Secured Notes shall have been issued, or the Mortgage Debt Guarantee Claims, the Secured Credit Facility Claims, and the March 2029 Senior Secured Notes Claims shall have been Reinstated, provided their economic equivalent, or rendered Unimpaired, as applicable;

(vii) the Definitive Documents shall (A) be consistent with the Restructuring Support Agreement and otherwise approved by the applicable parties thereto consistent with their respective consent and approval rights as set forth in the Restructuring Support Agreement, (B) have been executed or deemed executed and delivered by each party thereto, and any conditions precedent related thereto shall have been satisfied or waived by the applicable party or parties, (C) be adopted on terms consistent with the Restructuring Support Agreement, and (D) be adopted on terms otherwise consistent with the provisions of this Plan;

(viii) all Restructuring Expenses shall have been paid in full in Cash in accordance with the terms of this Plan and the Restructuring Support Agreement;

(ix) the Professional Fee Escrow shall have been established and funded in full in Cash;

(x) the 2027 Senior Secured Notes Documents are in the form agreed to by the Debtors and the 2027 Ad Hoc Group and have been filed with such changes as agreed to by the Debtors and the 2027 Ad Hoc Group and all fees and expenses required to be paid pursuant to this Plan shall have been paid in full in Cash;

(xi) the 2027 Senior Secured Notes Claims Settlement shall not have been terminated; and

(xii) the Committee Settlement shall not have been terminated.

9.2. *Timing of Conditions Precedent.*

Notwithstanding when a Condition Precedent to the Effective Date occurs, for the purposes of this Plan, such Condition Precedent shall be deemed to have occurred simultaneously upon the completion of the Conditions Precedent to the Effective Date; *provided* that to the extent a Condition Precedent (the “*Prerequisite Condition*”) may be required to occur prior to another Condition Precedent (a “*Subsequent Condition*”) then, for purposes of this Plan, the Prerequisite Condition shall be deemed to have occurred immediately prior to the applicable Subsequent Condition regardless of when such Prerequisite Condition or Subsequent Condition shall have occurred.

9.3. *Waiver of Conditions Precedent.*

(a) Each of the Conditions Precedent of this Plan may be waived in writing by the Debtors, with the consent of the Required September 2029 Senior Secured Noteholders (which consent shall not be unreasonably withheld, delayed, or conditioned), except as otherwise provided in the Restructuring Support Agreement; *provided* that any waiver of (i) the Condition Precedent in Article 9.1(a)(i) of this Plan, (ii) the Condition Precedent in Article 9.1(a)(vii) of this Plan in respect of any Amended RMR Management Agreement, (iii) the Condition Precedent in Article 9.1(a)(iii) of this Plan in respect of Reorganized Common Equity constituting Initial Equity Compensation or Subsequent Equity Compensation, or (iv) the Condition Precedent in Article 9.1(a)(iv) of this Plan in respect of Reorganized Common Equity constituting Initial Equity Compensation shall, in each case, require the consent of RMR; *provided further* that (x) the waiver of the Condition Precedent in Article 9.1(a)(ix) of this Plan shall require the consent of the affected Professionals; (y) the waiver of the Conditions Precedent in Articles 9.1(a)(x), 9.1(a)(xi), 9.1(a)(iv) solely in respect of the issuance of New 2027 Senior Secured Notes, 9.1(a)(v) solely in respect of the cancellation of the 2027 Senior Secured Notes, and 9.1(a)(vii) solely in respect of such Definitive Documents specified in Article 1.66(o) of this Plan shall, in each case, require the reasonable consent of the 2027 Ad Hoc Group; and (z) the waiver of the Conditions Precedent in Articles 9.1(a)(xii) and 9.1(a)(vii)(D) of this Plan solely in respect of such Definitive Documents specified in Article 1.66(x) of this Plan shall, in each case, require the reasonable consent of the Committee.

(b) The stay of the Confirmation Order pursuant to Bankruptcy Rule 3020(c) shall be deemed waived by and upon the entry of the Confirmation Order, and the Confirmation Order shall take effect immediately upon its entry.

9.4. *Effect of Non-Occurrence of the Effective Date.*

If the Effective Date does not occur, this Plan shall be null and void in all respects and nothing contained in this Plan or the Disclosure Statement shall (a) constitute a waiver or release of any Claims by or against or any Interests in the Debtors, (b) prejudice in any manner the rights of any Entity, or (c) constitute an admission, acknowledgement, offer, or undertaking by the Debtors, any of the Consenting Creditors, RMR, or any other Entity.

ARTICLE X.

EFFECT OF CONFIRMATION AND CONSUMMATION OF PLAN.

10.1. *Vesting of Assets in the Reorganized Debtors.*

Except as otherwise provided herein, or in any agreement, instrument, or other documents incorporated into this Plan (including with respect to the transactions contemplated by the Transaction Steps Exhibit, if applicable), on the Effective Date, pursuant to sections 1141(b) and (c) of the Bankruptcy Code, all property in each Debtor's Estate, all Causes of Action, and any property acquired by any of the Debtors under this Plan shall vest in each respective Reorganized Debtor, free and clear of all Liens, Claims, charges, or other encumbrances unless expressly provided otherwise by this Plan or Confirmation Order. In addition, all rights, benefits, and protections provided to any of the Debtors or their Estates pursuant to this Plan, the Plan Supplement, or the Confirmation Order including the release, exculpation, and injunction provisions provided in this Article X of the Plan, shall vest in each respective Reorganized Debtor unless expressly provided otherwise by this Plan or the Confirmation Order. On and after the Effective Date, except as otherwise provided herein, each Reorganized Debtor may operate its business and may use, acquire, or dispose of property and pursue, compromise, or settle any Claims, Interests, or Causes of Action without supervision or approval by the Bankruptcy Court and free of any restrictions of the Bankruptcy Code or Bankruptcy Rules. Without limiting the foregoing, the Reorganized Debtors may pay the charges that they incur on or after the Effective Date for professional fees, disbursements, expenses, or related support services without application to the Bankruptcy Court.

10.2. *Binding Effect.*

As of the Effective Date, this Plan shall bind all Holders of Claims against and Interests in the Debtors and their respective successors and assigns, notwithstanding whether any such Holders (a) were Impaired or Unimpaired under this Plan, (b) were presumed to accept or deemed to reject this Plan, (c) failed to vote to accept or reject this Plan, or (d) voted to reject this Plan.

10.3. *Discharge of Claims and Termination of Interests.*

Pursuant to section 1141(d) of the Bankruptcy Code, and except as otherwise specifically provided in the Definitive Documents, this Plan, or in a contract, instrument, or other agreement or document executed pursuant to this Plan, the distributions, rights, and treatment that are provided in this Plan shall be in complete satisfaction, discharge, and release, effective as of the Effective Date, of Claims, Interests, and Causes of Action of any nature whatsoever, including any interest accrued on Claims or Interests from and after the Petition Date, whether known or unknown, against, liabilities of, Liens on, obligations of, rights against, and interests in, the Debtors or any of their assets or properties, regardless of whether any property shall have been distributed or retained pursuant to this Plan on account of such Claims and Interests, including demands, liabilities, and Causes of Action that arose before the Effective Date, any contingent or non-contingent liability on account of representations or warranties issued on or before the Effective Date, and all debts of the kind specified in sections 502(g), 502(h), or 502(i) of the Bankruptcy Code, in each

case whether or not: (a) a Proof of Claim based upon such debt or right is Filed or deemed Filed pursuant to section 501 of the Bankruptcy Code; (b) a Claim or Interest based upon such debt, right, or Interest is Allowed pursuant to section 502 of the Bankruptcy Code; or (c) the Holder of such a Claim or Interest has voted to accept this Plan. Any default or “event of default” by the Debtors with respect to any Claim or Interest that existed immediately before or on account of the filing of the Chapter 11 Cases shall be deemed cured (and no longer continuing) as of the Effective Date with respect to a Claim that is Unimpaired by this Plan. The Confirmation Order shall be a judicial determination of the discharge of all Claims and Interests subject to the Effective Date occurring.

10.4. *Term of Injunctions or Stays.*

Unless otherwise provided herein or in a Final Order of the Bankruptcy Court, all injunctions or stays arising under or entered during the Chapter 11 Cases under section 105 or 362 of the Bankruptcy Code, or otherwise, and in existence on the Confirmation Date, shall remain in full force and effect until the later of the Effective Date and the date indicated in the order providing for such injunction or stay.

10.5. *Permanent Injunction.*

Except as otherwise expressly provided in the Restructuring Support Agreement, this Plan, or the Confirmation Order, from and after the Effective Date, all Persons and Entities are, to the fullest extent provided under section 524 and other applicable provisions of the Bankruptcy Code, permanently enjoined from (a) commencing or continuing, in any manner or in any place, any suit, action or other proceeding of any kind; (b) enforcing, attaching, collecting, or recovering in any manner or means any judgment, award, decree, or order; (c) creating, perfecting, or enforcing any Lien or encumbrance; (d) asserting a right of setoff or subrogation of any kind; or (e) commencing or continuing in any manner any action or other proceeding of any kind, in each case on account of or with respect to any Claim, demand, liability, obligation, debt, right, Cause of Action, Interest, or remedy released or to be released, exculpated or to be exculpated, settled or to be settled, or discharged or to be discharged pursuant to this Plan or the Confirmation Order against any Person or Entity so released, discharged, or exculpated (or the property or estate of any Person or Entity so released, discharged, or exculpated). All injunctions or stays provided for in the Chapter 11 Cases under sections 105 or 362 of the Bankruptcy Code, or otherwise, and in existence on the Confirmation Date, shall remain in full force and effect until the Effective Date.

No Person or Entity may commence or pursue a Claim or Cause of Action, as applicable, of any kind against the Debtors, the Reorganized Debtors, or the Exculpated Parties, as applicable, that relates to or is reasonably likely to relate to any act or omission in connection with, relating to, or arising out of a Claim or Cause of Action, as applicable, subject to Article IX hereof, without the Bankruptcy Court (i) first determining, after notice and a hearing, that such Claim or Cause of Action, as applicable, represents a colorable Claim of any kind, and (ii) specifically authorizing such Person or Entity to bring such Claim or Cause of Action, as applicable, against any such Debtor, Reorganized Debtor, or Exculpated Party, as applicable. At the hearing for the Bankruptcy Court to determine whether such Claim or Cause of Action represents a colorable Claim of any kind, the Bankruptcy Court may, or shall if any Debtor, Reorganized Debtor, Exculpated Party, or other party in interest requests by motion (oral motion being sufficient), direct that such Person or Entity seeking to commence or pursue such Claim or Cause of Action File a proposed complaint with the Bankruptcy Court embodying such Claim or Cause of Action, such complaint satisfying the applicable Rules of Federal Procedure, including Rule 8 and Rule 9 (as applicable), which the Bankruptcy Court shall assess before making a determination. For the avoidance of doubt, any party that obtains such determination and authorization and subsequently wishes to amend the authorized complaint or petition to add any Claims or Causes of Action not explicitly included in the authorized

complaint or petition must obtain authorization from the Bankruptcy Court before filing any such amendment in the court where such complaint or petition is pending. The Bankruptcy Court reserves jurisdiction to adjudicate any such Claims to the maximum extent provided by the law.

10.6. *Releases.*

(a) Releases by the Debtors.

To the fullest extent permitted by applicable law and approved by the Bankruptcy Court, and except as otherwise expressly set forth in this Plan or the Confirmation Order, pursuant to section 1123(b) of the Bankruptcy Code, as of the Effective Date, in exchange for good and valuable consideration, the adequacy of which is hereby confirmed, each of Debtors, Reorganized Debtors, Reorganized Parent, and the Estates, in each case on behalf of itself and its respective successors, assigns, and representatives, and any and all other Persons or Entities who may purport to assert any Claim or Cause of Action, directly or derivatively, by, through, for, or because of the foregoing Persons or Entities, has and is deemed to have, forever and unconditionally released, and absolved each Released Party from any and all Claims, obligations, rights, suits, damages, and Causes of Action, remedies, and liabilities whatsoever whether known or unknown, foreseen or unforeseen, existing or hereinafter arising, in law, equity, or otherwise, including any derivative Claims asserted or assertable on behalf of the Debtors, the Estates, Reorganized Parent, or the Reorganized Debtors, that such Entity would have been legally entitled to assert in its own right (whether individually or collectively) or on behalf of the Holder of any Claim against, or Interest in, a Debtor or other Entity, based on or relating to, or in any manner arising from, in whole or in part, the Debtors, including (i) the governance, management, transactions, ownership, or operation of the Debtors or the Non-Debtor Affiliates (ii) the purchase, acquisition, sale, merger, or rescission of any Asset or Security of the Debtors or the Non-Debtor Affiliates, (iii) the subject matter of, or the transactions, events, circumstances, acts or omissions giving rise to, any Claim or Interest that is treated in the Transactions, including the negotiation, formulation, or preparation of the Transactions, (iv) the business or contractual arrangements between any Debtor or Non-Debtor Affiliate and any other Entity (including Consenting Creditors and RMR), (v) the Prepetition Credit Documents; (vi) the Debtors' and Non-Debtor Affiliates' in- or out-of-court restructuring efforts, (vii) intercompany transactions, (viii) the formulation, preparation, dissemination, negotiation, solicitation, entry into, Filing, or consummation of this Plan, the Plan Supplement, the Confirmation Order, the Disclosure Statement, the Restructuring Support Agreement and related prepetition transactions, the Definitive Documents, including, for the avoidance of doubt, the DIP Documents, the Secured Exit Notes Indenture and related note documents (including intercreditor agreements), the New 2027 Senior Secured Notes Documents, the Equity Rights Offering Documents, the Reorganized Common Equity Documents, the Corporate Governance Documents, the New Corporate Governance Documents, the Amended RMR Management Agreements, and the New Warrant Documents, the Chapter 11 Cases, the 2027 Senior Secured Notes Claims Challenge, the 2027 Senior Secured Notes ICA Adversary Proceeding, the 2027 Senior Secured Notes ICA Claims, or any Transactions, (ix) any contract, instrument, release, or other agreement or document created or entered into in connection with this Plan, the Plan Supplement, the Disclosure Statement, the Restructuring Support Agreement, the Definitive Documents, including, for the avoidance of doubt, the DIP Documents, the Secured Exit Notes Indenture and related note documents (including intercreditor agreements), the New 2027 Senior Secured Notes Documents, the Equity Rights Offering Documents, the Reorganized Common Equity Documents, the Corporate Governance Documents, the New Corporate Governance Documents, the Amended RMR Management Agreement, and the New Warrant Documents, the Chapter 11 Cases, the 2027 Senior Secured Notes Claims Challenge, the 2027 Senior Secured Notes ICA Adversary Proceeding, the 2027 Senior Secured Notes ICA Claims, the pursuit of Confirmation and consummation of this Plan, the administration and implementation of this Plan or Confirmation

Order, including the issuance or distribution of Securities pursuant to this Plan, (x) the distribution, including any disbursements made by a Distribution Agent, of property under this Plan, or any other related agreement, or (xi) any other act or omission, transaction, agreement, event, or other occurrence related to any of the foregoing and taking place on or before the Effective Date; *provided* that the Debtors do not release Claims or Causes of Action (A) that are of a commercial nature and arise in the ordinary course of business, such as accounts receivable and accounts payable on account of goods being sold and services being performed; (B) arising under an Executory Contract or Unexpired Lease that is assumed by the Debtors; or (C) arising out of, or related to, any act or omission of a Released Party that is determined by Final Order of the Bankruptcy Court or any other court of competent jurisdiction to have constituted actual fraud, gross negligence, or willful misconduct. Notwithstanding anything to the contrary in the foregoing, the Releases set forth above do not release (x) any obligations of any Person or Entity under this Plan, the Confirmation Order, any other Definitive Document, including, for the avoidance of doubt, the DIP Documents, the Secured Exit Notes Indenture and related note documents (including intercreditor agreements), the New 2027 Senior Secured Notes Documents, the Equity Rights Offering Documents, the Reorganized Common Equity Documents, the Corporate Governance Documents, the New Corporate Governance Documents, the Amended RMR Management Agreement, and the New Warrant Documents, any Transactions, any document, instrument, or agreement (including those set forth in the Plan Supplement) executed to implement this Plan or any agreement, Claim, or obligation arising or assumed under this Plan or (y) any Causes of Action specifically retained by the Debtors pursuant to the Schedule of Retained Causes of Action.

Entry of the Confirmation Order shall constitute the Bankruptcy Court's approval, pursuant to Bankruptcy Rule 9019, of the Debtor Release, which includes by reference each of the related provisions and definitions contained in this Plan, and further, shall constitute the Bankruptcy Court's finding that the Debtor Release is: (1) in exchange for the good and valuable consideration provided by each of the Released Parties, including the Released Parties' substantial contributions to facilitating the Transactions and implementing this Plan; (2) a good-faith settlement and compromise of the Claims released by the Debtor Release; (3) in the best interests of the Debtors and all Holders of Claims and Interests; (4) fair, equitable, and reasonable; (5) given and made after due notice and opportunity for hearing; and (6) a bar to any of the Debtors, the Reorganized Debtors, the Reorganized Parent or the Debtors' Estates asserting any Claim or Cause of Action released pursuant to the Debtor Release.

(b) Releases by Holders of Claims and Interests.

To the fullest extent permitted by applicable law and approved by the Bankruptcy Court, and except as otherwise expressly set forth in this Plan or the Confirmation Order, as of the Effective Date, in exchange for good and valuable consideration, the adequacy of which is hereby confirmed, each Releasing Party, in each case on behalf of itself and its respective successors, assigns, and representatives, and any and all other Persons or Entities who may purport to assert any Claim or Cause of Action, directly or derivatively, by, through, for, or because of the foregoing Persons or Entities, has and is deemed to have, forever and unconditionally, released, and absolved each Released Party from any and all Claims, obligations, rights, suits, damages, and Causes of Action, remedies, and liabilities whatsoever, whether known or unknown, foreseen or unforeseen, existing or hereinafter arising, in law, equity, or otherwise, including any derivative Claims asserted or assertable on behalf of the Debtors, the Estates, the Reorganized Parent, or the Reorganized Debtors that such Person or Entity would have been legally entitled to assert in its own right (whether individually or collectively) or on behalf of the Holder of any Claim against, or Interest in, a Debtor or other Person or Entity, based on or relating to, or in any manner arising from, in whole or in part, the Debtors, including (i) the governance, management, transactions, ownership, or operation of the

Debtors or the Non-Debtor Affiliates (ii) the purchase, acquisition, sale, merger, or rescission of any Asset or Security of the Debtors or the Non-Debtor Affiliates, (iii) the subject matter of, or the transactions, events, circumstances, acts or omissions giving rise to, any Claim or Interest that is treated in the Transactions, including the negotiation, formulation, or preparation of the Transactions, (iv) the business or contractual arrangements between any Debtor or Non-Debtor Affiliate and any other Entity (including Consenting Creditors and RMR), (v) the Prepetition Credit Documents; (vi) the Debtors' and Non-Debtor Affiliates' in- or out-of-court restructuring efforts, (vii) intercompany transactions, (viii) the formulation, preparation, dissemination, negotiation, solicitation, entry into, Filing, or consummation of this Plan, the Plan Supplement, the Confirmation Order, the Disclosure Statement, the Restructuring Support Agreement and related prepetition transactions, the Definitive Documents, including, for the avoidance of doubt, the DIP Documents, the Secured Exit Notes Indenture and related note documents (including intercreditor agreements), the New 2027 Senior Secured Notes Documents, the Equity Rights Offering Documents, the Reorganized Common Equity Documents, the Corporate Governance Documents, the New Corporate Governance Documents, the Amended RMR Management Agreements, and the New Warrant Documents, the Chapter 11 Cases, the 2027 Senior Secured Notes Claims Challenge, the 2027 Senior Secured Notes ICA Adversary Proceeding, the 2027 Senior Secured Notes ICA Claims, or any Transactions, (ix) any contract, instrument, release, or other agreement or document created or entered into in connection with this Plan, the Plan Supplement, the Disclosure Statement, the Restructuring Support Agreement, the Definitive Documents, including, for the avoidance of doubt, the DIP Documents, the Secured Exit Notes Indenture and related note documents (including intercreditor agreements), the New 2027 Senior Secured Notes Documents, the Equity Rights Offering Documents, the Reorganized Common Equity Documents, the Corporate Governance Documents, the New Corporate Governance Documents, the Amended RMR Management Agreements, and the New Warrant Documents, the Chapter 11 Cases, the 2027 Senior Secured Notes Claims Challenge, the 2027 Senior Secured Notes ICA Adversary Proceeding, the 2027 Senior Secured Notes ICA Claims, the pursuit of Confirmation and consummation of this Plan, the administration and implementation of this Plan or Confirmation Order, including the issuance or distribution of Securities pursuant to this Plan, (x) the distribution, including any disbursements made by a Distribution Agent, of property under this Plan, or any other related agreement, or (xi) any other act or omission, transaction, agreement, event, or other occurrence related to any of the foregoing and taking place on or before the Effective Date; *provided* that the Releasing Parties do not release Claims or Causes of Action (A) arising out of, or related to, any act or omission of a Released Party that is determined by Final Order of the Bankruptcy Court or any other court of competent jurisdiction to have constituted actual fraud (but not, for the avoidance of doubt, fraudulent transfers), gross negligence, or willful misconduct (it being agreed that any Released Parties' consideration, approval, or receipt of any distribution did not arise from or relate to actual fraud, gross negligence, or willful misconduct) or (B) against a Released Party arising from any obligations owed to the Releasing Party that are wholly unrelated to the Debtors, the Reorganized Parent, or the Reorganized Debtors. Notwithstanding anything to the contrary in the foregoing, the Releases set forth above do not release (x) any obligations of any Person or Entity under this Plan, the Confirmation Order, any other Definitive Document, including, without limitation, the DIP Documents, the Secured Exit Notes Indenture and related note documents (including intercreditor agreements), the New 2027 Senior Secured Notes Documents, the Equity Rights Offering Documents, the Reorganized Common Equity Documents, the Corporate Governance Documents, the New Corporate Governance Documents, the Amended RMR Management Agreement, and the New Warrant Documents, any Transactions, any document, instrument, or agreement (including those set forth in the Plan Supplement) executed to implement this Plan or any agreement, Claim, or

obligation arising or assumed under this Plan or (y) any Causes of Action specifically retained by the Debtors pursuant to the Schedule of Retained Causes of Action.

Entry of the Confirmation Order shall constitute the Bankruptcy Court's approval, pursuant to Bankruptcy Rule 9019, of the releases set forth in this Article 10.6(b) of the Plan, which includes by reference each of the related provisions and definitions contained in this Plan, and, further, shall constitute the Bankruptcy Court's finding that the releases set forth in this Article 10.6(b) of the Plan is: (1) consensual; (2) given and made after due notice and opportunity for hearing; and (3) a bar to any of the Releasing Parties asserting any Claim or Cause of Action released pursuant to the releases set forth in this Article 10.6(b) of the Plan.

10.7. *Exculpation.*

Effective as of the Effective Date, to the fullest extent permitted by law, the Exculpated Parties shall neither have nor incur any liability to any Person or Entity for any Claims or Causes of Action for any act taken or omitted to be taken between the Petition Date and the Effective Date in connection with, or related to, formulating, negotiating, preparing, disseminating, implementing, administering, confirming or effecting the Confirmation or consummation (as applicable) of this Plan, the Restructuring Support Agreement and related prepetition transactions, and the Disclosure Statement including any disbursements made by a Distribution Agent in connection with this Plan, the Disclosure Statement, the Confirmation Order, the Definitive Documents, including, for the avoidance of doubt, the DIP Documents, the Secured Exit Notes Indenture and related note documents (including intercreditor agreements), the New 2027 Senior Secured Notes Documents, the Equity Rights Offering Documents, the Reorganized Common Equity Documents, the Corporate Governance Documents, the New Corporate Governance Documents, the Amended RMR Management Agreement, and the New Warrant Documents, the Prepetition Credit Documents, the 2027 Senior Secured Notes Claims Challenge, the 2027 Senior Secured Notes ICA Adversary Proceeding, the 2027 Senior Secured Notes ICA Claims, or any Transactions, contract, instrument, release, or other agreement or document created or entered into in connection with this Plan, or any other postpetition act taken or omitted to be taken in connection with or in contemplation of the restructuring of the Debtors, the approval of the Disclosure Statement or Confirmation or consummation of this Plan; *provided* that the foregoing provisions of this exculpation shall not operate to waive or release: (i) any Claims or Causes of Action arising from willful misconduct, actual fraud (but not, for the avoidance of doubt, fraudulent transfers), or gross negligence of such applicable Exculpated Party as determined by Final Order of the Bankruptcy Court or any other court of competent jurisdiction; and/or (ii) the rights of any Person or Entity to enforce this Plan and the contracts, instruments, releases, indentures, and other agreements and documents delivered under or in connection with this Plan, or assumed pursuant to this Plan or Final Order of the Bankruptcy Court; provided further, that each Exculpated Party shall be entitled to rely upon the advice of counsel concerning its respective duties pursuant to, or in connection with, the above referenced documents, actions, or inactions.

The Exculpated Parties have, and upon consummation of this Plan shall be deemed to have, participated in good faith and in compliance with the applicable laws with regard to the solicitation of votes and distribution of consideration pursuant to this Plan and, therefore, are not, and on account of such distributions shall not be, liable at any time for the violation of any applicable law, rule, or regulation governing the solicitation of acceptances or rejections of this Plan or such distributions made pursuant to this Plan.

The foregoing exculpation shall be effective as of the Effective Date without further notice to or order of the Bankruptcy Court, act, or action under applicable law, regulation, order, or rule or

the vote, consent, authorization, or approval of any Person or Entity. For the avoidance of doubt and notwithstanding anything else herein, the foregoing exculpation shall be limited to Persons that served as Estate fiduciaries during the Chapter 11 Cases.

10.8. *Retention of Causes of Action/Reservation of Rights.*

In accordance with section 1123(b) of the Bankruptcy Code, but subject in all respects to this Article X of the Plan, the Reorganized Debtors shall have, retain, reserve and be entitled to assert, and may enforce all rights to commence and pursue, as appropriate, any and all Claims or Causes of Action, whether arising before or after the Petition Date, including any actions specifically enumerated in the Schedule of Retained Causes of Action, and such rights to commence, prosecute, or settle such Causes of Action shall be preserved notwithstanding the occurrence of the Effective Date. The Reorganized Debtors shall have, retain, reserve, and be entitled to assert all rights of setoff or recoupment, and other legal or equitable defenses as fully as if the Chapter 11 Cases had not been commenced, and all of the Debtors' legal and equitable rights in respect of any Unimpaired Claim may be asserted after the Confirmation Date and Effective Date to the same extent as if the Chapter 11 Cases had not been commenced. The Debtors or the Reorganized Debtors, as applicable, expressly reserve all rights to prosecute any and all Causes of Action against any Entity not released pursuant to this Plan.

10.9. *Ipso Facto and Similar Provisions Ineffective.*

Any term of any prepetition policy, prepetition contract, or other prepetition obligation applicable to a Debtor shall be void and of no further force or effect with respect to any Debtor to the extent that such policy, contract, or other obligation is conditioned on, creates an obligation of the Debtor as a result of, or gives rise to a right of any Entity based on any of the following: (a) the insolvency or financial condition of a Debtor; (b) the commencement of the Chapter 11 Cases; (c) the Confirmation or consummation of this Plan, including any change of control that shall occur as a result of such consummation; or (d) the restructuring.

10.10. *Solicitation of Plan.*

As of and subject to the occurrence of the Confirmation Date: (a) the Debtors shall be deemed to have solicited acceptances of this Plan in good faith and in compliance with the applicable provisions of the Bankruptcy Code, including sections 1125(a) and (e) of the Bankruptcy Code, and any applicable non-bankruptcy law, rule, or regulation governing the adequacy of disclosure in connection with such solicitation and (b) the (i) Debtors and (ii) the Consenting Creditors, (iii) RMR and (iv) each of the Debtors', the Consenting Creditors', and RMR's respective Related Parties and Affiliates shall be deemed to have participated in good faith and in compliance with the applicable provisions of the Bankruptcy Code in the offer and issuance of any Securities under this Plan, and therefore are not, and on account of such offer, issuance, and solicitation will not be, liable at any time for any violation of any applicable law, rule, or regulation governing the solicitation of acceptances or rejections of this Plan or the offer and issuance of any Securities under this Plan.

10.11. *Corporate, Limited Liability Company, and Trust Action.*

Upon the Effective Date, all actions contemplated by this Plan shall be deemed authorized and approved in all respects, including (a) the selection of the managers, directors, trustees, and officers for the Reorganized Debtors, (b) the distribution of the Plan Securities, (c) the approval of the Restructuring Support Agreement, and (d) all other actions contemplated by this Plan (whether to occur before, on, or after the Effective Date), in each case in accordance with and subject to the terms hereof. All matters provided for in this Plan involving the corporate, limited liability company, or trust structure of the Debtors

or the Reorganized Debtors, and any corporate, limited liability company, or trust action required by the Debtors or the Reorganized Debtors in connection with this Plan shall be deemed to have occurred and shall be in effect, without any requirement of further action by the holders of Collateral, directors, managers, trustees, or officers of the Debtors or the Reorganized Debtors. On or (as applicable) before the Effective Date, the appropriate officers of the Debtors or the Reorganized Debtors, as applicable, shall be authorized and directed to issue, execute, and deliver the agreements, documents, Securities, and instruments contemplated by this Plan (or necessary or desirable to effect the Transactions contemplated by this Plan) in the name of and on behalf of the Reorganized Debtors, including (i) the New Corporate Governance Documents and (ii) any and all other agreements, documents, Securities, and instruments relating to the foregoing. The authorizations and approvals contemplated by this Article 10.11 of the Plan shall be effective notwithstanding any requirements under non-bankruptcy law.

ARTICLE XI.

RETENTION OF JURISDICTION.

11.1. *Retention of Jurisdiction.*

On and after the Effective Date, the Bankruptcy Court shall retain exclusive jurisdiction over all matters arising in, arising under, and related to the Chapter 11 Cases for, among other things, the following purposes:

(a) to hear and determine motions and/or applications for the assumption, assumption and assignment, or rejection of Executory Contracts and Unexpired Leases, including resolution of all Cure Disputes, and the allowance, classification, priority, compromise, estimation, or payment of Claims resulting therefrom;

(b) to determine any motion, adversary proceeding, proceeding, application, contested matter, and other litigated matter pending on or commenced after the Confirmation Date;

(c) to hear and resolve any disputes arising from or related to (i) any orders of the Bankruptcy Court granting relief under Bankruptcy Rule 2004 or (ii) any protective orders entered by the Bankruptcy Court in connection with the foregoing;

(d) to ensure that distributions to Holders of Allowed Claims are accomplished as provided for in this Plan and Confirmation Order and to adjudicate any and all disputes arising from or relating to distributions under this Plan;

(e) to consider the allowance, classification, priority, compromise, estimation, or payment of any Claim or any counterclaim related thereto;

(f) to enter, implement or enforce such orders as may be appropriate in the event the Confirmation Order is for any reason stayed, reversed, revoked, modified, or vacated;

(g) to issue injunctions, enter and implement other orders, and take such other actions as may be necessary or appropriate to restrain interference by any Person or Entity with the consummation, implementation, or enforcement of this Plan, the Confirmation Order, or any other order of the Bankruptcy Court;

(h) to hear and determine any application to modify this Plan in accordance with section 1127 of the Bankruptcy Code, to remedy any defect or omission or reconcile any inconsistency in

this Plan, or any order of the Bankruptcy Court, including the Confirmation Order, in such a manner as may be necessary to carry out the purposes and effects thereof;

- (i) to hear and determine all Professional Fee Claims;
- (j) to hear and determine disputes arising in connection with the interpretation, implementation, or enforcement of this Plan, the Plan Supplement, or the Confirmation Order or any agreement, instrument, or other document governing or relating to any of the foregoing;
- (k) to take any action and issue such orders as may be necessary to construe, interpret, enforce, implement, execute, and consummate this Plan;
- (l) to determine such other matters and for such other purposes as may be provided in the Confirmation Order;
- (m) to hear and determine matters concerning state, local, and federal taxes in accordance with sections 346, 505, and 1146 of the Bankruptcy Code (including any requests for expedited determinations under section 505(b) of the Bankruptcy Code);
- (n) to hear and determine matters concerning securities laws exemptions under section 1145 of the Bankruptcy Code;
- (o) to hear, adjudicate, decide, or resolve any and all matters related to Article X of this Plan, including the releases, discharge, exculpations, and injunctions issued thereunder;
- (p) to resolve disputes concerning Disputed Claims or the administration thereof;
- (q) to resolve any disputes concerning whether a Person or Entity had sufficient notice of the Chapter 11 Cases, the Disclosure Statement, any Solicitation conducted in connection with the Chapter 11 Cases, any Bar Date established in the Chapter 11 Cases, or any deadline for responding or objecting to a Cure Claim, in each case, for the purpose of determining whether a Claim or Interest is discharged hereunder or for any other purposes;
- (r) to hear and determine any other matters related hereto and not inconsistent with the Bankruptcy Code and title 28 of the United States Code;
- (s) to enter a final decree closing or dismissing, as applicable, the Chapter 11 Cases;
- (t) to recover all assets of the Debtors and property of the Debtors' Estates, wherever located; and
- (u) to hear and determine any rights, Claims, or Causes of Action held by or accruing to the Debtors pursuant to the Bankruptcy Code or pursuant to any federal statute or legal theory.

For the avoidance of doubt, on and after the Effective Date, the Bankruptcy Court shall not retain exclusive jurisdiction over any matters arising in connection with the Secured Exit Notes, the New 2027

Senior Secured Notes, or any transactions related thereto except to the extent the Bankruptcy Court would have jurisdiction over such matter pursuant to Articles 11.1(d), (e), or (k) of this Plan.

11.2. *Courts of Competent Jurisdiction.*

If the Bankruptcy Court abstains from exercising, or declines to exercise, jurisdiction or is otherwise without jurisdiction over any matter arising out of this Plan, such abstention, refusal, or failure of jurisdiction shall have no effect upon and shall not control, prohibit, or limit the exercise of jurisdiction by any other court having competent jurisdiction with respect to such matter.

ARTICLE XII.

MISCELLANEOUS PROVISIONS.

12.1. *Payment of Statutory Fees.*

On the Effective Date and thereafter as may be required, the Reorganized Debtors shall pay all fees incurred pursuant to sections 1911 through 1930 of chapter 123 of title 28 of the United States Code, together with interest, if any, pursuant to § 3717 of title 31 of the United States Code for each Debtor's case, or until such time as a final decree is entered closing a particular Debtor's case, a Final Order converting such Debtor's case to a case under chapter 7 of the Bankruptcy Code is entered, or a Final Order dismissing such Debtor's case is entered.

12.2. *Statutory Committee.*

On the Effective Date, the current and former members of the Committee, and their respective officers, employees, counsel, advisors and agents, will be released from all further authority, duties, responsibilities and obligations related to and arising from and in connection with the Chapter 11 Cases and the Committee will dissolve; provided that following the Effective Date, the Committee will continue in existence and have standing and a right to be heard for the limited purpose of (a) pursuing final fee applications Filed pursuant to this Plan and sections 330 and 331 of the Bankruptcy Code and (b) any appeals of the Confirmation Order. Following the completion of the Committee's limited remaining duty set forth above, the Committee will be dissolved, and the retention or employment of the Committee's respective attorneys, accountants, and other agents will terminate without further notice to, or action by, any Entity. Other than in connection with the limited purposes set forth in this Article 12.2(a) and (b), the Reorganized Debtors shall no longer be responsible for paying any fees or expenses incurred by the members of the Committee or the Committee Advisors after the Effective Date.

12.3. *Unsecured Notes Trustee Fees and Expenses and Priority Guaranteed Unsecured Notes Trustee Fees and Expenses.*

On the Effective Date, and after the Unsecured Notes Trustee's and Priority Guaranteed Unsecured Notes Trustee's submission of reasonably detailed summary invoices to the Debtors, in each case at least five (5) Business Days prior to the Effective Date, the Debtors or the Reorganized Debtors, as applicable,

shall pay such invoiced Unsecured Notes Trustee Fees and Expenses and Priority Guaranteed Unsecured Notes Trustee Fees and Expenses, respectively.

12.4. *Substantial Consummation of this Plan.*

On the Effective Date, this Plan shall be deemed to be substantially consummated under sections 1101 and 1127(b) of the Bankruptcy Code.

12.5. *Request for Expedited Determination of Taxes.*

The Debtors shall have the right to request an expedited determination under section 505(b) of the Bankruptcy Code with respect to tax returns filed, or to be filed, for any and all taxable periods ending after the Petition Date through the Effective Date, and in the case of any Debtor that is to be dissolved in accordance with the Transaction Steps Exhibit (if any) or otherwise, through the completion of its dissolution.

12.6. *Exemption from Certain Transfer Taxes.*

Pursuant to and to the fullest extent permitted by section 1146 of the Bankruptcy Code, (a) the issuance, transfer or exchange of any Securities, instruments or documents, (b) the creation, filing or recording of any Lien, mortgage, deed of trust, or other Security interest, (c) the making, assignment, filing or recording of any lease or sublease or the making or delivery of any deed, bill of sale, assignment or other instrument of transfer under, pursuant to, in furtherance of, or in connection with this Plan, including any deeds, bills of sale, or assignments executed in connection with any of the Transactions contemplated under this Plan or the reinvesting, transfer, or sale of any real or personal property of the Debtors pursuant to, in implementation of, or as contemplated in this Plan and, if applicable, Transaction Steps Exhibit (whether to one or more of the Reorganized Debtors or otherwise), and (d) the issuance, renewal, modification, or securing of indebtedness by such means, and the making, delivery, or recording of any deed or other instrument of transfer under, in furtherance of, or in connection with, this Plan, including the Confirmation Order, shall constitute a “transfer under a plan” within the purview of section 1146 of the Bankruptcy Code and shall not be subject to or taxed under any law imposing any stamp or similar tax, including any document recording tax, conveyance fee, mortgage tax, real estate transfer tax, mortgage recording tax, Uniform Commercial Code filing or recording fee, regulatory filing or recording fee, sales tax, use tax, or other similar governmental assessment. Consistent with the foregoing, each recorder of deeds or similar official for any county, city, or Governmental Unit in which any instrument hereunder is to be recorded shall, pursuant to the Confirmation Order, be ordered and directed to accept such instrument without requiring the payment of any filing fees, documentary stamp tax, deed stamps, transfer tax, intangible tax, or other stamp or similar taxes.

12.7. *Amendments.*

(a) *Plan Modifications.* This Plan may be amended, modified, or supplemented by the Debtors, in consultation with the Committee Advisors, in the manner provided for by section 1127 of the Bankruptcy Code or as otherwise permitted by law without additional disclosure pursuant to section 1125 of the Bankruptcy Code. In addition, after the Confirmation Date, so long as such action does not materially and adversely affect the treatment of Holders of Allowed Claims or Interests pursuant to this Plan, the Debtors may remedy any defect or omission or reconcile any inconsistencies in this Plan or the Confirmation Order with respect to such matters as may be necessary to carry out the purposes of effects of this Plan, and any Holder of a Claim or Interest that has accepted this Plan shall be deemed to have accepted this Plan as amended, modified, or supplemented.

(b) *Other Amendments.* Before the Effective Date, the Debtors, in consultation with the Committee Advisors, may make technical adjustments and modifications to this Plan and the documents contained in the Plan Supplement without further order or approval of the Bankruptcy Court.

12.8. *Effectuating Documents and Further Transactions.*

Each of the officers of the Reorganized Debtors is authorized, in accordance with his or her authority under the resolutions of the applicable board of directors, trustees, or managers, to execute, deliver, File, or record such contracts, instruments, releases, indentures, and other agreements or documents and take such actions as may be necessary or appropriate to effectuate and further evidence the terms and conditions of this Plan.

12.9. *Revocation or Withdrawal of this Plan.*

The Debtors reserve the right to revoke or withdraw this Plan prior to the Effective Date as to any or all of the Debtors. If, with respect to a Debtor, this Plan has been revoked or withdrawn prior to the Effective Date, or if Confirmation or the occurrence of the Effective Date as to such Debtor does not occur on the Effective Date, then, with respect to such Debtor: (a) this Plan shall be null and void in all respects; (b) any settlement or compromise embodied in this Plan (including the fixing or limiting to an amount any Claim or Interest or Class of Claims or Interests), assumption of Executory Contracts or Unexpired Leases affected by this Plan, and any document or agreement executed pursuant to this Plan shall be deemed null and void; and (c) nothing contained in this Plan shall: (i) constitute a waiver or release of any Claim by or against, or any Interest in, such Debtor or any other Entity; (ii) prejudice in any manner the rights of such Debtor or any other Entity; or (iii) constitute an admission of any sort by any Debtor or any other Entity.

12.10. *Severability of Plan Provisions.*

If, before the entry of the Confirmation Order, any term or provision of this Plan is held by the Bankruptcy Court to be invalid, void, or unenforceable, the Bankruptcy Court, at the request of the Debtors, shall have the power to alter and interpret such term or provision to make it valid or enforceable to the maximum extent practicable, consistent with the original purpose of the term or provision held to be invalid, void, or unenforceable, and such term or provision shall then be applicable as altered or interpreted. Notwithstanding any such holding, alteration, or interpretation, the remainder of the terms and provisions of this Plan will remain in full force and effect and will in no way be affected, impaired, or invalidated by such holding, alteration, or interpretation. The Confirmation Order shall constitute a judicial determination and shall provide that each term and provision of this Plan, as it may have been altered or interpreted in accordance with the foregoing, is (a) valid and enforceable pursuant to its terms, (b) integral to this Plan and may not be deleted or modified without the consent of the Debtors or the Reorganized Debtors (as the case may be), and (c) non-severable and mutually dependent.

12.11. *Governing Law.*

Except to the extent that the Bankruptcy Code or other federal law is applicable, or to the extent an exhibit hereto or a Definitive Document provides otherwise, the rights, duties, and obligations arising under

this Plan shall be governed by, and construed and enforced in accordance with, the laws of the State of New York, without giving effect to the principles of conflict of laws thereof.

12.12. ***Time.***

In computing any period of time prescribed or allowed by this Plan, unless otherwise set forth herein or determined by the Bankruptcy Court, the provisions of Bankruptcy Rule 9006 shall apply.

12.13. ***Dates of Actions to Implement this Plan.***

In the event that any payment or act under this Plan is required to be made or performed on a date that is on a Business Day, then the making of such payment or the performance of such act may be completed on or as soon as reasonably practicable after the next succeeding Business Day, but shall be deemed to have been completed as of the required date.

12.14. ***Immediate Binding Effect.***

Notwithstanding any Bankruptcy Rule providing for a stay of the Confirmation Order or Plan, including Bankruptcy Rules 3020(e), 6004(h), 7062, or otherwise, upon the occurrence of the Effective Date, the terms of this Plan and Plan Supplement shall be immediately effective and enforceable and deemed binding upon and inure to the benefit of the Debtors, the Holders of Claims and Interests, the Released Parties, and each of their respective successors and assigns, including the Reorganized Debtors, all Entities that are parties to or are subject to the settlements, compromises, releases, and injunctions described in this Plan, and any and all non-Debtor parties to Executory Contracts and Unexpired Leases with the Debtors. All Claims shall be as fixed, adjusted, or compromised, as applicable, pursuant to this Plan regardless of whether any Holder of a Claim, Interest, or debt has voted on this Plan.

12.15. ***Deemed Acts.***

Subject to and conditioned on the occurrence of the Effective Date, whenever an act or event is expressed under this Plan to have been deemed done or to have occurred, it shall be deemed to have been done or to have occurred without any further act by any party, by virtue of this Plan and the Confirmation Order.

12.16. ***Successor and Assigns.***

The rights, benefits, and obligations of any Entity named or referred to in this Plan shall be binding on, and shall inure to the benefit of any heir, executor, administrator, successor, or permitted assign, if any, of each Entity.

12.17. ***Entire Agreement.***

On the Effective Date, this Plan, the Plan Supplement, and the Confirmation Order shall supersede all previous and contemporaneous negotiations, promises, covenants, agreements, understandings, and representations on such subjects, all of which have become merged and integrated into this Plan.

12.18. *Exhibits to Plan.*

All exhibits, schedules, supplements, and appendices to this Plan (including the Plan Supplement) are incorporated into and are a part of this Plan as if set forth in full herein.

12.19. *Notices.*

All notices, requests, and demands to or upon the Debtors to be effective shall be in writing (including by electronic transmission) and, unless otherwise expressly provided herein, shall be deemed to have been duly given or made when actually delivered or addressed as follows:

- (a) if to the Debtors or the Reorganized Debtors:

Office Properties Income Trust
Two Newton Place, 255 Washington Street, Suite 300
Newton, MA 02458-1634
Yael Duffy (yduffy@rmrgroup.com)
Brian Donley (bdonley@rmrgroup.com)

with a copy (which will not constitute notice) to:

Latham & Watkins LLP
1271 Avenue of the Americas
New York, NY 10020
Ray C. Schrock (ray.schrock@lw.com)
Andrew Parlen (andrew.parlen@lw.com)
Anupama Yerramalli (anu.yerramalli@lw.com)
Ashley Gherlone Pezzi (ashley.pezzi@lw.com)
Anthony R. Joseph (anthony.joseph@lw.com)

Hunton Andrews Kurth LLP
600 Travis Street, Suite 4200
Houston, TX 77002
Timothy A. ("Tad") Davidson II (taddavidson@hunton.com)
Ashley L. Harper (ashleyharper@hunton.com)

- (b) if to the Secured Credit Facility Ad Hoc Group, to:

Jones Day
250 Vesey Street
New York, NY 10281
Benjamin Rosenblum (brosenblum@jonesday.com)
David I. Paulson (dipaulson@jonesday.com)

- (c) if to the March 2029 Ad Hoc Group, to:

Paul, Weiss, Rifkind, Wharton & Garrison LLP
1285 Avenue of the Americas
New York, NY 10011
Sung Pak (spak@paulweiss.com)
Robert A. Britton (rbritton@paulweiss.com)

William A. Clareman (wclareman@paulweiss.com)
Lucian Wang (lwang@paulweiss.com)

- (d) if to 2027 Ad Hoc Group, to:

Milbank LLP
55 Hudson Yards
New York, NY 10001
Abhilash M. Raval (araval@milbank.com)
Michael Price (mprice@milbank.com)
Casey T. Fleck (cfleck@milbank.com)
Brian Kinney (bkinney@milbank.com)

- (e) if to the September 2029 Ad Hoc Group, to:

White & Case LLP
1221 Avenue of the Americas
New York, NY 10020
Brian Pfeiffer (brian.pfeiffer@whitecase.com)
Aaron Colodny (aaron.colodny@whitecase.com)
Rob Bennett (rbennett@whitecase.com)
Adam Swingle (adam.swingle@whitecase.com)
Andrew Costello (andrew.costello@whitecase.com)

- (f) if to the Subsequent September 2029 Senior Secured Notes Trustee, to:

Herbert Smith Freehills Kramer (US) LLP
1177 Avenue of the Americas
New York, NY 10036
Alexander Woolverton (alexander.woolverton@hsfkramer.com)
Andrew Citron (andrew.citron@hsfkramer.com)

- (g) if to the Unsecured Notes Ad Hoc Group, to:

Glenn Agre Bergman & Fuentes LLP
1185 Avenue of the Americas
New York, New York 10036
Andrew K. Glenn (aglen@glenngre.com)
Kurt A. Mayr (kmayr@glenngre.com)
Rich Ramirez (rramirez@glenngre.com)

- (h) if to RMR, to:

The RMR Group LLC
Two Newton Place, 255 Washington Street, Suite 300
Newton, MA 02458-1634
Adam Portnoy (APortnoy@rmrgroup.com)
Lindsey Getz (Lindsey.Getz@rmrgroup.com)

with a copy (which will not constitute notice) to:

Wachtell, Lipton, Rosen & Katz
51 West 52nd Street
New York, NY 10019
Scott K. Charles (SKCharles@wlrk.com)
Neil M. Snyder (NMSnyder@wlrk.com)
Angela K. Herring (AKHerring@wlrk.com)

- (i) if to the Committee, to:

Willkie Farr & Gallagher LLP
787 Seventh Avenue
New York, NY 10019
Brett Miller (bmiller@willkie.com)
Paul Labov (plabov@willkie.com)
Todd Goren (tgoren@willkie.com)
James Burbage (jburbage@willkie.com)
Jennifer Hardy (jhardy2@willkie.com)

After the Effective Date, the Debtors have authority to send a notice to Entities providing that, to continue to receive documents pursuant to Bankruptcy Rule 2002, they must File a renewed request to receive documents pursuant to Bankruptcy Rule 2002. After the Effective Date, the Debtors are authorized to limit the list of Entities receiving documents pursuant to Bankruptcy Rule 2002 to those Entities who have Filed such renewed requests.

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Dated: March 16, 2026
Chicago, Illinois

Respectfully submitted,

By: /s/ John R. Castellano

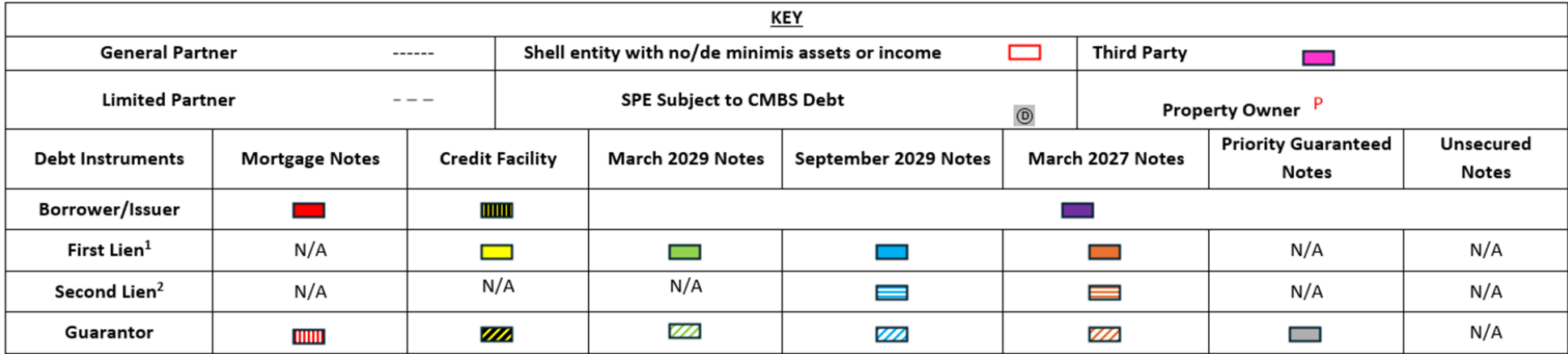
Name: John R. Castellano
Title: Chief Restructuring Officer

On behalf of Office Properties Income Trust and its
Debtor Affiliates

Exhibit B

Organizational Structure

**Office Properties Income Trust
(MD)**

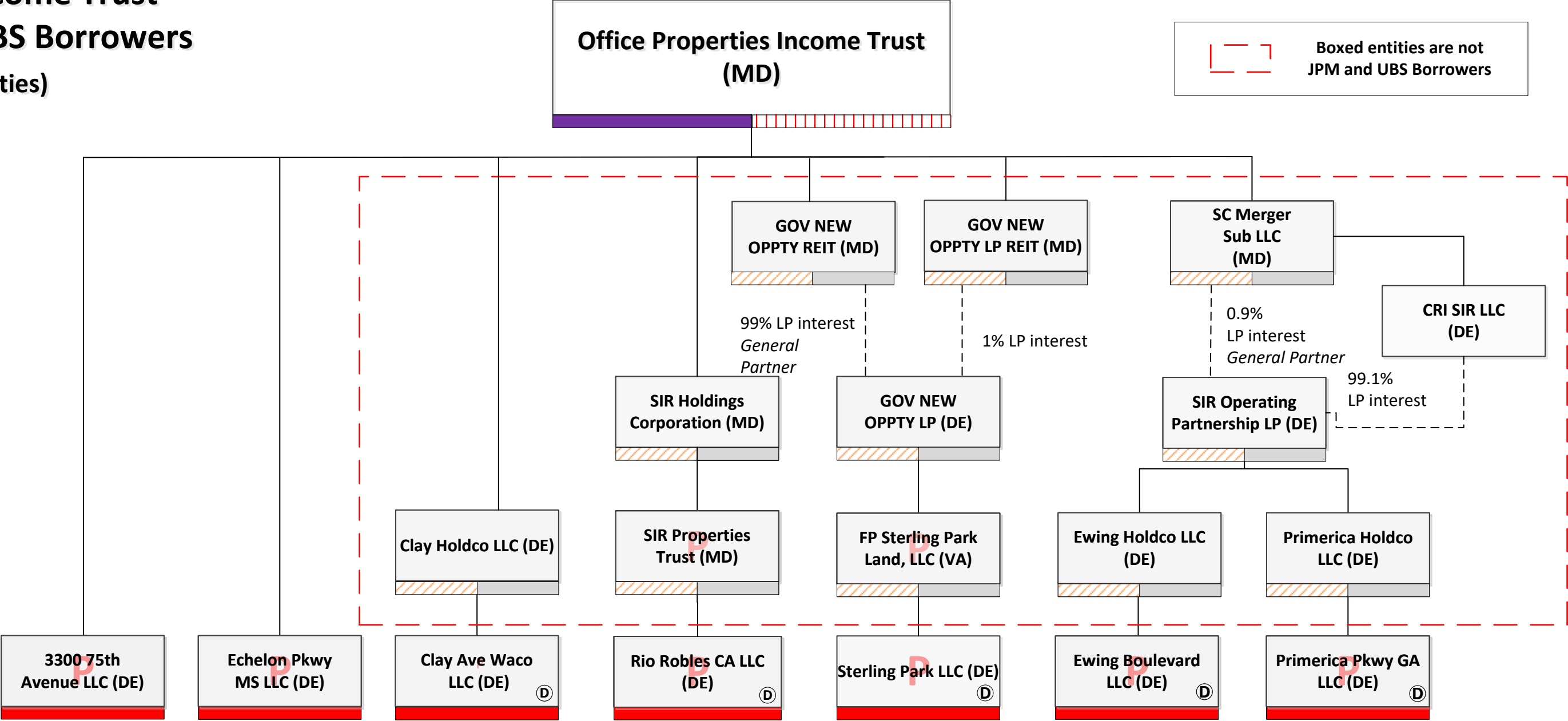


² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Exhibit B-1

JPM Borrowers and UBS Borrowers

Office Properties Income Trust
JPM Borrowers and UBS Borrowers
(Non-Debtor Entities)



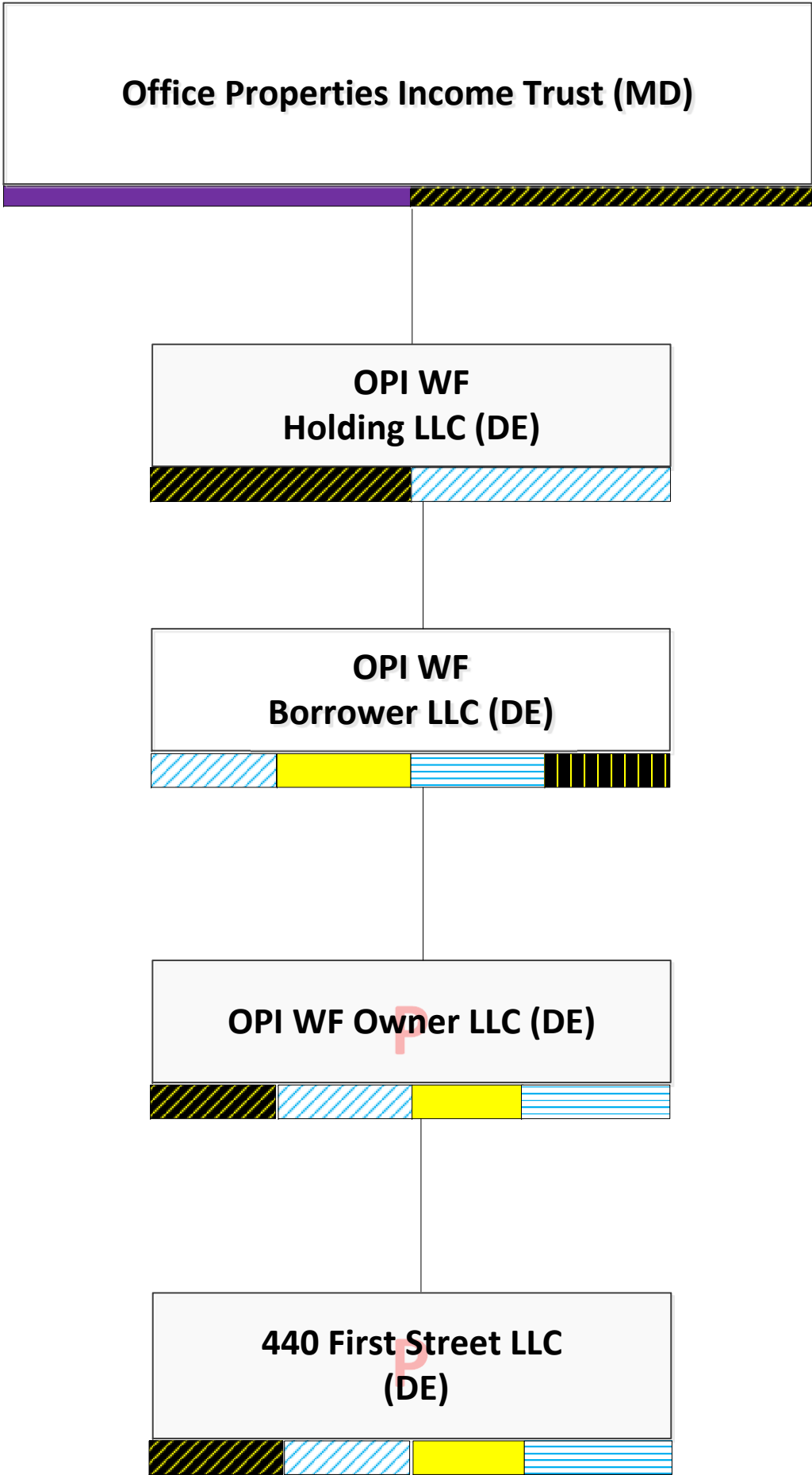
KEY			
Limited Partner ---		SPE Subject to CMBS Debt ⓓ	Property Owner P
Debt Instruments	Mortgage Notes	March 2027 Notes	Priority Guaranteed Notes
Borrower/Issuer			
First Lien ¹	N/A		N/A
Second Lien ²	N/A		N/A
Guarantor			

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.
² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Exhibit B-2

Credit Agreement Obligors

Office Properties Income Trust
Credit Agreement Obligors



KEY		
Property Owner P		
Debt Instruments	Credit Facility	September 2029 Notes
Borrower/Issuer		
First Lien ¹		
Second Lien ²	N/A	
Guarantor		

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.
² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Exhibit B-3

March 2029 Senior Secured Notes Subsidiary Guarantors

Office Properties Income Trust
March 2029 Notes Subsidiary Guarantors

KEY		
Property Owner P		
Debt Instruments	March 2029 Notes	March 2027 Notes
Borrower/Issuer	P	
First Lien ¹	■	■
Second Lien ²	N/A	■
Guarantor	■	■

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.
² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

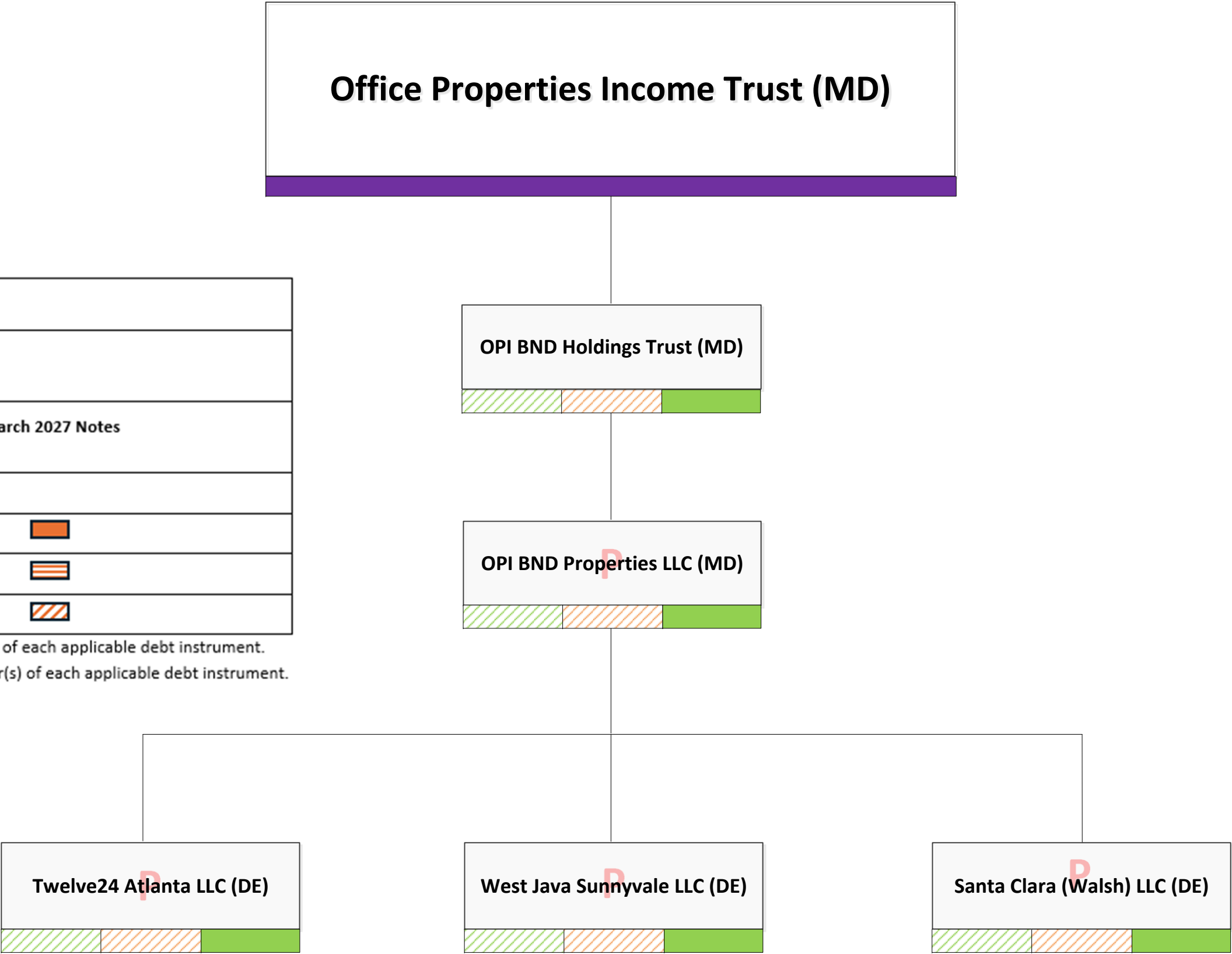
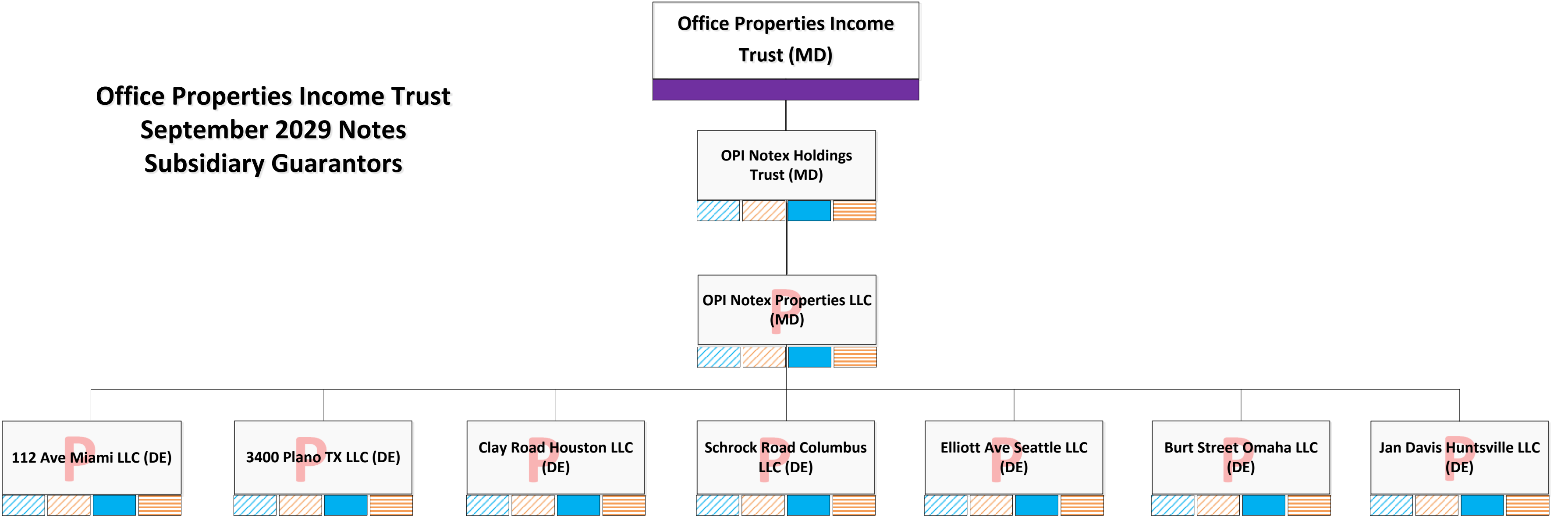


Exhibit B-4

September 2029 Senior Secured Notes Subsidiary Guarantors

Office Properties Income Trust
September 2029 Notes
Subsidiary Guarantors



KEY		
Property Owner		
Debt Instruments	September 2029 Notes	March 2027 Notes
Borrower/Issuer		
First Lien ¹		
Second Lien ²		
Guarantor		

¹ Each symbol set forth in this row indicates the first lien security interest held by holder(s) of each applicable debt instrument.

² Each symbol set forth in this row indicates the second lien security interest held by holder(s) of each applicable debt instrument.

Exhibit B-5

2027 Senior Secured Notes Obligors

Office Properties Income Trust
March 2027 Notes Obligors

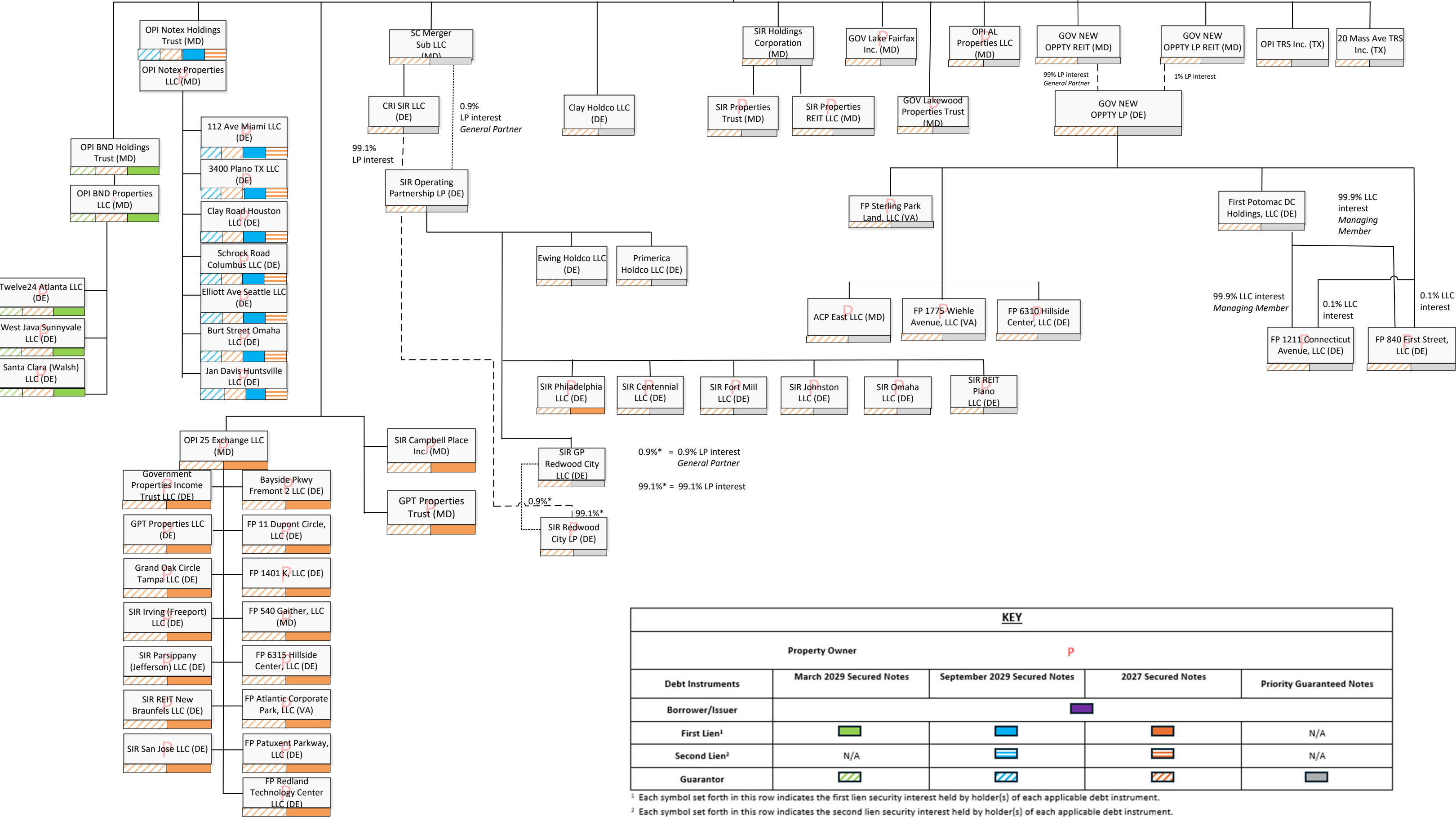


Exhibit C

Liquidation Analysis

LIQUIDATION ANALYSIS¹

Introduction

Under the “best interests” of creditors test (the “**Best Interests Test**”) set forth in section 1129(a)(7) of the Bankruptcy Code, the Bankruptcy Court may not confirm a plan of reorganization unless the plan provides each holder of an Allowed Claim or Interest who does not otherwise vote in favor of the plan with property of a value, as of the effective date of the plan, that is not less than the amount that such holder would receive or retain on account of such Allowed Claim or Interest if the debtor was liquidated under chapter 7 of the Bankruptcy Code. *See* 11 U.S.C. § 1129(a)(7).

Accordingly, to demonstrate that the Plan satisfies the Best Interests Test, the Debtors, with the assistance of their restructuring advisors, AP Services, LLC, have prepared this hypothetical liquidation analysis (the “**Liquidation Analysis**”), which is based upon certain assumptions discussed in the Disclosure Statement and the accompanying notes to this Liquidation Analysis.

This Liquidation Analysis sets forth an estimated range of recovery values for each Class of Claims and Interests upon disposition of assets pursuant to a hypothetical chapter 7 liquidation. As illustrated by this Liquidation Analysis, (a) Holders of Claims in certain Unimpaired Classes that would otherwise receive a full recovery under the Plan would receive an equal or lower recovery in a hypothetical liquidation and (b) Holders of Claims or Interests in Impaired Classes would receive a lower recovery in a hypothetical liquidation than they would under the Plan. Further, no Holder of a Claim or Interest would receive or retain property under the Plan of a value that is less than such Holder would receive in a chapter 7 liquidation. Accordingly, and as set forth in greater detail below, the Debtors believe that the Plan satisfies the Best Interests Test. The Debtors believe that this Liquidation Analysis and the conclusions set forth herein are fair and represent the Debtors’ best judgment regarding the results of a liquidation of the Debtors under chapter 7 of the Bankruptcy Code.

Statement of Limitations

The preparation of a liquidation analysis is an uncertain process involving the use of estimates and assumptions that, although considered reasonable by the Debtors based upon their business judgment and input from their advisors, are inherently subject to significant business, economic, and competitive risks, uncertainties and contingencies, most of which are difficult to predict and many of which are beyond the control of the Debtors, their management, and their advisors. Inevitably, some assumptions in the Liquidation Analysis would not materialize in an actual chapter 7 liquidation, and unanticipated events and circumstances could materially affect the ultimate results in an actual chapter 7 liquidation. The Liquidation Analysis was prepared for the sole purpose of generating a reasonable, good faith estimate of the proceeds that would be generated, and the recoveries that would result, if the Debtors’ assets were liquidated in accordance with chapter 7 of the Bankruptcy Code after conversion of the Chapter 11 Cases. The Liquidation Analysis is not intended and should not be used for any other purpose. The underlying financial information in the Liquidation Analysis and values stated herein have not been subject to any review, compilation, or audit by any independent accounting firm. Other than for the properties in the 2027 Senior Secured Notes Claims silo (as discussed below), independent appraisals were not obtained in preparing the Liquidation Analysis. In addition, various liquidation decisions upon which certain assumptions are based are subject to change. As a result, the actual amount of Claims that would ultimately be allowed against the Estates could vary significantly from the estimates

¹ Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in (a) the *Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates* (the “**Plan**”) or (b) the *Disclosure Statement for Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates* (the “**Disclosure Statement**”).

stated herein, depending on the nature and amount of Claims asserted during the pendency of the hypothetical chapter 7 case. Similarly, the value of the Debtors' assets in a liquidation scenario is uncertain and could vary significantly from the values set forth in the Liquidation Analysis.

The Debtors' estimates of Allowed Claims and Interests contained in the Liquidation Analysis reference specific Claims estimates, even though the Debtors' estimates of ranges of projected recoveries under the Plan to Holders of Allowed Claims and Interests are based on ranges of Allowed Claims and Interests. In addition, the cessation of business in a chapter 7 liquidation is likely to trigger certain Claims that otherwise would not exist under a Plan absent a liquidation. These additional Claims could be significant, and some may be administrative expenses, while others may be entitled to priority in payment over General Unsecured Claims.

The Liquidation Analysis does not include estimates for: (i) the tax consequences, either foreign or domestic, that may be triggered upon the liquidation and sale of assets, (ii) potential employee Claims that may arise for such items as severance and potential WARN Act liabilities, (iii) recoveries resulting from any potential preference, fraudulent transfer, or other litigation or Avoidance Actions, (iv) certain Claims that may be entitled to priority under the Bankruptcy Code, including administrative priority Claims under sections 503(b) and 507(b) of the Bankruptcy Code, (v) environmental or other governmental Claims arising from the shut-down or sale of the Debtors' assets, (vi) additional unsecured and contract and lease breakage Claims arising from a chapter 7 liquidation, (vii) uncertain immaterial tax claims, (viii) incremental severance claims that could arise from RMR related to the termination of RMR employees who perform work fully or partially for the Debtors, or (ix) the negative consequences of potential tenant or operational disruptions that may occur as a result of the liquidation process. More specific assumptions are detailed in the notes below. ACCORDINGLY, NEITHER THE DEBTORS NOR THEIR ADVISORS MAKE ANY REPRESENTATION OR WARRANTY THAT THE ACTUAL RESULTS OF A LIQUIDATION OF THE DEBTORS WOULD OR WOULD NOT, IN WHOLE OR IN PART, APPROXIMATE THE ESTIMATES AND ASSUMPTIONS REPRESENTED HEREIN. THE ACTUAL LIQUIDATION VALUE OF THE DEBTORS IS SPECULATIVE AND RESULTS COULD VARY MATERIALLY FROM ESTIMATES PROVIDED HEREIN.

In preparing the Liquidation Analysis, the Debtors estimated Allowed Claims based upon a review of the Debtors' financial statements to account for other known liabilities, as necessary. In addition, the Liquidation Analysis includes estimates for Claims not currently asserted in the Chapter 11 Cases, but which could be asserted and allowed in a chapter 7 liquidation, including unpaid chapter 11 Administrative Claims, and administrative Claims for costs and expenses in a chapter 7 liquidation such as wind down costs and the Trustee Fees (as defined below) (together, the "**Wind-Down Expenses**"). To date, the Bankruptcy Court has not estimated or otherwise fixed the total amount of Allowed Claims used for purposes of preparing this Liquidation Analysis. Therefore, the Debtors' estimate of Allowed Claims set forth in this Liquidation Analysis should not be relied on for any other purpose, including determining the value of any distribution to be made on account of Allowed Claims and Interests under the Plan. NOTHING CONTAINED IN THE LIQUIDATION ANALYSIS IS INTENDED TO BE OR CONSTITUTES A CONCESSION OR ADMISSION OF THE DEBTORS. THE ACTUAL AMOUNT OF ALLOWED CLAIMS IN THE CHAPTER 11 CASES COULD MATERIALLY DIFFER FROM THE ESTIMATED AMOUNTS SET FORTH IN THE LIQUIDATION ANALYSIS.

Basis of Presentation

This Liquidation Analysis has been prepared assuming that the Debtors converted their current Chapter 11 Cases to cases under chapter 7 of the Bankruptcy Code on or about April 30, 2026 (the "**Liquidation Date**"). Except as otherwise noted herein, this Liquidation Analysis is based upon the estimated assets and liabilities as of the Liquidation Date. It is assumed that on the Liquidation Date, the Bankruptcy Court would appoint a chapter 7 trustee (the "**Trustee**") to oversee the liquidation of the Debtors' estates, during which time all of the assets of the Debtors would be sold as operating properties such that no additional general unsecured claims are generated. Thus, the cash

proceeds, net of liquidation-related costs, would then be distributed to creditors in accordance with applicable law: (i) **first**, for payment of post-conversion expenses and other chapter 7 administrative claims; (ii) **second**, to pay pre-conversion superpriority administrative claims, including postpetition intercompany payables, (iii) **third**, to pay the secured portions of all Allowed Secured Claims (including the Mortgage Debt Guarantee Claims, Secured Credit Facility Claims, March 2029 Senior Secured Notes Claims, September 2029 Senior Secured Notes Claims, 2027 Senior Secured Notes Claims, and the DIP Claims) from the respective first and second lien collateral. Any remaining net cash would be distributed to creditors holding unsecured claims including Priority Guaranteed Unsecured Notes Claims, Unsecured Notes Claims, Parent General Unsecured Claims, Subsidiary General Unsecured Claims and any applicable deficiency Claims that arise to the extent of the unsecured portion of the Allowed Secured Claims. Certain factors, such as an inability by the Debtors or the Trustee to maintain the Debtors' operations during the Liquidation Process (as defined below), a seizure of collateral by secured creditors, and/or delays in the Liquidation Process, may limit the amount of the proceeds generated by the liquidation of the Debtors' assets. These factors could materially reduce the value, on a "present value" basis, of the liquidation proceeds and yield significantly lower recoveries than those estimated in this Liquidation Analysis.

The Liquidation Analysis has been prepared assuming that the Debtors' current Chapter 11 Cases convert to chapter 7 on the Liquidation Date. This Liquidation Analysis assumes operations of the Debtors and Non-Debtor Affiliates will continue and the related individual assets will be sold in a sale under a nine-month liquidation process (the "**Liquidation Process**") under the direction of the Trustee, utilizing the Debtors' resources, third-party management firm and other third-party advisors, to allow for the orderly wind down of the Debtors' estates, including the assumption that all properties would be liquidated in a six-month time-frame but the ultimate wind-down of the operations would require an additional three-months. There can be no assurance that the liquidation would be completed in this limited time frame, nor is there any assurance that the recoveries assigned to the assets would in fact be realized. Under Section 704 of the Bankruptcy Code, a trustee must, among other duties, collect and convert the property of the estate as expeditiously (generally in a distressed process) as is compatible with the best interests of parties-in-interest. This Liquidation Analysis is also based on the assumptions that: (i) the Debtors have continued access to cash collateral during the course of the Liquidation Process to fund Wind-Down Expenses and (ii) RMR continues to manage the properties during the Liquidation Process and the operations, accounting, treasury, IT, and other management services needed to wind down the estates continue. This Liquidation Analysis was prepared on a by-entity basis and is displayed below according to the various collateral packages, consolidated by creditor silo for convenience. Asset recoveries accrue first to satisfy creditor Claims at the creditor silo in which liabilities have been incurred. To the extent any remaining value exists, it flows to each individual creditor silo's parent silo/entity/organization or appropriate shareholder.

The Liquidation Analysis assumes that net proceeds from the sale of the assets will be distributed in accordance with section 726 of the Bankruptcy Code, and no distributions will be made to holders of equity interests until all creditors

are satisfied in full. Certain assets are not part of every creditor's collateral, and the estimated recoveries for assets have been segregated and made available to the applicable holders of Claims.

LIQUIDATION ANALYSIS

This Liquidation Analysis for the Debtors was analyzed on an entity-by-entity basis. The following table provides a summary of the Liquidation Analysis for the Debtors, which should be reviewed in conjunction with the associated notes.

Low Recovery Scenario:

First Lien Collateral Pool: (in \$ thousands)	Mortgage Debt Guarantees	Secured Credit Facility	March 2029 Senior Secured Notes	September 2029 Senior Secured Notes	2027 Senior Secured Notes	Unencumbered Assets	Office Properties Income Trust
Building Count	7	19	17	19	35	25	na
Gross Property Value	[A] \$ 198,628	\$ 540,700	\$ 349,441	\$ 363,659	\$ 530,240	\$ 197,572	\$ -
Liquidated Property Value	[B] 148,971	378,490	244,609	218,195	318,144	108,665	-
Real Estate Broker Fees	[C] (4,469)	(11,355)	(7,338)	(6,546)	(9,544)	(3,260)	-
Net Property Value	\$ 144,502	\$ 367,135	\$ 237,270	\$ 211,650	\$ 308,600	\$ 105,405	\$ -
Chapter 7 Trustee Fees	[D] (2,890)	(7,343)	(4,745)	(4,233)	(6,172)	(2,108)	-
Professional Fees	[D] (3,613)	(9,178)	(5,932)	(5,291)	(7,715)	(2,635)	-
Cash	[E] -	970	-	-	2,589	10,754	35,112
Distributable Value Before Admin Interco.	\$ 138,000	\$ 351,584	\$ 226,593	\$ 202,125	\$ 297,302	\$ 111,416	\$ 35,112
Administrative Intercompany Claim (Excess Value) / Equity in Subsidiaries	[F] - (242)	- -	(903) -	(41,324) -	(23,284) -	(2,196) 242	67,707
Distributable Value	\$ 137,758	\$ 351,584	\$ 225,690	\$ 160,801	\$ 274,018	\$ 109,461	\$ 102,819
1L Claims							
Mortgage Debt Guarantee Claims	[G] \$ 181,802						
Secured Credit Facility Claims		\$ 425,000					
March 2029 Senior Secured Notes Claims	[H]		\$ 321,647				
September 2029 Senior Secured Notes Claims	[I]			\$ 672,105			
2027 Senior Secured Notes Claims	[J]				\$ 442,556		
DIP Claims	[K]					\$ 146,064	\$ 146,064
Total 1L Claims	\$ 181,802	\$ 425,000	\$ 321,647	\$ 672,105	\$ 442,556	\$ 146,064	\$ 146,064
1L Claim Recovery	137,758	351,584	225,690	160,801	274,018	75,317	70,747
2L Claims							
September 2029 Senior Secured Notes Claims		\$ 672,105					
2027 Senior Secured Notes Claims				\$ 442,556			
Total 2L Claims	\$ -	\$ 672,105	\$ -	\$ 442,556	\$ -	\$ -	\$ -
2L Claim Recovery	-	-	-	-	-	-	-
Unsecured Claims							
Priority Guaranteed Unsecured Notes Claims	[M]					\$ 14,728	\$ 14,728
Unsecured Notes Claims							482,039
Parent General Unsecured Claims							697
Subsidiary General Unsecured Claims		551	243	296	510	515	
Deficiency Claims			442,556			442,556	2,034,497
Total Unsecured Claims	\$ -	\$ 551	\$ 442,799	\$ 296	\$ 510	\$ 457,799	\$ 2,531,960
Unsecured Claim Recovery						34,144	32,072
Total Recovery by Claim							
Mortgage Debt Guarantee	\$ 181,802	\$ 139,951					77.0%
Secured Credit Facility	425,000	356,968					84.0%
March 2029 Senior Secured Notes	321,647	229,765					71.4%
September 2029 Senior Secured Notes	672,105	169,315					25.2%
2027 Senior Secured Notes	442,556	312,665					70.6%
DIP	146,064	146,064					100.0%
Priority Guaranteed Unsecured Notes	14,728	1,286					8.7%
Unsecured Notes	482,039	6,106					1.3%
Parent General Unsecured Claims	697	9					1.3%
Subsidiary General Unsecured Claims	2,115	3					0.2%
Total Recovery	\$ 2,688,752	\$ 1,362,132					50.7%

High Recovery Scenario:

First Lien Collateral Pool: (in \$ thousands)		Mortgage Debt Guarantees	Secured Credit Facility	March 2029 Senior Secured Notes	September 2029 Senior Secured Notes	2027 Senior Secured Notes	Unencumbered Assets	Office Properties Income Trust
Building Count		7	19	17	19	35	25	na
Gross Property Value	[A]	\$ 223,528	\$ 608,481	\$ 393,246	\$ 407,617	\$ 530,240	\$ 217,128	\$ -
Liquidated Property Value	[B]	178,822	456,360	294,934	264,951	344,656	130,277	-
Real Estate Broker Fees	[C]	(5,365)	(13,691)	(8,848)	(7,949)	(10,340)	(3,908)	-
Net Property Value		\$ 173,458	\$ 442,670	\$ 286,086	\$ 257,003	\$ 334,316	\$ 126,369	\$ -
Chapter 7 Trustee Fees	[D]	(3,469)	(8,853)	(5,722)	(5,140)	(6,686)	(2,527)	-
Professional Fees	[D]	(4,336)	(11,067)	(7,152)	(6,425)	(8,358)	(3,159)	-
Cash	[E]	-	970	-	-	2,589	10,754	35,112
Distributable Value Before Admin Interco.		\$ 165,652	\$ 423,720	\$ 273,212	\$ 245,437	\$ 321,861	\$ 131,436	\$ 35,112
Administrative Intercompany Claim	[F]	-	-	(903)	(41,324)	(23,284)	(2,196)	67,707
(Excess Value) / Equity in Subsidiaries		(2,016)	-	-	-	-	2,016	-
Distributable Value		\$ 163,636	\$ 423,720	\$ 272,309	\$ 204,113	\$ 298,577	\$ 131,257	\$ 102,819
1L Claims								
Mortgage Debt Guarantee Claims	[G]	\$ 181,802						
Secured Credit Facility Claims	[H]		\$ 425,000					
March 2029 Senior Secured Notes Claims	[I]			\$ 321,647				
September 2029 Senior Secured Notes Claims	[J]				\$ 672,105			
2027 Senior Secured Notes Claims	[K]					\$ 366,201		
DIP Claims	[L]						\$ 146,064	\$ 146,064
Total 1L Claims		\$ 181,802	\$ 425,000	\$ 321,647	\$ 672,105	\$ 366,201	\$ 146,064	\$ 146,064
1L Claim Recovery		163,636	423,720	272,309	204,113	298,577	81,904	64,160
2L Claims								
September 2029 Senior Secured Notes Claims			\$ 672,105					
2027 Senior Secured Notes Claims					\$ 366,201			
Total 2L Claims		\$ -	\$ 672,105	\$ -	\$ 366,201	\$ -	\$ -	\$ -
2L Claim Recovery		-	-	-	-	-	-	-
Unsecured Claims [M]								
Priority Guaranteed Unsecured Notes Claims							\$ 14,728	\$ 14,728
Unsecured Notes Claims								482,039
Parent General Unsecured Claims								697
Subsidiary General Unsecured Claims			551	243	296	510	515	
Deficiency Claims				366,201			366,201	1,602,702
Total Unsecured Claims		\$ -	\$ 551	\$ 366,444	\$ 296	\$ 510	\$ 381,444	\$ 2,100,166
Unsecured Claim Recovery							49,352	38,660
Total Recovery by Claim								
		Claim	Recovery \$	Recovery %				
Mortgage Debt Guarantee	\$	181,802	\$ 166,824	91.8%				
Secured Credit Facility		425,000	425,000	100.0%				
March 2029 Senior Secured Notes		321,647	278,230	86.5%				
September 2029 Senior Secured Notes		672,105	216,486	32.2%				
2027 Senior Secured Notes		366,201	352,756	96.3%				
DIP		146,064	146,064	100.0%				
Priority Guaranteed Unsecured Notes		14,728	2,179	14.8%				
Unsecured Notes		482,039	8,873	1.8%				
Parent General Unsecured Claims		697	13	1.8%				
Subsidiary General Unsecured Claims		2,115	7	0.3%				
Total Recovery	\$	2,612,397	\$ 1,596,431	61.1%				

Notes to the Liquidation Analysis**Asset Recovery Estimates**

[A] Gross Property Value: Gross property value was informed by various sources of information depending on, among other things, the specific collateral pool and property, as well as the Debtors' current intended use, transfer, or other disposition of the applicable collateral pool and property. The Debtors' advisors arrived at a valuation of \$1.65 billion to \$1.85 billion for the collateral maintained in all silos including the non-Debtor Mortgage Debt properties but excluding the 2027 Senior Secured Notes First Lien Collateral; this value was allocated among the properties. Further, within the \$1.65 billion to \$1.85 billion range, the Debtors provided specific estimates for certain properties that are current disposition targets and those estimates were then removed from the \$1.65 billion to \$1.85 billion range so the remaining value could be allocated to the remaining properties based upon normalized earnings. Normalized earnings were represented by either 2026 or 2027 projected net operating income. Lastly, third-party appraisals were utilized for the value of the 2027 Senior Secured Notes collateral.²

[B] Liquidated Property Value: Liquidated property values reflect the value expected to be received assuming a forced sale and were informed by discussions with the Debtors who indicated various levels of discounts based on each collateral silo. These discounts ranged from 20% to 25% for the properties secured by the Mortgage Debt; 25% to 30% for the Secured Credit Facility first lien collateral; 25% to 30% for the March 2029 Senior Secured Notes first lien collateral; 35% to 40% for the September 2029 Senior Secured Notes first lien collateral; 35% to 40% for the 2027 Senior Secured Notes Claims first lien collateral; and 40% to 45% for the prepetition unencumbered assets.

These discounts consider the significant disruption a chapter 7 process would have on the portfolio (e.g., a chapter 7 trustee managing over 120 individual properties and sales processes, including likely tenant related issues), ongoing lease negotiation risk, the implications of an expedited sale timeline, and market saturation attributable to the full portfolio of investment properties entering a liquidation sales process concurrently. Many other market conditions could severely impact the amount of proceeds obtainable within the liquidation sales process that are unable to be quantified and could serve to severely degrade the value of the properties in an open market process. These conditions include, but are not limited to, limited marketing, lack of traditional financing, and uncertainty of the liquidation sales process.

[C] Real Estate Fees: In addition to the chapter 7 Trustee Fees and Chapter 7 Professional Fees (each as defined below) related to a hypothetical chapter 7 case, as the Debtors monetize real estate assets, additional fees will occur due to, among others, various real estate brokers, lawyers, and asset managers, responsible for finalizing the sale/liquidation of each property. Based on discussion with the Debtors, the estimated cost of such additional fees per real estate asset sale is 3% of the sales proceeds inclusive of broker fees, and additional fees associated with these transactions.

² All such third-party appraisals and the values from such appraisals incorporated in this Liquidation Analysis are preliminary drafts prepared in anticipation of litigation. Such values are subject to definitions, assumptions, and limiting conditions specified in the actual appraisal reports, which values and reports are subject to material revision. Such values are indicative and for purposes of this hypothetical Liquidation Analysis only and in no event should such values be separately used or considered. No party may use or rely on such values or conclusions expressed herein for any other purpose. The Debtors reserve all rights with respect to such values and the draft third-party appraisals from which they originate.

Chapter 7 Liquidation / Wind-Down Expenses

[D] Chapter 7 Trustee Fees and Professional Fees: Pursuant to sections 326 and 330 of the Bankruptcy Code, the Bankruptcy Court may allow reasonable compensation for the Trustee's services (the "***Trustee Fees***"). For purposes of this Liquidation Analysis, the Trustee Fees are estimated to be 2% of liquidation proceeds realized from the net property values illustrated above.

Pursuant to section 726 of the Bankruptcy Code, the allowed administrative expenses incurred by the Trustee, including expenses affiliated with selling/liquidating the Debtors' assets and winding down operations (the "***Chapter 7 Professional Fees***"), will be entitled to payment in full prior to any distribution to Administrative Claims and Other Priority Claims. These fees are based on expected fees and expenses of legal, financial, and other professionals as well as the complexity of the Debtors' liquidation and wind-down that the Debtors' estates may need to defend and pursue for purposes of settling Claim amounts and monetizing assets.

[E] Cash: The cash balance represents the estimated balance as of the Liquidation Date. A 100% recovery on cash and equivalents has been estimated for the low and high cases but has been offset for (a) restricted cash associated with security deposits as the properties are assumed to be operating through the relative sales and (b) accrued but unpaid professional fees.

Claims³

[F] Administrative Intercompany Claims: Administrative Intercompany Claims represent projected net claims held by Office Properties Income Trust against other Debtors through the Liquidation Date related to intercompany loans of the proceeds of the DIP Facility during the Chapter 11 Cases. Pursuant to the Final DIP Order and the Cash Management Order,⁴ these claims are entitled to superpriority administrative expense status. These claims are estimated to recover at 100%.

[G] Mortgage Debt Guarantee Claims: Mortgage Debt Guarantee Claims include estimated principal and accrued default interest as of the Liquidation Date and are secured through a first lien on the respective collateral (as defined in the UBS Loan Agreement and various JPM Loan Agreements). Holders of the Mortgage Debt Guarantee Claims are estimated to receive a 77.0%-91.8% recovery.

[H] Secured Credit Facility Claims: Secured Credit Facility Claims include estimated principal and accrued default interest as of the Liquidation Date and are secured through a first lien on the respective collateral (as defined in the

³ It is assumed solely for the purposes of the Liquidation Analysis that the default interest rates set forth in the applicable debt documents for the Mortgage Debt Guarantee Claims, the Secured Credit Facility Claims, the March 2029 Senior Secured Notes Claims, and the September 2029 Senior Secured Notes Claims apply. It is assumed solely for purposes of the Liquidation Analysis that the Holders of the 2027 Senior Secured Notes Claims will receive interest at a rate of 7.5%. The Debtors reserve all rights as to whether the default interest rates are allowed under any of the applicable debt facilities.

⁴ The "***Cash Management Order***" means the *Final Order (I) Authorizing Debtors to (A) Continue Existing Cash Management System, (B) Maintain Existing Business Forms and Intercompany Arrangements, and (C) Continue Intercompany Transactions; and (II) Granting Related Relief* [Docket No. 438].

Secured Credit Facility Agreement). Holders of the Secured Credit Facility Claims are estimated to receive an 84.0%-100.0% recovery.

[I] March 2029 Senior Secured Notes Claims: March 2029 Senior Secured Notes Claims include estimated principal, accrued default interest and make-whole premiums as of the Liquidation Date and are secured through a first lien on the respective collateral (as defined in the March 2029 Senior Secured Notes Indenture). Holders of the March 2029 Senior Secured Notes Claims are estimated to receive a 71.4%-86.5% recovery.⁵

[J] September 2029 Senior Secured Notes Claims: September 2029 Senior Secured Notes Claims include estimated principal, accrued default interest and make-whole premiums as of the Liquidation Date and are secured through a first lien on the respective collateral (as defined in the September 2029 Senior Secured Notes Indentures). The September 2029 Senior Secured Notes Claims also hold a second lien claim against the Secured Credit Facility collateral. Holders of the September 2029 Senior Secured Notes Claims are estimated to receive a 25.2%-32.2% recovery.

[K] 2027 Senior Secured Notes Claims: 2027 Senior Secured Notes Claims include estimated principal and accrued default interest and accrued professional fees as of the Liquidation Date and are secured through a first lien on the respective collateral (as defined in the 2027 Senior Secured Notes Indenture). The 2027 Senior Secured Notes Claims also maintain a second lien claim against the September 2029 Senior Secured Notes collateral. Holders of the 2027 Senior Secured Notes Claims are estimated to receive a 70.6%-96.3% recovery.⁶

[L] DIP Claims: DIP Claims include estimated principal and accrued interest as of the Liquidation Date and are secured through a first lien on the respective collateral (as defined in the DIP Credit Agreement). Holders of the DIP Claims are estimated to receive a 100% recovery.

[M] Unsecured Claims: Unsecured Claims are grouped into different categories consistent with the Plan and include the following: (i) Priority Guaranteed Unsecured Notes Claims; (ii) Unsecured Notes Claims; (iii) Parent General Unsecured Claims; (iv) Subsidiary General Unsecured Claims; and (v) any secured debt deficiency claims.⁷ See the tables above for the respective recoveries; the secured debt deficiency claim recoveries are factored into Notes H-L above.

⁵ It is assumed solely for the purposes of the Liquidation Analysis that the original issue discount and make-whole premiums (if any) under each of the March 2029 Senior Secured Notes and the September 2029 Senior Secured Notes is allowed. The Debtors reserve all rights as to whether all or any portion of such original issue discount or make-whole premium is allowed and, if allowed, how any such original issue discount or make-whole premium should be calculated.

⁶ There is a pending adversary proceeding regarding the amount of the 2027 Senior Secured Notes Claims and an appellate dispute regarding default interest and current payment of professional fees on the 2027 Senior Secured Notes. Accordingly, the estimation for the high scenario assumes a high likelihood of success in the 2027 Senior Secured Notes Claims Challenge while the low scenario assumes the 2027 Senior Secured Notes Claims Challenge is unsuccessful. This Liquidation Analysis assumes that approximately \$76.4 million of the 2027 Senior Secured Notes Claims related to original issue discount would be disallowed under the high scenario. The Debtors reserve all rights as to whether any such original issue discount is allowed and, if allowed, how any such original issue discount should be calculated.

⁷ Secured claims with deficiencies are expressed at their full claim value until the respective claim reaches a 100% recovery, if applicable.

Exhibit D

Financial Projections

FINANCIAL PROJECTIONS

In connection with the Disclosure Statement,¹ the Debtors, with the assistance of their advisors, prepared financial projections (the “**Financial Projections**”) for Office Properties Income Trust and its debtor affiliates (each, a “**Debtor**” and, collectively, the “**Debtors**”) for the period from May 1, 2026 through December 31, 2030 (the “**Projection Period**”) for the purpose of demonstrating the feasibility of the Plan. The Financial Projections are based upon a number of assumptions made by the Debtors and their advisors with respect to the future performance of the Debtors’ operations. **Although the Debtors have prepared the Financial Projections in good faith and believe the assumptions to be reasonable, there can be no assurance that such assumptions and results will be realized. As described in detail in the Disclosure Statement, a variety of risk factors could affect the Debtors’ financial results and must be considered. Accordingly, the Financial Projections should be reviewed in conjunction with the risk factors set forth in the Disclosure Statement and the assumptions described herein, including all relevant qualifications and footnotes.**

The Financial Projections are based upon the internal view of the Debtors’ management of the projected financial performance conducted before the filing of these Financial Projections and may differ methodologically from historical public reporting by the Debtors (e.g., the Financial Projections herein are not in accordance with GAAP accounting). The Debtors believe that the Plan meets the feasibility requirements set forth in section 1129(a)(11) of the Bankruptcy Code, as confirmation is not likely to be followed by liquidation or the need for further financial reorganization of the Debtors or any successor under the Plan. In connection with the planning and development of the Plan and for the purposes of determining whether the Plan would satisfy this feasibility standard, the Debtors analyzed their ability to satisfy their financial obligations while maintaining sufficient liquidity and capital resources.

These Financial Projections were not prepared with a view toward compliance with published guidelines of the United States Securities and Exchange Commission or guidelines established by the American Institute of Certified Public Accountants for preparation and presentation of prospective financial information. An independent auditor has not examined, compiled, or performed any procedures with respect to the prospective financial information contained in this exhibit and, accordingly, it does not express an opinion or any other form of assurance on such information or its achievability. The Debtors’ independent auditor assumes no responsibility for, and denies any association with, the prospective financial information.

Principal Assumptions for the Financial Projections

The Financial Projections reflect numerous assumptions with respect to the anticipated future performance of the Debtors, industry performance, general business and economic conditions, and other matters, many of which are beyond the control of the Debtors or their advisors. In addition,

¹ Capitalized terms used but not otherwise defined herein shall have the meaning ascribed to such terms in the Disclosure Statement to which this is an exhibit or the Plan, as applicable.

the assumptions do not take into account the uncertainty and disruption of business that may accompany a restructuring pursuant to the Bankruptcy Code.

Although the Financial Projections are presented with numerical specificity, the actual results achieved during the Projection Period may materially vary from the projected results. Accordingly, no definitive representation can be or is being made with respect to the accuracy of the Financial Projections or the ability of the Debtors to achieve the projected results of operations. See “Risk Factors” in Article IX of the Disclosure Statement. For holders of Claims that are entitled to vote to accept or reject the Plan, such holders must make their own determinations as to the reasonableness of such assumptions and the reliability of the Financial Projections. Moreover, the Financial Projections were prepared solely in connection with the restructuring pursuant to the Plan (the “**Restructuring**”).

In connection with the planning and development of the Plan, and for the purposes of determining whether such Plan would satisfy this feasibility standard, the Debtors analyzed their ability to satisfy their financial obligations while maintaining sufficient liquidity and capital resources. Under Accounting Standards Codification “ASC” 852, “Reorganizations,” the Debtors note that the Financial Projections reflect the Debtors’ operations at emergence from these Chapter 11 Cases but do not reflect the full impact of “fresh start accounting” that will likely be required upon emergence. Fresh start accounting requires all assets, liabilities, and equity instruments to be determined at “fair value.” In addition to valuing assets, liabilities, and equity instruments at fair value, the Debtors will have tax professionals analyze any go forward tax implications as a result of the transactions contemplated by the Restructuring. The Financial Projections account for the Restructuring and related transactions pursuant to the Plan, including the minimum REIT distributions, but they do not account for the final analysis that will be done upon emergence. While the Debtors expect that they will be required to implement fresh start accounting upon emergence, they have not yet completed the work required to quantify the impact to the Financial Projections. When the Debtors fully implement fresh start accounting, material differences may exist in the Financial Projections.

Safe Harbor under the Private Securities Litigation Reform Act of 1995

The Financial Projections contain statements which constitute “forward-looking statements” within the meaning of the Securities Act and the Securities Exchange Act. Forward-looking statements in the Financial Projections include the intent, belief, or current expectations of the Debtors with respect to the timing of, completion of, and scope of the current restructuring, Plan, debt and equity market conditions, and the Debtors’ future liquidity, as well as the assumptions upon which such statements are based.

While the Debtors believe that the expectations are based upon reasonable assumptions within the bounds of their knowledge of their business and operations, parties in interest are cautioned that any such forward-looking statements are not guarantees of future performance, and involve risks and uncertainties, and that actual results may differ materially from those contemplated by such forward-looking statements.

Select Risk Factors Related to the Financial Projections

The Financial Projections are subject to inherent risks and uncertainties, most of which are difficult to predict and many of which are beyond the Debtors' control. Many factors could cause actual results, performance, or achievements to differ materially from any future results, performance, or achievements expressed or implied by these forward-looking statements. A description of the risk factors associated with the Plan, the Disclosure Statement, and the Financial Projections is included in Article IX of the Disclosure Statement.

Financial Projections General Assumptions

1. The Financial Projections were prepared based on the Debtors' ownership shares in the investment properties and other assets. The Financial Projections also include revenue and expenses that flow to the Debtors from their non-Debtor subsidiaries that are either wholly owned by the Debtors or owned in a joint venture with third parties. Further, certain planned asset dispositions are included as described in the Financial Projections Line-Item Assumptions.
2. **Plan Terms and Consummation.** The Financial Projections assume the Restructuring will be consummated as of the Effective Date, which is assumed to occur on May 1, 2026.
3. **Reorganized Capital Structure.** Pursuant to the Plan, the Financial Projections assume the following changes to the Debtors' funded indebtedness:
 - a. The September 2029 Senior Secured Notes (including a principal balance of \$610 million) will be exchanged for, among other things, \$420 million of Secured Exit Notes due 2031 and Reorganized Common Equity pursuant to the Plan;
 - b. The 2027 Senior Secured Notes (including a principal balance of \$419 million) will be exchanged for, among other things, a \$385 million secured promissory note due 2029 (the "*New 2027 Senior Secured Notes*");
 - c. The DIP Facility (including a principal balance of \$125 million plus DIP Fee Claims) will be exchanged for Reorganized Common Equity and up to \$25 million in Cash;
 - d. The Unsecured Notes (including a principal balance of \$491 million) will be exchanged for Reorganized Common Equity pursuant to the Plan;
 - e. The March 2029 Senior Secured Notes, the Secured Credit Facility, and the Mortgage Debt will be reinstated or otherwise rendered unimpaired upon emergence.

Financial Projections Line-Item Assumptions

1. **Cash Basis Net Operating Income ("*Cash NOI*"):** Cash NOI is a non-GAAP metric defined as property operating revenues less property operating expenses. Property operating revenues include rental revenue from tenants and other income. Property operating expenses include property operations, real estate taxes, maintenance and repairs, and other property-related expenses. Cash NOI excludes certain non-cash adjustments to property operating revenues and property operating costs. The following reflects the

Debtors' forecast for Cash NOI: \$145 million for the period from May 2026 through December 2026; \$207 million for the year 2027; \$226 million for the year 2028; \$229 million for the year 2029; and \$231 million for the year 2030.

2. **Capital Expenditures (“Capex”)**: Projections for Capex were prepared with considerations of the Debtors' revenue and expected requirements to maintain asset values going forward. Capex is used for maintaining the Debtors' properties, developing and improving current properties, and tenant improvement allowances per various current and future leases.
 - a. **Building Capex**: Building improvements generally include expenditures to replace obsolete building components and expenditures that extend the useful life of existing assets.
 - b. **Leasing Capex**: Lease related costs generally include Capex used to improve tenants' space or amounts paid directly to tenants to improve their space and leasing related costs, such as brokerage commissions and other tenant inducements.
 - c. **Redevelopment Capex**: Development, redevelopment, and other activities generally include Capex projects that reposition a property or result in new sources of revenue.
3. **General and Administrative Expenses (“G&A”)**: G&A are the costs required to maintain the Company's daily operations. These costs include, but are not limited to, monthly business management fees paid to RMR pursuant to the applicable RMR Management Agreement and other costs such as third-party legal and accounting fees. It is assumed that the Company emerges from bankruptcy as a private company. If the Company emerges as a publicly traded Company instead, there will likely be additional costs relative to those included in this analysis. The Debtors have excluded depreciation and amortization from the Financial Projections, as they have not yet completed the final analysis of fresh start accounting.
4. **Dispositions**: Includes estimated net proceeds from the disposition of approximately thirty (30) properties. While it is assumed that the Debtors will generate \$273 million in proceeds from the sale of these properties in the fourth quarter of 2026, the amount and timing of such proceeds is uncertain and may be affected by a variety of factors. *See* “Risk Factors” in Article IX of the Disclosure Statement.

There could be material adverse tax consequences on asset dispositions. These tax consequences could have a material impact on the amount of net proceeds received and, as discussed in further detail below, the level of required REIT distributions.

5. **Principal Payments**: Includes payments of principal in accordance with the Debtors' post-emergence capital structure. The Financial Projections assume \$273 million in disposition proceeds in the fourth quarter of 2026, of which \$139 million is assumed to fund: (a) a \$10 million payment of certain support fees to the 2027 Ad Hoc Group; (b) a \$50 million paydown of the principal amount of the New 2027 Senior Secured Notes; and (c) a \$79 million additional paydown of principal amount of the New 2027 Senior Secured Notes, in

each case in accordance with the New 2027 Senior Secured Notes Documents to be entered into by the Debtors or the Reorganized Debtors, as applicable, pursuant to the Plan. \$118 million of the \$273 million in assumed disposition proceeds is assumed to fund the paydown of the Secured Exit Notes due 2031.

6. **Interest Payments:** Includes payments of interest in accordance with the Debtors' post-emergence capital structure. The Financial Projections assume that all debt is refinanced with the same terms at maturity.
7. **Dividends / Distributions:** To qualify as a REIT under the IRC, OPI must, among other things, make distributions to its shareholders aggregating annually to at least 90% of OPI's REIT taxable income, as determined under the IRC. Further, OPI must distribute 100% of OPI's REIT taxable income to avoid paying corporate income tax on undistributed income. The Financial Projections assume that any ownership change attributable to the consummation of the Plan meets the requirements of, and the Debtors apply, Section 382(l)(5) of the IRC, in which case the Debtors do not project taxable income in any year during the Projection Period. Accordingly, no REIT distributions are included in the Financial Projections. If the consummation of the Plan does not meet the requirements of Section 382(l)(5) of the IRC, OPI would be required to make additional REIT distributions to maintain its status as a REIT and avoid paying corporate income tax on undistributed income.

The foregoing is subject to material change pending final tax analysis of the restructuring transaction and any potential impacts from asset dispositions.

8. **Beginning Cash Balance:** Includes projected unrestricted cash as of May 1, 2026 based on the Approved Budget (as defined in the Final DIP Order) dated February 26, 2026, estimated Exit Costs, and \$35 million in proceeds from the Equity Rights Offering.

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Statements of Operations:

	<i>F'cst</i> May-Dec '26	<i>F'cst</i> 2027	<i>F'cst</i> 2028	<i>F'cst</i> 2029	<i>F'cst</i> 2030
Property Revenue	283,830	385,086	409,212	416,629	424,136
(-) Property Operating Expenses	(138,330)	(178,498)	(183,573)	(187,858)	(192,730)
Cash Basis Net Operating Income	145,499	206,588	225,639	228,772	231,406
(-) Building Capex	(7,742)	(10,806)	(15,432)	(15,293)	(19,631)
(-) Leasing Capex	(31,217)	(72,156)	(51,459)	(44,318)	(53,111)
(-) Redevelopment Capex	(1,254)	-	-	-	(368)
Total Capex	(40,213)	(82,962)	(66,890)	(59,611)	(73,110)
(-) G&A	(11,333)	(17,000)	(17,000)	(17,000)	(17,000)
(+) Dispositions	272,925	-	-	-	-
Unlevered Free Cash Flows	366,878	106,626	141,749	152,161	141,296
(-) Principal Payments	(257,923)	-	(122)	(277)	(298)
(-) Interest Payments	(80,078)	(125,344)	(122,798)	(123,314)	(123,972)
Levered Free Cash Flows	28,877	(18,718)	18,829	28,570	17,026
(-) Dividends / Distributions	-	-	-	-	-
Net Cash Flow	28,877	(18,718)	18,829	28,570	17,026
Beginning Cash Balance	40,000	68,877	50,159	68,988	97,558
(+) Net Cash Flow	28,877	(18,718)	18,829	28,570	17,026
Ending Cash Balance	68,877	50,159	68,988	97,558	114,584
<u>Memo: Indebtedness (End of Period)</u>					
<i>Mortgage Debt</i>	177,320	177,320	177,198	176,921	176,623
<i>Corporate Debt</i>	1,282,077	1,282,077	1,282,077	1,282,077	1,282,077
<i>Total Debt</i>	1,459,397	1,459,397	1,459,275	1,458,998	1,458,700
<i>(-) Cash</i>	(68,877)	(50,159)	(68,988)	(97,558)	(114,584)
<i>Net Debt</i>	1,390,520	1,409,238	1,390,287	1,361,440	1,344,116
<i>EBITDA (Cash NOI less G&A)</i>	<i>n/m</i>	189,588	208,639	211,772	214,406
Leverage (Net Debt / EBITDA)	<i>n/m</i>	7.4x	6.7x	6.4x	6.3x
<i>EBITDA (Cash NOI less G&A)</i>	<i>n/m</i>	189,588	208,639	211,772	214,406
<i>Debt Service</i>	<i>n/m</i>	125,344	122,920	123,591	124,270
Debt Service Coverage Ratio	<i>n/m</i>	1.5x	1.7x	1.7x	1.7x

Exhibit E

Valuation Analysis

Exhibit E: Reorganized Debtors' Valuation Analysis¹

THE VALUATION INFORMATION CONTAINED HEREIN IS NOT A PREDICTION OR GUARANTEE OF THE ACTUAL MARKET VALUE THAT MAY BE REALIZED THROUGH THE SALE OF ANY SECURITIES TO BE ISSUED PURSUANT TO THE PLAN. THIS VALUATION IS PRESENTED SOLELY FOR THE PURPOSE OF PROVIDING ADEQUATE INFORMATION AS REQUIRED BY SECTION 1125 OF THE BANKRUPTCY CODE TO ENABLE THE HOLDERS OF CLAIMS ENTITLED TO VOTE TO ACCEPT OR REJECT THE PLAN TO MAKE AN INFORMED JUDGMENT ABOUT THE PLAN AND SHOULD NOT BE USED OR RELIED UPON FOR ANY OTHER PURPOSE, INCLUDING THE PURCHASE OR SALE OF CLAIMS AGAINST OR INTERESTS IN THE DEBTORS.

At the Debtors' request, Moelis & Company LLC ("**Moelis**") performed a valuation analysis to estimate the enterprise value of the Reorganized Debtors on a going concern basis as of May 1, 2026 (the "**Enterprise Value**"). For purposes of this Valuation Analysis, the term "Reorganized Debtors" includes each of the Debtors from and after the Effective Date.

The valuation analysis set forth herein (this "**Valuation Analysis**") is based on the business plan prepared by the Debtors' management.

Based upon and subject to the review and analysis described herein, and subject to the assumptions, limitations and qualifications described herein, Moelis' view, as of February 11, 2026, was that the Enterprise Value of the Reorganized Debtors, as of an assumed valuation date, for purposes of Moelis' valuation analysis, of May 1, 2026 (the "**Assumed Valuation Date**"), would be in a range between \$2,050 million and \$2,250 million. After adjusting for expected net debt, the implied equity value (the "**Equity Value**") would be in a range between \$343 million and \$543 million.

Moelis' views are necessarily based on economic, monetary, market, and other conditions as in effect on, and the information made available to Moelis as of the date of its analysis (February 11, 2026). It should be understood that, although subsequent developments may affect Moelis' views, Moelis does not have any obligation to update, revise, or reaffirm its analysis or its estimate.

Moelis' analysis is based, at the Debtors' direction, on a number of assumptions, including, among other assumptions, that: (a) the Debtors will be reorganized in accordance with the Plan, which will be effective on the Assumed Valuation Date; (b) the Reorganized Debtors will achieve the results set forth in the Debtors' management's financial projections attached as Exhibit D to this Disclosure Statement (the "**Financial Projections**") for 2026 through 2030 (the "**Projection Period**") provided to Moelis by the Debtors; (c) the Reorganized Debtors' capitalization and available cash will be as set forth in the Plan and this Disclosure Statement; (d) the Reorganized Debtors will sell assets in line with the dispositions schedule provided to Moelis by the Debtors; and (e) the Reorganized Debtors will be able to obtain all future financings, on the terms and at the times, necessary to achieve the results set forth in the Financial Projections. Moelis makes no representation as to the achievability or reasonableness of such assumptions. In addition, Moelis assumed that there will be no material change in economic, monetary, market, and other conditions as in effect on, and the information made available to Moelis, as of the Assumed Valuation Date.

¹ Capitalized terms used but not otherwise defined herein shall have the meanings ascribed to them in Plan.

Moelis assumed, at the Debtors' direction, that the Financial Projections prepared by the Debtors' management were reasonably prepared on a basis reflecting the Debtors' management's best currently available estimates and judgments of the Debtors' management as to the future financial and operating performance of the Reorganized Debtors. The future results of the Reorganized Debtors are dependent upon various factors, many of which are beyond the control or knowledge of the Debtors, and consequently are inherently difficult to project. The Reorganized Debtors' actual future results may differ materially (positively or negatively) from the Financial Projections and, as a result, the actual enterprise value and/or equity value of the Reorganized Debtors may be materially higher or lower than the estimated range herein. Among other things, failure to consummate the Plan in a timely manner may have a materially negative impact on the enterprise value and/or equity value of the Reorganized Debtors.

The estimated Enterprise Value and Equity Value set forth above represent hypothetical enterprise value and equity value of the Reorganized Debtors as the continuing operators of the business and assets of the Debtors, after giving effect to the Plan, based on consideration of certain valuation methodologies as described below. The estimated Enterprise Value and Equity Value in this section do not purport to constitute an appraisal or necessarily reflect the actual market values that might be realized through a sale or liquidation of the Reorganized Debtors, their securities or their assets, which may be materially higher or lower than the estimated value ranges herein. The actual value of an operating business such as the Reorganized Debtors' business is subject to uncertainties and contingencies that are difficult to predict and will fluctuate with changes in various factors affecting the financial condition and prospects of such a business.

In conducting its analysis, Moelis, among other things: (a) reviewed certain publicly available business and financial information relating to the Reorganized Debtors that Moelis deemed relevant (*i.e.*, historical filings, court filings, information as part of the current Chapter 11 process, etc.); (b) reviewed Financial Projections, furnished to Moelis by the Debtors; (c) reviewed the projected capitalization of the Reorganized Debtors; (d) conducted discussions with members of senior management and representatives of the Debtors concerning the matters described in clauses (a) through (c) of this paragraph, as well as their views concerning the Debtors' business and prospects before giving effect to the Plan, and the Reorganized Debtors' business and prospects after giving effect to the Plan; (e) reviewed publicly available financial and stock market data for certain other companies in lines of business that Moelis deemed relevant; (f) reviewed publicly available financial data for certain transactions that Moelis deemed relevant; and (g) conducted such other financial studies and analyses and took into account such other information as Moelis deemed appropriate. In connection with its review, Moelis did not assume any responsibility for independent verification of any of the information supplied to, discussed with, or reviewed by Moelis and, with the consent of the Debtors, relied on such information being complete and accurate in all material respects. In addition, at the direction of the Debtors, Moelis did not make any independent evaluation or appraisal of any of the assets or liabilities (contingent, derivative, off-balance- sheet, tax-related or otherwise) of the Reorganized Debtors. Moelis also assumed, with the Debtors' consent, that the final form of the Plan does not differ in any respect material to its analysis from the final draft of the Plan that Moelis reviewed.

The estimated Enterprise Value and Equity Value in this section do not constitute a

recommendation to any Holder of a Claim or Interest as to how such Holder of a Claim or Interest should vote or otherwise act with respect to the Plan. Moelis has not been asked to and does not express any view as to what the trading value of the Reorganized Debtors' securities would be when issued pursuant to the Plan or the prices at which they may trade in the future. The estimated Enterprise Value and Equity Value set forth herein do not constitute an opinion as to fairness from a financial point of view to any Holder of a Claim or Interest of the consideration to be received by such Holder of a Claim or Interest under the Plan, if any, or of the terms and provisions of the Plan.

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Valuation Methodologies

In preparing its valuation, Moelis performed a variety of financial analyses and considered a variety of factors. The following is a brief summary of the material financial analyses performed by Moelis, which consisted of: (a) a discounted cash flow analysis; (b) a selected publicly traded companies analysis; and (c) a selected transactions analysis. This summary does not purport to be a complete description of the analyses performed and factors considered by Moelis. The preparation of a valuation analysis is a complex analytical process involving various judgmental determinations as to the most appropriate and relevant methods of financial analysis and the application of those methods to particular facts and circumstances, and such analyses and judgments are not readily susceptible to summary description. As such, Moelis' valuation analysis must be considered as a whole. Reliance on only one of the methodologies used, or portions of the analysis performed, could create a misleading or incomplete conclusion as to enterprise value.

A. Discounted Cash Flow Analysis. The discounted cash flow ("**DCF**") analysis is a valuation methodology that estimates the value of an asset or business by calculating the present value of expected future cash flows to be generated by that asset or business plus a present value of the estimated terminal value of that asset or business. Moelis' DCF analysis used the Financial Projections' estimated debt-free, after-tax free cash flows through December 31, 2030. These cash flows were then discounted at a range of estimated weighted average costs of capital ("**Discount Rate**") for the Reorganized Debtors. The Discount Rate reflects the estimated blended rate of return that would be expected by debt and equity investors in the Reorganized Debtors' business based on a target capital structure. In determining the estimated terminal value of the Reorganized Debtors, Moelis utilized the implied cap rate method which estimates a range of values for the Reorganized Debtors at the end of the Projection Period based on applying a range of cap rates to final year net operating income. In estimating a range of cap rates for its DCF analysis, Moelis took into account (a) the Debtors' growth, profitability and free cash flow profile in the terminal period; and (b) market cap rates (calculated as net operating income divided by market value of real estate) of selected publicly traded real estate investment trusts ("**REITs**") deemed generally relevant by Moelis that own predominately office real estate in the United States, with a focus on REITs with exposure to low-barrier-to-entry markets that have operating and financial characteristics comparable in certain respects to the Reorganized Debtors. For example, such characteristics may include similar size, financial leverage, business model, geographic footprint, tenant characteristics, and asset profile.

To determine the Discount Rate, Moelis used the estimated cost of equity and the estimated after-tax cost of debt for the Reorganized Debtors, assuming a targeted, long-term, debt-to-total capitalization ratio (based on debt-to-capitalization ratios of the selected publicly traded companies and the proposed capital structure contemplated by the Plan). Moelis calculated the cost of equity based on (a) the capital asset pricing model, which assumes that the expected equity return is a function of the risk-free rate, equity risk premium, and the correlation of the stock performance of the selected publicly traded companies to the return on the broader market, and (b) an adjustment related to the estimated equity market capitalization of the Reorganized Debtors, which reflects the historical equity risk premium of small, medium, and large equity market capitalization companies. To estimate the cost of debt, Moelis held

discussions with its capital markets team and determined a cost of debt rate based on the Reorganized Debtors' size, industry, geographic footprint, cash flow profile as well as the current market environment, long-term corporate credit spreads for secured debt and an understanding of certain existing OPI debt instruments. Moelis utilized the Debtors' management's assumptions in determining a go-forward tax rate.

- B. *Selected Publicly Traded Companies Analysis*** The selected publicly traded companies analysis is based on the market cap rates (calculated as net operating income divided by market value of real estate) of selected publicly traded REITs deemed generally relevant by Moelis that own predominately office real estate in the United States, with a focus on REITs with exposure to low-barrier-to-entry markets that have operating and financial characteristics comparable in certain respects to the Reorganized Debtors. For example, such characteristics may include similar size, financial leverage, business model, geographic footprint, tenant characteristics, and asset profile. Under this methodology, Moelis applied a relevant cap rate range to the Reorganized Debtors' pro rata net operating income to derive a range of potential values of the business of the Reorganized Debtors.

Although the selected companies were used for comparison purposes, no selected publicly traded company is either identical or directly comparable to the business of the Reorganized Debtors. Accordingly, Moelis' comparison of selected publicly traded companies to the business of the Reorganized Debtors and analysis of the results of such comparisons was not purely mathematical, but instead involved considerations and judgments concerning differences in operating and financial characteristics and other factors that could affect the relative values of the selected publicly traded companies and the Reorganized Debtors. The selection of appropriate companies for this analysis is a matter of judgment and subject to limitations due to sample size and the public availability of meaningful market-based information.

- C. *Selected Transactions Analysis*** The selected transactions analysis is based on the implied cap rates for selected publicly disclosed merger-and-acquisition transactions for REITs deemed generally relevant by Moelis in certain aspects to this transaction for which the targets had operating, portfolio, and financial characteristics comparable in certain respects to the Reorganized Debtors. Under this methodology, Moelis applied a relevant cap rate range to the Reorganized Debtors' pro rata net operating income to derive a range of potential values of the business of the Reorganized Debtors. Moelis analyzed various merger and acquisition transactions that have occurred in the office REIT sector since 2020.

Although the selected precedent transactions were used for comparison purposes, no company included in the selected precedent transaction analysis is either identical or directly comparable to the business of the Reorganized Debtors. Accordingly, Moelis' comparison of selected precedent transactions to the business of the Reorganized Debtors and analysis of the results of such comparisons was not purely mathematical, but instead involved considerations and judgments concerning differences in operating and financial characteristics and other factors that could affect the relative values implied by the selected precedent transactions analysis and the Reorganized Debtors. The selection of appropriate transactions for this analysis is a matter of judgment and subject to limitations due to sample size and the public availability of

meaningful market-based information.

Other factors not directly related to a company's business operations can affect a valuation in a transaction, including, among others factors, the following: (a) circumstances surrounding a merger transaction may introduce "diffusive quantitative results" into the analysis (e.g., a buyer may pay an additional premium for reasons that are not solely related to competitive bidding); (b) the market environment is not identical for transactions occurring at different periods of time; (c) circumstances pertaining to the financial position of the company may have an impact on the resulting purchase price (e.g., a company in financial distress may receive a lower price due to perceived weakness in its bargaining leverage); and (d) the ongoing tax environment at the time of the transaction.

Reorganized Debtors—Valuation Considerations

The estimated Enterprise Value and Equity Value in this section is not necessarily indicative of actual value, which may be significantly higher or lower than the ranges set forth herein. Accordingly, none of the Debtors, Moelis or any other person assumes responsibility for the accuracy of such estimated Enterprise Value. Depending on the actual financial results of the Debtors or changes in the economy and the financial markets, the equity value of the Reorganized Debtors as of the Assumed Valuation Date may differ from the estimated Equity Value set forth herein. In addition, the market prices, to the extent there is a market, of Reorganized Debtors' securities will depend upon, among other things, prevailing interest rates, conditions in the economy and the financial markets, the investment decisions of prepetition creditors receiving such securities under the Plan (some of whom may prefer to liquidate their investment rather than hold it on a long-term basis), changes in federal and state regulations, and other factors that generally influence the prices of securities.